

SUMMARY OF LEGISLATION

2017

LEGISLATIVE POLICY AND RESEARCH OFFICE
79TH. LEGISLATIVE ASSEMBLY

2017 SUMMARY OF LEGISLATION

79TH OREGON LEGISLATIVE ASSEMBLY

A publication of the Oregon Legislative Policy and Research Office

The Oregon Legislative and Policy Research Office (LPRO) provides centralized, professional and nonpartisan research, issue analysis and committee management services for the Legislative Assembly.

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Misty Mason Freeman	Shelley Raszka	

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ABOUT THE SUMMARY OF LEGISLATION

The 2017 Summary of Legislation summarizes selected measures that were considered by the 79th Oregon Legislative Assembly, including bills, memorials, and resolutions. In addition, this publication provides a legislative member directory, district maps, and committee membership lists.

Measure summaries are organized into chapters by policy areas. Each chapter begins with a table of contents that lists all measures by subtopics and a table that highlights measures that establish task forces or create reporting requirements. The summaries of selected measures follow in three groups—bills, memorials, and resolutions—each listed in numerical order.

Each summary provides information about the chief sponsors, committees assigned, background and current law, description of the measure, and dates when enacted measures become effective. Each summary also includes a link to the measure on the [Oregon Legislative Information System \(OLIS\)](#), which provides a more comprehensive staff measure summary, all versions of the measure introduced, amendments, public testimony, a complete measure history, and final vote tallies.

Users may search for individual measures by keyword or measure number and may consult the [conversion table](#) for the Oregon Laws 2017 chapter numbers.

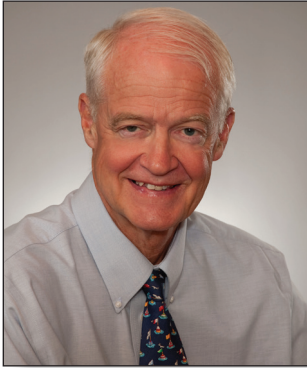
The 2017 Summary of Legislation focuses on policy measures. Information on revenue measures is available on the [Legislative Revenue Office website](#). Information on the state budget and selected legislation that impacts state agencies is available on the [Legislative Fiscal Office website](#).

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www.oregonlegislature.gov/lpro

2017 LEGISLATIVE SESSION YEARBOOK

SENATE MEMBERSHIP

**Senate President
Peter Courtney**



- Betsy Imholt, Chief of Staff
- Anna Braun, Legislative Director
- Lisa Herzog, Assistant Legislative Director
- Robin Maxey, Communications Director
- Jessica Wangler, Office Manager
- Debbie Miller, Director of Operations

**Senate Democratic Leader
Ginny Burdick**



- Tom Powers, Caucus Administrator
- Rick Osborn, Communications Director
- Carol Suzuki, Operations Director
- Emily Knobbe, Policy Advisor
- Dominique Rossi, Policy Advisor
- Stephen Watson, Legislative Assistant
- Paul Comery, Office Coordinator

**Senate Republican Leader
Ted Ferrioli**



- Paul Rainey, Chief of Staff
- Andrew Downs, Legal Director
- Jonathan Lockwood, Communications Director
- Andrea Chiapella, Senior Policy Analyst
- Megan Chrisman, Policy Analyst
- Tayleranne Gillespie, Member Services Coordinator
- Becky Sterup, Reception & Constituent Services
- Rita Westfall, Reception/Scheduler

Senator Herman Baertschiger Jr. (R)



- Michael Sellers, Chief of Staff
- Andrew Mittendorf, Senior Legislative Assistant
- Ashley Evans, Legislative Assistant

Senator Lee Beyer (D)



- Celine Swenson Harris, Legislative Assistant
- Keely Benedict, Legislative Assistant

Senator Brian Boquist (R)



- Peggy Boquist, Legislative Assistant
- Jim Williams, Legislative Assistant

Senator Alan DeBoer (R)



- Scott Jorgensen, Chief of Staff

Senator Michael Dembrow (D)



- Logan Gilles, Chief Policy Advisor
- Elisabeth Swarttouw, Legislative Assistant

Senator Richard Devlin (D)



- Morgan Gratz-Weiser, Chief of Staff
- Megan Gleason, Legislative Assistant

Senator Lew Frederick (D)



- Troy Duker, Legislative Director
- Glen Claybrooks, Legislative Assistant

Senator Sara Gelser (D)



- Angela Donley, Chief of Staff
- Brittany Hope, Legislative Assistant
- Brittany MacPherson, Legislative Assistant

Senator Fred Girod (R)



- Lori Girod, Legislative Assistant

Senator Bill Hansell (R)



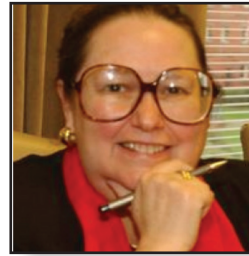
- Branden Pursinger, Legislative Director
- Ann Rava, Legislative Assistant

Senator Mark Hass (D)



- Derek Sangston, Legislative Assistant
- Zoie Wesenberg, Legislative Assistant

Senator Betsy Johnson (D)



- John Helm, Chief of Staff
- Whitney Padilla, Legislative Assistant

Senator Tim Knopp (R)



- Bill Newell, Legislative Director
- Daniel Knopp, Legislative Assistant

Senator Jeff Kruse (R)



- Alexandria Smith, Legislative Assistant

Senator Dennis Linthicum (R)



- Diane Linthicum, Chief of Staff

Senator James Manning Jr. (D)



- Kevin Cronin, Chief of Staff
- Lawanda Manning, Legislative Assistant

Senator Laurie Monnes Anderson (D)



- Mathew Anderson, Legislative Assistant
- Tom Bluth, Legislative Assistant

Senator Rod Monroe (D)



- Billie Monroe, Legislative Assistant
- Ally Zanotti, Legislative Assistant

Senator Alan Olsen (R)



- Tony Miller, Chief of Staff
- Sandy Flicker, Office Manager

Senator Floyd Prozanski (D)



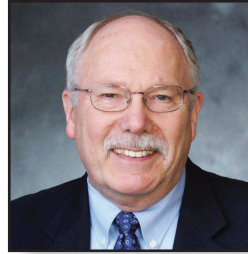
- Kevin Moore, Legislative Assistant
- Susan Prozanski, Legislative Assistant

Senator Chuck Riley (D)



- Linda Ray-Keeney, Chief of Staff
- Melissa Walton Hendricks, Legislative Assistant

Senator Arnie Roblan (D)



- Rosie Shatkin, Legislative Assistant
- Emily Marchant, Legislative Assistant

Senator Elizabeth Steiner Hayward (D)



- Lizzy Atwood Wills, Chief of Staff
- Ellie Forness, Legislative Assistant

Senator Kathleen Taylor (D)



- Amanda Kraus, Legislative Assistant
- Michelle Hansmann, Legislative Assistant

Senator Kim Thatcher (R)



- Linda Heimdahl, Chief of Staff
- Justin Brecht, Policy and Media Director

Senator Chuck Thomsen (R)



- John Swanson, Legislative Assistant

Senator Jackie Winters (R)



- Lyn Horine, Legislative Assistant
 - Pamela McClain, Legislative Assistant
-

HOUSE MEMBERSHIP

House Speaker Tina Kotek



- Tim Inman, Chief of Staff
- Greg Alderson, Legislative Director
- Kathleen Hallgren, Deputy Legislative Director
- Lindsey O'Brien, Communications Director
- Annette Rose, Office Manager/Scheduler
- Kristina Narayan, Policy Advisor
- Taylor SmileyWolfe, Policy Advisor
- AmyBeth Stevens, Legislative Assistant
- Cheyenne McPherson, Legislative Assistant
- Adam Villarreal, Receptionist

House Democratic Leader Jennifer Williamson



- Andrea Cooper, Chief of Staff
- Anna Pycior, Legislative Director
- Aaron Fiedler, Deputy Legislative Director
- Ethan Krow, Outreach Coordinator
- Scott Moore, Communications Director
- Jennifer Ranstrom-Smith, Office Manager/Scheduler
- Bailey Dahlke, Legislative Assistant

House Republican Leader Mike McLane



- Mike Carew, Chief of Staff
- Kevin Johnston, Legal Director
- Natalie Offenbecher, Coalitions Director
- Chase Tedrow, Legislative Director
- Hugh Ady, Budget and Policy Analyst
- Nicole Crane, District Outreach
- Preston Mann, Communications Director
- Lauren Kuenzi, Legislative Assistant
- Holly McLane, Legislative Assistant

Representative Teresa Alonso León (D)



- Audrey Mechling, Chief of Staff
- Leann Knapp, Legislative Assistant

Representative Jeff Barker (D)



- Alan Fleischman, Legislative Assistant

Representative Phil Barnhart (D)



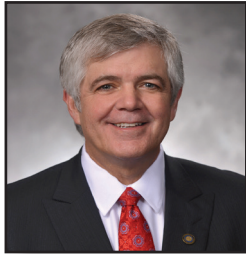
- Michael Burdick, Legislative Assistant
- Ryan Kounovsky, Legislative Assistant

Representative Greg Barreto (R)



- Chris Barreto, Chief of Staff
- Vicki Olson, Legislative Assistant
- Shawne Sweeney, Legislative Assistant

Representative Cliff Bentz (R)



- Jessie Brockway, Legislative Director
- Andrea Dominguez, District Director
- Nick Rhoten, Legislative Assistant/Scheduler

Representative Deborah Boone (D)



- Josette Hugo, Legislative Assistant
- Barbara Trout, Legislative Assistant

Representative Knute Buehler (R)



- Jordan Conger, Chief of Staff
- Quinn Burket, Legislative Assistant

Representative Janelle Bynum (D)



- Jack Polales, Chief of Staff
- Brit McLean, Legislative Director

Representative Brian Clem (D)



- Dan Balm, Chief of Staff

Representative Margaret Doherty (D)



- Taylor Sarman, Chief of Staff
- Lily Dorn, Legislative Assistant

Representative Sal Esquivel (R)



- Jan Esquivel, Legislative Assistant

Representative Paul Evans (D)



- Evan Sorce, Chief of Staff
- Alex Kohan, Legislative Assistant

Representative Julie Fahey (D)



- Jake Foster, Lead Legislative Assistant
- Ira Zimmermann, Legislative Assistant

Representative David Gombert (D)



- Kyle Linhares, Chief of Staff
- Amy Enbysk, Legislative Assistant

Representative Chris Gorsek (D)



- Jason Hitzert, Legislative Director

Representative Mitch Greenlick (D)



- Harriet Greenlick, Office Manager
- Travis Meuwissen, Legislative Assistant

Representative Jodi Hack (R)



- Derry Breeden, Chief of Staff
- Mary Richards, Legislative Assistant

Representative Cedric Hayden (R)



- CL Hayden, Chief of Staff
- Tina Parrett, Chief of Staff
- Austin Parrett, Legislative Assistant

Representative Dallas Heard (R)



- Jameson Gideon, Chief of Staff
- Hannah Heard, Legislative Assistant

Representative Ken Helm (D)



- Greg Mintz, Legislative Director
- David Bon, Environmental Caucus Law Clerk
- Cooper Warner, Legislative Assistant

Representative Diego Hernandez (D)



- Adriana Miranda, Chief of Staff
- Monique Smiley, Legislative Assistant

Representative Paul Holvey (D)



- Robert Unger, Chief of Staff
- Cassidy Valenzuela, Legislative Assistant

Representative John Huffman (R)



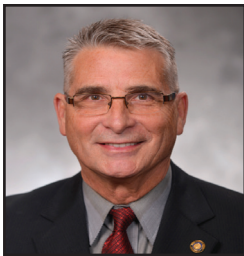
- Korina Huffman, Legislative Assistant

Representative Mark Johnson (R)



- Cassie Hayt, Chief of Staff

Representative Bill Kennemer (R)



- Diane Martz, Legislative Assistant
- Cherie McGinnis, Legislative Assistant

Representative Alissa Keny-Guyer (D)



- Jen Corbridge, Legislative Assistant
- Erika Hoover, Legislative Assistant

Representative Rick Lewis (R)



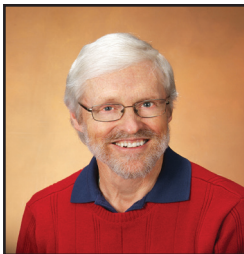
- Cindy Jones, Director of Constituent Services
- Dylan Frederick, Legislative Assistant

Representative Ann Lininger (D)



- Allan VanVliet, Chief of Staff
- Mark Bond, Legislative Assistant

Representative John Lively (D)



- Andrew Hickerson, Legislative Assistant
- Shawn Stevenson, Legislative Assistant

Representative Sheri Malstrom (D)



- Derek Olson, Chief of Staff
- Kelly Smith, Health Care Policy Advisor
- Carl Fisher, Legislative Assistant

Representative Pam Marsh (D)



- Nolan Plese, Legislative Director
- Molly McGuire, Legislative Assistant

Representative Caddy McKeown (D)



- Meliah Masiba, Chief of Staff
- Reyna Aguiar, Legislative Assistant

Representative Susan McLain (D)



- Sofia Doble, Legislative Assistant
- Nicole Stoenner, Chief of Staff

Representative Mark W. Meek (D)



- Marty Carty, Chief of Staff
- Marcus Sis, Legislative Assistant

Representative Nancy Nathanson (D)



- John Bain, Legislative Assistant
- Shawneen O'Brien-Lee, Legislative Assistant

Representative Mike Nearman (R)



- Becky Mitts, Chief of Staff
- Angela Roman, Policy Analyst

Representative Ron Noble (R)



- James Ramos, Legislative Director
- Pam Thompson, Chief of Staff

Representative Rob Nosse (D)



- Tom Crawford, Legislative Assistant
- Ivy Jones, Legislative Assistant

Representative Andy Olson (R)



- Abby Weekly, Legislative Director

Representative Julie Parrish (R)



- Mark Parrish, Deputy Legislative Director
- Jennifer Waggoner, Legislative Assistant

Representative Carla Piluso (D)



- Emily Langston, Chief of Staff
- Rachel Gowland, Legislative Assistant

Representative Bill Post (R)



- Betsy Schultz, Chief of Staff

Representative Karin A. Power (D)



- Samantha Gladu, Chief Policy Advisor
- Alexa Jakusovsky, Legislative Aide

Representative Dan Rayfield (D)



- Tony Lapid, Legislative Assistant
- Jesse Smith, Legislative Assistant

Representative Jeff Reardon (D)



- Christina Cloyd, Chief of Staff

Representative E. Werner Reschke (R)



- Gin Reschke, Chief of Staff

Representative Tawna D. Sanchez (D)



- Adam Walsh, Legislative Director
- William Miller, Legislative Assistant

Representative David Brock Smith (R)



- Shelia Megson, Chief of Staff
- Marc Miller, Legislative Assistant

Representative Greg Smith (R)



- Phillip Scheuers, Legislative Assistant
- Vivian Smith, Legislative Assistant

Representative Barbara Smith Warner (D)



- Chloe Becker, Policy Director
- Zoe Bluffstone, Legislative Assistant

Representative Janeen A. Sollman (D)



- Drew Cummins, Legislative Assistant
- Austin Palacios, Legislative Assistant

Representative Sherrie Sprenger (R)



- Rachel Bruce, Legislative Assistant
- Celia Funk, Legislative Assistant

Representative Duane Stark (R)



- Dusti Stark, Legislative Assistant
- Natalie Offenbecher, Legislative Assistant

Representative A. Richard Vial (R)



- Michelle Felton, Legislative Director
- Caleb Huegel, Legislative Assistant

Representative Gene Whisnant (R)



- Josie Whisnant, Legislative Assistant

Representative Carl Wilson (R)



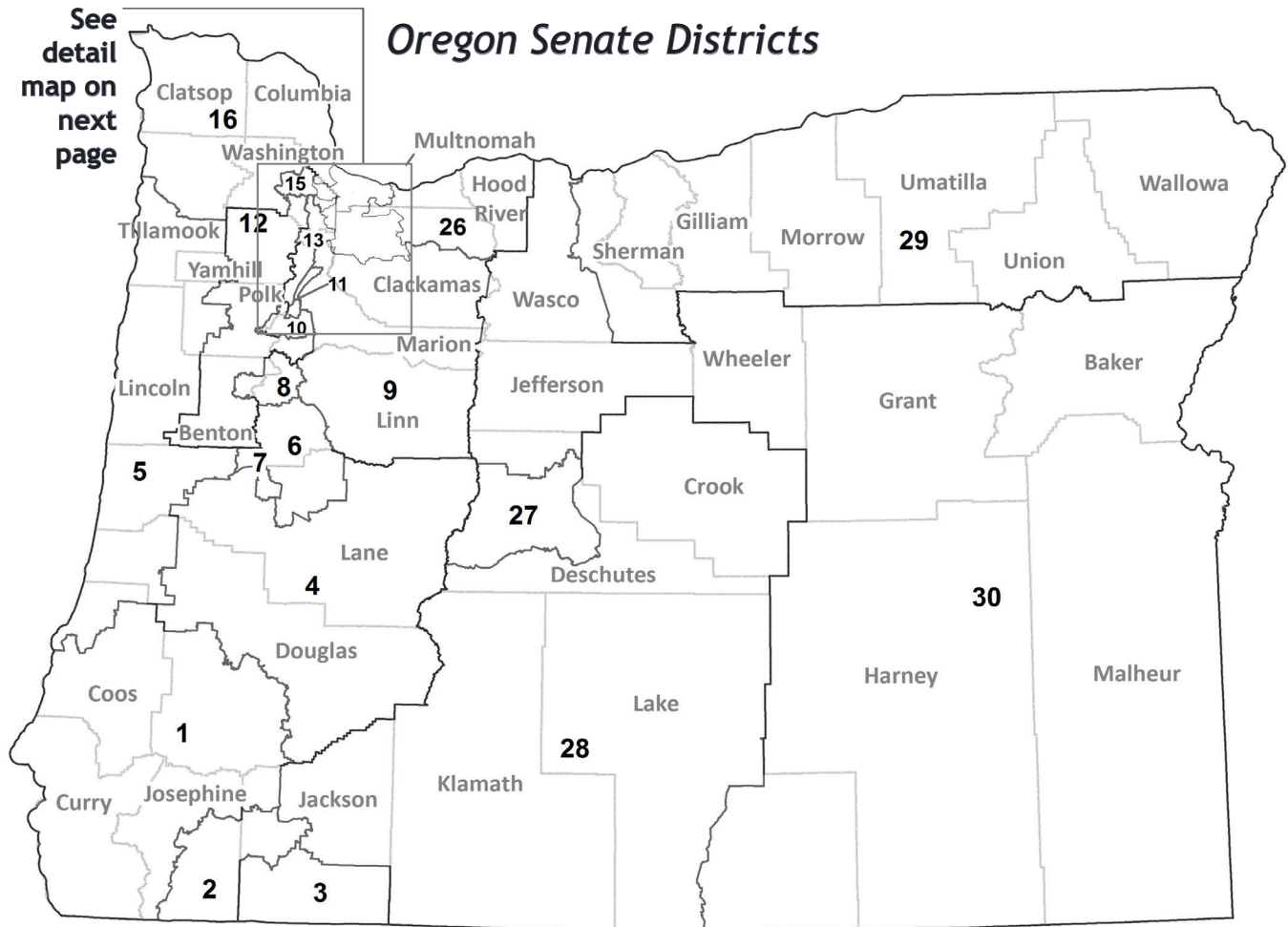
- Michelle Binker, Chief of Staff
- Nikolas Ruiz Anderson, Legislative Assistant

Representative Brad Witt (D)



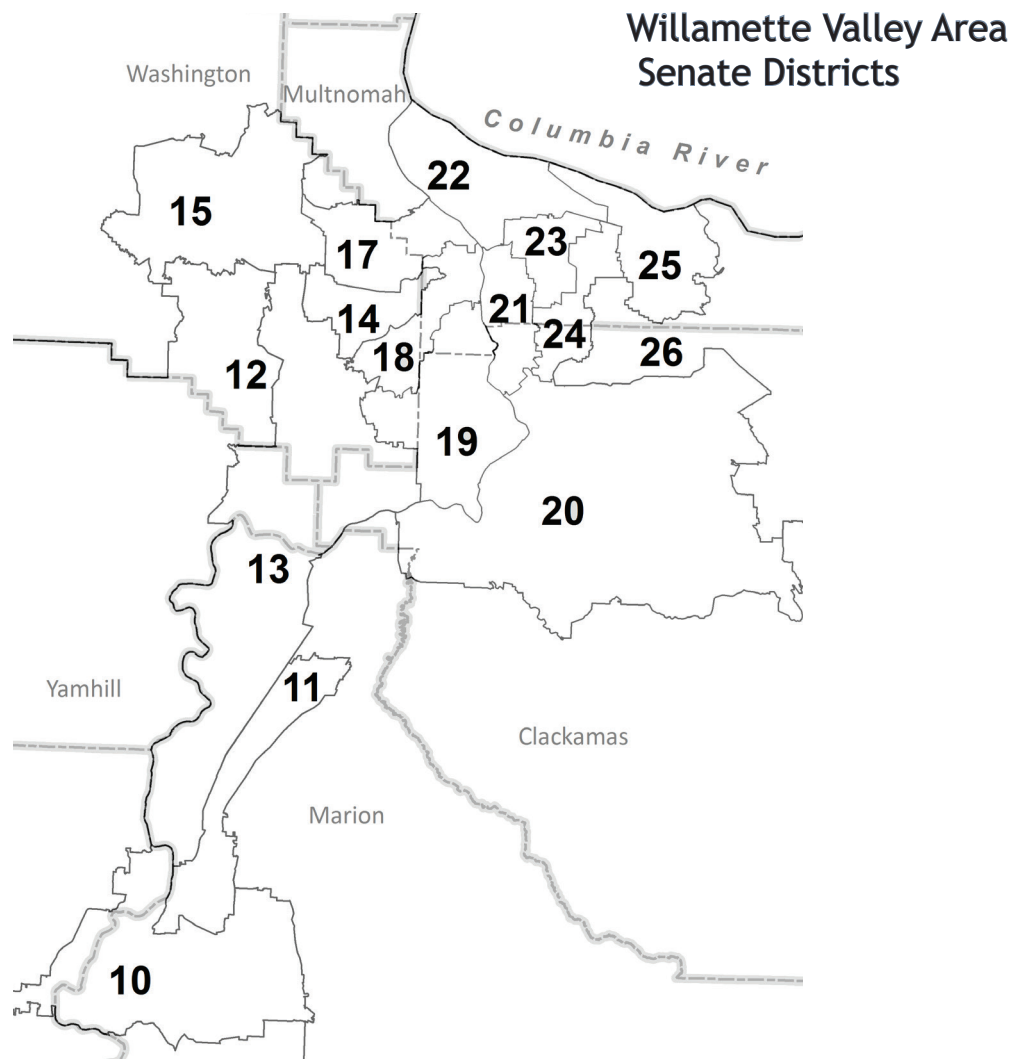
- Rachael Barry, Chief of Staff
- Josette Hugo, Legislative Assistant

LEGISLATIVE DISTRICT MAPS



- | | |
|----------------------------|-----------------------------------|
| 1. Jeff Kruse (R) | 16. Betsy Johnson (D) |
| 2. Herman Baertschiger (R) | 17. Elizabeth Steiner Hayward (D) |
| 3. Alan DeBoer (R) | 18. Ginny Burdick (D) |
| 4. Floyd Prozanski (D) | 19. Richard Devlin (D) |
| 5. Arnie Roblan (D) | 20. Alan Olsen (R) |
| 6. Lee Beyer (D) | 21. Kathleen Taylor (D) |
| 7. James Manning (D) | 22. Lew Frederick (D) |
| 8. Sara Gelser (D) | 23. Michael Dembrow (D) |
| 9. Fred Girod (R) | 24. Rod Monroe (D) |
| 10. Jackie Winters (R) | 25. Laurie Monnes Anderson (D) |
| 11. Peter Courtney (D) | 26. Chuck Thomsen (R) |
| 12. Brian Boquist (R) | 27. Tim Knopp (R) |
| 13. Kim Thatcher (R) | 28. Dennis Linthicum (R) |
| 14. Mark Hass (D) | 29. Bill Hansell (R) |
| 15. Chuck Riley (D) | 30. Ted Ferrioli (R) |

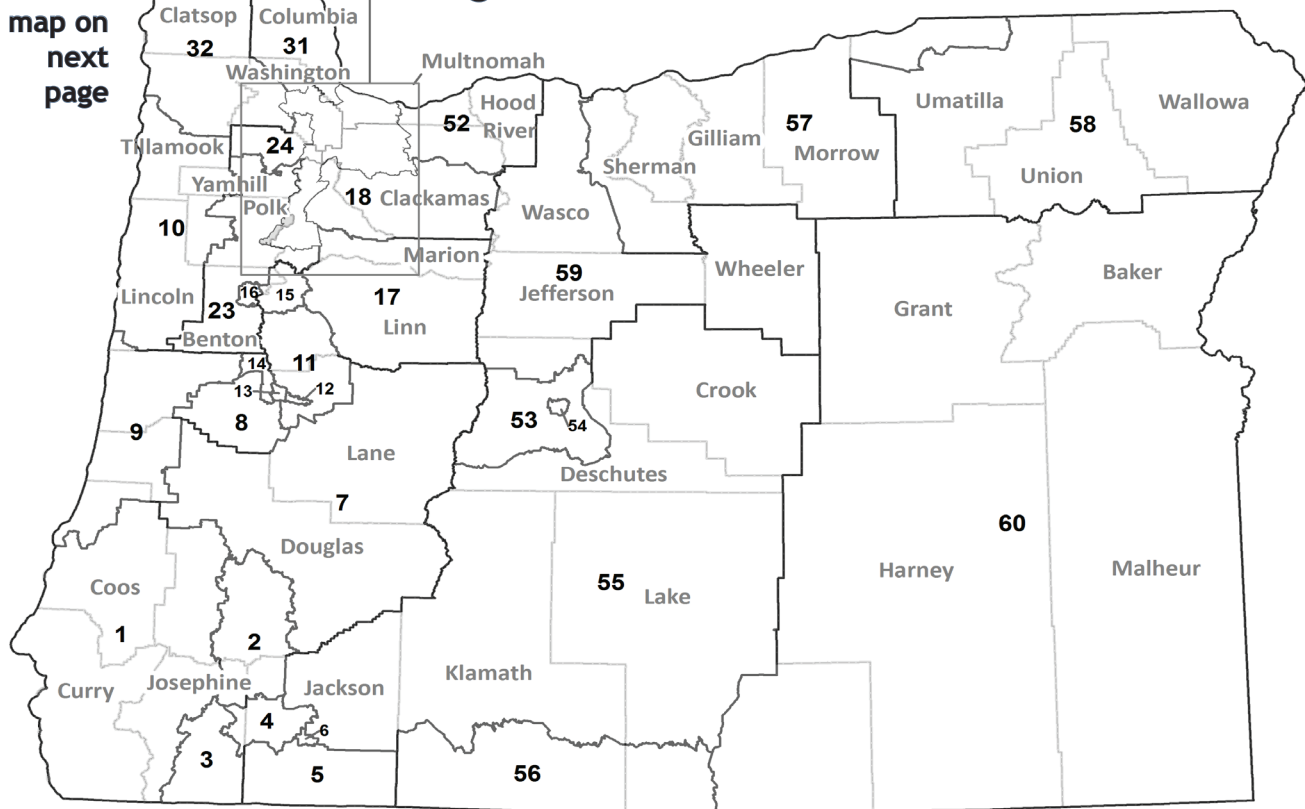
SENATE DISTRICT MAP



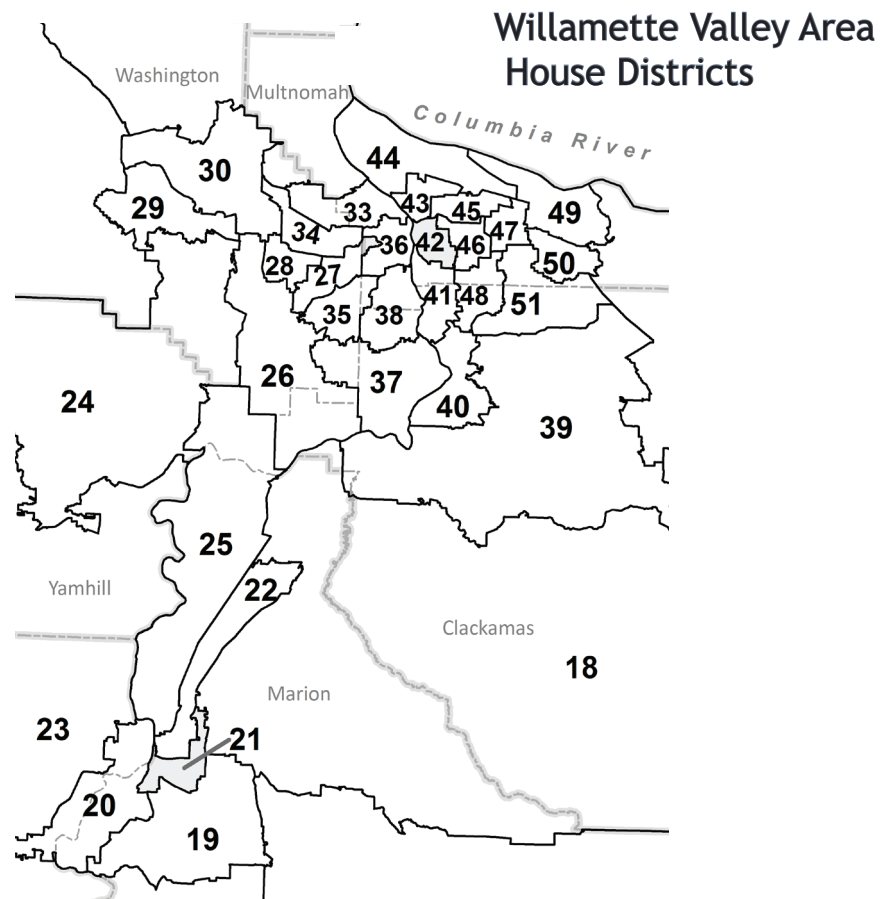
10. Jackie Winters (R)
11. Peter Courtney (D)
12. Brian Boquist (R)
13. Kim Thatcher (R)
14. Mark Hass (D)
15. Chuck Riley (D)
17. Elizabeth Steiner Hayward (D)
18. Ginny Burdick (D)
19. Richard Devlin (D)
20. Alan Olsen (R)
21. Kathleen Taylor (D)
22. Lew Frederick (D)
23. Michael Dembrow (D)
24. Rod Monroe (D)
25. Laurie Monnes Anderson (D)
26. Chuck Thomsen (R)

See
detail
map on
next
page

Oregon House Districts



- | | | |
|--------------------------|-----------------------------|------------------------------|
| 1. David Brock Smith (R) | 21. Brian Clem (D) | 41. Karin Power (D) |
| 2. Dallas Heard (R) | 22. Teresa Alonso León (D) | 42. Rob Nosse (D) |
| 3. Carl Wilson (R) | 23. Mike Nearman (R) | 43. Tawna Sanchez (D) |
| 4. Duane Stark (R) | 24. Ron Noble (R) | 44. Tina Kotek (D) |
| 5. Pam Marsh (D) | 25. Bill Post (R) | 45. Barbara Smith Warner (D) |
| 6. Sal Esquivel (R) | 26. Richard Vial (R) | 46. Alissa Keny-Guyer (D) |
| 7. Cedric Hayden (R) | 27. Sheri Malstrom (D) | 47. Diego Hernandez (D) |
| 8. Paul Holvey (D) | 28. Jeff Barker (D) | 48. Jeff Reardon (D) |
| 9. Caddy McKeown (D) | 29. Susan McLain (D) | 49. Chris Gorsek (D) |
| 10. David Gomberg (D) | 30. Janeen Sollman (D) | 50. Carla Piluso (D) |
| 11. Phil Barnhart (D) | 31. Brad Witt (D) | 51. Janelle Bynum (D) |
| 12. John Lively (D) | 32. Deborah Boone (D) | 52. Mark Johnson (R) |
| 13. Nancy Nathanson (D) | 33. Mitch Greenlick (D) | 53. Gene Whisnant (R) |
| 14. Julie Fahey (D) | 34. Ken Helm (D) | 54. Knute Buehler (R) |
| 15. Andy Olson (R) | 35. Margaret Doherty (D) | 55. Mike McLane (R) |
| 16. Dan Rayfield (D) | 36. Jennifer Williamson (D) | 56. Werner Reschke (R) |
| 17. Sherrie Sprenger (R) | 37. Julie Parrish (R) | 57. Greg Smith (R) |
| 18. Rick Lewis (R) | 38. Ann Lininger (D) | 58. Greg Barreto (R) |
| 19. Jodi Hack (R) | 39. Bill Kennemer (R) | 59. John Huffman (R) |
| 20. Paul Evans (D) | 40. Mark Meek (D) | 60. Cliff Bentz (R) |



- | | |
|----------------------------|------------------------------|
| 18. Rick Lewis (R) | 33. Mitch Greenlick (D) |
| 19. Jodi Hack (R) | 34. Ken Helm (D) |
| 20. Paul Evans (D) | 35. Margaret Doherty (D) |
| 21. Brian Clem (D) | 36. Jennifer Williamson (D) |
| 22. Teresa Alonso León (D) | 37. Julie Parrish (R) |
| 23. Mike Nearman (R) | 38. Ann Lininger (D) |
| 24. Ron Noble (R) | 39. Bill Kennemer (R) |
| 25. Bill Post (R) | 40. Mark Meek (D) |
| 26. Richard Vial (R) | 41. Karin Power (D) |
| 27. Sheri Malstrom (D) | 42. Rob Nosse (D) |
| 28. Jeff Barker (D) | 43. Tawna Sanchez (D) |
| 29. Susan McLain (D) | 44. Tina Kotek (D) |
| 30. Janeen Sollman (D) | 45. Barbara Smith Warner (D) |
| | 46. Alissa Keny-Guyer (D) |
| | 47. Diego Hernandez (D) |
| | 48. Jeff Reardon (D) |
| | 49. Chris Gorsek (D) |
| | 50. Carla Piluso (D) |
| | 51. Janelle Bynum (D) |

2017 Legislative Session Committees

Senate Committees

Business and Transportation

Sen. Lee Beyer - Chair
Sen. Chuck Thomsen - Vice-Chair
Sen. Fred Girod
Sen. Rod Monroe
Sen. Chuck Riley

Environment and Natural Resources

Sen. Michael Dembrow - Chair
Sen. Alan Olsen - Vice-Chair
Sen. Herman Baertschiger Jr.
Sen. Floyd Prozanski
Sen. Arnie Roblan

General Government and Accountability

Sen. Chuck Riley - Chair
Sen. Alan DeBoer - Vice-Chair
Sen. Mark Hass
Sen. Floyd Prozanski
Sen. Kim Thatcher

Human Services

Sen. Sara Gelser - Chair
Sen. Alan Olsen - Vice-Chair
Sen. Michael Dembrow
Sen. Tim Knopp
Sen. Laurie Monnes Anderson

Education

Sen. Arnie Roblan - Chair
Sen. Dennis Linthicum - Vice-Chair
Sen. Sara Gelser
Sen. Mark Hass
Sen. Jeff Kruse

Finance and Revenue

Sen. Mark Hass - Chair
Sen. Brian Boquist - Vice-Chair
Sen. Herman Baertschiger Jr.
Sen. Chuck Riley
Sen. Kathleen Taylor

Health Care

Sen. Laurie Monnes Anderson - Chair
Sen. Jeff Kruse - Vice-Chair
Sen. Lee Beyer
Sen. Tim Knopp
Sen. Elizabeth Steiner Hayward

Judiciary

Sen. Floyd Prozanski - Chair
Sen. Kim Thatcher - Vice-Chair
Sen. Michael Dembrow
Sen. Dennis Linthicum
Sen. James Manning Jr.

Rules

Sen. Ginny Burdick - Chair
Sen. Ted Ferrioli - Vice-Chair
Sen. Lee Beyer
Sen. Brian Boquist
Sen. Arnie Roblan

Workforce

Sen. Kathleen Taylor - Chair
Sen. Tim Knopp - Vice-Chair
Sen. Sara Gelser
Sen. Bill Hansell
Sen. Laurie Monnes Anderson

Veterans and Emergency Preparedness

Sen. Brian Boquist - Chair
Sen. Laurie Monnes Anderson - Vice-Chair
Sen. Peter Courtney
Sen. Alan Olsen

Conduct

Sen. Richard Devlin - Chair
Sen. Sara Gelser
Sen. Bill Hansell
Sen. Jackie Winters

House Committees

Agriculture and Natural Resources

Rep. Brian Clem - Chair
Rep. Susan McLain - Vice-Chair
Rep. Sherrie Sprenger - Vice-Chair
Rep. Greg Barreto
Rep. Sal Esquivel
Rep. Caddy McKeown
Rep. Karin Power
Rep. David Brock Smith
Rep. Brad Witt

Early Childhood and Family

Rep. John Lively - Chair
Rep. Jodi Hack - Vice-Chair
Rep. Carla Piluso - Vice-Chair
Rep. Janelle Bynum
Rep. Cedric Hayden
Rep. John Huffman
Rep. Alissa Keny-Guyer
Rep. Sheri Malstrom
Rep. David Brock Smith

Education

Rep. Margaret Doherty - Chair
Rep. Diego Hernandez - Vice-Chair
Rep. Carl Wilson - Vice-Chair
Rep. Paul Evans
Rep. Susan McLain
Rep. Julie Parrish
Rep. Janeen Sollman
Rep. Sherrie Sprenger
Rep. A. Richard Vial

Health Care

Rep. Mitch Greenlick - Chair
Rep. Cedric Hayden - Vice-Chair
Rep. Rob Nosse - Vice-Chair
Rep. Teresa Alonso León
Rep. Knute Buehler
Rep. Jodi Hack
Rep. Bill Kennemer
Rep. Alissa Keny-Guyer
Rep. Sheri Malstrom

Business and Labor

Rep. Paul Holvey - Chair
Rep. Greg Barreto - Vice-Chair
Rep. Janelle Bynum - Vice-Chair
Rep. Margaret Doherty
Rep. Paul Evans
Rep. Julie Fahey
Rep. Jodi Hack
Rep. Dallas Heard
Rep. Bill Kennemer

Economic Development and Trade

Rep. Ann Lininger - Chair
Rep. Pam Marsh - Vice-Chair
Rep. David Brock Smith - Vice-Chair
Rep. Brian Clem
Rep. David Gomborg
Rep. Ken Helm
Rep. Rick Lewis
Rep. Bill Post
Rep. E. Werner Reschke

Energy and Environment

Rep. Ken Helm - Chair
Rep. Mark Johnson - Vice-Chair
Rep. Karin Power - Vice-Chair
Rep. Phil Barnhart
Rep. Cliff Bentz
Rep. Paul Holvey
Rep. Pam Marsh
Rep. E. Werner Reschke
Rep. David Brock Smith

Higher Education and Workforce Development

Rep. Jeff Reardon - Chair
Rep. Teresa Alonso León - Vice-Chair
Rep. Gene Whisnant - Vice-Chair
Rep. Janelle Bynum
Rep. Brian Clem
Rep. Dallas Heard
Rep. Mark Johnson
Rep. E. Werner Reschke
Rep. Janeen Sollman

Human Service and Housing

Rep. Alissa Keny-Guyer - Chair
Rep. Andy Olson - Vice-Chair
Rep. Tawna Sanchez - Vice-Chair
Rep. Chris Gorsek
Rep. Mark Meek
Rep. Mike Nearman
Rep. Ron Noble
Rep. Carla Piluso
Rep. Duane Stark

Revenue

Rep. Phil Barnhart - Chair
Rep. Cliff Bentz - Vice-Chair
Rep. Barbara Smith Warner - Vice-Chair
Rep. Knute Buehler
Rep. Diego Hernandez
Rep. Mark Johnson
Rep. Pam Marsh
Rep. Rob Nosse
Rep. Greg Smith

Transportation Policy

Rep. Caddy McKeown - Chair
Rep. Mark Meek - Vice-Chair
Rep. A. Richard Vial - Vice-Chair
Rep. Greg Barreto
Rep. Paul Evans
Rep. Susan McLain
Rep. Ron Noble
Rep. Carl Wilson
Rep. Brad Witt

Conduct

Rep. Mitch Greenlick - Chair
Rep. Nancy Nathanson
Rep. Andy Olson
Rep. Sherrie Sprenger

Judiciary

Rep. Jeff Barker - Chair
Rep. Andy Olson - Vice-Chair
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2017 SUMMARY OF LEGISLATION



MEASURE SUMMARIES

2017 SUMMARY OF LEGISLATION



AGRICULTURE AND NATURAL RESOURCES



AGRICULTURE AND NATURAL RESOURCES MEASURES

Agriculture and Food	Enacted: SB 18, SB 677, HB 2038, HB 2533, HB 3116, HB 3249 Not Enacted: SB 197, HB 2043, HB 2371-A, HB 2372-A, HB 2469, HB 2535-A, HB 3193
Animals and Wildlife	Enacted: SB 372, SB 373, HB 2576 Not Enacted: SB 222, HB 3228
Fish and Shellfish	Enacted: HB 2784 Not Enacted: SB 172, HB 2485, HB 3153, HB 3234-A
Forests	Enacted: Not Enacted: SB 892, SB 1017, HB 3226, HJM 11
General Agriculture and Natural Resources Policy	Enacted: HB 2739 Not Enacted: SB 198, SB 805, HB 2027-B, HB 2365, HB 2853, HB 3050
Invasive Species	Enacted: Not Enacted: SB 789, HB 2321-B, HB 3151
Mining	Enacted: SB 3, SB 644, SB 1036 Not Enacted:
Recreation	Enacted: HB 2883, HB 3149 Not Enacted: SB 643-A, SB 745
State Lands	Enacted: SB 847 Not Enacted: SB 958, HB 2786
Water	Enacted: HB 2099, HB 2295, HB 2722, HB 3051 Not Enacted: HB 2297, HB 2485, HB 2705, HB 2706-A, HB 2707-A

Picture: Philomath Barn, Benton County - [Gary Halvorson, Oregon State Archives](#)

AGRICULTURE AND NATURAL RESOURCES

TASK FORCES AND REPORTING REQUIREMENTS

The following bills created task forces and reporting requirements. Additional information is provided in the bill summaries.

SB 372	Directs Oregon Department of Fish and Wildlife to report on implementation of wildlife salvage permit rules to committees related to environment and natural resources.	During 2023 regular session
SB 373	Directs Oregon Department of Fish and Wildlife to report on implementation of urban deer population control pilot program to committees related to environment and natural resources.	During 2027 regular session
HB 3249	Directs Legislative Policy and Research Office director to report findings and recommendations of study examining financial tools with regard to land transfer and succession planning for working land.	September 15, 2018

[Senate Bill 3](#)

Effective Date: January 1, 2018

Suction Dredge Mining

Chief Sponsors: Sen. Courtney

Committees: Senate Environment and Natural Resources, House Energy and Environment

Background and Current Law: Senate Bill 838 (2013) imposed a moratorium from January 2, 2016 until January 2, 2021 on motorized mining for precious metals in-stream and upland of rivers and tributaries with essential indigenous salmon habitat or naturally reproducing populations of bull trout. In areas where the moratorium did not apply, the measure capped the issuance of permits at 850 during the same period.

Bill Summary: Senate Bill 3 repeals the previous moratorium and prohibits motorized in-stream placer mining up to the ordinary high water line in any river containing essential indigenous anadromous salmonid habitat. The measure requires suction dredge operators to obtain an individual permit or a general permit from the Oregon Department of Environmental Quality in other areas.

Oregon Laws 2017: Chapter 300

[Senate Bill 18](#)

Effective Date: January 1, 2018

Food Safety Administration

At the request of: Governor Brown for State Department of Agriculture

Committees: Senate Environment and Natural Resources, House Agriculture and Natural Resources

Background and Current Law: According to the U.S. Food and Drug Administration (FDA), 48 million Americans (about 1 in 6) get sick each year, 128,000 are hospitalized, and 3,000 die because of foodborne illnesses. The FDA Food Safety Modernization Act was signed into law on January 4, 2011. The law focuses on prevention and directs the FDA to develop and implement strategies to better coordinate with and enhance the food safety programs of state and local agencies to achieve national food safety goals. The Oregon Department of Agriculture administers the state's food safety laws.

Bill Summary: Senate Bill 18 designates the Oregon Department of Agriculture as the state agency having primary responsibility to administer and enforce duties, functions, and powers imposed on or granted to state agencies under the FDA Food Safety Modernization Act.

Oregon Laws 2017: Chapter 303

[Senate Bill 172](#)

Not Enacted

Fish Screen, Bypass, and Fishway Tax Credit

At the request of: Senate Interim Committee on Finance and Revenue

Committees: Senate Environment and Natural Resources, Joint Tax Credits

Background and Current Law: Water from rivers and streams is diverted out-of-stream for irrigation, power generation, drinking water, and other uses. These diversions can also pull fish into pumps, irrigation canals, and fields. Fish screens are placed at a point of water diversion to allow water to pass through while preventing fish from entering the diversion. A bypass can be a pipe, flume, or open channel that transports fish back to the water body from which they were diverted. A fishway, such as a fish ladder, allows fish to pass around a dam. In Oregon, a taxpayer may be eligible for a tax credit of 50 percent (up to \$5,000) of the cost of installing a new fish screen, bypass, or fishway if the diversion is not part of a federally licensed hydroelectric project.

Bill Summary: Senate Bill 172 would have extended the sunset for the fish screening device tax credit until January 1, 2024.

[House Bill 2066](#) was enacted and extends the sunset on the fish screening credit to 2024.

[Senate Bill 197](#)

Not Enacted

Dairy Air Emissions

At the request of: Senate Interim Committee on Environment and Natural Resources

Committees: Senate Environment and Natural Resources

Background and Current Law: Senate Bill 235 (2007) established a Task Force on Dairy Air Quality and charged it with studying the emissions from dairy operations, evaluating available alternatives for reducing emissions, and presenting findings and recommendations to the Oregon departments of Agriculture and Environmental Quality. The task force delivered its report in July 2008, recommending that the Oregon Environmental Quality Commission work with other agencies to adopt rules to implement a program, based upon a set of guiding principles, starting as a voluntary program.

Bill Summary: Senate Bill 197 would have directed the Oregon Environmental Quality Commission to adopt by rule a program for regulating air contaminant emissions from dairy confined animal feeding operations based, to the extent feasible, on the recommendations of the Task Force on Dairy Air Quality.

[Senate Bill 198](#)

Not Enacted

Oregon Independent Science Review Board

At the request of: Senate Interim Committee on Environment and Natural Resources

Committees: Senate Environment and Natural Resources

Background and Current Law: Senate Bill 202 (2015) established the Task Force on Independent Scientific Review for Natural Resources to evaluate and assess the need for independent science review in Oregon and to make recommendations to the governor and appropriate legislative committees. The final task force report was submitted to the legislature in September 2016.

Bill Summary: Senate Bill 198 would have created the Oregon Independent Science Review Board to convene scientific panels to address questions from state agencies, local governments, and private persons for independent scientific review of complex, multidisciplinary natural resource issues that required the involvement of multiple agencies.

[Senate Bill 222](#)

Not Enacted

Veterinary Prescriptions

At the request of: Senate Interim Committee on Education

Committees: Senate Environment and Natural Resources

Background and Current Law: Veterinarians are licensed to practice in Oregon and can prescribe or administer a drug or medicine for the prevention, cure, amelioration, correction, or modification of an animal problem as an act constituting the practice of veterinary medicine.

Bill Summary: Senate Bill 222 would have directed the Oregon State Veterinary Medical Examining Board to adopt rules requiring veterinarians to provide animal owners with a copy of a prescription and a written statement that owners may purchase the prescription from the prescriber or a pharmacy chosen by the owners. The measure prohibited the prescriber from charging a fee for a prescription.

[Senate Bill 372](#)

Effective Date: January 1, 2018

Wildlife Salvage Permits

Chief Sponsors: Sen. Hansell

Committees: Senate Environment and Natural Resources, House Agriculture and Natural Resources

Background and Current Law: Oregon law allows a person to kill crippled or helpless wildlife when the killing is done for humane purposes. Such action must be immediately reported to a person authorized to enforce wildlife laws and the wildlife must be disposed of as directed by the Oregon Fish and Wildlife Commission.

Bill Summary: Senate Bill 372 directs the Oregon Fish and Wildlife Commission to adopt rules for the issuance of wildlife salvage permits to allow game meat from deer and elk accidentally killed as a result of a car accident to be used for human consumption. The Oregon Department of Fish and Wildlife is directed to prepare and submit a report on the program to the 2023 Legislative Assembly, and the program sunsets on January 1, 2024.

Oregon Laws 2017: Chapter 330

[Senate Bill 373](#)

Effective Date: January 1, 2018

Urban Deer Control Pilot Program

Chief Sponsors: Sen. Hansell; Rep. Barreto

Committees: Senate Environment and Natural Resources, House Agriculture and Natural Resources

Background and Current Law: Individual deer can consume 5 to 10 pounds of forage per day, depending on the season. In urban and neighborhood settings, browsing can affect flower and vegetable gardens, damage landscapes, empty bird feeders, and damage economically valuable trees and other plants. Increased deer populations can also spread tick-borne illnesses, such as Lyme disease.

Bill Summary: Senate Bill 373 directs the Oregon Fish and Wildlife Commission to establish a pilot program to control urban deer populations in cities where deer constitute a public nuisance.

Oregon Laws 2017: Chapter 331

[Senate Bill 643-A](#)

Not Enacted

River Helmet Requirement for Class III Waters or Higher

Chief Sponsors: Sen. Monnes Anderson; Rep. Gorsek

Committees: Senate Environment and Natural Resources, Senate Rules

Background and Current Law: Rivers and river segments are rated using roman numerals I through VI, according to the International Scale of River Difficulty. Class III waters are described by the American Whitewater Association as having “rapids with moderate, irregular waves which may be difficult to avoid and which can swamp an open canoe.”

Bill Summary: Senate Bill 643-A would have required an outfitter or guide using a boat to carry passengers on any section of river rated Class III or higher to offer to all passengers a helmet that met the standards established by the Oregon Marine Board.

Mining Permit Requirements

Chief Sponsors: Sens. Girod, Dembrow

Committees: Senate Environment and Natural Resources, Senate Rules, Joint Ways and Means

Background and Current Law: Mineral exploration and production in Oregon is regulated by the Oregon Department of Geology and Mineral Industries (DOGAMI), in cooperation with other state, federal, and local agencies to ensure the protection of adjacent natural resources and future beneficial use of mined lands. A five-member Governing Board of citizens, appointed by the governor and confirmed by the Oregon Senate, oversees the department.

Under current law, mining activities may be allowed on exclusive farm use land with the express approval of the local governing body if it determines that the activity will not force a significant change in the accepted farm or forest practices on surrounding lands, or increase the cost of such practices.

Senate Bill 838 (2013) imposed a moratorium from January 2, 2016 until January 2, 2021 on motorized mining for precious metals in-stream and upland of rivers and tributaries with essential indigenous salmon habitat or naturally reproducing populations of bull trout. In areas where the moratorium did not apply, the measure capped the issuance of permits at 850 during the same period.

Bill Summary: Senate Bill 644 defines a “significant mineral resource site” as a non-aggregate mining site located at least one mile outside of a city that either has an estimated 500,000 ounces or more of precious minerals and will create 75 or more full-time mining jobs or will create 100 or more full time mining jobs. For a significant mineral resource site on land zoned for exclusive farm use in Baker, Grant, Harney, Lake, Malheur, Union or Wallowa counties, the measure specifies that a land use application is not subject to a local governing body’s determination that the activity will not force a significant change in the accepted farm or forest practices on surrounding lands or significantly increase the cost of such practices on surrounding lands. The measure requires a county to deny a land use permit for a mine if it determines that the proposed use will conflict with an administrative rule adopted to implement the Oregon Sage-Grouse Action Plan or cause significant conflicts with one of the following: road capacity, safety at airports due to birds, health and safety of residential uses within certain distances of the site, or other factors.

Oregon Laws 2017: Chapter 736

[Senate Bill 677](#)

Effective Date: January 1, 2018

Cider Business on Farm and Forest Lands

Chief Sponsors: Sens. Olsen, Johnson, Thomsen; Rep. Post

Committees: Senate Environment and Natural Resources, House Economic Development and Trade

Background and Current Law: House Bill 3280 (2011) described the activities and events that a winery may hold when established as a permitted use on lands zoned for exclusive farm use.

Bill Summary: Senate Bill 677 establishes a cider business as a permitted use on exclusive farm use and mixed farm and forest use lands. The measure, modeled on the winery statute, also specifies the related uses allowed at such businesses and authorizes agritourism or other commercial events at these locations up to 18 days each calendar year.

Oregon Laws 2017: Chapter 253

[Senate Bill 745](#)

Not Enacted

Ocean Beach Fund

Chief Sponsors: Sen. Roblan

Committees: Senate Environment and Natural Resources, Senate Finance and Revenue

Background and Current Law: Oregon law imposes a state tax of 1.8 percent that is lowered to 1.5 percent after the year 2021 on the sale, service, or furnishing of transient lodging. “Transient lodging” includes: a hotel, motel, or inn dwelling unit that is used for temporary overnight human occupancy; spaces used for parking recreational vehicles or erecting tents during periods of human occupancy; or houses, cabins, condominiums, apartment units or other dwelling units, or portions of any of these dwelling units, that are used for temporary human occupancy.

Bill Summary: Senate Bill 745 would have directed transient lodging tax revenue, after refunds, collected by the Oregon Department of Parks and Recreation for providing transient lodging at state recreation areas located along the ocean shore, to a new Ocean Beach Fund. The fund was to be used to pay for agency expenses for managing state recreation areas along the ocean shore.

[Senate Bill 789](#)

Not Enacted

Use of Giant Cane as Biomass

At the request of: Senate Committee on Environment and Natural Resources

Committees: Senate Environment and Natural Resources

Background and Current Law: *Arundo donax* L., also known as giant cane, is a tall, perennial grass-like bamboo that originates in areas around the Mediterranean Sea. Originally planted along waterways to control erosion, the plant is now considered an invasive species by the U.S. Department of Agriculture. The plant has come under consideration as a biomass energy crop because it is hardy, fast growing, and high-yield. Portland General Electric studied growing the plant for use in biomass combustion at the Boardman Coal Plant. In 2011, the state authorized a 400-acre test plot and required growers to post a \$1 million eradication bond.

Bill Summary: Senate Bill 789 would have required public utilities that grow giant cane, or other invasive species for use as biomass, to maintain a surety bond of a minimum of \$1 million on file with the Oregon Department of Agriculture and eradicate the species from any property to which it spread.

[Senate Bill 805](#)

Not Enacted

OSU Extension and Forest Research Laboratory Funding

Chief Sponsors: Sens. Roblan, Girod; Reps. Clem, Hack

Committees: Senate Environment and Natural Resources, Joint Ways and Means

Background and Current Law: The Oregon State University (OSU) Agricultural Experiment Station conducts research and demonstrations in the agricultural, biological, social, and environmental sciences. Research is conducted in Corvallis and at 11 branch stations throughout the state. The OSU Forest Research Laboratory conducts research on sustainable forest yields, use of forest products, and stewardship of Oregon's resources.

Bill Summary: Senate Bill 805 would have appropriated funds to support the agricultural experiment station and branch stations, the OSU Extension Service, and OSU Forest Research Laboratory programs.

[Senate Bill 847](#)

Effective Date: January 1, 2018

Identification of State Trust Lands

Chief Sponsors: Sen. Roblan, Devlin

Committees: Senate Environment and Natural Resources, Joint Ways and Means

Background and Current Law: The Oregon Admissions Act (1859) granted sections of every township to the state for the use of schools. According to the Oregon Department of State Lands, this land grant equaled approximately six percent of the state's land area, or 3.4 million acres. Today, approximately 740,000 acres remain in state ownership. The Oregon Constitution and legislative action dedicate these lands and their resources and income to the Common School Fund (CSF). The State Land Board, made up of the Governor, State Treasurer, and Secretary of State, is the CSF trustee. The board distributes a portion of the funds twice each year to the Oregon Department of Education, which in turn distributes the funds to school districts.

Bill Summary: Senate Bill 847 authorizes the State Land Board to identify and submit to the Legislative Assembly a list of state trust lands with limited performance potential as assets of the Common School Fund for transfer to another state or federal agency or tribe.

Oregon Laws 2017: Chapter 693

[Senate Bill 892](#)

Not Enacted

Aerial Pesticide Applications to Forestlands

Chief Sponsors: Sen. Dembrow

Committees: Senate Environment and Natural Resources

Background and Current Law: Under current Oregon law, a person may apply pesticides from an aircraft if they hold a pesticide applicator's license and a license to operate the aircraft from which the pesticide is being applied. The application of chemicals on forestland is also identified by administrative rule as a forest practice that requires written notice to the State Forester.

Bill Summary: Senate Bill 892 would have directed the Oregon Department of Forestry to maintain an electronic reporting and notification system, including provisions for filing, viewing, and sending notices and reports to the State Forester of aerial application of pesticides to privately owned forestland. The measure required an operator, timber owner, or landowner using the system to file notice of a proposed application with the State Forester no later than 15 business days prior to the proposed date of application.

[Senate Bill 958](#)

Not Enacted

Crude Oil Transport Facility Permitting

Chief Sponsors: Sen. Dembrow

Committees: Senate Environment and Natural Resources

Background and Current Law: Oregon law requires anyone who plans to remove or fill more than 50 cubic yards of material in a wetland or waterway to obtain a removal-fill permit from the Oregon Department of State Lands (DSL). For activities in state designated areas of essential salmonid habitat, state scenic waterways, and compensatory mitigation sites, a permit is required for any amount of removal or fill.

Bill Summary: Senate Bill 958 would have authorized DSL to issue a removal-fill permit for projects that facilitated the transport of crude oil only if the project met statutory requirements, was for public use, and would have satisfied a public need that outweighed harm to navigation, fisheries, and recreation.

[Senate Bill 1017](#)

Not Enacted

Forestland-Urban Interface Buffer Tax Credits

Chief Sponsors: Sen. Ferrioli

Committees: Senate Environment and Natural Resources

Background and Current Law: The Oregon Forestland-Urban Interface Fire Protection Act was passed in 1997 to require property owners in identified interface areas to reduce excess vegetation around structures and along driveways. Forestland-urban interface lands include lands within a forest protection district that have been divided into lots for residential development. A forestland-urban interface area is composed of groups of homes; the minimum grouping is four homes per 40 acres.

Bill Summary: Senate Bill 1017 would have required the State Forester to establish guidelines for wildfire buffer zones to provide defensible space on lands in forestland-urban interface areas and created a tax credit for landowners who file a certificate of compliance with buffer guidelines. The guidelines would have been in addition to requirements under the 1997 Oregon Forestland-Urban Interface Fire Protection Act.

[Senate Bill 1036](#)

Effective Date: January 1, 2018

Definition of Surface Mining

At the request of: Senate Committee on Environment and Natural Resources

Committees: Senate Environment and Natural Resources, House Agriculture and Natural Resources, House Rules

Background and Current Law: Reclamation refers to the process of rehabilitating surface resources to minimize the adverse effects of surface mining operations or exploration of land, air, and water resources. Most mines in Oregon are aggregate mines. Aggregate is the main ingredient in concrete and asphalt pavement and is used for roads and buildings. The Oregon Department of Geology and Mineral Industries administers the state's surface mining reclamation program and issues operating permits for material extraction activity that exceeds one acre of disturbance or 5,000 cubic yards of excavation in any 12-month period.

Bill Summary: Senate Bill 1036 revises the statutory definition of surface mining to exempt from state mine operating permit requirements the excavation or movement of materials at landfills covered by a state landfill permit or excavation and movement of materials related to the construction or maintenance of utilities or drainage facilities.

Oregon Laws 2017: Chapter 743

[House Bill 2027-B](#)

Not Enacted

Prohibition of Construction on Deschutes Scenic Waterway

Chief Sponsors: Reps. Clem, Whisnant

Committees: House Agriculture and Natural Resources, Senate Environment and Natural Resources, Senate Rules

Background and Current Law: Oregonians voted in 1970 to establish the Scenic Waterways Program to balance waterway protection and use through cooperation between federal, state, and local agencies as well as individual property owners and those who recreate along waterways. Oregon law declares that the highest and best uses of the waters within scenic waterways are recreation and fish and wildlife uses, and it directs that the free-flowing character of these waters be maintained in quantities necessary for these uses.

Bill Summary: House Bill 2027-B would have prohibited the construction of a bridge crossing the Deschutes Scenic Waterway in a specified river segment located within the City of Bend urban growth boundary and allowed the construction of a pedestrian or foot bridge crossing a segment of the Deschutes Scenic Waterway located within 520 feet upstream of the urban growth boundary.

[House Bill 2038](#)

Effective Date: August 2, 2017

Farm-to-School Funding and Grants

Chief Sponsors: Reps. Clem, Brock Smith

Committees: House Agriculture and Natural Resources, Joint Ways and Means

Background and Current Law: House Bill 2800 (2011) created the Farm-to-School program in Oregon, which awards grants to school districts and partner organizations to purchase Oregon food products or provide food-based, agriculture-based, or garden-based educational activities.

Bill Summary: House Bill 2038 appropriates \$4.5 million to continue the Farm-to-School program to be used for noncompetitive grants for purchasing Oregon food products; competitive grants to provide food-, agriculture-, or garden-based educational activities; and costs to administer the grant programs. The measure specifies that proceeds from noncompetitive grants for school districts to purchase food produced or processed in Oregon may not be used to supplant products that were purchased prior to receiving a grant unless the food meets criteria adopted by the Oregon Department of Education and it expands the list of organizations that may apply for competitive grants.

Oregon Laws 2017: Chapter 609

[House Bill 2043](#)

Not Enacted

Noxious Weed Control Funding

Chief Sponsors: Rep. G. Smith

Committees: House Agriculture and Natural Resources

Background and Current Law: A weed is designated noxious when it is considered by a governmental agency to be injurious to public health, agriculture, recreation, wildlife, or property. The Oregon Department of Agriculture Noxious Weed Control Program coordinates and implements noxious weed control projects, which are implemented by county weed control programs throughout Oregon. House Bill 3358 (2011) established a grant process for funding designated county weed control districts. As of 2017, state funding has not been allocated for grants.

Bill Summary: House Bill 2043 would have appropriated \$1 million for the 2017-19 biennium for state- and county-level activities to carry out noxious weed control.

[House Bill 2099](#)

Effective Date: August 15, 2018

Municipal Water Rights Extensions

At the request of: House Interim Committee on Rural Communities, Land Use and Water

Committees: House Agriculture and Natural Resources, Senate Environment and Natural Resources

Background and Current Law: A municipality must obtain a water right permit from the Oregon Water Resources Department (OWRD) before it can divert and use surface or ground water. House Bill 3038 (2005) specified that unlike other water rights holders who have up to five years, municipalities have up to 20 years to develop a water right permit. The measure allowed OWRD to grant extensions of time to develop a municipal water right permit if certain conditions were met, including maintaining the persistence of fish species listed as sensitive, threatened, or endangered under state or federal law.

Bill Summary: House Bill 2099 specifies that the undeveloped portion of a water right permit, for the purpose of determining the water to which fish persistence conditions should be applied, is the later of June 29, 2005 or the time specified in the municipality's permit or last approved extension to perfect the water right. The measure requires municipalities to submit a water management and conservation plan and obtain approval from OWRD as a requirement of approving an extension.

Oregon Laws 2017: Chapter 704

[House Bill 2295](#)

Effective Date: July 19, 2017

Water Right Transactions and Dam Safety Fees

At the request of: Governor Brown for Water Resources Department

Committees: House Energy and Environment, Joint Ways and Means

Background and Current Law: The Oregon Water Resources Department (OWRD) conducts a variety of transactions, including processing water right applications and transfers and issuing water right certificates and limited licenses. The fees charged by OWRD are set in statute and were temporarily increased with the passage of House Bill 2259 (2013); the temporary increases are scheduled to sunset July 1, 2017, with fees returning to 2009 levels.

Bill Summary: House Bill 2295 increases fees for certain OWRD services and eliminates fee reductions scheduled for July 1, 2017.

Oregon Laws 2017: Chapter 571

[House Bill 2297](#)

Not Enacted

Extension of the Task Force on Drought Emergency Response

At the request of: Governor Brown for Water Resources Department

Committees: House Agriculture and Natural Resources

Background and Current Law: House Bill 4113 (2016) established the Task Force on Drought Emergency Response to review and make recommendations on the tools and information needed to prepare for and respond to a drought. The task force was asked to: evaluate existing drought response tools and make recommendations to improve drought response; identify options to minimize the impact of drought on agriculture, municipalities, fish, wildlife, and other interests; identify data and resources needed to anticipate and understand drought effects; and recommend improvements to information sharing during a drought. The report of the task force was due November 1, 2016 and the task force closed on December 31, 2016.

Bill Summary: House Bill 2297 would have retroactively extended the sunset of the Task Force on Drought Emergency Response to December 31, 2018.

[House Bill 2321-B](#)

Not Enacted

Oregon Aquatic Invasive Species Boating Regulations

At the request of: Governor Brown for State Marine Board

Committees: House Agriculture and Natural Resources, Senate Environment and Natural Resources, Joint Ways and Means

Background and Current Law: The Aquatic Invasive Species Prevention Program was established in 2009 to keep Oregon's lakes, rivers, and streams free of invasive species. The Oregon Department of Fish and Wildlife and the Oregon State Marine Board manage the program, and Oregon State Police and Oregon County Sheriffs enforce its regulations. In 2014, the National Sea Grant Law Center published a report recommending boaters drain standing or captured water and transport boats with plugs and valves open to minimize standing water where invasive species, like mussels, tend to live.

Bill Summary: House Bill 2321-B would have required boaters to remove or open all drain plugs, bailers, valves, or other devices used to control draining of water before transporting any boat within the state. The measure also required a person transporting a boat to return to an inspection station if stopped by a peace officer for bypassing a mandatory inspection station, providing the station is open and within five miles of the location of the stop.

[House Bill 2365](#)

Not Enacted

Task Force on Transfer of Federal Land Ownership

Chief Sponsors: Rep. Wilson

Committees: House Agriculture and Natural Resources

Background and Current Law: Within the state of Oregon, over 32 million acres, or approximately 53 percent of land, is owned by the federal government. This land includes over 15 million acres of national forests, 2.6 million acres of federally revested Oregon and California Railroad grant lands across 18 counties, and 15.7 million acres managed by the federal Bureau of Land Management.

Bill Summary: House Bill 2365 would have established the Task Force on the Transfer of Federal Land Ownership in Oregon to study the costs and benefits of transferring federal lands to state control, except for national parks, lands designated as part of the National Wilderness Preservation System, lands belonging to an Indian tribe that are held in trust by the United States, lands ceded to the United States by state statute, and national monuments. The task force would have been required to report back to the Legislative Assembly within 30 days of its final meeting, or as designated by the President of the Senate and the Speaker of the House of Representatives.

[House Bill 2371-A](#)

Not Enacted

Regulation of Industrial Hemp Seed as Flower Seed

Chief Sponsors: Reps. Wilson, Brock Smith

Committees: House Agriculture and Natural Resources, Joint Ways and Means

Background and Current Law: Industrial hemp is an agricultural product that is subject to regulation by the Oregon Department of Agriculture (ODA) and refers to cannabis varieties that are grown for fiber, seed, or oil, or as a cover crop. Senate Bill 676 (2009) authorized the production of, possession of, and commerce in industrial hemp and commodities in Oregon, and House Bill 4060 (2016) authorized ODA to adopt rules to govern quality, packaging, and labeling of industrial hemp seed.

Bill Summary: House Bill 2371-A would have established the Oregon Industrial Hemp Fund and Agricultural Pilot Research Program under the Oregon Department of Agriculture, directed ODA and the College of Agricultural Sciences at Oregon State University to establish a program for labeling and certification of agricultural hemp seed, and allowed accredited independent laboratories to be approved for the testing of industrial hemp and related products. The measure would have exempted homegrown industrial hemp under four plants from licensing requirements and specified tetrahydrocannabinol concentration limits for various uses of industrial hemp.

[House Bill 2372-A](#)

Not Enacted

Establishment of Industrial Hemp Commission

Chief Sponsors: Reps. Wilson, Brock Smith

Committees: House Agriculture and Natural Resources, Joint Ways and Means

Background and Current Law: Commodity commissions are made up of volunteers appointed by Oregon's Director of Agriculture to serve as a link between production agriculture and decision makers. Oregon's 23 commodity commissions are charged with supporting commodity industries and enhancing and preserving the economic interests of the state by engaging in public policy and educational activities related to the commodities they represent.

Bill Summary: House Bill 2372-A would have established the Oregon Industrial Hemp Commission as a commodity commission pursuant to Oregon law and authorized the Director of Agriculture to appoint members who are growers or handlers of industrial hemp on or before January 1, 2018.

[House Bill 2469](#)

Not Enacted

Local Control of Genetically Engineered Food Regulation

Chief Sponsors: Reps. Holvey, Marsh

Committees: House Agriculture and Natural Resources

Background and Current Law: Senate Bill 863 (2013 Special Session) prohibited local governments from enacting or enforcing regulations of agricultural, flower, vegetable, and nursery seed and seed products. The law exempts Jackson County, where voters banned the propagation, cultivation, raising, or growing of genetically modified organisms in 2014.

Bill Summary: House Bill 2469 would have allowed local governments to enact or enforce a local law to inhibit or prevent the production or use of genetically engineered seeds and seed products to protect non-genetically engineered seeds and products from potential adverse impacts.

[House Bill 2485](#)

Not Enacted

Point of Diversion Pilot Program for Fish Passage

Chief Sponsors: Rep. Bentz

Committees: House Energy and Environment, Joint Ways and Means

Background and Current Law: Water right transfers provide a method to change the point of diversion or appropriation, the place of use, or the beneficial use of a water right after its original issuance. The water right holder must obtain advance approval of a water right transfer from the Oregon Water Resources Department (OWRD) before making changes. In reviewing a transfer application, the OWRD is responsible for ensuring that other water right holders will not be injured as a result of the proposed change. Upon receipt of an application for a transfer, the OWRD publishes a notice of the application to provide other water right holders an opportunity to identify any injury that might occur as a result of the transfer.

Bill Summary: House Bill 2485 would have required OWRD, after consultation with the Oregon Department of Fish and Wildlife (ODFW), to establish a water right pilot program to encourage and facilitate point-of-diversion changes requested by ODFW to benefit fish passage.

[House Bill 2533](#)

Effective Date: January 1, 2018

Bee Colony Registration Fees

Chief Sponsors: Rep. Reardon

Committees: House Agriculture and Natural Resources, Senate Environment and Natural Resources

Background and Current Law: House Bill 3362 (2015) established a reporting system for pollinator die-offs, increased Oregon pesticide registration fees and apiary registration fees to provide extra funding for pollinator health-related activities, and directed Oregon State University to create educational materials on pollinator health. The bill required anyone who owns or manages five or more colonies to register with the Oregon Department of Agriculture, with all moneys collected to be spent on pollinator research. There are two types of colonies that require registration under the program: (1) pollinator colonies, also known as production colonies, which provide pollination service to agriculture or horticulture crops; and (2) nucleus colonies, which are smaller colonies of honey bees, not used for production purposes.

Bill Summary: House Bill 2533 clarifies that only pollinator colonies are subject to application and registration fees, and nucleus colonies are not.

Oregon Laws 2017: Chapter 52

[House Bill 2535-A](#)

Not Enacted

Noxious Weed Replacement Pilot Program

Chief Sponsors: Rep. Reardon

Committees: House Agriculture and Natural Resources, Joint Ways and Means

Background and Current Law: A weed is designated noxious when it is considered by a governmental agency to be injurious to public health, agriculture, recreation, wildlife, or property. The Oregon Department of Agriculture, in consultation with the State Weed Board, through the Noxious Weed Control Program, and through county weed programs around the state, coordinates and implements noxious weed control projects. An unintended consequence of noxious weed control is the eradication of some plants that supply pollen and nectar to pollinating insects.

Bill Summary: House Bill 2535-A would have directed the Oregon Department of Agriculture (ODA), in consultation with the State Weed Board, to establish a four-year pilot program to control noxious weeds and replace them with pollinator forage species. The bill would have authorized ODA to coordinate with counties and special weed control districts and other public and private entities and allowed ODA to seek gifts, grants, or donations from public and private sources to fund the program.

[House Bill 2576](#)

Effective Date: May 18, 2017

Trade of Protective Wildlife Species

Chief Sponsors: Rep. Rayfield

Committees: House Agriculture and Natural Resources, Senate Environment and Natural Resources

Background and Current Law: In November 2016, Oregon voters passed Ballot Measure 100, which prohibits the purchase, sale, or possession with intent to sell parts or products from elephant, rhinoceros, whale, tiger, lion, leopard, cheetah, jaguar, pangolin, sea turtle, shark, or ray, subject to civil penalties. The measure created exceptions to the prohibition, including law enforcement activities; activities authorized by federal law; certain antiques over 100 years old; certain musical instruments; noncommercial transfers through estates, trusts, gifts; and possession by tribal members. An exception was also made for donations for scientific or educational purposes.

Bill Summary: House Bill 2576 clarifies exemptions to the provisions of Ballot Measure 100 for a bona fide scientific or educational institution, for scientific or educational purposes, when the sale is made pursuant to a written gift agreement or similar instrument entered into before July 1, 2017. The measure allows the Oregon Department of Fish and Wildlife (ODFW) to permit these institutions to engage in the purchase, sale, or donation of a lawfully acquired covered animal species part or product on or after July 1, 2017, and requires the institution to keep, and provide a copy to ODFW, of documentation of the transaction.

Oregon Laws 2017: Chapter 107

[House Bill 2705](#)

Not Enacted

Water Measurement and Reporting

Chief Sponsors: Rep. Helm

Committees: House Energy and Environment, House Rules

Background and Current Law: By law, all surface and groundwater in Oregon belongs to the public and is to be used for a beneficial purpose without waste. Any user, with some exceptions, must obtain a water right to use water from any source including rivers, streams, lakes, and groundwater. About 80 percent of water rights are for surface water, with the majority used for agricultural irrigation. The other 20 percent are for groundwater use. Only about 20 percent of water rights holders are required to report how much water they use to the Water Resources Department. Many of the rights holders that are required to report their water use are municipalities and industries.

Bill Summary: House Bill 2705 would have required a water appropriator to install, operate, and maintain a device at a point of diversion or appropriation to measure the amount, and would have allowed a determination of rate and duty, of water being used. The bill also would have required a water appropriator to report the water amount, rate, and duty information to the Water Resources Department.

[House Bill 2706-A](#)

Not Enacted

Water Management Fee

Chief Sponsors: Rep. Helm

Committees: House Energy and Environment, Joint Ways and Means

Background and Current Law: By law, all surface and groundwater in Oregon belongs to the public and is to be used for a beneficial purpose without waste. Any user, with some exceptions, must obtain a water right to use water from any source including rivers, streams, lakes, and groundwater and is restricted to the place of use (tract of land), point of diversion (place where water is withdrawn), and type of use (i.e., irrigation or municipal). A water right is issued in two phases: a permit, then a certificate. A permit, if granted, is typically for up to five years and is the initial approval to construct a water system and begin using up to an allotted amount of water. A certificate is then issued when the user proves the allocated amount of water has been used for its intended purpose and any additional permit conditions have been met. A certificate does not expire if the water system it pertains to is used at least once every five years for its intended purpose.

Bill Summary: House Bill 2706-A would have imposed an annual \$100 management fee on each primary or supplemental water right under a water right permit, water right certificate, decree, or groundwater registration. The bill would have established a cap so that a municipality or water provider would not pay more than \$2,500 and a nonwater provider would not pay more than \$1,000. In addition, the bill would have required that the fee revenue be used only to fund field, technical scientific, and administrative duties directly related to water rights management.

[House Bill 2707-A](#)

Not Enacted

Groundwater Studies and Investigations

Chief Sponsors: Rep. Helm

Committees: House Energy and Environment, Joint Ways and Means

Background and Current Law: According to the Oregon Water Resources Department (OWRD), Oregon currently has 256,800 known wells, and several thousand new wells are built each year. Wells provide drinking water, water for irrigation and industry, and information about groundwater levels throughout the state. To monitor groundwater, OWRD has a network of approximately 1,100 observation wells. These wells provide information on current groundwater availability and long-term trends. OWRD coordinates with the United States Geological Survey to collect information for extensive water basin studies, which typically take five to six years to complete. To date, only about one-third of the state has been covered by basin studies.

Bill Summary: House Bill 2707 would have appropriated an unspecified amount of money from the General Fund to OWRD for groundwater studies and investigations to assess and manage Oregon's groundwater resources, in cooperation with the United States Geological Survey in priority basins determined by OWRD.

[House Bill 2722](#)

Effective Date: June 22, 2017

Irrigation Requirements in Condominiums and Planned Communities

Chief Sponsors: Reps. McLain, Vial

Committees: House Energy and Environment, Senate Environment and Natural Resources

Background and Current Law: According to the report of the Task Force on Drought Emergency Response, drought is not an abnormal event in Oregon, with notable droughts occurring in 1976-77, 1992, 2001-02, and 2015. In 2015, Oregon experienced severe to extreme drought conditions across the entire state, prompted by warmer-than-normal temperatures, record-low snowpack, and, in some parts of the state, below-normal spring and summer precipitation. The result was record-low to near-record-low streamflows in most parts of the state. The Governor declared a drought in 25 of Oregon's 36 counties, the most since 1992, when a statewide drought declaration was issued.

In 2016, the Legislative Assembly enacted Senate Bill 1529 prohibiting the enforcement of irrigation requirements imposed by homeowner's associations following drought conditions.

Bill Summary: House Bill 2722 extends this prohibition to both condominiums and planned communities by making irrigation requirements void and unenforceable while certain drought declarations, findings, conservation requirements, or association rules are in effect. The bill also authorizes a planned community or a condominium association to adopt rules to require the reduction or elimination of irrigation and allow or require the replacement of turf or other landscape vegetation with xeriscape.

Oregon Laws 2017: Chapter 423

[House Bill 2739](#)

Not Enacted

Patent Holder Liability for Genetically Engineered Organisms

Chief Sponsors: Rep. Barnhart

Committees: House Judiciary, House Rules

Background and Current Law: A “GMO” is a genetically modified organism. Genetic changes are achieved through laboratory techniques, including the manipulation of existing genetic material or the introduction of modified genetic material into the organism. Crops may be genetically altered to be resistant to pesticides and herbicides, to combat disease and parasites, or to increase nutritional value. Several countries ban producing or importing genetically modified crops and local farmers and agricultural operations may be concerned about accidental contamination of nonmodified crops.

Bill Summary: House Bill 2739 would have allowed lawsuits against GMO patent holders if their products were discovered on land without permission. If a GMO was found on public land, any person within the jurisdiction of the public body owning the land would have been authorized to bring an action if the public body declined to do so. The measure also provided an affirmative defense if a GMO was present on land through an intentional act without the patent holder’s permission.

[House Bill 2784](#)

Effective Date: August 15, 2017

Shellfish Task Force Recommendations

At the request of: House Committee on Agriculture and Natural Resources

Committees: House Agriculture and Natural Resources, Joint Ways and Means

Background and Current Law: House Bill 2209 (2015) created the Oregon Shellfish Task Force, responsible for developing a draft Oregon Shellfish Initiative along with a report which included recommendations to help enhance and expand cultivated shellfish production; conserve, protect, and restore wild populations of native shellfish; and improve water quality and the health of aquatic and marine habitats.

Bill Summary: House Bill 2784 clarifies that ODA is the lead agency responsible for state administration of programs and policies relating to the commercial cultivation of oysters, clams and mussels. In addition, the bill directs ODA to conduct a statewide pilot project designed to increase the frequency of water quality monitoring and analysis related to the closure and opening of shellfish harvesting on state lands classified by ODA, as suitable for oyster, clam or mussel cultivation.

Oregon Laws 2017: Chapter 711

[House Bill 2786](#)

Not Enacted

State Wetlands Inventory Regulation

At the request of: House Committee on Agriculture and Natural Resources

Committees: House Agriculture and Natural Resources

Background and Current Law: The Oregon Department of State Lands (DSL) is responsible for developing and maintaining the Statewide Wetlands Inventory, which provides an estimate of wetland locations and types throughout the state. The State Wetlands Inventory is used by local governments to catalog resources for protection under Oregon's land use planning goals. City and county planners use wetlands inventories to determine when to send a wetland land use notice to DSL. The response to this notice provides planners and applicants with information about the likelihood that wetlands and waters are in the project area, and if a removal-fill permit may be required for the proposed project.

Bill Summary: House Bill 2786 would have prohibited DSL from applying removal-fill laws to parcels not designated as wetlands, or as including wetlands, in the State Wetlands Inventory.

[House Bill 2853](#)

Not Enacted

Tax Credits for Animal Manure Biomass

At the request of: House Committee on Revenue

Committees: House Agriculture and Natural Resources

Background and Current Law: Tax credits for biomass produced from a variety of sources as a feedstock for bioenergy or biofuel production in Oregon, are scheduled to sunset January 1, 2018. These include biomass made from oilseed and grain crops; virgin oil or alcohol from feedstock; used cooking oil or waste grease; wastewater biosolids; woody biomass; and grass, wheat, straw, or other vegetative biomass from agricultural crops.

Bill Summary: For future tax years beginning January 1, 2018, House Bill 2853 would have limited the tax credit on animal manure or rendering offal to animal manure processed in a digester in service prior to January 1, 2017.

[House Bill 2066](#) was enacted and creates a bovine manure tax credit administered by the Oregon Department of Agriculture. An annual cap of \$5 million is established.

[House Bill 2883](#)

Effective Date: January 1, 2018

Outfitter and Guide Wildlife Violations

At the request of: House Committee on Revenue

Committees: House Agriculture and Natural Resources

Background and Current Law: Tax credits for biomass produced from a variety of sources as a feedstock for bioenergy or biofuel production in Oregon, are scheduled to sunset January 1, 2018. These include biomass made from oilseed and grain crops; virgin oil or alcohol from feedstock; used cooking oil or waste grease; wastewater biosolids; woody biomass; and grass, wheat, straw, or other vegetative biomass from agricultural crops.

Bill Summary: House Bill 2883 authorizes the court to order the Oregon Fish and Wildlife Commission to revoke all licenses, tags, and permits issued to an outfitter or guide who is convicted of a violation of a wildlife law that involves the taking or killing of wildlife with a culpable mental state and prohibits such individuals from applying for another such license, tag, or permit. HB 2883 increases the length of time that the Oregon State Marine Board may suspend an outfitter or guide registration from 24 to 60 months and authorizes the board to deny registration if the applicant has a conviction of a wildlife violation involving unlawful taking or killing of wildlife with a culpable mental state.

Oregon Laws 2017: Chapter 293

[House Bill 3050](#)

Not Enacted

Solar Siting on High-Value Farmland

At the request of: House Committee on Agriculture and Natural Resources

Committees: House Agriculture and Natural Resources

Background and Current Law: Oregon's Statewide Planning Goals and Guidelines indicate the state's preference for restricting urbanization and preserving farmland through the implementation of strict zoning rules. Under current Oregon law, lands zoned for exclusive farm use (EFU) have a set of allowable activities and structures. Common nonfarm uses include "commercial activities in conjunction with farm use," "home occupations," and "utility facilities necessary for public service." High-value farmland refers to lands composed predominantly of soils that are particularly wellsuited for growing agricultural crops.

Bill Summary: House Bill 3050 would have expanded the set of activities and structures allowed on exclusive farm use lands to include solar power generation facilities generating electricity for public use. The bill authorized siting of such facilities on high-value farmland if the appropriate governing body adopted an exception to a statewide planning goal related to agricultural lands or if the governing body determined no alternative site was available.

[House Bill 3051](#)

Effective Date: January 1, 2018

Water Measurement Cost Sharing for Groundwater Users

At the request of: House Committee on Agriculture and Natural Resources

Committees: House Agriculture and Natural Resources, Senate Environment and Natural Resources

Background and Current Law: House Bill 4113 (2016) established the Task Force on Drought Emergency Response to review and make recommendations on the tools and information needed to prepare for and respond to a drought. The task force was asked to: evaluate existing drought response tools and make recommendations to improve drought response; identify options to minimize the impact of drought on agriculture, municipalities, fish, wildlife, and other interests; identify data and resources needed to anticipate and understand drought impacts; and recommend improvements to information sharing during a drought. The report of the task force was due November 1, 2016 and the task force closed on December 31, 2016.

Bill Summary: House Bill 3051 addresses recommendations by the Task Force on Drought Emergency Response by allowing the use of funding from the Water Measurement Cost Share Program Revolving Fund to help pay for installation, repair, or replacement of a measuring device on an authorized diversion or point of appropriation.

Oregon Laws 2017: Chapter 170

[House Bill 3116](#)

Effective Date: May 17, 2017

Ungraded Eggs

Chief Sponsors: Reps. Marsh, McLain

Committees: House Economic Development and Trade, Senate Environment and Natural Resources

Background and Current Law: Oregon law requires an egg's interior quality to be determined prior to sale. This process is called "candling" and requires the egg to be held between a light and the inspector to gauge the interior quality. Depending on the egg's size, shell, and interior quality, the egg is graded AA, A, or B. Eggs sold by licensed egg handlers are typically required to pay an egg handler fee of \$.0025 for every dozen eggs sold.

Bill Summary: House Bill 3116 allows for the sale of candled eggs as ungraded if the egg producer sells them directly to consumers by consignment or at a farmer's market. The measure also requires the egg carton to clearly be labeled as "ungraded" and indicate the number of eggs in the carton. HB 3116 also allows licensed egg handlers to sell ungraded eggs at farmer's markets if they are properly labeled as ungraded.

Oregon Laws 2017: Chapter 88

[House Bill 3149](#)

Effective Date: October 6, 2017

Oregon Coast Trail Development

Chief Sponsors: Reps. Brock Smith, Gomberg, Buehler

Committees: House Agriculture and Natural Resources, Joint Ways and Means

Background and Current Law: In 1971, the Oregon Recreation Trails System Act was passed to provide for the outdoor recreation needs of residents and tourists and to promote public access to the outdoor treasures of Oregon. The Oregon Coast Trail resulted from the act and offers hiking across beaches, forests, and headlands. The trail is planned to extend along the entire coast from Washington to California. Less than 60 miles of trail, much of which stretches along the shoulder of Highway 101, remain unfinished.

Bill Summary: House Bill 3149 directs the Oregon Parks and Recreation Department and Department of Transportation to cooperate with stakeholders to develop an action plan to complete the Oregon Coast Trail. The bill establishes the Oregon Coast Trail Fund, which may be used to develop and implement the action plan and to develop, maintain, and operate the trail and trail facilities.

Oregon Laws 2017: Chapter 674

[House Bill 3151](#)

Not Enacted

Sudden Oak Death Management Funding

Chief Sponsors: Reps. Brock Smith; Sens. Roblan, Kruse

Committees: House Agriculture and Natural Resources, Joint Ways and Means

Background and Current Law: Sudden Oak Death (SOD), the scientific name of which is *Phytophthora ramorum*, has been detected throughout California coastal forests and in Curry County, Oregon. The disease attacks the vascular system of trees and can lead to the rapid death of tanoaks, coast live oaks, and black oaks. A new strain of SOD known as EU1 has the potential to damage Douglas fir trees.

Bill Summary: House Bill 3151 would have appropriated \$695,000 from the General Fund to the Oregon Department of Forestry to carry out an integrated pest-management program to combat Sudden Oak Death.

[House Bill 3153](#)

Not Enacted

Use of Sonar Technology to Count Fish

Chief Sponsors: Rep. Brock Smith

Committees: House Agriculture and Natural Resources

Background and Current Law: The Oregon Department of Fish and Wildlife partners with organizations including the Army Corps of Engineers and The Confederated Tribes of the Umatilla Indian Reservation to monitor populations of fish species. Partners use a variety of methods to count fish, including trapping or impounding fish at counting stations and other visual surveys to estimate the total number of fish passing through the waters of Oregon.

Dual-frequency identification sonar (DIDSON) is a technology that uses high-frequency sound waves to produce near video-quality images of underwater objects. It can be used to determine directional movement and estimate fish size in rivers, including in turbid and low-light conditions. DIDSON devices are typically installed underwater near one bank with the sound beam aimed toward the opposite bank to detect fish passing through the channel.

Bill Summary: House Bill 3153 would have directed the Oregon Department of Fish and Wildlife to use dual-frequency identification sonar technology to count fish and allocated an unspecified amount of funding toward the purchase of DIDSON devices.

[House Bill 3193](#)

Not Enacted

Small-Scale Hand Harvest of Seaweed

Chief Sponsors: Reps. Brock Smith, Gomberg

Committees: House Agriculture and Natural Resources, Joint Ways and Means

Background and Current Law: In Oregon, a person wishing to harvest kelp and other seaweed from the submerged lands owned by the state must obtain a lease from the Oregon Department of State Lands (DSL), survey the leased area, and provide information about the amount and condition of kelp. The lessee must also erect a plant and commence operation within 12 months. There is an exemption from lease requirements for a person harvesting less than 2,000 pounds of wet kelp per year for personal use.

Bill Summary: House Bill 3193 would have replaced the lease system and directed the Oregon Department of Fish and Wildlife (ODFW), in consultation with the Department of State Lands and the Oregon Parks and Recreation Department, to develop and implement a permitting program for small-scale commercial hand harvests of kelp and other seaweed. The measure removed the personal use exemption and authorized ODFW to determine harvest amounts to be exempted from permitting requirements.

[House Bill 3226](#)

Not Enacted

Forest Practices Act

Chief Sponsors: Rep. Holvey

Committees: House Agriculture and Natural Resources

Background and Current Law: The Oregon Forest Practices Act sets standards for all commercial activities involving the establishment, management, and harvesting of trees on Oregon's forestlands. Enacted by the legislature in 1971, the act and its accompanying rules apply to all state and private forestlands within the state. The Oregon Board of Forestry is responsible for interpreting the Forest Practices Act and evaluating, implementing and changing rules as needed based on the latest scientific information and evolving public needs and interests.

Bill Summary: House Bill 3226 would have made significant changes to the Oregon Forest Practices Act to include requirements for the Board of Forestry and State Forester to establish criteria to value and establish protections for natural, cultural, and historical resources on forestland. The measure would have directed owners and operators of forestlands to develop and obtain approval of forest management plans prior to commencing timber harvest operations and directed the Board of Forestry to establish a certification program. The measure would have established requirements for the management of land areas along rivers, streams, and other waterways and directed the State Forester to evaluate needs related to forest roads. The bill would have required forestland owners or operators to have a forest road plan and restricted timber harvest operations and road construction in areas where there was a landslide risk.

[House Bill 3228](#)

Not Enacted

Nongame Wildlife Management

Chief Sponsors: Rep. Helm

Committees: House Agriculture and Natural Resources

Background and Current Law: Under current Oregon law, wildlife management policy generally aims to provide the optimum recreational and aesthetic benefit for present and future generations.

Bill Summary: House Bill 3228 would have expanded wildlife management goals to protecting, maintaining, and restoring indigenous nongame wildlife resources for their intrinsic values, as well as their ecosystem functions and long-term benefits.

[House Bill 3234-A](#)

Not Enacted

Shellfish Funding

At the request of: House Committee on Agriculture and Natural Resources

Committees: House Agriculture and Natural Resources, Joint Ways and Means

Background and Current Law: House Bill 2209 (2015) created the Oregon Shellfish Task Force, responsible for developing a draft Oregon Shellfish Initiative along with a report which included recommendations to help enhance and expand cultivated shellfish production; conserve, protect, and restore wild populations of native shellfish; and improve water quality and the health of aquatic and marine habitats.

Bill Summary: House Bill 3234-A would have provided funding for a variety of activities designed to support the stated goals of the Oregon Shellfish Initiative, including studies of recreational and commercial shellfish cultivation and harvesting, restoration, economic and ecological benefits of shellfish populations, and regulatory processes.

[House Bill 3249](#)

Effective Date: August 15, 2017

Oregon Agriculture Heritage Program

Chief Sponsors: Reps. Clem, Witt, Buehler

Committees: House Agriculture and Natural Resources, Joint Ways and Means

Background and Current Law: The Oregon Watershed Enhancement Board, created in 1999, provides grant funding to Oregonians for voluntary projects on local streams, rivers, wetlands, and natural areas. Community members and landowners use criteria to decide jointly on actions to conserve and improve rivers and natural habitats in the places they live.

Bill Summary: House Bill 3249 establishes the Oregon Agricultural Heritage Foundation and Fund under the Oregon Watershed Enhancement Board to provide grants and technical assistance to help agricultural landowners and operators partner with organizations to create a conservation management plan, working land conservation covenant, or easement and assist owners with succession planning, purchasing, and monitoring activities. The measure also requires a study to identify potential tax incentives and financial tools to improve the likelihood of continued use of working lands for agricultural and conservation purposes. The study and recommendations are to be submitted to the Legislative Assembly by September 15, 2018.

Oregon Laws 2017: Chapter 716

House Joint Memorial 11

Not Adopted

Oregon and California Lands Management Reform

Chief Sponsors: Reps. Brock Smith, Wilson; Sens. Knopp, Kruse

Committees: House Agriculture and Natural Resources, House Rules

Background and Current Law: In 1937, Congress passed the Oregon and California Railroad Revested Lands (O&C) Act, providing for permanent forest production, protection of watersheds and regulation of stream flow, contribution toward the economic stability of local communities and the timber industry, creation of recreational facilities, and reimbursing the O&C counties for the loss of tax revenues from the O&C lands. As part of the O&C Act, the U.S. Department of the Interior, through the Bureau of Land Management, was directed to harvest timber from O&C forest lands on a sustainable-yield basis. Since that time, timber sales have declined, which has caused the funds that Oregon counties receive to decline as well.

Bill Summary: House Joint Memorial 11 would have asked the President of the United States and Congress to reconsider the management of O&C lands.

2017 SUMMARY OF LEGISLATION



BUSINESS AND CONSUMER PROTECTION



BUSINESS AND CONSUMER PROTECTION MEASURES

Construction

Enacted: SB 336, SB 983

Not Enacted: HB 2164, HB 2168, HB 2544, HB 2907

Consumer Protection

Enacted: SB 134, SB 974, HB 2090, HB 2356, HB 3447

Not Enacted: HB 2581, HB 2975-A

Economic Development

Enacted: SB 936, HB 2152

Not Enacted: HB 2041, HB 3150

Finance, Insurance, and Real Estate

Enacted: SB 96, SB 97, SB 98, SB 330, SB 331, SB 332, SB 381, SB 985, SB 986, HB 2189, HB 2244, HB 2622, HB 2638, HB 2833, HB 2855

Not Enacted: HB 2155-A, HB 2243, HB 2501, HB 2752-A, HB 2950, HB 3087-A

Gaming and Alcohol

Enacted: SB 1044, HB 2089, HB 2150, HB 2159, HB 2160

Not Enacted: SB 316-A, HB 2190, HB 2761, HB 2971

General Business Policy

Enacted: SB 838, SB 980, HB 2191, HB 2610, HB 3101, HB 3279, HB 3283

Not Enacted: SB 664-A, SB 885, SB 982, HB 2153-A, HB 2348, HB 3322

Utilities

Enacted: SB 84, HB 2091

Not Enacted:

Picture: Wallowa Lake, Wallowa County - [Gary Halvorson, Oregon State Archives](#)

BUSINESS AND CONSUMER PROTECTION TASK FORCES AND REPORTING REQUIREMENTS

There were no task forces or reporting requirements involving business and consumer protection enacted through legislation during the 2017 session.

Senate Bill 84**Effective Date: January 1, 2018****Surcharge for Telephone Assistance Program****At the request of:** Governor Brown for Public Utility Commission**Committees:** Senate Business and Transportation, Joint Ways and Means

Background and Current Law: The Oregon Public Utility Commission (PUC) regulates investor-owned utilities, including telephone utilities. Its Residential Service Protection Fund (RSPF) Section oversees three programs that assist customers with telecommunications services: the Oregon Telephone Assistance Program reduces monthly telecommunications bills for qualifying Oregonians; the Telecommunication Devices Access Program provides adaptive equipment to Oregonians with hearing, vision, speech, mobility, or cognitive impairments; and the Oregon Telecommunications Relay Service (OTRS) allows people with hearing and speech disabilities to place and receive telephone calls. Subscribers who receive telecommunications service that includes access to OTRS are assessed a surcharge of up to 35 cents per month for each land line circuit and, in the case of cellular service, for each device. No amounts are currently assessed for customers who receive voice over internet protocol (VoIP) service that includes OTRS.

Bill Summary: Senate Bill 84 clarifies existing statute to allow the PUC to apply the RSPF surcharge to customers receiving VoIP service that includes OTRS.

Oregon Laws 2017: Chapter 237

Senate Bill 96**Effective Date: January 1, 2018****Insurance Requirements for Broker-Dealer and Investment Advisor****At the request of:** Governor Brown for Department of Consumer and Business Services**Committees:** Senate Business and Transportation, Senate Judiciary, House Business and Labor

Background and Current Law: The Department of Consumer and Business Services (DCBS) regulates finance and insurance businesses and professionals. Securities professionals must be licensed by DCBS as investment advisors. Broker-dealers and investment advisors are required by rule to carry a \$10,000 surety bond to protect clients against loss as a result of regulatory violations. DCBS is authorized to raise the amount of bond as high as \$100,000, but has determined that sureties are unlikely to offer bonds in that amount. "Errors and omissions" insurance provides coverage for negligent acts by the insured. Currently, no state requires investment advisors or broker dealers to carry errors and omissions insurance.

Bill Summary: Senate Bill 96 requires applicants for licensure or renewal of licensure as broker-dealers or state investment advisors to be covered by an errors and omissions policy of at least \$1 million, excluding licensed broker-dealers already registered with the U.S. Securities and Exchange Commission and licensed state investment advisors whose principal place of business is outside Oregon.

Oregon Laws 2017: Chapter 313

[Senate Bill 97](#)

Effective Date: June 27, 2017

Modernizing Insurance Corporate Governance

At the request of: Governor Brown for Department of Consumer and Business Services

Committees: Senate Business and Transportation, House Business and Labor

Background and Current Law: The Division of Financial Regulation of the Department of Consumer and Business Services (DCBS) regulates companies and professionals in finance and insurance industries. DCBS is accredited through the National Association of Insurance Commissioners, which evaluates Oregon's programs to monitor the solvency of insurers. DCBS has conducted a review of how insurers govern themselves, which identified several issues.

Bill Summary: Senate Bill 97 authorizes DCBS to act as the group-wide supervisor for internationally active insurance groups, or to acknowledge another entity as the group-wide supervisor, under certain circumstances. Insurers and insurance groups are required to submit annual corporate governance disclosures to DCBS or to another regulatory entity in the lead state according to timelines established by rule. Confidentiality requirements are outlined and authority is granted to share specified information received or disclosed by DCBS. Once an insurer is placed under supervision, liquidation, or rehabilitation, DCBS has authority over its operations.

Oregon Laws 2017: Chapter 479

[Senate Bill 98](#)

Effective Date: August 2, 2017

Licensure of Mortgage Loan Servicers

At the request of: Governor Brown for Department of Consumer and Business Services

Committees: Senate Business and Transportation, Joint Ways and Means

Background and Current Law: A mortgage loan servicer is a company that processes mortgage loan payments from borrowers and performs other services in connection with mortgages and mortgage-backed securities. Mortgages may be serviced by the lender that originated the loan, or by an entity that purchases mortgage servicing rights from the original lender. Nondepository residential mortgage loan servicers are not currently regulated in Oregon.

Bill Summary: Senate Bill 98 outlines the duties and responsibilities of residential mortgage loan servicers, requires they be licensed by the Department of Consumer and Business Services (DCBS), and prescribes penalties for those operating without a license. The measure also allows DCBS to participate in a multistate mortgage examination.

Oregon Laws 2017: Chapter 636

[Senate Bill 134](#)

Effective Date: January 1, 2018

Retail Installment Contracts for Vehicle Sales

At the request of: Attorney General Rosenblum

Committees: Senate Business and Transportation, House Business and Labor

Background and Current Law: Retail installment contracts to purchase vehicles are similar to traditional auto loans in that both allow buyers to obtain vehicles by agreeing to make payments over time. A traditional loan is a transaction between a buyer and a bank, or other lender, for money used to pay a vehicle dealer the total cost of the vehicle in return for the buyer's agreement to repay the bank. A retail installment contract involves a transaction between a buyer and vehicle dealer directly, wherein the buyer agrees to make regular payments to the dealer. Both banks and dealers may subsequently sell the rights to collect repayment on either type of contract to another lender or third party.

Bill Summary: Senate Bill 134 clarifies that when a lender is purchasing the right to collect on a retail installment contract from a vehicle seller, the lender is not "financing" the sale between the buyer and seller. It also outlines a process to determine how much a buyer must reimburse a vehicle seller for the use of a vehicle between taking possession and returning the vehicle to the seller.

Oregon Laws 2017: Chapter 241

[Senate Bill 316-A](#)

Not Enacted

Promotion Activities by the Oregon Wine Board

Chief Sponsors: Sens. Winters, Roblan, Beyer; Rep. Rayfield

Committees: Senate Business and Transportation, Joint Ways and Means

Background and Current Law: The Oregon Wine Board, created in 2003, is a semi-independent state agency charged with promoting Oregon's wine industry. The board is composed of nine members, appointed by the governor, and is funded by taxes on wine and grapes. Oregon's wine industry has experienced significant growth in the past decade: approximately 700 wineries and over 1,000 grape growers are located in Oregon, representing about a 500 percent increase over the past 15 years. Wine producers are constantly looking for new markets. Wine industries in California and Washington spend significant resources on industry research; Oregon's research is largely limited to what the state's universities and community colleges engage in.

Bill Summary: Senate Bill 316-A would have allocated \$1.5 million from wine taxes for a research and investment program to expand national and international market access opportunities for Oregon wineries. Other programs funded by wine tax revenues, such as local governments, mental health services, and the administrative purposes of the Oregon Liquor Control Commission, must have been funded first.

[Senate Bill 330](#)

Effective Date: January 1, 2018

Termination of Portable Electronics Insurance

At the request of: Senate Interim Committee on Business and Transportation

Committees: Senate Business and Transportation, House Business and Labor

Background and Current Law: Portable electronics insurance is a relatively new classification of insurance products that cover a wide array of electronic devices against loss, theft, and malfunction, among other things. House Bill 3411 (2011) required portable electronics vendors to obtain a limited license from the Department of Consumer and Business Services in order to offer or sell portable electronics insurance coverage.

Bill Summary: Senate Bill 330 reduces the amount of advance notice insurers are required to give vendor policyholders and enrolled customers of modification or termination of their portable electronics insurance coverage, from 60 to 30 days. The measure also allows notice to be provided via email with customer consent.

Oregon Laws 2017: Chapter 450

[Senate Bill 331](#)

Effective Date: January 1, 2018

Replacement Insurance Policies by Affiliated Company

At the request of: Senate Interim Committee on Business and Transportation

Committees: Senate Business and Transportation, House Business and Labor

Background and Current Law: Under current law, the only way that an insurer who offers lines of insurance through multiple, distinct underwriting companies can transfer a policyholder from one of its holding companies to another is to not renew a policy. This can lead to confusion for the policyholder when they receive notice that their policy will not be renewed.

Bill Summary: Senate Bill 331 allows an insurer to offer an insured a replacement policy from a subsidiary company in lieu of renewing an existing policy, if the insurer notifies the insured and the insurance producer at least 45 days prior to the renewal date on the existing policy.

Oregon Laws 2017: Chapter 250

[Senate Bill 332](#)

Effective Date: January 1, 2018

Rebates Offered by Insurance Companies

At the request of: Senate Interim Committee on Business and Transportation

Committees: Senate Health Care, Senate Business and Transportation, House Health Care

Background and Current Law: Current law allows for insurers to provide premium discounts or rebates to policyholders if offered in connection with a health promotion or disease prevention program under federal or state law, or in connection with a wellness program defined, by rule, by the Department of Consumer and Business Services.

Bill Summary: Senate Bill 332 allows insurers to offer certain rebates, such as prizes, goods, wares, merchandise, or articles of property, to people other than policyholders, so long as such prizes do not have an aggregate value exceeding \$100 and are given as a form of advertising or promotion.

Oregon Laws 2017: Chapter 327

[Senate Bill 336](#)

Effective Date: January 1, 2018

Responsible Managing Individuals for Construction Contracting Companies

At the request of: Senate Interim Committee on Business and Transportation

Committees: Senate Business and Transportation, House Business and Labor

Background and Current Law: The Construction Contractors Board (CCB) regulates residential and commercial construction contractors, subcontractors, and home inspectors. It investigates and adjudicates complaints filed against licensees, levies sanctions when applicable, and provides education and testing on construction laws and business practices. Every contractor or business licensed by the CCB must have a responsible managing individual (RMI). The RMI can be either an owner or an employee who exercises management or supervisory authority and has successfully completed training and passed an examination or demonstrated the required experience. Businesses may have more than one RMI, but most only have one. This can cause problems when the RMI leaves a business unexpectedly before a replacement can become qualified and licensed.

Bill Summary: Senate Bill 336 establishes a process for a construction contractor or business to follow when it loses its RMI, allowing operation with a temporary RMI for up to 14 days after notifying the CCB.

Oregon Laws 2017: Chapter 483

[Senate Bill 381](#)

Effective Date: January 1, 2018

Real Estate Loan Notices

Chief Sponsors: Sen. Hansell

Committees: Senate Business and Transportation, House Business and Labor

Background and Current Law: Many documents related to real estate loans are required to be mailed in hard copy to the designated recipients, including: payoff statements; trust deeds; requests for resolution conferences; notice of noncompliance with, or ineligibility for, foreclosure avoidance measures; notice of default; and notice of trustee sale. Statute specifies that these documents are to be mailed to the address on file; however, in some cases, the recipient relies upon a post office box for mail delivery, and some documents are not mailed in a method that allows delivery to a post office box.

Bill Summary: Senate Bill 381 requires that notices relating to real estate loans that are required to be mailed to the borrower must be mailed to all addresses on file with the lender, including post office boxes.

Oregon Laws 2017: Chapter 251

[Senate Bill 664-A](#)

Not Enacted

Imposition of Civil Penalties on Small Businesses

Chief Sponsors: Sen. Olsen

Committees: Senate Business and Transportation, House Business and Labor

Background and Current Law: General authorization for state agencies to impose civil penalties is governed by ORS 183.745. Persons subject to penalties receive notice and have 20 days to appeal by requesting a hearing in writing or an order becomes final. Penalties are due and payable 10 days after orders become final. If a hearing is requested, it is a “contested case hearing,” subject to judicial review. The provisions of ORS 183.745 do not apply to: tax penalties; antitrust violations; wage claims; occupational safety and health violations; workers’ compensation claims; claims of unlawful discrimination in employment or public accommodations; or penalties imposed by the Public Utility Commission.

Bill Summary: Senate Bill 664-A would have prohibited state agencies from imposing civil penalties on small businesses for a first violation of paperwork requirements, provided the violation did not pose an unreasonable risk of harm to either the employees of the business or the general public, and so long as the business was in compliance with all other applicable laws. The measure specified that the prohibition would not apply in cases where a contrary requirement was imposed by federal law or mandatory federal guidance.

Senate Bill 838**Effective Date: January 1, 2018****Governance of Timeshares****At the request of:** Senate Committee on Business and Transportation**Committees:** Senate Business and Transportation, House Business and Labor

Background and Current Law: A timeshare is partial ownership of real property that entitles owners to use the property for a certain period of time every year, while other owners use the property the rest of the year. For example, a 1/52nd ownership share typically entitles the owner to use the property for one week per year. Timeshares are typically vacation properties that an individual or family can use, either for a set or variable amount of time each year, depending on the timeshare arrangement. Legislation was enacted in Oregon in 1983 to regulate and support the timeshare industry and to require full and adequate disclosure of all pertinent facts about the timeshare plan.

Bill Summary: Senate Bill 838 refines the definition of “developer” for timeshare purposes to remove references to persons who sell timeshares, and to include persons who create the timeshare plan, their successors in interest, and persons who purchase a timeshare from either the creator of the plan or a successor in interest for the primary purpose of resale.

Oregon Laws 2017: Chapter 354

Senate Bill 885**Not Enacted****Waiver of Practical Engineering Exam for Licensees****Chief Sponsors:** Sen. Roblan**Committees:** Senate Business and Transportation

Background and Current Law: The Oregon State Board of Examiners for Engineering and Land Surveying (OSBEELS) was established in 1919 and currently regulates engineering, land surveying, photogrammetric mapping, and water right examination. As a semi-independent state agency, OSBEELS ensures that only competent people are granted licenses to practice and only licensed individuals practice professionally in these fields. One requirement to become licensed is successful passage of an examination on the fundamentals of engineering. Currently, the examination may be waived for applicants who have been professionally registered or licensed elsewhere for at least 25 years.

Bill Summary: Senate Bill 885 would have reduced the amount of time that an applicant is required to be licensed or registered elsewhere to have the fundamentals examination waived, from 25 to eight years. The measure also authorized OSBEELS to waive the practical engineer’s examination requirement for applicants similarly registered or licensed elsewhere for at least eight years.

[Senate Bill 936](#)

Effective Date: October 6, 2017

Strategic Investment Program Modifications

Chief Sponsors: Sen. Johnson

Committees: Senate Business and Transportation, Senate Finance and Revenue, House Revenue

Background and Current Law: The Strategic Investment Program, administered by the Oregon Business Development Department (OBDD), offers a 15-year property tax exemption on a portion of large capital investments that serve a traded-sector industry. To qualify, the cost of the project must exceed the taxable portion; typically, qualifying projects in urban areas exceed \$100 million, while in rural areas they are over \$25 million. Projects can be approved ad hoc by counties through a public hearing process and negotiation with the business and city, if applicable, or be approved as part of a designated Strategic Investment Zone formed by a county or city via request to OBDD.

Bill Summary: Senate Bill 936 increases the taxable portion of projects located in rural areas that are eligible for the property tax exemption under the Strategic Investment Program, based on the total cost of the project: for projects under \$500 million, the taxable real market value is \$25 million; for projects between \$500 million and \$1 billion, it is \$50 million; and for projects exceeding \$1 billion in project cost, the taxable real market value is \$100 million. The measure increases the cap on the community services support fee to \$2.5 million in any year for both urban and rural projects not located within strategic investment zones.

Oregon Laws 2017: Chapter 490

[Senate Bill 974](#)

Effective Date: January 1, 2018

Claims Against Vehicle Dealers by Nonretail Customers

At the request of: Senate Committee on Business and Transportation

Committees: Senate Business and Transportation, House Business and Labor

Background and Current Law: Motor vehicle dealers in Oregon are regulated by the Driver and Motor Vehicle Services (DMV) division of the Oregon Department of Transportation (ODOT). A standard dealer certificate is good for three years and allows a dealer to sell most motor vehicles. A special certificate allows a dealer to exclusively sell motorcycles, mopeds, Class I all-terrain vehicles (ATV), and snowmobiles. A bond or letter of credit is required in order to be certified as a vehicle dealer: the minimum bond requirement is \$40,000, or \$2,000 if the dealer holds a motorcycle, moped, snowmobile, or ATV certificate.

Bill Summary: Senate Bill 974 increases the required bonds or letters of credit from \$40,000 to \$50,000 for motor vehicle dealers, and from \$2,000 to \$10,000 for dealers who sell only motorcycles, mopeds, Class I ATVs, and snowmobiles. The measure reduces the amount that a nonretail customer can claim against a dealer's bond from \$20,000 to \$10,000, and limits the types of claims that nonretail customers may make against a dealer's bond who only sells motorcycles. Senate Bill 974 also prohibits DMV from issuing any new dealer certificates for motorcycles, mopeds, Class I ATVs, and snowmobiles.

Oregon Laws 2017: Chapter 530

[Senate Bill 980](#)

Effective Date: January 1, 2018

Compensation to Vehicle Dealer Franchisees for Cost of Vehicle Recalls

At the request of: Senate Committee on Business and Transportation

Committees: Senate Business and Transportation, House Business and Labor

Background and Current Law: A motor vehicle recall is issued when a vehicle manufacturer or the National Highway Traffic Safety Administration determines that the vehicle or onboard equipment creates an unreasonable safety risk or fails to meet minimum safety standards. Most decisions regarding recalls are made voluntarily by the manufacturer. Under a motor vehicle recall, manufacturers are required to fix the problem by repair, replacement, refund, or repurchase of the vehicle. Recall work is typically conducted by a manufacturer's dealer franchisee.

Bill Summary: Senate Bill 980 requires vehicle manufacturers to compensate their dealer franchisees for all labor and parts the manufacturer requires to be used to perform repairs on vehicles subject to recall, and for holding such vehicles pending receipt of parts. Compensation must be at least 1.5 percent of the value of the vehicle held, but cannot exceed the vehicle's value. Exceptions are provided in cases where a national compensation program provides equal or greater compensation, and manufacturers are prohibited from reducing compensation through chargeback or removing a franchise from an incentive program solely based on its claim under the measure.

Oregon Laws 2017: Chapter 363

[Senate Bill 982](#)

Not Enacted

Business Relationship Between Equipment Manufacturers and Dealers

At the request of: Senate Committee on Business and Transportation

Committees: Senate Business and Transportation

Background and Current Law: The relationship between manufacturers of equipment, such as farm implements and outdoor power equipment, and the dealers that sell such equipment at retail is similar to that of dealers and manufacturers of motor vehicles; however, the relationships are governed by different statutes.

Bill Summary: Senate Bill 982 would have modified regulation of the relationship between manufacturers, suppliers, and dealers of equipment such as farm implements, outdoor power equipment, landscaping equipment, construction and mining equipment, and off-road vehicles.

[Senate Bill 983](#)

Effective Date: January 1, 2018

Qualifications to Perform Electrical or Plumbing Work on Recreational Vehicles

At the request of: Senate Committee on Business and Transportation

Committees: Senate Business and Transportation, House Business and Labor

Background and Current Law: The Building Codes Division of the Oregon Department of Consumer and Business Services regulates individuals and businesses engaged in electrical, plumbing, boiler, elevator, and manufactured dwelling work. Oregon has reciprocal licensing agreements with other states for certain fields. Individuals and businesses performing professional work in these areas are required to be licensed, with some exceptions; each field has multiple license types, with some being specialty or limited licenses. One of these license types, the “limited maintenance electrician’s license,” allows the licensee to repair and maintain electrical wiring and equipment used in manufactured structures, which includes recreational vehicles, manufactured dwellings, and recreational structures. Currently no one in Oregon holds this type of license.

Bill Summary: Senate Bill 983 eliminates the limited maintenance electrician’s license category.

Oregon Laws 2017: Chapter 364

[Senate Bill 985](#)

Effective Date: January 1, 2018

Exemption from Filing Requirements for Certain Lines of Insurance

At the request of: Senate Committee on Business and Transportation

Committees: Senate Business and Transportation, House Business and Labor

Background and Current Law: The Division of Financial Regulation at the Department of Consumer and Business Services (DCBS) regulates the insurance industry in Oregon. Insurers dealing in certain lines of insurance, such as health insurance plans, are required to file proposed rates and policy forms with DCBS, which posts filings and tables with proposed rates prior to making decisions.

Bill Summary: Senate Bill 985 exempts several classes of commercial insurance from rate and policy form filing requirements. The measure authorizes DCBS to adopt rules to exempt or amend the rate and form filing requirements for any commercial line of insurance if the existing requirement is undesirable or unnecessary to protect the public and if doing so will enhance competition.

Oregon Laws 2017: Chapter 492

[Senate Bill 986](#)

Effective Date: January 1, 2018

Elimination of Specific Notifications of Insurer's Policies and Practices

At the request of: Senate Committee on Business and Transportation

Committees: Senate Business and Transportation, House Business and Labor

Background and Current Law: The federal Gramm-Leach-Bliley Act, enacted in 1999, seeks to protect consumer financial privacy by limiting when financial institutions may disclose a consumer's nonpublic personal information to nonaffiliated third parties. Current Oregon law specifies that insurers must notify policyholders of their disclosure practices when the policy is issued, and annually upon renewal, even if practices have not changed.

Bill Summary: Senate Bill 986 eliminates the requirement that insurers notify policyholders of their disclosure practices annually, if such information is only disclosed to nonaffiliated third parties in accordance with applicable law and the insurer has not changed its practices.

Oregon Laws 2017: Chapter 365

[Senate Bill 1044](#)

Effective Date: June 29, 2017

Oregon Liquor Control Commission Regulations

Chief Sponsors: Sen. Beyer

Committees: Senate Business and Transportation, House Economic Development and Trade

Background and Current Law: The Oregon Liquor Control Commission (OLCC) regulates businesses that import, manufacture, distribute, sell, or serve alcohol in Oregon. It was instituted in 1933 at the end of the nationwide prohibition on alcohol. Oregon is a "control" state, meaning it has the exclusive right to sell packaged distilled spirits through a statewide distribution center in Portland, which is then sold through retail liquor stores operated by contracted liquor agents. Licenses are issued to private businesses for the sale of packaged beer and wine, and to restaurants, bars, and taverns for the sale of beer, wine, and distilled spirits by the glass.

Bill Summary: Senate Bill 1044 makes several changes to the laws governing alcohol in Oregon. It clarifies that the OLCC's authority to investigate or discipline a license or permit holder does not end with the lapse, suspension, or revocation of that license or permit. It increases the fee for a server's permit from \$10 to \$50, but lifts the requirement that the permit application be endorsed by another alcohol licensee or an OLCC employee. The measure exempts the sale of distilled liquor and the OLCC's appointment of distillery retail outlet agents from public contracting laws. It allows licensed distilleries to sell distilled liquor with 10 percent alcohol content by volume, down from the current 17 percent, and it expands the types of current licensees that may apply for an on-premises sales license. Finally, the measure allows an identification card issued by a federal territory or a federally recognized Indian tribe to be used as proof of age to purchase alcohol.

Oregon Laws 2017: Chapter 533

[House Bill 2041](#)

Not Enacted

Oregon Product Certification Program

Chief Sponsors: Rep. Clem

Committees: House Economic Development and Trade, Joint Ways and Means

Background and Current Law: Oregon products, including wheat, wine, and beer, often command price premiums over products produced in other states. This price premium is a result of the actual or perceived quality of the product, how it was made, or an indication of consumer support for Oregon-made products. Currently, there is no state-run product certification program indicating whether products originated in Oregon.

Bill Summary: House Bill 2041 would have created the Certified Oregon Program within the Oregon Business Development Department, and authorized the use of the term “Certified Oregon” by Oregon businesses on products and labels as well as in advertising and media. The measure required the Oregon Business Development Department to form an advisory group to make program recommendations and certify businesses.

[House Bill 2089](#)

Effective Date: January 1, 2018

Vermouth Sales in Oregon

Chief Sponsors: Reps. Lininger, Gomberg, G. Smith

Committees: House Economic Development and Trade, Senate Business and Transportation

Background and Current Law: Vermouth is a fortified wine flavored with botanicals that is frequently used in cocktails. Exclusive liquor agents currently offer 10 different types of vermouth for sale. However, many distilleries are licensed by the Oregon Liquor Control Commission as retail outlet agents, not exclusive liquor agents.

Bill Summary: House Bill 2089 allows licensed distilleries to sell the distilled spirits they produce directly to customers. They can also create and charge for sample cocktails containing vermouth, but they are not allowed to sell a bottle of vermouth along with any distilled spirits. The measure allows liquor stores and distillery retail outlet agents to sell up to 20 different varieties of vermouth for off-premises consumption so long as the vermouth is sold in factory-sealed containers.

Oregon Laws 2017: Chapter 31

[House Bill 2090](#)

Effective Date: January 1, 2018

Business Use of Consumer Information

Chief Sponsors: Reps. Huffman, Williamson

Committees: House Business and Labor, Senate Business and Transportation

Background and Current Law: Oregon's Attorney General and district attorneys enforce unlawful trade practices, often by serving a person who has engaged in, or is about to engage in an unlawful trade practice with an investigative demand. This requires that the person appear and testify, answer to written interrogatories, or produce relevant documents or physical evidence for examination. The purpose of this process is to receive an assurance of voluntary compliance; both the Attorney General and district attorneys have the option of going to court to restrain a person from engaging in the alleged unlawful trade practice.

Bill Summary: House Bill 2090 makes it an unlawful trade practice if a business asserts, on its website or in information available to consumers, how consumer information will or will not be used, and uses that information in a way that is materially inconsistent with those statements or representations.

Oregon Laws 2017: Chapter 145

[House Bill 2091](#)

Effective Date: October 6, 2017

Rural Broadband Service

At the request of: House Interim Committee on Rural Communities, Land Use and Water

Committees: House Economic Development and Trade, Senate Business and Transportation

Background and Current Law: In 1999, the legislature directed the Oregon Public Utility Commission to create the Oregon Universal Service (OUS) fund to support local telephone companies that provide basic telephone service in high-cost rural areas in Oregon. The fund's purpose is to ensure that basic telephone service is available at reasonably comparable and affordable rates throughout the state. The fund is supported by a surcharge on all retail telecommunications sales.

Bill Summary: House Bill 2091 allows the OUS fund to be used to encourage broadband service availability and limits the service surcharge to 8.5 percent.

Oregon Laws 2017: Chapter 32

[House Bill 2150](#)

Effective Date: October 6, 2017

Alcohol Privilege Tax Payments

At the request of: House Special Committee on Small Business Growth

Committees: House Economic Development and Trade, House Revenue, Senate Finance and Revenue

Background and Current Law: Oregon manufacturers or importing distributors of wine, cider, and malt beverages must file a statement with the Oregon Liquor Control Commission indicating how much of their product they produced, purchased, or received during the previous calendar month and pay applicable privilege taxes. Currently, the filing and payment system is paper-based.

Bill Summary: House Bill 2150 allows manufacturers or distributors of alcoholic beverages to file product statements and pay their privilege taxes electronically starting July 1, 2019.

Oregon Laws 2017: Chapter 382

[House Bill 2152](#)

Effective Date: January 1, 2018

Small Business Development and Marketing

At the request of: House Special Committee on Small Business Growth

Committees: House Economic Development and Trade, Senate Business and Transportation

Background and Current Law: There are 19 small business development centers currently operating throughout Oregon, mostly in conjunction with community colleges and public universities. These centers provide services to local businesses, including advising and training. Oregon law prohibits these centers from using state funds to engage in outreach and marketing efforts to publicize their services.

Bill Summary: House Bill 2152 permits small business development centers to use state funding to conduct outreach or marketing activities. The measure also directs centers to work with other specified organizations to provide business support services to small businesses in Oregon.

Oregon Laws 2017: Chapter 201

[House Bill 2153-A](#)

Not Enacted

Commercial Interior Designer Registration

At the request of: House Special Committee on Small Business Growth

Committees: House Economic Development and Trade, Joint Ways and Means

Background and Current Law: Commercial interior designers offer creative and technical solutions to create specified-build interior environments. Their designs must conform to building codes and regulatory requirements. These designs can include nonstructural or nonseismic elements like ceiling or partition systems, spatial occupancy layouts, ergonomic layouts, and interior environments that impact the health and safety of the building's occupants. Oregon does not have a state registry or certification process for commercial interior designers.

Bill Summary: House Bill 2153-A would have required the Department of Consumer and Business Services to create a voluntary certification program for commercial interior designers. The measure clarified a certified commercial interior designer's ability to submit specified plans, drawings, designs, and specifications to city and county building officials.

[House Bill 2155-A](#)

Not Enacted

New Markets Tax Credit

At the request of: House Special Committee on Small Business Growth

Committees: House Economic Development and Trade, House Revenue

Background and Current Law: Taxpayers who make a qualified low-income community investment are eligible for a credit against personal or corporate excise taxes equal to 39 percent of the cost of the investment. A qualified low-income community investment is an equity investment in, or long-term debt security issued by, a qualified community development entity which meets specified conditions and obtains certification from the Oregon Business Development Department. The credit is nonrefundable and has a carryforward, or the ability to apply to future tax years, of five years.

Bill Summary: House Bill 2155-A would have extended the sunset for qualified equity investments to January 1, 2023. The measure would have allowed the Oregon Business Development Department to issue up to \$24 million in tax credits, cap transaction costs, and allow the tax credit to be used to create affordable housing.

[House Bill 2159](#)

Effective Date: January 1, 2018

Cider Alcohol Content Limits

At the request of: House Special Committee on Small Business Growth

Committees: House Economic Development and Trade, House Revenue, Senate Business and Transportation

Background and Current Law: The federal Alcohol and Tobacco Tax and Trade Bureau recently increased the alcohol content limit for ciders from 7 percent alcohol by volume (ABV) to 8.5 percent ABV. Under federal law, ciders with more than 8.5 percent ABV are considered natural wines, special natural wines, or other-than-standard wines. This classification has regulatory and tax ramifications.

Bill Summary: House Bill 2159 increases Oregon's ABV limit for cider to 8.5 percent to match the federal designation, allowing Oregon cider producers to make one set of calculations when completing tax filings for both federal and state taxes.

Oregon Laws 2017: Chapter 202

[House Bill 2160](#)

Effective Date: January 1, 2018

Brewery Public House Licenses

At the request of: House Special Committee on Small Business Growth

Committees: House Economic Development and Trade, Senate Business and Transportation

Background and Current Law: Oregon's brewery-public house licenses were first created in 1985. These state licenses allow for the manufacture of malt beverages and sale of malt beverages, wine, or cider. There were over 104 brewery and brewery-public house licenses in 2005. As of 2016, Oregon has 314 licensed brewery-public houses, showing a 12 percent year-over-year growth rate.

Bill Summary: House Bill 2160 allows brewery-public house licensees to sell beer, wine, or cider for consumption on or off the premises at two locations rather than a single location as is currently allowed by Oregon law.

Oregon Laws 2017: Chapter 34

[House Bill 2164](#)

Not Enacted

Electronic Building Permit System, E-Permitting

At the request of: House Interim Committee on Business and Labor

Committees: House Business and Labor

Background and Current Law: In 2003, the Department of Consumer and Business Services (DCBS) worked with local governments and contractors to implement a pilot project for an electronic building permit system referred to as “e-permitting.” The system allows contractors to apply for, pay, and receive building permit approvals online and around the clock. Legislation passed in 2005 and 2007 transitioned the program from pilot to a regional, then to a statewide, service to contractors and local governments with a sunset date in 2018. In 2015, the Legislative Assembly removed the sunset and reduced the surcharge that supports the e-permitting system. Use of the system by cities and counties is voluntary, and DCBS is prohibited from taking any adverse action against an entity that chooses not to use the system.

Bill Summary: HB 2164 would have required cities, counties, and other government entities that administer and enforce building inspection programs to provide electronic access to building code information and services by January 1, 2020. The measure would have allowed municipalities to use the Building Codes Division e-permitting system or develop their own equivalent system.

[House Bill 2168](#)

Not Enacted

Equipment Used by Building Inspectors

At the request of: House Interim Committee on Business and Labor

Committees: House Business and Labor

Background and Current Law: Building inspectors do not always bring equipment to the work site to assist them in the performance of the inspection. For example, an inspector who needs to access the roof may rely on the contractor’s ladders or lifts. If an accident occurs while the building inspector is using the contractor’s ladder, it is unclear who is liable.

Bill Summary: House Bill 2168 would have clarified that the building inspector assumes the risk of injury when using equipment belonging to the contractor, subcontractor, material supplier, or property owner.

[House Bill 2189](#)

Effective Date: January 1, 2018

Liability of Real Estate Appraisers

At the request of: House Interim Committee on Business and Labor

Committees: House Business and Labor, Senate Business and Transportation

Background and Current Law: Real estate appraisers are liable for material defects contained within an appraisal that they conduct. Under current law, the “discovery rule” allows a suit to be filed for a period of time after the plaintiff discovers an alleged defect in an appraisal. Since the appraisal in question may have been conducted years before, appraisers may no longer have the necessary records to defend themselves, as records must be retained for only five years under the Uniform Standards of Professional Appraisal Practice.

Bill Summary: House Bill 2189 specifies that these actions must be commenced within six years of the appraisal or an otherwise applicable period of limitation, whichever is earlier.

Oregon Laws 2017: Chapter 143

[House Bill 2190](#)

Not Enacted

Poker Clubs and Other Social Games

At the request of: House Interim Committee on Business and Labor

Committees: House Business and Labor, Senate General Government and Accountability

Background and Current Law: Social games are games between players in a private home where no house player, house bank, or house odds, exist and where there is no house income from operation of the game; they are not defined as gambling in statute. Cities and counties currently have statutory authority to permit social gaming at private businesses and clubs and places of public accommodation. The Bureau of Labor and Industries issued a ruling in 2015 against a Portland poker club for violating minimum wage and record keeping requirements for not paying the dealers, stating that individuals cannot volunteer their services for private, for-profit employers.

Bill Summary: House Bill 2190 would have limited cities and counties to authorizing the playing of social games on premises operated and controlled by charitable, fraternal, and religious organizations. For-profit, private businesses and clubs would have no longer been allowed to have social games played on their premises.

Shell Companies

At the request of: House Interim Committee on Business and Labor

Committees: House Business and Labor, Joint Ways and Means

Background and Current Law: The Financial Crimes Enforcement Network of the U.S. Department of the Treasury issued a report in 2006 listing Oregon as one of four states that make it easy for people who want to hide illicit activity and their identity to register a corporation. Oregon business registrants can open a bank account in another county under the name of the business, in which moneys from illicit activities can then be laundered. Because Oregon does not require the beneficial owner or the directors to be listed on filings with the Secretary of State, it may be very hard for law enforcement to trace the activity and the money.

Bill Summary: House Bill 2191 prohibits incorporating or organizing for any illegal purpose or with intent to fraudulently conceal business activity. The measure holds officers, directors, members, managers, employees, or agents of a shell entity liable for damages to the corporation or LLC or to persons who suffer as result of creating false documents. The measure allows the court to dissolve a shell entity and allows the government to prohibit directors, officers, members, managers, or others with significant direction or control of a shell entity from engaging in commercial activity in Oregon. The Attorney General may bring action for dissolution of a shell entity. The Secretary of State may investigate alleged violations of business entity statutes and order a corporation or LLC to submit information upon request. The measure allows the Secretary to share this information with law enforcement. The Secretary is given authority to dissolve a business if it violates statutes or fails to cooperate with an investigation. The measure allows the Department of Revenue to recommend that the Secretary of State dissolve a business for failure to comply with Oregon tax laws.

Oregon Laws 2017: Chapter 705

[House Bill 2243](#)**Not Enacted****E-Commerce Tax Credit**

At the request of: Governor Brown for Business Oregon

Committees: House Economic Development and Trade, House Revenue

Background and Current Law: Qualified businesses may claim a tax credit based on capital assets used in electronic commerce operations (e-commerce) so long as the business is engaged in or preparing to engage in e-commerce in a specially designated e-commerce enterprise zone or in the City of North Plains, a designated e-commerce city. The business must also be exempt from property taxes through the state's broader Enterprise Zone program. The tax credit equals 25 percent of the investments made in e-commerce operations by the business during the tax year specifically related to e-commerce sales, customer service, order fulfillment, or broadband infrastructure. The maximum credit allowed is the lesser of either \$2 million or the tax liability of the taxpayer for that year. A business may carry unused credits forward for up to five years. According to the Legislative Revenue Office, this tax credit program cost \$5.7 million during the 2015-2017 biennium (Research Report #2-17, Tax Credit Review: 2017 Session).

Bill Summary: House Bill 2243 would have extended the sunset on the e-commerce tax credit until January 1, 2024 and expanded the total number of allowable e-commerce zones from 15 to 21. The measure allowed a taxpayer who could claim more in credits than their tax liability to receive an 80 percent refund on the balance instead of carrying the full amount of the overage into the next tax year. The measure also would have allowed Business Oregon or the Oregon Department of Revenue to produce reports with details about taxpayers claiming the credit, so long as they did not create a risk of disclosing identities or income levels.

[House Bill 2244](#)**Effective Date: January 1, 2018****Oregon Film and Video Incentives**

At the request of: Governor Brown for Business Oregon

Committees: House Economic Development and Trade, Senate Finance and Revenue

Background and Current Law: House Bill 2191 (2005) created the Greenlight Oregon Labor Rebate Fund. The fund is administered by the Oregon Film and Video Office and offers qualifying film and video productions a cash rebate of up to 6.2 percent of Oregon-based payroll. To qualify, a film and video production must spend more than \$1 million in Oregon. Under current law, the office must stop issuing rebates from this account on or after January 1, 2018.

Bill Summary: House Bill 2244 extends the Oregon Film and Video Office's authority to issue a rebate from the Fund until January 1, 2024. The measure also allows the office to deduct up to 1 percent from a rebate for workforce development and educational efforts undertaken by the office in connection with the qualifying film production.

Oregon Laws 2017: Chapter 38

[House Bill 2348](#)

Not Enacted

Business Registry Filing Fees

At the request of: Secretary of State Atkins

Committees: House Business and Labor, Joint Ways and Means

Background and Current Law: Oregon law requires people doing business in the state under an assumed name to register it as a public record with the Oregon Secretary of State. This registration lets the public know that the holder of the name intends to do business under that name. For each registry filing, the business must pay a fee ranging from \$50 to \$275. The Office of the Secretary of State retains \$20 of the filing fee to cover the office's expenses associated with the business registry, with the remainder deposited in the General Fund.

Bill Summary: House Bill 2348 would have increased a portion of the business registry filing fee retained by Secretary of State from \$20 to \$25 and reduced the portion going to the General Fund.

[House Bill 2356](#)

Effective Date: October 6, 2017

Licensure of Debt Buyers

At the request of: Attorney General Rosenblum

Committees: House Business and Labor, Joint Ways and Means

Background and Current Law: Debt collection practices are governed by both federal and state regulations. Oregon law defining unlawful collection practices applies only to debt collectors and not debt buyers. Debt collectors must be registered with the Department of Consumer and Business Services and anyone injured by an unlawful collection practice may bring an action in court. Unlike a debt collector who collects on behalf of a creditor, debt buyers own the debt and are collecting on their own behalf. However, debt buyers are not required to register, are not subject to the statutory requirements for debt collections practices, and may sue the consumer.

Bill Summary: House Bill 2356 requires debt buyers to be licensed by the Department of Consumer and Business Services. The measure requires a debt buyer, or a debt collector acting on their behalf, who brings legal action to include in the court pleading information making it clear to the debtor exactly what debt is being collected. The measure also expands what constitutes an unlawful collection practice.

Oregon Laws 2017: Chapter 625

[House Bill 2501](#)

Not Enacted

Pay Rates for Real Estate Appraisers

Chief Sponsors: Rep. Gomberg; Sen. Johnson

Committees: House Business and Labor

Background and Current Law: A high volume of real estate activity has resulted in frustration by some who say the length of time to receive an appraisal is too long and the cost is too high. There are currently 1,520 licensed and certified appraisers in Oregon, a 10 percent increase over two years. In addition, there are 111 appraiser assistants, a 54 percent increase over three years.

Bill Summary: House Bill 2501 would have directed the Appraiser Certification and Licensure Board to establish rates of pay for independent contractor appraisers. The measure required appraisal management companies to compensate independent contractor appraisers at the rates set by the board. The measure would have allowed people not regulated by the board to prepare appraisal documents for internal use by financial institutions, consumer finance companies, or insurance companies.

[House Bill 2544](#)

Not Enacted

General Supervising Electricians

Chief Sponsors: Rep. Hack

Committees: House Business and Labor

Background and Current Law: Under Oregon law, an electrical permit can be issued to a licensed electrical contractor or the contractor's designated agent. The permit application must include a signed statement that the electrical contractor's general supervising electrician will sign the permit before an inspection is requested. The permit becomes void if the supervising electrician's employment ends before the electrical installation is completed. Administrative rules require, in most instances, that the general supervising electrician be a full-time employee of the electrical contractor.

Bill Summary: House Bill 2544 would have allowed for the issuance of electrical permits to electrical contractors who contracted for the services of a general supervising electrician rather than directly employing such persons. The measure also allowed general supervising electricians to work part-time for a contractor.

[House Bill 2581](#)

Not Enacted

Notification of Security Breach

Chief Sponsors: Reps. Rayfield, Olson

Committees: House Business and Labor

Background and Current Law: People who own or license personal information that is used in their business, vocation, occupation, or volunteer activities have the duty to safeguard that personal information. In 2007, the Oregon Consumer Identify Theft Protection Act was enacted to require notification to consumers when there has been a breach of security of computerized data. If more than 250 consumers are affected, then the Oregon Attorney General must be notified. Security breaches affecting more than 1,000 consumers trigger a requirement to notify the nationwide consumer reporting agencies. The Department of Consumer and Business Services was given authority to enforce and make rules under the act, including assessing penalties.

Bill Summary: House Bill 2581 would have expanded the definition of “personal information” to include account information stored on a credit or debit card. After a security breach occurred, the measure required the person who held the account information to notify, in addition to the consumer, the financial institution and the merchant services provider that processed the transaction. The measure would have held the person liable for costs incurred by the financial institution if the failure to safeguard the account information amounted to gross negligence.

[House Bill 2610](#)

Effective Date: January 1, 2018

Electronic Business Documents and Signatures Accommodations

At the request of: House Committee on Judiciary

Committees: House Judiciary, Senate Judiciary

Background and Current Law: Many actions taken or meetings held by corporations require some form of written notice to the Board of Directors or shareholders, which includes electronic communications; however, electronic notices are not specifically contemplated by current law.

Bill Summary: House Bill 2610 provides for electronic signatures on corporate documents and the sending, receipt, and refusal of electronic notices.

Oregon Laws 2017: Chapter 55

[House Bill 2622](#)

Effective Date: June 14, 2017

Financial Institutions Addressing Exploitation Liability Immunity

At the request of: House Committee on Judiciary

Committees: House Judiciary, Senate Judiciary

Background and Current Law: According to a 2015 report by the Oregon Department of Human Services' (DHS) Office of Adult Abuse Prevention and Investigation, of the 19,000 investigations of abuse conducted by DHS that year, over 1,500 resulted in findings of substantiated financial exploitation, which is the leading type of abuse of vulnerable adults.

Bill Summary: House Bill 2622 allows financial institutions, including credit unions, to refuse transactions when they reasonably suspect financial exploitation or have received information from DHS, law enforcement, or a district attorney's office that financial exploitation is suspected or has occurred. Financial institutions are not required to freeze transactions, but if they do so in good faith, they are provided with blanket immunity from liability. Accounts may be frozen up to 15 days, and the hold may be terminated by a court order or if the financial institution is satisfied that exploitation is not occurring.

Oregon Laws 2017: Chapter 290

[House Bill 2638](#)

Effective Date: October 6, 2017

Standards for Ignition Interlock Devices Improvement

At the request of: House Committee on Judiciary

Committees: House Judiciary, Joint Ways and Means

Background and Current Law: Any person convicted of driving under the influence of intoxicants (DUI) or participating in a DUI diversion program and driving must have an ignition interlock device installed in any vehicle they drive. Interlock devices record and report breath samples provided by drivers and prevent vehicles from starting if alcohol is detected. Interlock devices also record and report tampering and lockouts.

Bill Summary: House Bill 2638 strengthens standards and requirements imposed on providers of ignition interlock devices: they must offer service centers statewide, have a 24-hour assistance line, and complete background checks on technicians. The measure also requires interlock devices to take location readings via GPS when test violations occur, permits diversion participants to be ordered back into treatment upon receipt of two negative reports, and transfers oversight of providers from the Oregon Department of Transportation to the Department of State Police in 2019.

Oregon Laws 2017: Chapter 655

[House Bill 2752-A](#)

Not Enacted

Support for Large-Scale Timber Construction Projects

At the request of: House Committee on Economic Development and Trade

Committees: House Economic Development and Trade, Joint Ways and Means

Background and Current Law: The Framework Project is a construction project that seeks to use cross-laminated timber to erect a high-rise building in Portland. It would be the first building of its size to be constructed using cross-laminated timber in the United States.

Bill Summary: House Bill 2752-A would have directed Business Oregon to develop a grant program to support high rise construction with cross-laminated timber.

[House Bill 2761](#)

Not Enacted

Inclusion of Daily Fantasy Sports within “Contest of Chance”

At the Request of: House Committee on Business and Labor

Committees: House Business and Labor

Background and Current Law: Gambling in Oregon is strictly regulated, and it is a Class A misdemeanor to engage in unlawful gambling. There are questions as to whether daily fantasy sports games are a game of skill or a contest of chance (i.e., gambling). As of June 2017, 13 states have expressly legalized online daily fantasy sports games or deemed them legal through opinion. Moreover, most game operators do not take customers from 10 states that deem daily fantasy sports games as unlawful forms of gambling. The two largest fantasy sports game operators offer the games in the remaining states, though the question of their legality has not necessarily been settled.

Bill Summary: House Bill 2761 would have defined a “contest of chance” to include daily fantasy sports games, making them an unlawful form of gambling.

[House Bill 2833](#)

Effective Date: October 6, 2017

Clarification of Property Tax Exemptions in Enterprise Zones

At the request of: House Committee on Revenue

Committees: House Economic Development and Trade, Senate Finance and Revenue

Background and Current Law: The last major update of statutes governing enterprise zones occurred in 2003 with House Bill 2299. Since that time, several potential issues have been identified through litigation and operational practices, and Business Oregon worked with the Legislative Revenue Office to address them.

Bill Summary: House Bill 2833 makes technical corrections and clarifications in statutes governing property tax exemptions in enterprise zones.

Oregon Laws 2017: Chapter 83

[House Bill 2855](#)

Effective Date: January 1, 2018

Land Sale Contracts

At the request of: House Committee on Business and Labor

Committees: House Business and Labor, Senate Business and Transportation

Background and Current Law: In a land sale contract, the seller holds the title until terms of the contract have been fulfilled, at which point the seller provides the buyer with a deed of conveyance. If the contract includes a forfeiture remedy, Oregon law provides a process for the seller to enforce the forfeiture remedy. However, if the terms of the contract are fulfilled and the seller fails or refuses to provide the purchaser with a deed of conveyance, the purchaser must file suit to obtain the deed of conveyance.

Bill Summary: House Bill 2855 establishes a nonjudicial process by which a purchaser can obtain a deed of conveyance after terms of the contract are fulfilled. The process requires that the purchaser provide notice to the seller, occupants of the property, and anyone holding the title or interest. The seller can record an objection, at which point the purchaser may file a suit to challenge the objection and have the contract enforced.

Oregon Laws 2017: Chapter 164

[House Bill 2907](#)

Not Enacted

Third-party Building Inspectors

Chief Sponsors: Rep. Rayfield; Sen. Gelser

Committees: House Business and Labor

Background and Current Law: A pilot program, created in 2009, was designed to address the shortage in some regions of the state of building inspectors in various specialty codes. The program cross-trains building inspectors so an inspector can perform an inspection in more than one specialty code. Legislation in 2013 provided permanency for the program and granted authority to the Department of Consumer and Business Services to certify building inspectors in multiple specialty codes or parts of a specialty code. This language had the effect of requiring the specialized building code inspector to be an employee of the municipality for which it was performing inspections.

Bill Summary: House Bill 2907 would have allowed specialized building inspectors to be third-party contractors with a municipality, rather than employees of the municipality.

[House Bill 2950](#)

Not Enacted

City of St. Helens Waterfront Redevelopment

Chief Sponsor: Rep. Witt

Committees: House Economic Development and Trade, Joint Ways and Means

Background and Current Law: The City of St. Helens is currently exploring ways to fund redevelopment projects on its waterfront. The primary area of focus is the former Boise Cascade veneer mill site adjacent to the St. Helens Historic Riverfront District. The City of St. Helens purchased the site in 2015.

Bill Summary: House Bill 2950 would have appropriated \$1.54 million to the City of St. Helens in support of its waterfront redevelopment plan.

[House Bill 2971](#)

Not Enacted

Video Lottery Terminals at Portland Meadows

Chief Sponsors: Rep. Clem

Committee: House Business and Labor

Background and Current Law: A business that wishes to offer video lottery game terminals to its customers must apply to the Oregon Lottery Commission. Video lottery game retailers must be under contract with the Oregon Lottery Commission and are limited to having no more than six terminals on their premises. However, a person holding a race meet license from the Oregon Racing Commission is allowed, under contract with the Oregon Lottery Commission, to have up to 10 video lottery game terminals.

Bill Summary: House Bill 2971 would have allowed a race meet licensee (i.e., Portland Meadows) to have up to 50 video lottery game terminals.

[House Bill 2975-A](#)

Not Enacted

Statutory Damages for Vehicle Customers

Chief Sponsor: Rep. Malstrom

Committees: House Business and Labor, Senate Business and Transportation

Background and Current Law: A business that wishes to offer video lottery game terminals to its customers must apply to the Vehicle dealers must be certified by the Oregon Department of Transportation (ODOT). One requirement of certification is to maintain a \$40,000 bond or letter of credit. A person claiming loss or damage due to fraud, fraudulent representation, or relevant violations of the vehicle code by a dealer has a right of action, specifically against the bond or letter of credit. If the surety or financial institution cancels the bond or letter of credit for any reason, it must notify ODOT as a vehicle dealer is not allowed to conduct business without a bond or letter of credit.

Bill Summary: House Bill 2975-A would have allowed the court to award a prevailing retail customer reasonable attorney's fees and damages equal to \$500 for certain violations of the vehicle code.

House Bill 3087-A**Not Enacted****Family Medical Leave Insurance Benefits****Chief Sponsors:** Reps. Williamson, Alonso León, Hernandez**Committees Assigned:** House Early Childhood and Family Supports, House Revenue

Background and Current Law: Oregon employers with 25 or more employees are required to provide their employees with up to 12 weeks per year of unpaid family leave under the Oregon Family Leave Act (OFLA). Eligible employees may take OFLA leave for parental leave, a serious health condition, pregnancy disability, caring for a sick child, or the death of a family member. There is additional leave time available for pregnancy disability leave, parental leave, and sick child leave. Five states have enacted paid family leave laws. States fund the leave through employee payroll contributions, employer payroll contributions, or combined employer and employee payroll contributions.

Bill Summary: House Bill 3087-A would have created a family and medical leave insurance benefits program to provide a portion of wages to employees on leave. It permitted up to 12 weeks of benefits per benefit year and an additional six weeks for parental leave. The bill capped the maximum weekly benefit at 130 percent of average weekly wage, and required employers and employees to make payroll contributions up to .05 percent of employee wages. The bill also would have required leave to run concurrently with OFLA.

House Bill 3101**Effective Date: January 1, 2018****Hotel Fees****Chief Sponsor:** Rep. Gomberg**Committees Assigned:** House Business and Labor, Senate Business and Transportation

Background and Current Law: Hotel guests may be surprised when required to pay a resort fee in addition to the advertised room rate. Resort fees are billed to cover amenities provided by the hotel, such as internet access, newspapers, or exercise and pool facilities. The fees are charged regardless of whether the guest takes advantage of the amenities.

Bill Summary: House Bill 3101 requires hotels, inns, and travel arrangement companies to disclose mandatory fees at the time the guest reserves or rents a room.

Oregon Laws 2017: Chapter 213

[House Bill 3150](#)

Not Enacted

Port Orford Cannery

Chief Sponsors: Rep. Brock Smith, Sen. Kruse

Committees Assigned: House Economic Development and Trade, Joint Ways and Means

Background and Current Law: The Legislative Assembly approved funds to replace the Port of Port Orford's Cannery Building during the 2016 session (House Bill 5201). The building is in disrepair and is no longer insurable. Funding was approved to demolish and replace the structure and to repair or replace a pump station. Business Oregon was initially expected to transfer the funds to the Port before the end of the last biennium, but project planning did not proceed at the expected pace and the funds were not distributed.

Bill Summary: House Bill 3150 would have allocated \$2.1 million to Business Oregon and required those funds be used to support the redevelopment of the Port Orford Cannery.

[House Bill 3279](#)

Effective Date: January 1, 2018

Property Services Contractors

Chief Sponsors: Reps. Lininger, Sanchez; Sen. Manning, Jr,

Committees Assigned: House Judiciary, Joint Ways and Means

Background and Current Law: Labor contractors generally recruit and supply or employ workers to perform labor for another business. Farm labor contractors and construction labor contractors may not operate without a license a license issued by Oregon's Bureau of Labor and Industries (BOLI). To obtain a license, an applicant must pass an examination designed to test their ability, knowledge and proficiency to manage the business of a labor contractor; proof of insurance and bonding are also required. Janitorial services are often provided by labor contractors.

Bill Summary: House House Bill 3279 adds a new category of labor contractors required to be licensed by BOLI: property services contractors, which include those who provide workers to perform janitorial services. The measure exempts the property services contractor from the bond requirement if they show proof of general liability insurance and have not violated employment laws in the preceding two years. Property services contractors are also required to provide professional training to managers, supervisors and employees to prevent sexual assault, sexual harassment, and discrimination in the workplace as well as whistleblower protections. The training is to be provided through or approved by BOLI. The measure requires the licensing examination taken by all labor contractors to test knowledge of applicant's responsibility in preventing sexual assault and sexual harassment.

Oregon Laws 2017: Chapter 676

[House Bill 3283](#)

Effective Date: August 8, 2018

Animal Abuse and Neglect Penalty Adjustment

At the request of: House Committee on Judiciary

Committees: House Judiciary, Senate Judiciary

Background and Current Law: Individuals convicted of animal abuse or neglect in Oregon are barred from possessing certain animals for five or 15 years, depending on the conviction, and can be ordered to reimburse the cost of care provided to subject animals pending resolution of the criminal case.

Bill Summary: House Bill 3283 increases the prohibition against possessing certain animals from five to 15 years for persons convicted of animal neglect in the first or second degree, and authorizes courts to reduce that period if the offender successfully completes court-approved mental health treatment. The measure also prohibits donations or fundraising amounts received by entities caring for animals to be used to offset the amount owed by offenders, reclassifies parrots as “domestic animals” rather than “livestock” for purposes of animal abuse and neglect statutes, and provides that contracting with an individual to rent or lease animals and care for them does not constitute insurance for purposes of the Insurance Code.

Oregon Laws 2017: Chapter 677

[House Bill 3322](#)

Not Enacted

Regulation of Vehicle Repair Shops

Chief Sponsors: Reps. Evans, Alonso León

Committees: House Business and Labor

Background and Current Law: Vehicle repair shops are not licensed or certified by the state. However, Oregon law does require vehicle repair shops to prepare an estimate of the cost of the repair before beginning the work and obtain the customer’s authorization before working on the vehicle when the estimate exceeds \$200.

Bill Summary: House Bill 3322 would have required vehicle repair shops to obtain certification from the Department of Consumer and Business Services that included an application fee, requirements to carry a bond or letter of credit, and insurance coverage.

2017 SUMMARY OF LEGISLATION



EDUCATION AND WORKFORCE DEVELOPMENT



EDUCATION AND WORKFORCE DEVELOPMENT MEASURES

Early Childhood	Enacted:	HB 2013, HB 3106
	Not Enacted:	HB 3314
K-12	Enacted:	SB 13, SB 20, SB 111, SB 187, SB 208, SB 1003, HB 2038, HB 2246, HB 2845, HB 3029, HB 3267, HB 3313, HB 3340, HB 3412
	Not Enacted:	SB 183, SB 204, SB 278, SB 353, SB 915, SB 1002-A, HB 2261, HB 2382-A, HB 2419, HB 2528-A, HB 2529, HB 2530, HB 2536-A, HB 2548-A, HB 2649, HB 2658-A, HB 2693-A, HB 2720-B, HB 2867, HB 3156, HB 3191-A, HB 3293-A
Higher Education	Enacted:	SB 143, SB 253, HB 2147, HB 2666, HB 2701, HB 2729, HB 2864, HB 2998
	Not Enacted:	SB 653, HB 2582-A, HB 2782, HB 2862, HB 3335-A
Workforce Development	Enacted:	HB 3437
	Not Enacted:	HB 2531-A, HB 2690, HB 2887-A, HB 3174, HB 3337-A
System-wide	Enacted:	SB 182, HB 2763, HB 3358, HB 3412
	Not Enacted:	SB 649, SB 746, SJR 37, HB 2587, HB 2651, HB 2657-A, HB 2688-A, HB 3185-A, HB 3208, HB 3263, HJR 4

Picture: Succor Creek area, Malheur County - [Gary Halvorson, Oregon State Archives](#)

EDUCATION AND WORKFORCE DEVELOPMENT TASK FORCES AND REPORTING REQUIREMENTS

The following bills created task forces and reporting requirements. Additional information is provided in the bill summaries.

SB 13	Directs Oregon Department of Education to report to the Legislative Assembly on the status of the Native American Curriculum Development Project.	October 2018; October 2019; October 2020
SB 111	Directs Oregon Department of Education to report to the Legislative Assembly on the outcomes of the Medicaid Billing Pilot Program.	October 1, 2020
SB 182	Directs Educator Advancement Council to report to the Legislative Assembly on its activities.	March 1, 2018
SB 1003	Directs Oregon Department of Education to report to the Legislative Assembly on best practices for screening dyslexia.	September 15, 2018
HB 2013	Directs the Early Learning Division to provide a progress report and final report to the legislature on updated lead teacher requirements and salary disparities in Preschool Promise.	February 1, 2018; October 15, 2018
HB 2729	Directs the Higher Education Coordinating Commission to report on the current status of the Oregon Open Educational Resources Program to the Legislative Assembly.	Each regular session held during odd-numbered years
HB 2763	Directs the Teacher Standards and Practices Commission to submit a report to the legislature related to the effects of increased funding for teacher certification.	April 1, 2020

EDUCATION AND WORKFORCE DEVELOPMENT TASK FORCES AND REPORTING REQUIREMENTS

The following bills created task forces and reporting requirements. Additional information is provided in the bill summaries.

HB 2845	Directs the Advisory Council on Ethnic Studies to identify where current statewide social studies standards fail to recognize the histories, contributions, and perspectives of ethnic and social minorities and report findings to the Oregon Department of Education.	September 15, 2018
HB 2998	Directs the Higher Education Coordinating Commission to report on unified statewide transfer agreements and recommendations on foundational curricula to the Legislative Assembly.	February 1, 2018
HB 3412	Directs the Task Force on Assessments of Children Who Are Deaf or Hard of Hearing to analyze assessment strategies for hearing impaired children and report findings to the Legislative Assembly.	January 1, 2018
HB 3437	Directs the State Workforce and Talent Development Board to report on the Talent Development Plan to the governor and legislature.	Every year

[Senate Bill 13](#)

Effective Date: August 2, 2017

Native American Curriculum in Schools

At the request of: Governor Brown for Chief Education Office

Committees: Senate Education, Joint Ways and Means

Background and Current Law: Current state standards require students in fourth grade to study Oregon's Native American communities. Specifically, Social Studies Standard 4.1 requires students to "identify and describe historic Native American Indian groups who lived in Oregon prior to contact with Europeans and at the time of early European exploration, including ways these groups adapted to and interacted with the physical environment." Standard 4.9 requires students to "explain the influence of Oregon and the Northwest's physical systems on humans, including Native Americans."

Bill Summary: Senate Bill 13 directs the Oregon Department of Education (ODE) to develop a curriculum for students in kindergarten through twelfth grade relating to the Native American experience in Oregon, make the curriculum available to school districts, and provide professional development to teachers and administrators. The bill establishes content requirements for the curriculum, requires implementation in the 2019-2020 school year, and requires ODE to report on the status each October, from 2018 to 2020.

Oregon Laws 2017: Chapter 632

[Senate Bill 20](#)

Effective Date: August 2, 2017

Oregon Educational Standards

At the request of: Governor Brown for Department of Education

Committees: Senate Education, Joint Ways and Means

Background and Current Law: Congress passed the No Child Left Behind (NCLB) Act in 2001. NCLB required annual math and reading assessments of students in grades three through eight and once in high school; required science assessments once in elementary school, once in middle school and once in high school; required states to set targets for students' adequate yearly progress; identified corrective actions that states were to take against schools that did not meet those goals; and required teachers to meet standards of qualification, among other provisions. NCLB expired in 2007, but was not immediately replaced. Beginning in 2011, the U.S. Department of Education offered waivers of the law's provisions to states meeting certain requirements. In 2015, Congress replaced NCLB with the Every Student Succeeds Act (ESSA). Among other provisions, ESSA removed requirements regarding adequate yearly progress, corrective actions, and teacher qualifications, leaving those policy choices to states.

Bill Summary: Senate Bill 20 removes references to NCLB and replaces them with references to ESSA. The bill makes Oregon's modified diploma equivalent to its regular high school diploma and revises portions of state law relating to transportation of foster youth to comply with ESSA.

Oregon Laws 2017: Chapter 641

[Senate Bill 111](#)

Effective Date: August 8, 2017

Medicaid Funding and School Nursing Services

Chief Sponsors: Sen. Monnes Anderson; Rep. Whisnant

Committees: Senate Education, Joint Ways and Means

Background and Current Law: Medicaid provides funding for treatment of a variety of medical conditions for qualifying individuals. Each state's Medicaid plan governs reimbursement rates. In Oregon, Medicaid billing for school health services consists of Medicaid administrative claiming (MAC) reimbursement for individuals with services covered by the federal Individuals with Disabilities Education Act. In 2015, 65 school districts or education service districts participated in MAC, while 63 participated in direct-care billing. The Task Force on School Nursing reported in September 2016 that the percentage of Medicaid-eligible students in Oregon has increased from 27 percent in 2007 to 58 percent in 2015. Recent changes in federal rules expand the types of services school districts can bill to Medicaid for nursing services.

Bill Summary: Senate Bill 111 requires the Oregon Department of Education (ODE) to develop and administer a pilot program to assist school districts and education service districts in increasing the use of Medicaid billing and sunsets the pilot program December 31, 2020. The bill requires ODE to provide ongoing technical assistance to school districts and education service districts, help schools maximize Medicaid billing for school nursing services, collaborate with other state agencies, and prioritize assistance to entities participating in the pilot program. The bill also allows ODE to enter contracts with public or private entities to provide technical assistance.

Oregon Laws 2017: Chapter 688

[Senate Bill 143](#)

Effective Date: August 15, 2017

Grant Programs for Campus Resource Centers

Chief Sponsors: Sens. Monnes Anderson, Boquist

Committees: Senate Veterans and Emergency Preparedness, House Veterans and Emergency Preparedness, Joint Ways and Means

Background and Current Law: Transitioning from military to civilian life can present challenges for veterans. Supporting veterans' educational and employment goals are two ways the transition can be made easier, with federal and state benefits available to encourage enrollment in public universities and community colleges. Veterans are generally atypical students in many ways: they are older than their peers, have families, and have a different perspective that comes only from serving in the armed forces. Universities and colleges often have on-campus resource centers tailored to help veterans succeed, connect to other veterans, and ground them within the broader collegiate environment.

Bill Summary: Senate Bill 143 appropriates approximately \$1.2 million from the Veterans' Services Fund to the Oregon Department of Veterans' Affairs to develop and implement one or more competitive grant programs. The funding is for community colleges and public universities to support and expand on-campus veteran resource centers.

Oregon Laws 2017: Chapter 731

[Senate Bill 182](#)

Effective Date: August 2, 2017

Educator Advancement Council

At the request of: Governor Brown for Chief Education Office

Committees: Senate Education, Joint Ways and Means

Background and Current Law: In 2016, Governor Brown established the Council on Educator Advancement to develop strategies for ensuring that Oregon's educators have access to mentoring, specialized professional learning, and opportunities for leadership development. The members included teachers, administrators and representatives of higher education, and legislators. The council issued a report in November 2016, and made 10 recommendations relating to educator preparation, support for novice teachers and administrators, professional learning, teacher leadership, and the establishment of regional networks.

Bill Summary: Senate Bill 182 repeals the Network of Quality Teaching and Learning and establishes the Educator Advancement Council, which is charged with duties related to the distribution of resources for professional learning supports and the development of local educator networks across the state. The measure requires the Chief Education Office and the Oregon Department of Education to provide strategic direction and support to the council, and replaces the Network of Quality Teaching and Learning Fund with the Educator Advancement Fund, beginning June 30, 2019. The measure requires the Early Learning Division to establish policies and practices with the council that address specified early learning needs, and authorizes the Higher Education Coordinating Commission to award scholarships to culturally and linguistically diverse teacher candidates.

Oregon Laws 2017: Chapter 639

[Senate Bill 183](#)

Not Enacted

Graduate Equity Program

At the request of: Governor Brown for Chief Education Office

Committees: Senate Education, Joint Ways and Means

Background and Current Law: According to the U.S. Department of Education, Oregon's adjusted cohort graduation rate for the 2014-2015 school year was 73.8 percent, ranking forty-eighth in the nation with only Nevada and New Mexico having lower graduation rates. The national adjusted cohort graduation rate was adopted as a common way for states to measure high school graduation rates via federal regulations in 2008 and first used by all states for the 2010-2011 school year. Oregon's graduation rate improved from 68 percent in the 2010-2011 school year to 73.8 percent in the 2014-2015 school year.

Bill Summary: Senate Bill 183 would have established the Early Indicator and Intervention System, and described program requirements, goals, and implementation guidelines to improve high school graduation rates in Oregon. The bill established the Graduation Equity Program and directed the Oregon Department of Education, in coordination with the Chief Education Office, to distribute funding to school districts, education service districts, nonprofit organizations, postsecondary institutions, or tribes.

[Senate Bill 187](#)

Effective Date: August 2, 2017

Vision Screening Reimbursements

Chief Sponsors: Sens. Roblan, Johnson, Devlin; Reps. Hack, McLane, Parrish, Williamson

Committees: Senate Education, Joint Ways and Means

Background and Current Law: House Bill 3000 (2013) directed the Oregon Department of Education to make recommendations regarding regular vision screenings in public schools. The department, in its report dated December 2013, recommended that the state provide vision screening to every student in kindergarten, first, third, and fifth grade. The department estimated that providing screenings to 165,000 students in the affected grades in Oregon's 796 elementary schools would cost \$10.58 per student. The Oregon Lions Sight and Hearing Foundation screened 172,000 children at 550 schools during the 2015-2016 school year. The organization coordinates its screenings with school nurses and relies on volunteers to conduct screenings

Bill Summary: Senate Bill 187 requires the Oregon Department of Education to reimburse education providers for expenses related to vision screening, including contracting with private entities. It establishes the Vision Health Account in the State Treasury and appropriates \$1 million from the General Fund for the account.

Oregon Laws 2017: Chapter 640

[Senate Bill 204](#)

Not Enacted

Culturally Responsive Teaching Certification

At the request of: Senate Interim Committee on Education

Committees: Senate Education

Background and Current Law: Teaching with Purpose is a Portland-based business that specializes in encouraging culturally responsive practices in schools. It conducts workshops and arranges speakers for schools, districts, or other education organizations. There is an annual Teaching with Purpose Conference each fall that focuses on engaging educators to improve cultural responsiveness in the classroom.

Bill Summary: Senate Bill 204 would have established a pilot certification program for the 2017-2018 school year that required every district, school, and educator to become certified in culturally responsive practices by the 2018-2019 school year. It would have required the Oregon Department of Education to collaborate with the Teaching with Purpose Consortium to establish certification requirements and appropriated an unspecified amount of money from the General Fund to the department to pay for the program.

[Senate Bill 208](#)

Effective Date: July 3, 2017

Student Participation in Interscholastic Activities

At the request of: Senate Interim Committee on Education

Committees: Senate Education, House Education, House Rules

Background and Current Law: Students throughout Oregon participate in 26 interscholastic activities, including athletics, choir, band, orchestra, cheerleading, and speech and debate, according to the Oregon School Activities Association. Under current law, schools must allow homeschooled students to participate in interscholastic activities, but they may deny participation to students from charter schools or virtual charter schools. Some states allow charter school students to participate in interscholastic activities taking place at a school district. Oregon law does not specify whether charter school students may or may not be denied participation.

Bill Summary: Senate Bill 208 requires that schools, districts, and associations allow charter school and virtual charter school students to participate in interscholastic activities. It requires that school districts allow homeschooled, charter school, or virtual charter school students to participate in all interscholastic activities under certain circumstances. Additionally, the bill establishes a fee of no more than five percent of the amount of the school district's General Purpose Grant per weighted average daily membership that charter schools must pay to the school district for charter school students enrolling in interscholastic activities through the school district. An additional fee is required if participation in the interscholastic activity requires the charter school student to enroll in a for-credit course.

Oregon Laws 2017: Chapter 550

[Senate Bill 253](#)

Effective Date: January 1, 2018

Student Loan Disclosure

Chief Sponsors: Sens. Taylor, Roblan, Ferrioli; Rep. Huffman

Committees: Senate Education, House Higher Education and Workforce Development

Background and Current Law: In the 2013-2014 school year, 3,319 students at Oregon's public universities were awarded federal student loans. These students comprise 42 percent of all students enrolled. They received a total of \$22,515,523, or \$6,694 in federal student loans on average. The Institute for College Access and Success reports that average student debt in Oregon increased 51 percent from 2004 to 2014.

Bill Summary: Senate Bill 253 requires that community colleges and universities provide specified information to students annually in a unified, plain language format, including an estimate of the total amount of federal education loans a student has received to date and the total cumulative amount of tuition and fees a student has paid to date.

Oregon Laws 2017: Chapter 320

School Social Workers Study and Pilot Program

Chief Sponsors: Sen. Roblan; Reps. Stark, McKeown

Committees: Senate Education

Background and Current Law: According to the School Social Work Association of America, school social workers are trained mental health professionals who work in schools to assist with mental health concerns, behavioral concerns, positive behavioral support, academic and classroom support, and individual and group counseling or therapy. In Oregon, the Teacher Standards and Practices Commission (TSPC) licenses school social workers and has adopted rules governing their work. School social workers must have at least a master's degree, complete a graduate program in social work, pass a commission-approved test, and pass a background check. There are currently 37 licensed school social workers in the state. Twelve work specifically with students with disabilities.

Bill Summary: Senate Bill 278 would have required the Oregon Department of Education (ODE) to study the effect of school social workers on attendance rates, harassment, bullying, morale, and the school system. It required ODE to submit reports to the legislature by October 15, 2018 and October 15, 2019. The bill would have required ODE to create a pilot program to increase the number of students served by school social workers, required school districts to apply to become part of the pilot program, and sunset the program June 30, 2021. The bill would have added school social workers to portions of state law pertaining to behavioral health and appropriated money from the General Fund to ODE for the study. The bill would have appropriated \$20 million from the General Fund to ODE for the biennium beginning July 1, 2017 for the pilot program.

[Senate Bill 353](#)

Not Enacted

High School Graduation and College and Career Readiness Act

Chief Sponsors: Sen. Frederick

Committees: Senate Education

Background and Current Law: Measure 98, officially titled the Oregon State Funding for Dropout Prevention and College Readiness Initiative, was approved by voters on November 8, 2016. As drafted, the measure directed the Legislative Assembly to appropriate at least \$800 per enrolled high school student per school year for distribution to districts with approved plans to establish or expand career and technical education programs, college-level educational opportunities, and dropout-prevention efforts.

Bill Summary: Senate Bill 353 would have established the Task Force on the High School Graduation and College and Career Readiness Act and established membership and meeting requirements. The -1 amendments, considered by the committee at the public hearing, rescinded the task force, established a grant fund with moneys to be distributed proportionally to districts that applied, and modified spending requirements for districts.

[Senate Bill 649](#)

Not Enacted

New State Board of Education

Chief Sponsors: Sen. Kruse

Committees: Senate Education, Senate Rules

Background and Current Law: The legislature created the State Board of Education in 1951. The board has seven members, appointed by the governor and confirmed by the Oregon Senate. Five members represent Oregon's congressional districts, and two members represent the entire state. Members serve four-year terms, and are limited to two consecutive terms. The board meets at least six times per year, open to the public, and is responsible for adopting administrative rules that govern operation of Oregon's 197 public school districts and 20 educational service districts. Senate Joint Resolution 37, introduced in 2017, would have amended the state constitution to create a new State Board of Education with alternate responsibilities, including the appointment of the Superintendent of Public Instruction, who would have overseen education and established education policy for the state.

Bill Summary: Senate Bill 649 would have taken effect if Senate Joint Resolution 37 was enacted and then approved by voters at the next regular general election. The bill would have required the new board to have 11 members, appointed by the governor and confirmed by the Oregon Senate, and established membership requirements, term limits, and a process for the removal of members. The bill also made the new board responsible for appointing the Superintendent of Public Instruction, among other duties.

[Senate Bill 653](#)

Not Enacted

Umpqua Community College Security

Chief Sponsors: Sen. Kruse

Committees: Senate Education, Joint Ways and Means

Background and Current Law: On October 1, 2015, a student at Umpqua Community College killed nine people in a classroom and then himself. Funds were appropriated to the college to pay for site cleanup and increased security.

Bill Summary: Senate Bill 653 would have appropriated \$504,300 to the Higher Education Coordinating Commission for three full-time security patrol staff and one network systems security specialist at Umpqua Community College.

[Senate Bill 746](#)

Not Enacted

Election of Statewide Superintendent of Public Instruction

Chief Sponsors: Sen. Roblan; Rep. Doherty

Committees: Senate Education, Senate Rules

Background and Current Law: From 1873 until 2012, Oregon's Superintendent of Public Instruction was a nonpartisan, statewide elected office. In 2011, as part of a reorganization of Oregon's education system, the legislature passed a package of bills transferring the superintendent's duties to the governor, assisted by a deputy superintendent and a seven-member State Board of Education. The governor assumed these duties in 2012 and has been the state's Superintendent since, with a deputy superintendent appointed to manage the Oregon Department of Education.

Bill Summary: Senate Bill 746 would have established the Superintendent of Public Instruction as a statewide, nonpartisan, elected office, with a four-year term, to manage the Oregon Department of Education. It would have required the superintendent to have at least five years of experience as a teacher or administrator in a public elementary or secondary school, and directed an election to be held at least two years after the governor notifies the legislature of the current deputy superintendent's departure or in the 2026 general election, whichever was earlier. The measure also would have replaced the current seven-member State Board of Education with an 11-member board on January 7, 2019, consisting of six nonpartisan elected members and five members appointed by the governor and confirmed by the Oregon Senate. At least three of the elected board members were required to have at least five years of experience as teachers or administrators in public elementary or secondary schools, and the governor was directed to nominate members from each congressional district and to consider appointees from a 15-person list submitted by labor organizations representing school employees. The measure also would have authorized the superintendent to seek and lobby for legislation without governor approval.

[Senate Bill 915](#)

Not Enacted

Reimbursement of Transportation Costs to Public Charter Schools

Chief Sponsors: Sens. Roblan, Linthicum; Rep. Huffman

Committees: Senate Education

Background and Current Law: The Oregon Department of Education (ODE) defines public charter schools as semi-autonomous schools of choice within a school district, operated by a group of parents, teachers and/or community members. Public charter schools are given the authority to operate under a contract or “charter” between the members of the charter school community and the local board of education (sponsor). Under Oregon law, a charter school is a separate legal entity operating under a binding agreement with a sponsor. A public charter school is subject to certain laws pertaining to public schools, is released from others, and must operate consistent with the charter agreement. During the 2015-2016 school year, 126 public charter schools operated in Oregon. Current law places responsibility for providing transportation to charter school students on the charter school itself, and allows charter schools to negotiate transportation arrangements with school districts. State law requires school districts to provide transportation for charter students in the same manner as students attending nonchartered public schools, but does not require districts to add or extend existing bus routes.

Bill Summary: Senate Bill 915 would have allowed charter schools that incur transportation costs to be reimbursed for those costs at the same rate as school districts.

[Senate Bill 1002-A](#)

Not Enacted

Private Tutoring in Public School Facilities

Sponsors: Senate Committee on Education

Committees: Senate Education, House Education

Background and Current Law: In December 2016, the Lake Oswego School District restricted private tutors from using school buildings. The West Linn-Wilsonville School District maintains a similar policy. Portland Public Schools allow community use of buildings and prohibit commercial enterprises.

Bill Summary: Senate Bill 1002-A would have required school districts to allow public school students and private tutors to use school facilities under certain circumstances. Schools were permitted to charge a fee of up to \$50 per year, and building use must have been allowed both before and after school.

[Senate Bill 1003](#)

Effective Date: January 1, 2018

Teacher Training for Dyslexia Screening

Chief Sponsors: Senate Committee on Education

Committees: Senate Education, House Education

Background and Current Law: In 2015, the Legislative Assembly passed Senate Bill 612 and House Bill 2412, which set forth a number of requirements concerning dyslexia: teacher training programs were required to include dyslexia; schools were required to ensure that existing teachers received training; and the Oregon Department of Education (ODE) was directed to plan and implement screening and to designate a dyslexia specialist. Federal regulations require school districts to identify students with disabilities. Students who struggle with reading fall under the Specific Learning Disability (SLD) category. The federal government defines dyslexia as one type of SLD.

Bill Summary: Senate Bill 1003 requires school districts, beginning in the 2018-2019 school year, to ensure that at least one teacher in kindergarten through grade five at each school has received training related to dyslexia and that every kindergartner or first grader is screened.

Oregon Laws 2017: Chapter 473

[Senate Joint Resolution 37](#)

Not Adopted

Creation of State Board of Education

Chief Sponsors: Sen. Kruse

Committees: Senate Education, Senate Rules

Background and Current Law: Senate Bill 552 (2011) named the governor as Superintendent of Public Instruction and gave the governor the authority to appoint the Deputy Superintendent of Public Instruction, who oversees the Oregon Department of Education. According to the Council of Chief State School Officers, 17 states' chief state school officers (CSSO) are appointed by governors, 20 states' CSSOs are appointed by state boards of education, and 13 states elect their CSSOs.

Bill Summary: Senate Joint Resolution 37 would have amended the Oregon Constitution to assign responsibility for establishing policies for the administration and operation of public elementary and secondary schools, community colleges, and public universities to the State Board of Education (SBE). The measure would have reallocated seats on the SBE, required the SBE to appoint the Superintendent of Public Instruction, and prohibited the SBE from establishing policies relating to community colleges and public universities until July 1, 2020.

House Bill 2013

Effective Date: June 14, 2017

Preschool Promise Lead Teacher Requirements

Chief Sponsors: Rep. Kotek

Committees: House Early Childhood and Family Supports, Senate Education

Background and Current Law: Preschool Promise provides publicly funded, high quality preschool for low-income families. Presently, lead teachers in the Preschool Promise program must hold a bachelor's degree in early childhood education (or a related field) or provide a plan to obtain a bachelor's degree.

Bill Summary: House Bill 2013 eliminates the bachelor's degree requirement for lead Preschool Promise teachers and creates new eligibility criteria around training, certificates, and degrees. The bill requires the Early Learning Council (ELC) to develop lead preschool teacher target salary guidelines and determine strategies to increase the mean salary of preschool staff. The ELC must conduct an evaluation on accessibility and quality and assess how compensation contributes to workforce retention. Finally, the legislation requires technical assistance to programs to address salary disparities in preschools.

Oregon Laws 2017: Chapter 280

House Bill 2038

Effective Date: August 2, 2017

Farm-to-School

Chief Sponsors: Reps. Clem, Brock Smith

Committees: House Agriculture and Natural Resources, Joint Ways and Means

Background and Current Law: House Bill 2800 (2011) created the Farm-to-School program in Oregon, which awards grants to school districts and partner organizations to purchase Oregon food products or provide food-based, agriculture-based, or garden-based educational activities.

Bill Summary: House Bill 2038 appropriates funds to continue the Farm-to-School program and specifies the amount of funding to be used for noncompetitive grants for purchasing Oregon food products; competitive grants to provide food-, agriculture-, or garden-based educational activities; and costs to administer the grant programs. The measure specifies that proceeds from noncompetitive grants for school districts to purchase food produced or processed in Oregon may not be used to supplant products that are currently being purchased without assistance, and it expands the list of organizations that may apply for competitive grants.

Oregon Laws 2017: Chapter 609

[House Bill 2147](#)

Effective Date: January 1, 2018

High School Graduation Rates

Chief Sponsors: Rep. Johnson

Committees: House Higher Education and Workforce Development, Senate Education, Conference Committee on HB 2147

Background and Current Law: Currently, student-specific data on postsecondary enrollment and graduation rates exists, but school districts typically do not have access to the information. The National Student Clearinghouse (NSC) is a national independent entity that maintains electronic student record data, partnering with postsecondary institutions and state agencies that volunteer to collect and provide data about student enrollment and performance. Oregon's postsecondary institutions provide NSC with student enrollment and graduation data, and NSC provides the Oregon Department of Education (ODE) with postsecondary information to assist the agency in tracking high school students following graduation.

Bill Summary: House Bill 2147 requires higher education institutions to provide to the Higher Education Coordinating Commission (HECC) annually: the number of Oregon high school graduates from each school district enrolled at the institution, and the graduation rate at that institution for Oregon high school graduates from each school district. The bill requires the HECC to submit that information to ODE, and requires ODE to provide the information to school districts.

Oregon Laws 2017: Chapter 415

Utilization of Ballot Measure 98 Funds by School Districts

At the request of: Governor Brown for Chief Education Office

Committees: House Higher Education and Workforce Development, House Education, Joint Ways and Means

Background and Current Law: Oregon voters approved Ballot Measure 98 in 2016, codified as the “High School Graduation and College and Career Readiness Act of 2016.” The measure requires the Legislative Assembly to provide at least \$800 per high school student, adjusted annually for inflation, to the Oregon Department of Education. The Oregon Department of Education is required to distribute those funds to approved school districts to establish or expand high school programs providing: (1) career and technical education; (2) college-level courses; and (3) dropout-prevention strategies. In the spring of 2017, the Speaker of the House of Representatives convened a work group on implementing Ballot Measure 98.

Bill Summary: House Bill 2246 amends Ballot Measure 98 and establishes criteria for school districts based on the amount of Measure 98 funding they received. School districts that receive less than \$100,000 for the school year are to use funds in one of the three areas designated by Measure 98. For school districts that receive between \$100,000 and \$350,000, they must use a portion of funds to support career and technical education as well as one of the remaining two areas. For school districts that receive over \$350,000 per year, they must use funds to support all three areas. School districts that receive an increase in funds for the second year of a biennium are not required to fund additional areas that same biennium. The bill allows school districts to use up to 15 percent of Ballot Measure 98 funds for programs or opportunities serving students in eighth grade. The bill specifies the eligibility requirements for school districts to receive funding, including key components of biennial plans each school district must submit, and requires school districts to describe four-year plans. The bill also modifies the definition of chronic absenteeism and expands the entities able to receive funding to include the Oregon School for the Deaf and programs under the Youth Corrections Detention Program and Juvenile Detention Education Program.

Oregon Laws 2017: Chapter 615

[House Bill 2261](#)

Not Enacted

Statewide Coordination of LGBTQ Youth

At the request of: Governor Brown for Department of Education

Committees: House Education, Joint Ways and Means

Background and Current Law: The Centers for Disease Control and Prevention reports that lesbian, gay, bisexual, transgender, queer (LGBTQ) and questioning youth are at an increased risk of violence among peers, including behaviors such as bullying and harassment. The 2015 Oregon Healthy Teens survey found that, in 30 days, an average of 44 percent of lesbians and gays reported being bullied.

Bill Summary: House Bill 2261 would have expanded the responsibilities of the Oregon Youth Development Council to include coordination of statewide services to youth identifying as LGBTQ or questioning.

[House Bill 2382-A](#)

Not Enacted

Oregon FFA Association Program Coordination

Chief Sponsors: Rep. Barreto

Committees: House Education, Joint Ways and Means

Background and Current Law: Prior to 2011, Oregon provided funding for the Oregon FFA Association (formerly the Oregon Future Farmers of America Association) through the Oregon Department of Education. The Oregon FFA Association has since become privately funded, relying on volunteers and donations for revenue.

Bill Summary: House Bill 2382-A would have directed the Oregon Department of Education to coordinate with the Oregon FFA Association to increase student achievement and improve attendance for those enrolled in agricultural courses or programs. The bill would have required an appropriation of \$1.8 million out of the General Fund for the Oregon FFA Association to provide financial support for program developments. The bill would have established a grant program to allow school districts to manage agricultural and science educational programs during the summer months.

State School Fund Moneys for Talented and Gifted Students

Chief Sponsors: Rep. Parrish

Committees: House Education

Background and Current Law: The Oregon Department of Education (ODE) can identify a child as Talented and Gifted (TAG) from kindergarten through grade 12. School districts have different TAG leaders available to work with students and develop their educational plans.

Bill Summary: House Bill 2419 would have required ODE to transfer \$2.5 million from the State School Fund to the Small School District Supplemental Fund in the 2017-2018 school year. The measure would have required ODE, beginning in the 2017-2018 school year, to distribute from the State School Fund \$300 per student, if the school district identified fewer than 75 TAG students, and \$250 per student if the school district identified 75 TAG students or more. The measure would have allowed the State Board of Education to adopt standards that school districts must implement supporting TAG students beginning with the 2017-2018 school year. Starting July 1, 2021, the bill would have required ODE to distribute from the State School Fund \$500 per student for each student identified as TAG.

Professional Development and Licensure of Counselors

Chief Sponsors: Rep. Reardon

Committees: House Education, Joint Ways and Means (for HB 2528-A and HB 2536-A)

Background and Current Law: The American School Counselor Association recommends that for every 250 students in school there is one counselor present. Data from the association indicates that during the 2013-2014 academic year, Oregon had one counselor for every 604 students present. Professional development opportunities for school counselors vary by district. Online coursework and networking provide professional development opportunities in addition to out-of-state or in-state functions, which may benefit school counselors wishing to enhance their network and skills.

Bill Summary: HB 2528-A would have appropriated \$240,000 from the General Fund to the Oregon Department of Education for training and professional development on the Comprehensive Guidance and Counseling Framework adopted by the Oregon Department of Education.

House Bill 2529 would have required that applicants submitting for a preliminary administrative license from the Teachers Standard and Practices Commission complete coursework that provided an overview of state requirements for comprehensive school guidance and counseling programs. It required programs to describe best practices in coordinating with school counselors to address the personal, social, emotional, behavioral, and mental health issues of students.

House Bill 2530 would have required that Oregon school districts ensure students had access to guidance counselors who were licensed by the Teachers Standard and Practices Commission or qualified to be licensed school counselors through education or experience.

House Bill 2536-A would have directed the Oregon Department of Education to design and make available to all school districts professional development courses related to guidance and counseling programs for students in kindergarten through grade 12.

Funding for Job Training and Employment Services Pilot Program

Chief Sponsors: Rep. Reardon

Committees: House Higher Education and Workforce Development, Joint Ways and Means

Background and Current Law: Worksystems, Inc. is one of Oregon's nine local workforce development boards that are charged with coordinating local activities as required by the federal Workforce Investment Opportunity Act and connecting, brokering, and promoting private sector employers' involvement in one-stop employment centers.

Bill Summary: House Bill 2531-A would have appropriated \$5,000,000 from the General Fund to the State Workforce Investment Board for Worksystems, Inc. to implement a pilot program that provided targeted sector career coaching, occupational training, and job placement for job seekers. The \$5 million appropriation was intended to train 1,000 low-income job applicants for an anticipated 6,000 new job openings at the Troutdale Reynolds Industrial Park and the Gresham Vista Industrial Park in east Multnomah County. In addition, the measure would have leveraged a 50 percent federal match through the WorkSource Oregon Supplemental Nutrition Assistance Program's (SNAP) 50/50 program to provide targeted industry sector training and employment services to SNAP recipients in areas of concentrated poverty statewide.

[House Bill 2548-A](#)

Not Enacted

Funding for Career and Technical Student Organizations

Chief Sponsors: Reps. Hack, Doherty

Committees: House Education, Joint Ways and Means

Background and Current Law: Career and technical student organizations, such as the Future Business Leaders of America and the National FFA Organization (formerly the National Future Farmers of America Organization), receive funding from the Oregon Career Technical Student Leadership Foundation. These organizations provide leadership opportunities for students at the local, state, and national levels; each is managed by its respective chapter at the school district level. The Oregon Department of Education provides funding to the Oregon Career Technical Student Leadership Foundation for administering the local chapters of these organizations, and issues charters which allow them to operate in the state of Oregon.

Bill Summary: HB 2548-A would have required the Oregon Department of Education to support career and technical student organizations in providing opportunities for students to develop leadership, academic, and career skills. The bill allowed career and technical student organizations to be managed by their respective association leadership bodies in coordination with the Oregon Department of Education. The measure would have amended Ballot Measure 98 (2016) to allow the High School Graduation and College and Career Readiness Fund to distribute money to career and technical student organizations.

[House Bill 2582-A](#)

Not Enacted

University Research Fighting Fund

Chief Sponsors: Reps. Rayfield, Olson

Committees: House Higher Education and Workforce Development, Joint Ways and Means

Background and Current Law: The federal government issues tens of billions of dollars of research grant opportunities to universities each fiscal year, which often require matching funds from private industry, states, or other non-federal sources. Typically, the most competitive grant applicants are able to demonstrate a commitment of matching funds. Currently, Oregon researchers pursue state matching funds through the biennial state budget process. Oregon universities report that the budgeting process is often too lengthy to support timely, competitive grant applications.

Bill Summary: House Bill 2582-A would have established the University Research Fighting Fund to provide state moneys to public universities when they sought federal research grants. Institutions were required to apply to the Higher Education Coordinating Commission (HECC) for fund moneys and to notify the governor of the application. The HECC was required to develop a process for application review and award decision-making. The legislature was required to consider HECC and Legislative Fiscal Office reports during even-numbered-year regular sessions and to determine whether to transfer the necessary amount to ensure a fund balance equal to \$20 million.

[House Bill 2587](#)

Not Enacted

Changes to Oregon’s “40-40-20” Educational Goals

Chief Sponsors: Rep. Evans

Committees: House Education

Background and Current Law: Senate Bill 253 (2011) requires Oregonians to attain a set of educational levels by the year 2025, commonly known as “40-40-20.” The state goal is that: 40 percent of adults will have an associate degree as their highest degree attained, 40 percent of adults will have a bachelor’s degree or higher as their highest degree attained, 20 percent of adults will have a high school diploma or equivalent as their highest degree attained, and all adults will have a high school diploma or equivalent.

Bill Summary: HB 2587 would have modified the current requirement that the public-school system have “increased learning time” to “sufficient learning time,” taking effect after the State Board of Education reviewed common curriculum goals and performance indicators. The bill would have changed the expectation that “at least 40 percent of adult Oregonians have earned” a bachelor’s degree or higher and “at least 40 percent of adult Oregonians have earned” an associate degree to “all Oregon high school graduates are given the opportunity to attain” a bachelor’s degree or higher or an associate degree. House Bill 2587 would have removed the requirement that the remaining 20 percent or less of all Oregonians earn a high school diploma, extended or modified diploma, or equivalent.

[House Bill 2649](#)

Not Enacted

Harassment, Intimidation, and Bullying in School Districts

Chief Sponsors: Reps. Doherty, Power

Committees: House Education, Joint Ways and Means

Background and Current Law: The Oregon Department of Education (ODE) currently does not have a system tracking acts of harassment at school districts that documents the characteristics of the people being harassed. The State Board of Education does not have rules relating to complaints alleging that a school district policy was violated, nor do they track the type of complaints that occur.

Bill Summary: House Bill 2649 would have required the State Board of Education to create a process for students or the public to submit a complaint to ODE contending a school district policy did not comply with or was in violation of a state law that prohibits harassment. The measure would have required the State Board of Education to: adopt rules to determine whether school districts comply with requirements; adopt a process for ODE to review and investigate complaints; adopt requirements that the complainant notify the school where the reported act of harassment, intimidation or bullying occurred; and allow the district an opportunity to respond to a complaint. The measure also would have required ODE to establish a system to track the number of reports and types of harassment, intimidation, and bullying; the race, color, religion, sex, sexual orientation, national origin, and disability of the person who was harassed as well as the number of disciplinary actions.

[House Bill 2651](#)

Not Enacted

School Class Size in Collective Bargaining

Chief Sponsors: Rep. Doherty

Committees: House Education

Background and Current Law: Although Oregon law permits class size to be included as a part of mandatory collective bargaining, it is not required, due to a ruling by the Oregon Supreme Court in *Tualatin Valley Bargaining Council v. Tigard School District*, 106 Or. App. 381 (1991). In 1992, the Oregon Supreme Court ruled that the decision-making used by the Employment Relations Board was appropriate and class size was not a mandatory subject of collective bargaining.

Bill Summary: House Bill 2651 would have required school class size as a mandatory collective bargaining subject for school districts.

[House Bill 2657-A](#)

Not Enacted

Youth Reengagement Task Force

Chief Sponsors: Rep. Doherty

Committees: House Education, Joint Ways and Means

Background and Current Law: The Oregon Youth Development Council (YDC) was created to oversee a unified system providing services to school-aged children through 24 years of age. The goal is to help youth who face barriers to education and workforce development. Cities like Boston and Chicago have reengagement programs meant to reengage students who have dropped out of school.

Bill Summary: House Bill 2657-A would have required the YDC to develop a statewide plan to provide out-of-school youth with opportunities to become reengaged and to succeed in education or the workforce. The bill would have created a task force charged with consulting experts throughout the state to compile information for providing out-of-school youth opportunities, evaluate state policies and procedures for out-of-school youth to reengage, and analyze reengagement systems throughout the country to identify successful systems.

[House Bill 2658-A](#)

Not Enacted

School Social Workers Pilot Program

Chief Sponsors: Reps. Piluso, Doherty

Committees: House Education, Joint Ways and Means

Background and Current Law: School districts, such as the Beaverton School District, Portland Public Schools, and Reynolds School District, employ social workers. Others, such as the Tigard-Tualatin School District and Hillsboro School District, employ coordinator care workers who can perform several duties within a district. There are approximately 36 school social workers licensed by the Teachers Standards and Practices Commission, which are separate from licensed social workers.

Bill Summary: House Bill 2658-A would have required the Oregon Department of Education to establish a pilot program to distribute funding from Measure 98 (2016) to school districts to hire school social workers, increase the working hours of existing school social workers, and enable existing personnel to earn school social worker licensure. The bill would have required school districts participating in the pilot program to: annually submit information relating to student attendance rates; report incidences of harassment, intimidation, bullying, or cyberbullying; and document how the increase in school social workers affected any other elements of the school system.

[House Bill 2666](#)

Effective Date: January 1, 2018

Community College Mandatory Student-Initiated Fees

Chief Sponsors: Rep. Nosse

Committees: House Higher Education and Workforce Development, Senate Education

Background and Current Law: Student-initiated fees are mandatory, nonacademic fees paid by all students taking on-campus courses at Oregon postsecondary institutions. Rates vary by institution and are assessed quarterly to each student. These fees typically fund student programs such as educational and cultural activities, recreational sports, student involvement, student union operations, and student government. In 2013, the Oregon Legislative Assembly passed House Bill 3120, which established a process for public university boards to collect mandatory incidental fees upon request of the recognized student government.

Bill Summary: House Bill 2666 requires community college boards to collect mandatory student-initiated fees upon the request of the recognized student government. The bill allows student governments to establish collection processes in consultation with boards, and authorizes student governments to allocate the fees. The bill clarifies that a board may require a campus referendum in which the student body votes on whether to approve the fee. The community college president can refuse a mandatory student-initiated fee request under certain conditions, and student governments may appeal the decision to the community college board.

Oregon Laws 2017: Chapter 267

[House Bill 2688-A](#)

Not Enacted

Quality Education Model Modernization Task Force

Chief Sponsors: Rep. Evans

Committees: House Education, Joint Ways and Means

Background and Current Law: Ballot Measure 5 (1990), Ballot Measure 47 (1996), and Ballot Measure 50 (1997) shifted the responsibility of funding public schools from local communities to the state of Oregon. In 1997, the Speaker of the House of Representatives appointed a committee to determine the cost of a quality education. The committee worked to create a reliable tool to correlate funding with student performance in kindergarten through grade 12, which became known as the Quality Education Model (QEM). The Quality Education Commission was appointed in the fall of 1999 to phase in the QEM.

Bill Summary: House Bill 2688-A would have established the Oregon Quality Education Model Modernization Task Force. The task force was directed to evaluate the comprehensiveness of the QEM to ensure the model considers student needs in relation to staffing, transportation, technology access, and other supports. The task force was also directed to evaluate the biennial process for updating the QEM to reflect best practices on staffing optimization, sufficient technology access, student transportation needs, adequate resources for students in summer months (including credit recovery), and workforce preparation programs, as well as recommending changes to the model itself.

[House Bill 2690](#)

Not Enacted

Loans to Bridge Gaps in Educational Assistance

Chief Sponsors: Rep. Evans

Committees: House Veterans and Emergency Preparedness, Joint Ways and Means

Background and Current Law: There are a variety of federal and state programs that assist veterans with educational goals, including the Montgomery GI Bill and the Post-9/11 GI Bill, but gaps can sometimes occur when receipt of benefits is delayed.

Bill Summary: House Bill 2690 would have established the Oregon Educational and Workforce Development Bridge Loan Program in the Oregon Department of Veterans' Affairs to provide forgivable loans to eligible veterans of up to \$5,000 each in any five-year period to cover gaps in other financial assistance.

[House Bill 2693-A](#)

Not Enacted

Public School Transportation Costs

Chief Sponsors: Reps. McKeown, Lively

Committees: House Education, Joint Ways and Means

Background and Current Law: School districts are reimbursed for their student transportation costs at 70, 80, or 90 percent depending on what they spend. The school district with the highest cost per student is set at 100 percent. Districts within the 90th to 100th percentile receive reimbursement for 90 percent of their costs. Districts within the 80th to 90th percentile receive reimbursement for 80 percent of their costs. All other school districts receive reimbursement at 70 percent. Gas, vehicle maintenance, and driver time contribute to student transportation costs, leading to higher costs for school districts with students located farther away. Currently, the Oregon Department of Education (ODE) does not provide grants for school districts where student transportation costs are associated with alternate modes, such as public transportation.

Bill Summary: House Bill 2693-A would have required ODE to award grants to school districts for up to 50 percent of student transportation costs and costs associated with alternate modes of transportation including public transit for grades nine through 12. The grant amount calculation for the school districts was equal to the school district's weighted Average Daily Membership.

[House Bill 2701](#)

Effective Date: July 1, 2018

Sanctions for Career Schools

Chief Sponsors: Reps. Doherty, Kennemer

Committees: House Higher Education and Workforce Development, Senate Education

Background and Current Law: The Higher Education Coordinating Commission (HECC) is responsible for licensing private career schools and agents in Oregon. It investigates all written complaints and may place a licensee on probation, or suspend, or revoke a license. Notice of deficiencies and actions taken against a license must be provided to the licensee, along with an opportunity to correct within a specified time frame. Only one private career school has been placed on probation by the HECC and no schools have had their licenses suspended or revoked.

Bill Summary: House Bill 2701 removes probationary status and provides for "notice for corrective action" instead. The HECC is required to inform career schools when they are the subject of an investigation and to engage with them as well as the complainant during the investigation. The bill specifies that a license suspension or revocation may only take effect after a hearing officer makes the necessary determination.

Oregon Laws 2017: Chapter 422

[House Bill 2720-B](#)

Not Enacted

Virtual Public Charter School Study

Chief Sponsors: Rep. McLain

Committees: House Education, Joint Ways and Means

Background and Current Law: In 2016, an informal work group of lawmakers and virtual charter school practitioners met to discuss virtual charter schools in Oregon. The work group discussed potential legislation to examine factors such as access to resources, relationships between host districts and virtual public schools, and populations served by each school, while identifying promising online learning practices and national trends.

Bill Summary: House Bill 2720-B would have required the Oregon Department of Education (ODE) to conduct a study on virtual public charter schools. It required the study to examine the state, federal, and other resources available to virtual public charter schools; differences in resources; the financial and working relationship between the school sponsor and each virtual public charter school; and additional factors relating to the makeup of such schools. The study required that ODE examine the student demographics of each school and the average number of credits that students are deficient when entering school. Beginning July 1, 2018, the measure would have appropriated \$80,000 to ODE for the purpose of conducting the study.

[House Bill 2729](#)

Effective Date: August 15, 2017

Open Educational Resources

Chief Sponsors: Reps. Whisnant, Reardon, Johnson

Committees: House Higher Education and Workforce Development, Joint Ways and Means

Background and Current Law: Open educational resources (OER) are freely accessible teaching, learning, and research resources such as textbooks, videos, and images that can be legally adapted and redistributed for students' use at low or no cost. In 2015, the Oregon Legislative Assembly passed House Bill 2871, which provided \$700,000 to hire an OER specialist and establish a one-time grant program within the Higher Education Coordinating Commission (HECC). The law directed the HECC to collaborate with public postsecondary institutions to identify OERs for 15 courses that were high enrollment, general education disciplines, and capable of being transferred among public postsecondary institutions.

Bill Summary: House Bill 2729 directs the HECC to collaborate with public universities and community colleges to increase the number of OERs used in postsecondary courses and to enhance their use and effectiveness. The bill directs the HECC to analyze and evaluate the effectiveness of OERs that have been adopted in Oregon, and appropriates \$1 million from the General Fund to the HECC for the purposes of hiring an OER specialist and carrying out Oregon's OER program. The HECC is required to report on the effectiveness of Oregon's OER program to the legislature during odd-numbered years.

Oregon Laws 2017: Chapter 708

[House Bill 2763](#)

Effective Date: January 1, 2018

National Teacher Certification Funding

Chief Sponsors: Reps. Whisnant, Smith Warner, Hack; Sens. Knopp, Dembrow

Committees: House Education, Joint Ways and Means

Background and Current Law: In the 2015-2016 school year, 215 school districts reported that the average starting salary for Oregon teachers was \$35,252. It was reported that the starting salary may be insufficient to pay expenses such as teacher licensing fees and board certification and may also be expensive for teachers and school districts.

Bill Summary: House Bill 2763 allows the National Board Certification Fund to include moneys appropriated by the Legislative Assembly and federal money designated for the professional development of teachers. It specifies that money in the fund is to be used to encourage 150 public school teachers to obtain certification each biennium. The bill allows the Teacher Standards and Practices Commission (TSPC) to renew any educator license without charge if the person is certified by the national professional organization for teaching standards. Starting July 1, 2017, \$1.7 million is appropriated from the General Fund for deposit in the National Board Certification Fund, and starting July 1, 2018, TSPC may retain up to 10 percent of the National Board Certification Fund each biennium for its administration. The bill requires TSPC to report to the legislature regarding teacher certification no later than April 1, 2020.

Oregon Laws 2017: Chapter 662

[House Bill 2782](#)

Not Enacted

Oregon State University-Cascades Expansion

Chief Sponsors: Reps. Rayfield, Buehler, Whisnant; Sens. Knopp, Gelser

Committees: House Higher Education and Workforce Development, Joint Ways and Means

Background and Current Law: Oregon State University-Cascades (OSU-Cascades) in Bend was established in September 2001 through a partnership with Central Oregon Community College. The school officially opened its own 10-acre, 4-year campus in fall 2016, which consists of one academic building and a residence hall and dining center complex. OSU-Cascades is Oregon's fastest growing public university campus, and is located in the fastest growing economic region in the state. Oregon State University reports that the current academic and student support facilities on the 10-acre campus will be at capacity by 2021.

Bill Summary: House Bill 2782 would have authorized the State Treasurer to issue bonds to pay for site reclamation and restoration, campus infrastructure construction and renovation, Academic Building 2 construction, Student Success Center construction, and Graduate and Research Center renovation projects on the OSU-Cascades campus. Instead, Senate Bill 5505 (2017) issues \$9,145,000 in general obligation bonds for "Cascades Expansion Site Reclamation."

[House Bill 2845](#)

Effective Date: June 29, 2017

Ethnic and Social Minorities Advisory Group

Chief Sponsors: Reps. Doherty, Hernandez, Parrish; Sen. Frederick

Committees: House Education, Joint Ways and Means

Background and Current Law: Academic content standards, including social studies, are reviewed by the State Board of Education every seven years. Once the standards are reviewed and adopted, school districts are required to implement them.

Bill Summary: House Bill 2845 establishes an advisory group to identify current statewide social studies standards that fail to recognize the histories, contributions, and perspectives of ethnic and social minorities. It requires the advisory group to develop ethnic studies standards to propose to the State Board of Education for adoption into existing statewide social studies standards and to focus on increasing the cultural competency of public school students as to ethnic and social minorities. The bill also requires the Oregon Department of Education to adopt ethnic studies standards into existing statewide social studies standards for public school students in kindergarten through grade 12 by September 15, 2020. Beginning July 1, 2017, the bill appropriates \$43,149 out of the General Fund for the operation of the advisory group. The bill sunsets the advisory group on January 2, 2022.

Oregon Laws 2017: Chapter 501

[House Bill 2862](#)

Not Enacted

Nursing Faculty Loan Repayment Program

Chief Sponsors: Reps. Malstrom, Hernandez

Committees: House Higher Education and Workforce Development, Joint Ways and Means

Background and Current Law: The Oregon Center for Nursing reports that up to 50 percent of nurse educators are expected to retire by 2025, that 37 percent of qualified nursing program applicants are currently excluded from undergraduate programs, and that Oregon will experience a shortage of approximately 6,000 nurses in all settings by 2025. The shortages in the nursing profession can be attributed, in part, to the difficulty recruiting and retaining nurse faculty due to the high cost of graduate nursing education and the low salaries of nurse educators when compared to nurses working in other settings. In 2009, the legislature created the Nursing Faculty Loan Repayment Program to help address nursing faculty shortages by providing loan repayments to nurse educators with graduate degrees, incentivizing them to remain in their roles as educators.

Bill Summary: House Bill 2862 would have appropriated \$350,000 from the General Fund to the Higher Education Coordinating Commission for the Nursing Faculty Loan Repayment Program.

[House Bill 2864](#)

Effective Date: January 1, 2018

Cultural Competence at Postsecondary Education Institutions

Chief Sponsors: Reps. Alonso Leon, Gorsek

Committees: House Higher Education and Workforce Development, Senate Education

Background and Current Law: Many of Oregon’s public universities and community colleges are currently engaged in cultural competency efforts. In 2015, House Bill 3308 was passed to help address student concerns regarding the occurrence and impact of microaggressions, racial slurs, and inappropriate stereotypes at Oregon’s public higher education institutions. The legislation directed the Higher Education Coordinating Commission to convene a work group to develop recommendations on these issues. House Bill 2864 codifies the work group’s key recommendation to establish a process for developing cultural competency standards at each institution.

Bill Summary: House Bill 2864 defines “cultural competency” and directs public universities and community colleges to establish a process for recommending, and providing oversight for the implementation of, competency standards for the institution and its employees. The bill specifies process requirements. Each public institution of higher education is required to establish a committee, or other entity or process no later than December 31, 2019, and be in full compliance with process requirements no later than December 31, 2020.

Oregon Laws 2017: Chapter 397

[House Bill 2867](#)

Not Enacted

Dual Credit Quarter Hour Credential Requirements

Chief Sponsors: Rep. Evans

Committees: House Education

Background and Current Law: The Oregon Teacher Standards and Practices Commission licenses individuals to teach in Oregon, but does not credential teachers for practicing dual credit. “Dual credit” refers to high school students who earn credits simultaneously in high school and college by enrolling in college-level courses. The Higher Education Coordinating Commission adopted accelerated learning standards relating to dual credit, proposed sponsored dual credit, and assessment-based learning credit in June 2016.

Bill Summary: House Bill 2867 would have required school districts to ensure that individuals teaching in dual credit programs complete a minimum of 27 quarter hours of graduate level course work relevant to the course being taught. These requirements applied to teachers in school districts and public charter schools, and students taught by a parent or legal guardian. The requirements did not apply to career and technical education.

[House Bill 2887-A](#)

Not Enacted

Job Tax Credit

At the request of: House Committee on Veterans and Emergency Preparedness

Committees: House Veterans and Emergency Preparedness, House Revenue

Background and Current Law: The Work Opportunity Tax Credit (WOTC) is a federal tax credit available to certain nonprofit organizations for hiring specified individuals, including veterans, who may face barriers to employment. The WOTC only applies to new employees and is a one-time credit per employer.

Bill Summary: House Bill 2887-A would have created a personal and corporate tax credit for up to three years against state income taxes for hiring qualified veterans. The credit was in the amount of \$750 to \$1,000 depending on the number of the business' employees, provided the employer paid at least \$1 more than the applicable minimum wage. The tax credit would have increased \$100 annually.

[House Bill 2998](#)

Effective Date: August 8, 2017

Community College Credit Transfer

Chief Sponsors: House Committee on Higher Education and Workforce Development

Committees: House Higher Education and Workforce Development, Joint Ways and Means

Background and Current Law: Oregon transfer students often find that transfer degrees and articulated agreements may meet admission standards of receiving postsecondary schools, but that general education and major course of study credit transfers are accepted on a course-by-course, institution-by-institution basis. Following a transfer, students often experience credit loss and need to complete additional coursework to graduate.

Bill Summary: House Bill 2998 requires the Higher Education Coordinating Commission (HECC) to regularly convene community college and public university representatives to facilitate the establishment of foundational curricula, determine major courses of study for which unified statewide transfer agreements will be established, and develop those agreements. The bill requires Oregon's postsecondary institutions to establish foundational curricula for first-year coursework and develop a unified statewide transfer agreement for each major course of study. The bill requires the HECC to provide a report to the Legislative Assembly no later than February 1, 2018, and for postsecondary institutions to submit a joint report to the Legislative Assembly no later than June 1, 2018. The HECC is additionally required to report annually to the Legislative Assembly on whether unified statewide transfer agreements are meeting stated goals.

Oregon Laws 2017: Chapter 669

[House Bill 3029](#)

Effective Date: July 1, 2017

Attendance Laws for Children with Special Needs

Chief Sponsors: Rep. Hayden

Committees: House Education, Senate Education

Background and Current Law: Children with special needs may require additional time at home to develop school readiness concepts, including recognizing colors and shapes, knowing the alphabet, being able to count, and understanding object size. School officials determine school readiness by administering the Bracken Basic Concept Scale-III exam. After the exam, school professionals may decide that a child should remain at home for an additional year to develop those skills. Additional time at home may also allow a child more time to develop physical readiness (e.g., bladder control).

Bill Summary: House Bill 3029 exempts children from attending full-time public school for one year if a parent or legal guardian notifies the school district they will delay enrollment to meet the child's needs for cognitive, social, or physical development. The bill allows the enrollment decision to be made by the parent or legal guardian.

Oregon Laws 2017: Chapter 379

[House Bill 3106](#)

Effective Date: January 1, 2018

Preschool Programs

Chief Sponsors: Rep. Wilson

Committees: House Early Childhood and Family Supports, Senate Education

Background and Current Law: Oregon Prekindergarten (OPK) is a free preschool program for families with incomes up to 100 percent of the federal poverty level (FPL). OPK is modeled after, and designed to follow, federal Head Start performance standards. In 2016, the federal government modified standards for hours of planned class operations and allowed Head Start grantees to phase in changes. Preschool Promise is a free, high quality preschool program for families with incomes up to 200 percent of the FPL. Preschool Promise gives families the option to choose a provider setting (e.g., elementary schools or federally funded Head Start). Early Learning Hubs are community-based organizations that help children reach kindergarten ready to succeed in school. Hubs identify underserved children and ensure that programs and services meet their needs.

Bill Summary: House Bill 3106 requires Early Learning Hubs to convene OPK programs and Preschool Promise programs to coordinate the enrollment of eligible children. The bill requires the Early Learning Council to adopt rules to implement plans for changes to the federal Head Start program and to adopt rules to provide half-day, full-day, or combined OPK programs to meet community needs.

Oregon Laws 2017: Chapter 140

[House Bill 3156](#)

Not Enacted

Day-Treatment Program Funding

Chief Sponsors: Rep. Post; Sen. Thatcher

Committees: House Education, Joint Ways and Means

Background and Current Law: In June 2015, the Willamette Education Service District (WESD) asked the Newberg School District to assume the contract for group home providers in Newberg. This required the school district to pay the cost of staff and students in the group homes, which led to an informal partnership with law enforcement agencies, city counselors, and community members to maintain these group homes. However, the total cost of maintaining the homes amounted to \$800,000 for the school district. Currently, the Oregon Department of Education (ODE) is not required to fund day-treatment programs or eligible residential day-treatment programs. Therefore, school districts that assume the responsibilities and maintenance of operating group homes are required to absorb the cost from current biennial funding.

Bill Summary: House Bill 3156 would have required ODE to be responsible for providing a student's education for the first 30 calendar days after an eligible day-treatment program or eligible residential day-treatment program began or expanded operation to a different school district. It would have required ODE to pay the school district for any costs of the treatment program imposed on the school district, and to pay school districts for costs imposed during the first year of a new program providing education to students and during the year it ceased operations.

[House Bill 3174](#)

Not Enacted

Grant Program for Construction-Related Job Assistance

Chief Sponsors: Reps. Evans, Meek

Committees: House Veterans and Emergency Preparedness, Joint Ways and Means

Background and Current Law: A variety of employment-related assistance is available to veterans. State and federal law provide preference points to veterans and disabled veterans seeking employment in the public sector. The Oregon Employment Department operates employment centers and provides Local Veteran Employment Representatives and Disabled Veteran Outreach Program Specialists to assist veterans with education and training opportunities, searching for employment, job counseling, job development, and resume assistance.

Bill Summary: House Bill 3174 would have provided additional assistance to veterans by creating a grant program administered by the Oregon Department of Veterans' Affairs that funded pilot projects targeting the employment of veterans in construction and construction materials industries.

[House Bill 3185-A](#)

Not Enacted

Family Engagement Task Force

Chief Sponsors: Reps. Alonso Leon, Hernandez

Committees: House Education, Joint Ways and Means

Background and Current Law: According to a report on the Dual Capacity Framework for Family-School Partnerships by the U.S. Department of Education, family engagement has a systemic and sustained positive effect on learning, and is increasingly a part of education reform efforts. At least 39 states have enacted laws to implement family engagement policies.

Bill Summary: House Bill 3185-A would have established the Task Force on Family Engagement in Education to study ways to increase and improve family involvement, from prekindergarten through postsecondary education, and report to the legislature by September 15, 2018.

[House Bill 3191-A](#)

Not Enacted

Summer Food Service Pilot Program

Chief Sponsors: Rep. Smith Warner; Sen. Hass

Committees: House Education, Joint Ways and Means

Background and Current Law: The Oregon Department of Education (ODE) offers a Summer Food Service Program to cover the gap between school years for children in high-poverty families that would otherwise not have access to free or reduced meals. There are also instructional programs during the summer that provide professional development opportunities for both school personnel and administrators on English language proficiency in schools with high populations of English learners.

Bill Summary: House Bill 3191-A would have required ODE to pilot a five-week summer program that offered both education and free or reduced meals to elementary school students in high-poverty, low-performing schools with significant populations of English Language Learners.

[House Bill 3208](#)

Not Enacted

Education Policy Moratorium

Chief Sponsors: Reps. Sprenger, Doherty

Committees: House Education

Background and Current Law: In recent years, a number of programmatic and structural changes have been made to public education in Oregon, including the creation of the cohort graduation rate formula, adoption of Common Core standards, the “40-40-20” initiative, creation of the Early Learning Division within the Oregon Department of Education, the STEM Investment Council and hubs, defining Oregon College and Career Readiness, implementing full day kindergarten, creating the Chief Education Office (formerly the Oregon Education Investment Board), and establishing the Higher Education Coordinating Commission.

Bill Summary: House Bill 3208 would have sought to put a two-year moratorium on any further changes to the education system. It allowed only legislation and administrative rules that are necessary to comply with federal law.

[House Bill 3263](#)

Not Enacted

Occupational Therapy for Students with Individualized Education Plans

Chief Sponsors: Rep. McLain

Committees: House Education

Background and Current Law: School and education service districts are required to complete a standard Individualized Education Plan (IEP) for each student who qualifies for such a plan, unless an alternative form is approved. Students with IEPs may have a wide range of behavioral issues, both verbal and physical, including autism, traumatic brain injury, emotional and behavioral disorders, and specific learning disabilities. In other states, occupational therapy is used to support children with IEPs, with modified curricula and therapeutic exercises that reinforce academic and functional performance.

Bill Summary: House Bill 3263 would have required the State Board of Education to adopt rules to standardize the provision of occupational therapy for students with IEPs, in consultation with the Occupational Therapy Licensing Board, and to allow occupational therapists and assistants to serve on IEP teams.

[House Bill 3267](#)

Effective Date: January 1, 2018

Exceptions to Graduation Requirements

Chief Sponsors: Reps. Bynum, Vial

Committees: House Education, Senate Education

Background and Current Law: The State Board of Education (SBE) requires high school students to complete 24 total credits in order to graduate, including three credits in mathematics and four in English. Additional courses must satisfy content standards established by the SBE to count toward graduation. School districts and public charter schools may also add requirements.

Bill Summary: House Bill 3267 requires school districts and public charter schools to waive or substitute certain requirements for foster youth, children from homeless families, runaways, children of military parents or migrant workers, and children enrolled in Youth Corrections or Juvenile Detention education programs.

Oregon Laws 2017: Chapter 433

[House Bill 3293-A](#)

Not Enacted

Interscholastic Activities for Charter School Students

Chief Sponsors: Reps. McLane, Esquivel

Committees: House Education, Senate Education

Background and Current Law: Some states allow charter school students to participate in interscholastic activities taking place within a school district. In Oklahoma, the law allows nonvirtual charter schools to sign a cooperative agreement with school districts allowing charter school students to play sports. In Washington, the law allows charter schools to be eligible for district-sponsored interscholastic activities, granting the same privileges as other public schools. Oregon law does not currently specify whether charter school students may or may not participate in interscholastic activities.

Bill Summary: House Bill 3293-A would have prohibited school districts from denying homeschooled or charter school students an opportunity to participate in interscholastic activities so long as they met certain requirements and were within attendance boundaries. Public charter schools were directed to pay the school district five percent of the per student resident average daily membership for each year the student participated in the activity.

House Bill 3313**Effective Date: January 1, 2018****Charter School Priority Admission****Chief Sponsors:** Rep. Barnhart; Sens. Beyer, Johnson**Committees:** House Education, Senate Education

Background and Current Law: Charter schools must comply with state and federal antidiscrimination laws. Charter schools prioritize enrollment for continuing students, students who reside in the district where the charter school is located, and students with siblings at the school. However, this does not guarantee admission. Charter schools can require a lottery to select students, and any lottery process may be weighted to serve underserved populations. When a charter school replaces a closed school that previously served the same area, it must currently seek approval from the State Board of Education to extend admission preferences to students within the attendance boundary who previously attended the school that closed; this approval must be sought year-by-year.

Bill Summary: House Bill 3313 allows public charter schools to prioritize the admission of students who reside within the service boundaries of a school that closed not more than two years before the charter school began operating.

Oregon Laws 2017: Chapter 218**House Bill 3314****Not Enacted****Oregon Bright Futures Plan****Chief Sponsors:** Reps. Buehler, Power, Bynum; Sen. Roblan**Committees:** House Early Childhood and Family Supports

Background and Current Law: Children's savings accounts (CSA) aim to expand educational and economic opportunities for children through long-term asset-building. CSAs help cultivate the college-saver identity by supporting the expectation that there is a pathway to college. CSAs are associated with positive socio-emotional development scores in children, and positive pre-college educational outcomes, such as graduation from high school. One study found that among low- and moderate-income high school age children who expected to graduate from college, those with savings of \$1 to \$499 before reaching college age were four times more likely to graduate from college than a child with no savings account.

Bill Summary: House Bill 3314 would have created the Oregon Bright Futures Plan to allow the Department of Consumer and Business Services (DCBS) to open a savings account for each child born in Oregon to contribute to postsecondary education expenses. Families would have chosen among participating financial institutions or were to be assigned to a financial institution. Children, families, and partner investors could have made contributions to the CSA. The bill required DCBS to submit reports on recommendations to the Legislative Assembly in 2018 and 2019.

House Bill 3335-A

Not Enacted

Apprenticeships and Associate's Degrees

Chief Sponsors: Reps. Hack, Holvey, Stark

Committees: House Higher Education and Workforce Development, Joint Ways and Means

Background and Current Law: Apprenticeship programs combine classroom-based technical education with on-the-job learning experiences in construction, industrial, and manufacturing trades. Apprenticeships can range from one to six years; the majority are four years in length. The classroom portion of an apprenticeship program is typically 144 hours per school year, equating to one or two classroom evenings per week. The Oregon Bureau of Labor and Industries reports that in 2016, 4,346 employers offered apprenticeships and 8,026 Oregonians were active apprentices. In Oregon, the Higher Education Coordinating Commission (HECC) and community college district boards both play a role in the approval of associate's degrees and oversight of curricular programming. The transfer of credits from an apprenticeship or training program to a community college is currently inconsistent throughout Oregon.

Bill Summary: House Bill 3335-A would have required the HECC to develop a plan for enabling community colleges to offer an associate's degree that is completed in coordination with credits earned in a registered apprenticeship or training program that is a minimum of four years long. The bill would have required the HECC to submit a report on the plan and proposed legislation to the legislature by December 1, 2018, and sunset on January 2, 2019.

[House Bill 3337-A](#)

Not Enacted

Limited Landscape Construction License

Chief Sponsors: Reps. Heard, Bynum, Hernandez, Witt; Sens. Boquist, Gelser, Linthicum, Manning, Jr., Riley, Thatcher

Committees: House Business and Labor, House Higher Education and Workforce Development, Senate Business and Transportation, Senate Rules

Background and Current Law: The state Landscape Contractors Board (LCB) licenses landscape contracting businesses and professionals. Landscape construction professionals must meet experience and/or education requirements and pass a competency exam or practical skills test.

Bill Summary: House Bill 3337-A would have required the LCB to issue a limited landscape construction professional license to a person who paid application and license fees. The bill limited the scope of their work to projects that did not exceed \$8,000 within any 12-month period and required such businesses to disclose the \$8,000 annual limit on contracts and business cards. Limited landscape construction professionals were prohibited from planning, installing, maintaining, or repairing a deck or arbor attached to a dwelling. The bill would have required the LCB to establish application and license fees and to ensure licenses were available within 90 days of the effective date of the bill.

[House Bill 3340](#)

Effective Date: June 20, 2017

Apprenticeship Program Materials

Chief Sponsors: Reps. Heard, Witt, Gorsek, McKeown

Committees: House Education, Senate Education

Background and Current Law: There are over 6,500 apprentices working in the state of Oregon under the Apprenticeship and Training Division at the Bureau of Labor and Industries (BOLI). Apprenticeships provide supervised on-the-job training experiences with classroom instruction. Apprenticeship opportunities are available at BOLI office locations, local schools, community colleges, and Oregon Employment Department offices. Apprenticeship positions are printed in local newspapers and advertised at community organizations.

Bill Summary: House Bill 3340 requires the Oregon Department of Education to work with BOLI to prepare information on apprenticeship opportunities for distribution to public high school students, and their parents or guardians, along with information related to higher education, beginning July 1, 2018.

Oregon Laws 2017: Chapter 405

[House Bill 3358](#)

Effective Date: June 20, 2017

English Language Learner Advisory Group

Chief Sponsors: Reps. Kotek, Whisnant

Committees: House Education, Senate Education

Background and Current Law: In October 2013, the State Board of Education approved English Language Proficiency standards. Implementation involves teams and district level leaders in 34 school districts with large populations of English language learners (ELL).

Bill Summary: House Bill 3358 creates an advisory group to examine the development and implementation of ELL programs, review resources available to school districts, and advise the Oregon Department of Education on professional development opportunities, reporting requirements, and alignment with statewide standards. The bill requires the advisory group to meet at least four times per year.

Oregon Laws 2017: Chapter 408

[House Bill 3412](#)

Effective Date: August 15, 2017

Task Force on Assessments of Children Who Are Deaf or Hard of Hearing

Chief Sponsors: Reps. Sanchez, Evans, Noble, Wilson; Sen. Hansell

Committees: House Education, Joint Ways and Means

Background and Current Law: The Oregon Deaf and Hard of Hearing Services Advisory Committee exists within the Oregon Department of Human Services. It meets up to six times per year to represent individuals who are deaf, deaf-blind, and hard of hearing. There is also a state School for the Deaf that serves children eligible for special education due to hearing impairment.

Bill Summary: House Bill 3412 establishes the Task Force on Assessments of Children Who Are Deaf or Hard of Hearing, and charges it with analyzing and recommending a framework for assessing deaf and hard-of-hearing children. The task force is required to review the use of existing and available tools for educators in creating the framework, and to determine the language and literacy competencies required of deaf and hard-of-hearing children to access kindergarten curriculum in an equitable manner. The measure requires the Oregon Department of Education to provide staffing for the task force.

Oregon Laws 2017: Chapter 722

[House Bill 3437](#)

Effective Date: October 6, 2017

Workforce and Talent Development Board

Chief Sponsors: Rep. Reardon

Committees: House Higher Education and Workforce Development, Senate Workforce, Senate Education

Background and Current Law: The Oregon Workforce Investment Board is an advisory board to the governor on workforce matters and is responsible for the implementation of the federal Workforce Innovation and Opportunity Act. The Oregon Talent Council, established in 2015, is comprised of a diverse group of industry leaders from multiple sectors and is charged with making strategic investments and advocating for high-wage jobs in key industries in Oregon.

Bill Summary: House Bill 3437 changes the name of the Oregon Workforce Investment Board to the Workforce and Talent Development Board. The bill expands board duties and requires the board to convene and engage senior executives of key industries, local workforce development boards, all state workforce and education agencies, and other partners to determine challenges and opportunities relating to talent pipeline infrastructure and development. The bill also requires the board to facilitate the creation of a state Workforce and Talent Development Plan that is updated every biennium. The bill requires the Workforce and Talent Development Board to annually submit a report about the Workforce and Talent Development Plan to the governor and Legislative Assembly.

Oregon Laws 2017: Chapter 297

[House Joint Resolution 4](#)

Not Adopted

Sufficient Funding for Public Education

Chief Sponsors: Rep. Johnson

Committees: House Education

Background and Current Law: The Oregon Constitution requires the legislature to appropriate sufficient funds to ensure public education quality goals are met and to publish a report demonstrating that the amount is sufficient. If the amount is not sufficient, the report must explain why.

Bill Summary: House Joint Resolution 4 would have referred a constitutional amendment to the voters at the next regular general election that, if approved, would have removed the legislature's ability to prepare a report in lieu of sufficient funding; sufficient funding for education would have been required outright.

2017 SUMMARY OF LEGISLATION



ELECTIONS AND ETHICS



ELECTIONS AND ETHICS MEASURES

Campaign Finance

Enacted: HB 2505, HB 2586

Not Enacted: HB 2578-A, HB 2584-A,
HB 2702

Ethics

Enacted: HB 2298

Not Enacted: HB 2577-A

Voters Pamphlet

Enacted: HB 2696

Not Enacted: HB 2349, HB 2428-A

Voting

Enacted: HB 2873

Not Enacted: SB 683, SB 888, SJR 2, HB 2927
HB 2945

ELECTIONS AND ETHICS

TASK FORCES AND REPORTING REQUIREMENTS

There were no task forces or reporting requirements involving elections and ethics enacted through legislation during the 2017 session.

Bill Number	Requirement	Deadline

[Senate Bill 683](#)

Not Enacted

Paying Return Postage for Vote by Mail**Chief Sponsors:** Sens. Devlin, Dembrow, Manning, Jr.**Committees Assigned:** Senate Rules, Joint Ways and Means

Background and Current Law: Vote-by-mail is an alternative to voting in person at traditional polling places, that permits voters to receive and return their ballots via regular mail. Oregon voters approved Ballot Measure 60 in 1998 to require vote by mail for all elections. For statewide elections, counties are required to send a ballot packet to each active registered voter in advance. Ballot packets must include the appropriate ballot, a secrecy envelope, and a pre addressed return envelope. Once received, the voter marks the ballot, places it in the secrecy envelope, and places the secrecy envelope inside the return envelope. The voter must sign the return envelope in order for the ballot to be counted. Voters may either pay the postage to return the ballot via mail, or drop it off at a site designated by the County Clerk's Office. Ballots must be received by the county, either through the mail or from a drop-off site, by 8:00 pm on the day of an election.

Bill Summary: Senate Bill 683 would have required the state to pay business reply postage for ballot return envelopes for each election held after January 2019.

[Senate Bill 888](#)

Not Enacted

Requiring Presidential Candidates to Disclose Financial Information**Chief Sponsors:** Sen. Burdick; Rep. Williamson**Committees Assigned:** Senate Rules

Background and Current Law: State law requires certain criteria to be met in order for the name of a major political party candidate for President of the United States to be printed on an official primary ballot or general ballot, or in the state voters' pamphlet, including filing a nomination petition with the Secretary of State with the requisite number of signatures. In 2017, several states introduced legislation to require presidential candidates to disclose certain financial information as well (income tax returns and economic interests) in order to be placed on the ballot, including Arizona, California, Connecticut, Hawaii, Illinois, Michigan, New Jersey, and Rhode Island.

Bill Summary: Senate Bill 888 would have required major political party candidates for President or Vice President of the United States to provide the Secretary of State with their most recent federal income tax information by specified deadlines in advance, or provide the Oregon Government Ethics Commission with a statement of economic interests, in order to appear on Oregon's primary election ballot, general election ballot, or in the state voter's pamphlet. The measure would also have required candidates to consent to disclosure of federal income tax information as submitted, with provisions for redaction of certain personal information.

Senate Joint Resolution 2

Not Adopted

Expanding Voter Registration

Chief Sponsor: Sen. Monroe

Committees Assigned: Senate Rules

Background and Current Law: The Oregon Constitution entitles citizens of the United States to vote in any election held in the state if they are at least age 18, have resided in the state during the preceding six months (with some exceptions), and are registered to vote at least 20 calendar days before the election. Fourteen other jurisdictions allow “same-day” voter registration to permit otherwise qualified residents to register to vote right up to the day of an election.

Bill Summary: Senate Joint Resolution 2 would have referred a proposed amendment to the Oregon Constitution to voters at the next regular general election that, if approved, would have allowed citizens to register to vote no later than the day immediately preceding an election.

House Bill 2298

Effective Date: January 1, 2018

Requiring All Primary and General Election Candidates to File Statements of Economic Interest

At the Request of: Governor Brown for Oregon Government Ethics Commission

Committees Assigned: House Rules, Senate Rules

Background and Current Law: Candidates running for a statewide elected office, judicial position, district attorney, or legislative office are required to file a statement of economic interest (SEI) with the Oregon Government Ethics Commission (OGE). Most candidates are required to file the SEI by April 15, ahead of the May primary election, since the filing deadline for candidates to declare their candidacy is at least 30 days prior to the SEI deadline.

It is possible for others to become candidates without participating in the May primary election, such as minor party candidates, write-in candidates, nonaffiliated candidates for partisan offices, and candidates who are nominated to fill vacancies after the May primary election. These candidates may not be known by the April 15 SEI filing deadline, which can result in different interpretations of filing requirements being applied to them.

Bill Summary: House Bill 2298 clarifies filing requirements for persons who become candidates for a statewide office, judicial position, district attorney, or member of the Legislative Assembly after April 15th, by requiring their SEI to be filed no later than the 40th day before the statewide general election.

Oregon Laws 2017: Chapter 64

[House Bill 2349](#)

Not Enacted

Prohibiting Printing or Circulation of Imitation Voters' Pamphlets**At the Request of:** Secretary of State Atkins**Committees Assigned:** House Rules, Senate Rules

Background and Current Law: Current Oregon law requires the following specific cautionary language on sample or imitation ballots and on the back of any return envelopes: "THIS IS NOT A REAL BALLOT. DO NOT USE TO VOTE." Statements on the ballot must be in bold text at least two times larger than the majority of other text on the ballot, or in 20-point font, whichever is larger. Statements on the back of the envelope must also be bold and must be at least a 36-point font. In addition, the word "UNOFFICIAL" must be superimposed like a watermark, diagonally across the imitation or sample ballot in a lighter ink than other text. The Secretary of State or the Attorney General may impose a civil penalty not to exceed \$10,000 for each violation of these requirements.

Bill Summary: House Bill 2349 would have established similar requirements for sample or imitation voters' pamphlets as are applicable to imitation ballots. The sample or imitation voters' pamphlet would have had to display the statement "THIS IS NOT THE OFFICIAL VOTERS' PAMPHLET" in at least a 36-point font with the word "UNOFFICIAL" superimposed diagonally across each page in a lighter ink than other text. As with imitation ballots, the measure would have permitted the Secretary of State or the Attorney General to impose a civil penalty not to exceed \$10,000 for each violation.

Candidate Space in Voters' Pamphlet

Chief Sponsor: Rep. Parrish

Committees Assigned: House Rules, Senate Rules

Background and Current Law: A candidate running for office may submit a portrait along with a statement for inclusion in the voters' pamphlet for a primary or general election. Candidates have the option of paying a designated fee to the Secretary of State to appear in the pamphlet, or collecting a specific number of signatures from active voters in the district in which they are running. Candidates for a statewide office may pay a fee of \$3,000 or submit a petition with 500 signatures; candidates for state Senator or state Representative can either pay a \$750 fee or submit a petition with 200 signatures; and any candidate for nomination or election to any office other than President or Vice President, or United States Senator or Representative, may pay a \$600 fee or submit a petition with 200 signatures. Candidates must file statements for inclusion in a primary election voters' pamphlet during the period from 120 to 68 days before the relevant election; and for general elections, statements and portraits must be filed in the period from 120 to 70 days before the election. Currently, if a candidate files a petition in lieu of paying the fee, and it is determined that they do not have the required number of active voters' signatures after the filing period has lapsed, they are not permitted to pay the fee instead. As a result, they are excluded from the voters' pamphlet.

Bill Summary: House Bill 2428-A would have permitted candidates to do both: pay the fee and submit a signature petition, rather than choose one or the other to reserve space in a voters' pamphlet. Fees would have been collected only when a petition turned out to be insufficient, and would have been returned to candidates whose petitions were verified, to allow all candidates to appear in the pamphlet.

Expanding Disclosure of Independent Expenditures

Chief Sponsors: Rep. Nathanson; Sen. Boquist

Committees Assigned: House Rules, Senate Rules

Background and Current Law: Independent expenditures are defined as expenditures for communications in support of or in opposition to a clearly identified candidate or measure that are not made with the cooperation or prior consent of, or in consultation with, or at the request or suggestion of, a candidate or any agent or authorized committee of the candidate, or any political committee or agent of a political committee supporting or opposing a measure. Persons are required to file a statement in ORESTAR (the Oregon Elections System for Tracking and Reporting) for independent expenditures more than \$750 in a calendar year, and report the following information: the amount and purpose of the independent expenditure; the name, occupation, and address of each payee (each person and each political or petition committee) contributing an aggregate amount of more than \$100 in a calendar year on behalf of a candidate or to a political or petition committee and the total amount contributed by that person or committee, and the total amount of other contributions as a single item; and any candidates or measures supported or opposed by the independent expenditure.

Bill Summary: House Bill 2505 expands “communication in support of or in opposition to a clearly identified candidate or measure” within the definition of “independent expenditure” to include aggregate expenditures of \$750 or more on such communications that are distributed to relevant voters within 30 calendar days of a primary election or within 60 calendar days of a general election. The measure also creates exceptions to the expanded reporting requirement for: nonpartisan activities of 501(c)(3) not-for-profit corporations; candidate debates or forums for state office, or publicity for the same when all major political parties have been invited to participate; nonpartisan voters’ guides published by 501(c)(3) organizations; nonpartisan voters’ guides that include or offer inclusion to all major party candidates for each state office referenced; any commercial communication that includes a candidate’s name, image, likeness, or voice exclusively as owner, operator, or employee of a business that existed prior to candidacy; official publications produced or distributed by public employees while on the job during working hours; and communications by labor unions, membership organizations, or corporations to their members, stockholders, executives, or administrative personnel.

Oregon Laws 2017: Chapter 419

Expansion of Lobbyist Disclosure Requirements

Chief Sponsors: Rep. Rayfield; Sens. Manning, Jr, Riley, Thatcher

Committees Assigned: House Rules, Senate Rules

Background and Current Law: People are currently required to register as lobbyists with the Oregon Government Ethics Commission (OGE) within three business days after: exceeding an aggregate amount of 24 hours lobbying during any calendar quarter; spending an aggregate amount in excess of \$100 lobbying during any calendar quarter; or agreeing to provide personal services for money (or any other consideration) for the purpose of lobbying. Lobbyists are required to file quarterly reports that include amounts expended for food, refreshments, and entertainment for the purpose of lobbying, and the name of any legislative or executive official to whom or for whose benefit, on any one occasion, an expenditure is made for the purposes of lobbying. If the expenditure exceeds \$50 by one or more persons on any one occasion, then the date, name of payee, purpose, and amount of that expenditure must also be reported. This information, and information reported on total expenditures made by clients to lobbyists and lobbying organizations, is currently available in a public, searchable database.

Bill Summary: House Bill 2577-A would have expanded the reporting requirements for lobbyists to include specific information about lobbying activities on specific legislative measures and legislative topics, including each measure lobbied, whether in favor or against, and whether the lobbyist sought amendments. The measure would also have expanded the functionality of the OGE database to account for this new information, and to improve the public's ability to search for and view information about payments made to lobbyists. Finally, the measure would have established an Advisory Committee on Lobbying Transparency to advise and assist in the development, design, testing, and implementation of the expanded database.

Small Donor Funded Elections program

Chief Sponsor: Rep. Rayfield

Committees Assigned: House Rules, Joint Ways and Means

Background and Current Law: One method that states use to regulate election campaign spending is to provide a mechanism for candidates to accept public funds. Generally, candidates that choose to participate in public campaign financing programs agree not to raise private capital, and may only spend a set amount. Currently, 13 states provide some form of public financing for election campaigns. Each of these plans conditions the receipt of public funds on candidates' promises to limit both how much is spent on the election and how much is received in donations from any one group or individual. The two primary types of public financing programs are "clean elections" programs that offer full campaign funding, and programs that provide matching funds for each qualifying contribution a candidate receives.

Bill Summary: House Bill 2578-A would have created the Small Donor Funded Elections Fund program to enable candidates for state office to receive a 6-to-1 match on small-dollar contributions. Candidates for Governor, Secretary of State, State Treasurer, Attorney General, or Commissioner of the Bureau of Labor and Industries would have been able to receive 130 percent of the average amount spent by the elected candidate for the office during the previous two election cycles. Candidates for state Senator, state Representative, judge, or district attorney could have received 130 percent of the average amount spent by the elected candidates in races for that office during the previous two election cycles that were the 20 percent most expensive.

Independent Expenditure Transparency

Chief Sponsor: Rep. Rayfield

Committees Assigned: House Rules, Senate Rules

Background and Current Law: Independent expenditures are defined as expenditures for communications in support of or in opposition to a clearly identified candidate or measure that are not made in coordination with the candidate or any agent or authorized committee of the candidate, or with any political committee or agent of a political committee supporting or opposing a measure. Persons are required to file a statement in ORESTAR (the Oregon Elections System for Tracking and Reporting) for independent expenditures totaling more than \$750 in a calendar year, and report the following information: the amount and purpose of the independent expenditure; the name, occupation, and address of each payee (each person and each political or petition committee) contributing an aggregate amount of more than \$100 in a calendar year on behalf of a candidate or to a political or petition committee and the total amount contributed by that person or committee, and the total amount of other contributions as a single item; and any candidates or measures supported or opposed by the independent expenditure. Current statutes do not specify what conduct constitutes coordination with a candidate or political committee.

Bill Summary: House Bill 2584-A would have deemed certain conduct and circumstances to be coordination, including whenever: a candidate solicited money or appeared at a fundraiser for a group, and the group then made an expenditure to benefit the candidate; a group led by a family member of the candidate or by an individual who was employed as a staff member of the candidate within the preceding 12 months made expenditures that benefitted the candidate's campaign; a candidate provided information to a group about the candidate's campaign needs and the group followed with matching expenditures; a candidate and a group employing the same consultant to provide campaign or fundraising services during the same electoral cycle and the group made expenditures to benefit the candidate; and a group republished or redistributed a candidate's campaign communications materials. The measure would also have lowered the reporting threshold from \$750 to \$250 in a calendar year, and required filing within seven days of reaching it. In addition, the measure would have increased the penalties for failing to report qualifying contributions or expenditures from 10 to 20 percent of the total amount of a contribution or expenditure that was less than \$1,000, and from 10 to 40 percent of the total amount of a contribution or expenditure that was \$1,000 or more.

Formation of Political Committee

Chief Sponsor: Rep. Rayfield

Committees Assigned: House Rules, Senate Rules

Background and Current Law: Candidates who serve as their own treasurer are not required to file a statement of organization to form a political committee, or establish a single exclusive campaign account, or disclose specified financial information in ORESTAR (the Oregon Elections System for Tracking and Reporting), unless they anticipate receiving aggregate contributions or making aggregate expenditures of more than \$750 during a calendar year. Candidates choosing to submit a portrait along with a statement for inclusion in the voters' pamphlet for a primary or general election have the option of paying a designated fee to the Secretary of State to reserve the space; fees are \$3,000 for candidates for a statewide office, \$750 for candidates for state Senator or state Representative, and \$600 for candidates for nomination or election to any office other than President or Vice President, or United States Senator or Representative. In most cases, the expenditure to cover the voters' pamphlet fee meets or exceeds the \$750 aggregate threshold that triggers the requirement to file a statement of organization to form a political committee, establish a single exclusive campaign account, and report specific financial information in ORESTAR, even if the candidate does not anticipate receiving or expending anything more.

Bill Summary: House Bill 2586 keeps the voters' pamphlet fee from being included in calculations of expenditures that trigger other reporting requirements for the formation of a political committee.

Oregon Laws 2017: Chapter 80

[House Bill 2696](#)

Effective Date: January 1, 2018

Inclusion of Community College District Bonding Measures in State Voters' Pamphlet

Chief Sponsor: Rep. McKeown

Committees Assigned: House Rules, Senate Rules

Background and Current Law: The Secretary of State produces and mails a voters' pamphlet to every household in the state for each primary and general election. The pamphlet provides a complete list of federal and state candidates and measures that will be on the upcoming ballot, as well as instructions for marking the ballot and other information relevant to the voting process. Copies of the state voters' pamphlet are also available at the Secretary of State's office, local post offices, courthouses, and all county elections offices. A county clerk may also prepare and distribute a local voters' pamphlet with information about local candidates and measures. To save on mailing and production costs, a county that prepares a local pamphlet may enter into an agreement with the state to insert the local pamphlet into the state pamphlet. If a county does not produce a local pamphlet, county and local government candidates, including metropolitan service district candidates and city candidates in cities with populations over 50,000, are eligible to appear in the state voters' pamphlet.

Bill Summary: House Bill 2696 allows community college district bonding measures to be included in the state voters' pamphlet if the county does not print and distribute a local voters' pamphlet.

Oregon Laws 2017: Chapter 392

Identification of Authorized Political Communications

Chief Sponsors: Reps. Rayfield, Kennemer, Wilson; Sen. Roblan

Committees Assigned: House Rules

Background and Current Law: Prior to 2001, most anonymous political campaign signs, publications, and broadcasts were prohibited by statute: “no person shall cause to be printed, posted, broadcast, mailed, circulated or otherwise published, any written matter, photograph or broadcast relating to any candidate or measure at any election, unless it states the name and address of the person responsible for the publication, including a statement that the publication was authorized by that person.” (Formerly ORS 260.522.) The prohibition was repealed by the legislature after the Attorney General issued an opinion concluding that it violated free expression provisions of Article I, Section 8, of the Oregon Constitution.

Bill Summary: House Bill 2702 would have required communications in support of or in opposition to a candidate or measure—including qualifying independent expenditures—to identify whether a candidate, petition committee, or political committee did or did not authorize the communication. Independent expenditures were defined as expenditures for communications in support of or in opposition to a clearly identified candidate or measure that were not made in coordination with a candidate or political committee; such expenditures in excess of \$750 in a calendar year were subject to specific reporting requirements. The disclaimer would have been applicable to most independent expenditures for communications made through media, including print, telephone, radio, television, and internet.

[House Bill 2873](#)

Effective Date: January 1, 2018

Publication of Notice of Local Option Tax or General Obligation Bond Measure**Requested by:** House Rules**Committees Assigned:** House Rules, Senate Rules

Background and Current Law: Currently, there is no centralized source for the public to research and review local option tax measures or general obligation bond measures that will be considered by voters on an upcoming ballot. To obtain this information, a person must call each county elections office.

Bill Summary: House Bill 2873 requires the governing body of a county, city, port, school district, union high school district, community college district, or any other public or quasi-public corporation, including a municipal utility or dock commission operated by a separate board or commission, that places a local option tax measure or a general obligation bond measure on a ballot to submit information about the measure to the appropriate county elections officer to file with the Secretary of State for publication on ORESTAR (the Oregon Elections System for Tracking and Reporting).

[House Bill 2927](#)

Not Enacted

National Popular Vote**Chief Sponsors:** Reps. Keny-Guyer, Rayfield, Clem; Sens. Boquist, Steiner Hayward**Committees Assigned:** House Rules, Senate Rules

Background and Current Law: The existing mechanism for selecting the President of the United States is through the Electoral College. Each state is allocated a number of electoral votes according to the size of its Congressional delegation: two votes for each U.S. Senator and one vote for each member of the U.S. House of Representatives. The candidate who receives the most votes statewide receives all the state's electoral votes. Most presidential elections have resulted in the eventual Electoral College winner also winning the popular vote—but not always. The idea of electing the President by national popular vote gained momentum following the presidential elections of 2000 and 2016; years in which the losing candidate won the popular vote but lost the Electoral College. Eleven jurisdictions have enacted legislation to join the National Popular Vote Interstate Compact, an agreement that participating states award their electoral votes to the winner of the popular vote, after certain requirements are met.

Bill Summary: House Bill 2927 would have enabled Oregon's participation in the Interstate Compact for Agreement Among the States to Elect the President by National Popular Vote. The compact would have taken effect only if the total electoral votes of all participating states were enough to earn the presidency. The chief election official of each participating state would have separately determined the number of votes for each presidential candidate, and together, the votes would represent "a national popular vote total." The candidate with the largest national popular vote total would have been designated the "national popular vote winner."

Incumbent Filing Deadline for State Office

Chief Sponsors: Reps. McLane, Williamson; Sens. Ferrioli, Burdick

Committees Assigned: House Rules, Senate Rules

Background and Current Law: The timeline for filing a petition or declaration to run for elected office in Oregon is set in statute: a nominating petition or declaration of candidacy must be submitted no sooner than the 250th day, and no later than the 70th day, before a primary election. A candidate may withdraw within three days of the end of the filing period (i.e., by the 67th day before the primary election).

Bill Summary: House Bill 2945 would have required an incumbent state office holder to file for re-election no later than the 77th day, rather than the 70th day, before a primary election. In addition, if an incumbent withdrew during the withdrawal period, but after the filing period has ended, another candidate had three business days from the date of the incumbent's withdrawal, to file for that office.

2017 SUMMARY OF LEGISLATION



EMERGENCY PREPAREDNESS



EMERGENCY PREPAREDNESS MEASURES

Earthquake Planning

Enacted: SB 850, HB 2140

Not Enacted:

Finance and Tax

Enacted: HB 2687, HB 2933

Not Enacted: SB 364, HB 2886-A

Intergovernmental Planning and
Response

Enacted: SB 61, SB 62, SB 1000,
HB 3427

Not Enacted: SB 531-A

Picture: Cape Blanco Lighthouse, Curry County - [Gary Halvorson](#), [Oregon State Archives](#)

EMERGENCY PREPAREDNESS TASK FORCES AND REPORTING REQUIREMENTS

The following bills created task forces and reporting requirements. Additional information is provided in the bill summaries.

Bill Number	Requirement	Deadline
SB 850	Directs Oregon Seismic Safety Policy Advisory Commission to create volunteer committee or committees to assist with its work, primarily to investigate issues related to provision of earthquake insurance to residential property owners, and mass care and displacement. Requires report to State Resilience Officer.	September 30, 2018
HB 2687	Directs Office of Emergency Management to evaluate the administration and effectiveness of emergency preparedness equipment distribution grants. Requires report to Legislative Assembly and the Oregon Homeland Security Council.	December 31 of each year

[Senate Bill 61](#)

Effective Date: January 1, 2018

Increasing Participation

At the request of: Governor Brown for Oregon Military Department

Committees: Senate Veterans and Emergency Preparedness, House Veterans and Emergency Preparedness

Background and Current Law: Oregon law currently requires 22 entities to designate an individual as a liaison with Oregon's Office of Emergency Management (OEM) for emergency preparedness and response.

Bill Summary: Senate Bill 61 requires the following 11 entities to also designate a liaison to the OEM to coordinate emergency preparedness and response: Department of Education, Department of Public Safety Standards and Training, Department of State Lands, Department of Veterans' Affairs, Employment Department, Oregon Housing and Community Services, Oregon Business Development Department, Military Department, Tourism Commission, Office of the Secretary of State, and Oregon Travel Information Council.

Oregon Laws 2017: Chapter 231

[Senate Bill 62](#)

Effective Date: January 1, 2018

Expanding Mutual Assistance

At the request of: Governor Brown for Oregon Military Department

Committees: Senate Veterans and Emergency Preparedness, House Veterans and Emergency Preparedness

Background and Current Law: Oregon law currently provides for the state's participation in an interstate compact for emergency management assistance, along with local governments' use of intrastate mutual assistance agreements, to enable flexible and responsive sharing of resources in the event of a disaster.

Bill Summary: Senate Bill 62 expands the use of an intrastate mutual assistance agreement to include state and tribal governments along with local governments, and renames it the "Oregon Resource Coordination Assistance Agreement." The measure requires state government to participate while providing for local and tribal government to opt-out and opt-in, respectively.

Oregon Laws 2017: Chapter 192

[Senate Bill 364](#)

Not Enacted

Supporting Local Disaster Planning Efforts

Chief Sponsors: Sen. Frederick

Committees: Senate Veterans and Emergency Preparedness, Joint Tax Credits

Background and Current Law: Shipping containers are designed to transport goods, but are increasingly used for a wide variety of nonstandard building and storage purposes, given that they are relatively abundant and inexpensive, transportable, weatherproof and secure. Lincoln County School District has acquired five shipping containers and placed them within walking distance of one to three schools within the district. The containers are used to store emergency supplies for school use should a disaster strike during school hours, and they may be used by first responders and the larger community if a disaster strikes outside of school hours.

Bill Summary: Senate Bill 364 would have created a refundable income tax credit equal to 10 percent of a shipping container's retail value, to encourage donation of containers to public entities for the storage of emergency supplies within 1,000 feet of public buildings.

[Senate Bill 531-A](#)

Not Enacted

Improving Rural Disaster Recovery Participation

Chief Sponsors: Sen. Roblan

Committees: Senate Veterans and Emergency Preparedness, Joint Ways and Means

Background and Current Law: Rural fire protection districts (RFPDs) are authorized to levy property taxes to provide fire protection and other public safety services. RFPDs may contract for water services and facilities, emergency medical service equipment and services, law enforcement services, fire protection, road-lighting facilities and services, mutual communication systems, and regional oil and hazardous materials emergency response teams. They are governed by boards that report to the State Fire Marshal, and the State Fire Marshal cooperates in their formation and administration.

Bill Summary: Senate Bill 531-A would have directed the Office of Emergency Management to create a voluntary advisory committee to study how RFPDs might have assisted with community development after a disaster.

[Senate Bill 850](#)

Effective Date: June 14, 2017

Seismic Safety Next Steps

At the request of: Senate Committee on Veterans and Emergency Preparedness

Committees: Senate Veterans and Emergency Preparedness, House Veterans and Emergency Preparedness

Background and Current Law: In 1991, the legislature established the Oregon Seismic Safety Policy Advisory Commission (OSSPAC) to promote earthquake and tsunami awareness and preparedness. In February 2013, the OSSPAC issued the Oregon Resilience Plan, which exceeds 300 pages and contains more than 140 recommendations, emphasizing the importance of a sustained effort to make ongoing earthquake and tsunami preparations. Soon after, the legislature created a task force to study the implementation of the plan's recommendations and to prioritize issues for legislative action. The task force issued these recommendations in October 2014, which included centralizing implementation efforts through a State Resilience Officer (SRO), and addressing mass care and displacement. In 2015, the legislature created the position of SRO, fulfilling one of those recommendations.

Bill Summary: Senate Bill 850 requires OSSPAC to create voluntary committees to assist with its work on emergency preparedness issues, particularly in the areas of residential earthquake insurance and mass care and displacement, and report to the SRO.

Oregon Laws 2017: Chapter 355

[Senate Bill 1000](#)

Effective Date: January 1, 2018

Volunteer Civil Defense Forces

At the request of: Senate Committee on Veterans and Emergency Preparedness

Committees: Senate Workforce; Senate Veterans and Emergency Preparedness, House Veterans and Emergency Preparedness

Background and Current Law: Oregon law provides for the existence of supplemental volunteer civilian defense forces at both the state and local levels that are distinct from the activities of professional first responders and the United States Armed Forces. At the local level, county volunteer forces answer to county Sheriffs, and at the state level, the Oregon State Defense Force answers to the Adjutant General of the Oregon Military Department. However, the Oregon State Defense Force has been suspended for some time.

Bill Summary: Senate Bill 1000 authorizes the Department of State Police to form the Oregon State Police Civil Defense Force.

Oregon Laws 2017: Chapter 472

[House Bill 2140](#)

Effective Date: January 1, 2018

Seismic Information Disclosure for Real Property

Chief Sponsors: Rep. Boone

Committees: House Veterans and Emergency Preparedness, Senate Business and Transportation

Background and Current Law: Oregon, like other states, requires sellers of real property to disclose certain information to buyers, including information about title, easements, water, sewage system, the condition of the roof, pests, mold, use of lead-based paints, and the condition of the dwelling's systems and fixtures. Oregon currently has no seismic information disclosures that sellers must provide in real property transactions.

Bill Summary: House Bill 2140 adds two questions about seismic risk to the required list of disclosures: "Was the house constructed before 1974?" and "If yes, has the house been bolted to its foundation?" As with present law for seller representations, the seller may answer each question with "Yes," "No," or "Unknown."

Oregon Laws 2017: Chapter 147

[House Bill 2687](#)

Effective Date: August 8, 2017

Grant Program for Equipment

Chief Sponsors: Rep. Evans

Committees: House Veterans and Emergency Preparedness, Joint Ways and Means

Background and Current Law: Local jurisdictions may not have the resources to obtain needed emergency preparedness equipment in the event of human-caused and natural events. A central part of state emergency planning is the understanding that an earthquake caused by the Cascadia Subduction Zone poses a devastating threat to life and property in the Pacific Northwest. However, the state of Oregon must also be prepared for a multitude of other emergency events. Being prepared for a worst-case scenario such as an earthquake also enables the state to respond to lesser events.

Bill Summary: House Bill 2687 creates a grant program administered by the Office of Emergency Management to enable the purchase and distribution of emergency preparedness equipment throughout the state by local governments, special government bodies, and private organizations that qualify for federal tax-exempt status. The bill requires the Homeland Security Council to develop a list of needed equipment.

Oregon Laws 2017: Chapter 657

[House Bill 2886-A](#)

Not Enacted

Funding for Staging Areas

Chief Sponsors: Rep. Evans

Committees: House Veterans and Emergency Preparedness, Joint Ways and Means

Background and Current Law: States declare emergencies when federal and state recourse are needed to supplement local resources in an imminent threat or its aftermath. An emergency declaration puts a state's emergency plans into effect to coordinate and direct response and recovery efforts that can include private entities, volunteer networks, and the deployment of National Guard troops. Staging areas, where resources are placed awaiting an assignment, are a critical part of emergency action plans.

Bill Summary: House Bill 2886-A would have created a fund that continuously appropriated money to the Office of Emergency Management (OEM) for the implementation of strategies that identify and develop staging areas for emergency response, and would have created a 26-member advisory committee within OEM to make recommendations regarding fund distributions.

[House Bill 2933](#)

Effective Date: January 1, 2018

More Funds for Local Emergency Projects

Chief Sponsors: Rep. Boone

Committees: House Veterans and Emergency Preparedness, Senate Veterans and Emergency Preparedness

Background and Current Law: The Oregon Legislative Assembly established the Special Public Works Fund (SPWF) in 1985 to provide financing for local governments to construct, improve, and repair public infrastructure and facilities. The SPWF is appropriated to and administered by the Oregon Business Development's Infrastructure Finance Authority (IFA). Current law restricts the IFA to expenditures of no more than \$2.5 million in any biennium for emergency project grants.

Bill Summary: House Bill 2933 removes the \$2.5 million cap on SPWF Emergency Project grants per biennium.

Oregon Laws 2017: Chapter 398

Plans for State-Regulated Dams

Chief Sponsors: Rep. Lewis

Committees Assigned: House Veterans and Emergency Preparedness, Joint Ways and Means

Background and Current Law: Oregon has dams of many different sizes and uses, owned and operated by different entities including the federal government, state government, and private parties. Some dams are very large and used for generating power, while others are smaller and used to create ponds for waterfowl, livestock, and the irrigation of crops. All state-regulated dams are classified by hazard, which is based on what could happen if the dam fails, not on the condition of a dam. Oregon has more than 900 state-regulated dams, of which 75 are high hazard. Presently, not all high hazard state-regulated dams have emergency action plans.

Bill Summary: House Bill 3427 requires owners or operators of a state-regulated dam with a high hazard rating to develop an emergency action plan with the Water Resources Department, the Office of Emergency Management, and the emergency services agency in the county where the dam is located. The Water Resources Department will determine the frequency for conducting emergency response exercises at high hazard dams and inspect them annually, unless a different inspection schedule is determined to be appropriate.

Oregon Laws 2017: Chapter 723

2017 SUMMARY OF LEGISLATION



ENERGY



ENERGY MEASURES

Agency Structure

Enacted: SB 99, SB 978, HB 2343

Not Enacted: SB 908-B, SB 952-B, HB 2020-B,
HB 3166-B

Electric Vehicles

Enacted: HB 2510, HB 2511

Not Enacted: HB 2514-A, HB 2704-A

Energy Conservation

Enacted: SB 100

Not Enacted: HB 2074, HB 2681-A, HB 2710,
HB 3241-A

General Energy Policy

Enacted: HB 2132, HB 2134

Not Enacted: HB 2481, HB 3344,
HB 3386-A

Renewables

Enacted: SB 328, SB 334, SB 339, SB 634,
HB 2111, HB 2760

Not Enacted: SB 285, HB 2072-A, HB 2136,
HB 2680, HB 2853, HB 3227,

Siting

Enacted:

Not Enacted: SB 958, SB 990, HB 3050

Picture: Smith Rock State Park, Deschutes County - [Gary Halvorson](#), [Oregon State Archives](#)

ENERGY

TASK FORCES AND REPORTING REQUIREMENTS

The following bills created task forces and reporting requirements. Additional information is provided in the bill summaries.

HB 2343	Requires Oregon Department of Energy to submit a report to the Governor and Legislative Assembly on energy resources, policies, trends, and forecasts in Oregon.	November 1st of every even-numbered year
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Senate Bill 99**Effective Date: January 1, 2018****Senate Confirmation of Oregon Department of Energy Director****At the request of:** Governor Brown for Department of Energy**Committees:** Senate Business and Transportation, House Energy and Environment

Background and Current Law: The Oregon Department of Energy (ODOE) was established in 1975 in response to the national energy crisis to promote energy efficiency and to advocate for the use and development of new renewable energy. In the 42 years since its creation, ODOE has been assigned a variety of energy-related responsibilities, including regulatory functions. It is structured around four operative divisions: Nuclear Safety and Emergency Preparedness; Energy Planning and Innovation; Energy Development Services; and Energy Facility Siting. The governor appoints the director of ODOE, and the department is currently staffed by 84 permanent employees. ODOE's 2015-2017 operating budget is \$37.4 million, with revenue coming from program fees, federal dollars, and \$13.1 million assessed against energy suppliers. It receives no General Fund appropriation.

Bill Summary: Senate Bill 99 subjects appointees to the position of ODOE director to confirmation by the Oregon State Senate.

Oregon Laws 2017: Chapter 314

Senate Bill 100**Effective Date: October 6, 2017****State Home Oil Weatherization Program****At the request of:** Governor Brown for Department of Energy**Committees:** Senate Environment and Natural Resources, House Energy and Environment, Joint Ways and Means

Background and Current Law: The Oregon Residential Energy Conservation Act of 1981 made basic energy conservation services available to all Oregon households. The act required utilities to provide energy audits, grants, and loans to their space heating customers and directed the Oregon Department of Energy to offer similar incentives to households that received space heating from a fuel oil dealer through the State Home Oil Weatherization (SHOW) program.

Bill Summary: Senate Bill 100 updates the statutes governing the SHOW program and transfers authority for the SHOW program from the Oregon Department of Energy to the Oregon Housing and Community Services Department.

Oregon Laws 2017: Chapter 727

[Senate Bill 285](#)

Not Enacted

Marine Deepwater Test Facility Funding**Chief Sponsors:** Sens. Roblan, Kruse; Rep. Gomberg**Committees:** Senate Environment and Natural Resources, Joint Ways and Means

Background and Current Law: The Northwest National Marine Renewable Energy Center was established in 2008 by the U.S. Department of Energy to facilitate the development of marine renewable energy technologies. University partners include Oregon State University, the University of Washington, and the University of Alaska Fairbanks.

Bill Summary: Senate Bill 285 would have appropriated, from the General Fund, \$4.6 million to provide matching funds for the Northwest National Marine Renewable Energy Center at Oregon State University to receive federal funds for a deepwater test facility for utility scale wave energy converters.

[Senate Bill 328](#)

Effective Date: June 6, 2017

Renewable Energy Certificates for Registered Biomass Facilities**At the request of:** Senate Interim Committee on Business and Transportation**Committees:** Senate Business and Transportation, House Energy and Environment

Background and Current Law: A certain set amount of electricity used by Oregonians is required to come from renewable sources; this is called the Renewable Portfolio Standard (RPS). The Western Renewable Energy Generation Information System (WREGIS) issues renewable energy certificates (REC) for Oregon certified energy facilities that generate qualifying renewable power from the following sources: wind energy; solar photovoltaic and solar thermal energy; wave, tidal, and ocean thermal energy; geothermal energy; certain biomass products, including woody biomass and animal manure; landfill gas and other biogases; small hydropower; and thermal energy. Facilities receive one REC for each megawatt hour of qualifying renewable energy they deliver to the grid. Utilities and electricity service suppliers purchase and then retire these RECs to demonstrate compliance with the RPS. Senate Bill 1547 (2016) revised Oregon's RPS and removed a limitation requiring pre-1995 biomass RECs to be "banked" and not used until January 1, 2026.

Bill Summary: Senate Bill 328 specifies that biomass facilities that were registered with WREGIS on or after July 1, 2011, are eligible for renewable energy certificates.

Oregon Laws 2017: Chapter 249

Senate Bill 334**Effective Date: October 6, 2017****Inventory of Biogas and Renewable Gas Resources****At the request of:** Senate Interim Committee on Business and Transportation**Committees:** Senate Business and Transportation, House Energy and Environment

Background and Current Law: The Oregon Department of Energy (ODOE) is tasked with ensuring reliable access to energy for all Oregonians and helping the state meet its adopted climate goals. Biogas is a mixture of different gases that are produced by the breakdown of organic matter. Biogas can be produced from raw materials such as agricultural or food waste, plant material, municipal waste, sewage, or manure through the process of anaerobic digestion or fermentation.

Bill Summary: Senate Bill 334 directs ODOE to develop, maintain, and periodically update an inventory of biogas and renewable natural gas resources available to the state, including potential sources, estimated quantities, estimated energy content, available technologies, and existing biogas production sites. ODOE must use the information to develop and periodically revise estimates of renewable natural gas and reductions in greenhouse gas emissions, as well as identify technical, policy, and regulatory barriers. The measure directs ODOE to appoint an advisory committee to assist with the required inventory and to report its findings to interim committees of the Legislative Assembly by September 15, 2018.

Oregon Laws 2017: Chapter 328

Senate Bill 339**Effective Date: June 22, 2017****Contribution Cap to Renewable Portfolio Standard****At the request of:** Senate Interim Committee on Business and Transportation**Committees:** Senate Business and Transportation, House Energy and Environment

Background and Current Law: Current law requires that, by the year 2025, at least eight percent of the aggregate electrical capacity of all large electric companies (25,000 or more customers) must be generated by small-scale renewable energy projects with generating capacities of 20 megawatts (MW) or less, or by facilities that generate electricity through biomass that also generates thermal energy for secondary purposes. This standard, called the Oregon Renewable Portfolio Standard (RPS), was enacted in 2007 with the passage of Senate Bill 838. In 2016, Senate Bill 1547 increased the RPS to 50 percent by 2040 while mandating the elimination of coal generation from Oregon rates by 2030, and directed Portland General Electric and PacifiCorp to source, by 2025, at least eight percent of their sales from projects that have a generating capacity of 20 MW or less, or from facilities generating electricity using biomass that also generate thermal energy for a secondary purpose.

Bill Summary: Senate Bill 339 modifies the eight-percent requirement to specify that regardless of a facility's nameplate capacity, it may be used to comply with the requirement for up to 20 megawatts of capacity. The measure also specifies that to qualify as a small-scale renewable energy project, the electricity generated must be from a type of energy that complies with the RPS.

Oregon Laws 2017: Chapter 452

[Senate Bill 634](#)

Effective Date: October 6, 2017

Woody Biomass as Fuel

Chief Sponsors: Sens. Knopp, Thomsen; Rep. Whisnant

Committees: Senate Environment and Natural Resources; House on Energy and Environment; House Rules

Background and Current Law: Oregon law requires public entities to spend 1.5 percent of the total price of a public improvement contract for new construction, or the major renovation of a public building, on green energy technology.

Bill Summary: Senate Bill 634 allows the use of woody biomass energy technology as an alternative to green energy technology as part of the construction, reconstruction or major renovation of a public building, if certain conditions are met.

Oregon Laws 2017: Chapter 735

[Senate Bill 908-B](#)

Not Enacted

Establishment of the Oregon Energy Commission

Chief Sponsors: Sen. Beyer

Committees: Senate Business and Transportation, Senate Rules, Joint Ways and Means

Background and Current Law: The Oregon Department of Energy (ODOE) was first established in 1975 in response to the national energy crisis to promote energy efficiency and advocate renewable energy. In the 42 years since its creation, it has been assigned a variety of energy-related responsibilities, including a number of regulatory functions. It is currently organized into four operating divisions and employs 84 permanent employees. Its 2015-2017 operating budget is \$37.4 million with revenue from program fees, federal dollars, and \$13.1 million assessed on energy suppliers. ODOE receives no General Fund revenue.

Bill Summary: Senate Bill 908-B would have established the Oregon Energy Commission as a policy and rulemaking body for ODOE, modified ODOE's general duties, transferred other duties from ODOE to the commission, and refined state energy policy. ODOE was directed to develop a statewide strategic energy plan and to present a draft version of the plan to the legislature by September 15, 2019. The measure directed the commission to adopt the plan no later than January 1, 2020 and to update it periodically, and required ODOE to submit a comprehensive energy report to the governor and legislature biennially.

[Senate Bill 952-B](#)

Not Enacted

Establishment of the Oregon Energy Commission**Chief Sponsors:** Sen. Olsen**Committees:** Senate Business and Transportation, Senate Rules, Joint Ways and Means

Background and Current Law: The Oregon Department of Energy (ODOE) was first established in 1975 in response to the national energy crisis to promote energy efficiency and advocate renewable energy. In the 41 years since its creation, it has been assigned a variety of energy-related responsibilities, including a number of regulatory functions. It is currently organized into four operating divisions and employs 84 permanent employees. Its 2015-2017 operating budget is \$37.4 million with revenue from program fees, federal dollars, and \$13.1 million assessed on energy suppliers. ODOE receives no General Fund revenue.

Bill Summary: Senate Bill 952-B would have established the Oregon Energy Commission as a policy and rulemaking body for ODOE. The measure modified ODOE's general duties, transferred other duties from ODOE to the commission, and refined state energy policy. ODOE was directed to develop a statewide strategic energy plan and submit a draft to the legislature by September 15, 2019. The commission was directed to adopt the plan no later than January 1, 2020 and to update it periodically. The measure required ODOE to submit a comprehensive energy report to the governor and legislature biennially, and to study and report on further departmental restructuring. The measure also extended eligibility for residential energy tax credits until January 1, 2020, reduced the maximum assessment on an energy supplier's gross operating revenue for the annual energy resource supplier assessment to 0.1 percent, modified the definition of "gross operating revenue" for assessment purposes, prohibited the transfer of energy-related tax credits held by tax exempt or government entities, and provided for the credit to be purchased by ODOE.

[Senate Bill 958](#)

Not Enacted

Crude Oil Transport Facility Permitting - Removal/Fill**Chief Sponsors:** Sen. Dembrow**Committees:** Senate Environment and Natural Resources

Background and Current Law: Oregon law requires anyone who plans to remove or fill more than 50 cubic yards of material in a wetland or waterway to obtain a removal-fill permit from the Oregon Department of State Lands (DSL). For activities in state designated areas of essential salmonid habitat, state Scenic Waterways, and compensatory mitigation sites, a permit is required for any amount of removal or fill.

Bill Summary: Senate Bill 958 would have authorized DSL to issue a removal-fill permit for projects that facilitated the transport of crude oil only if the project met statutory requirements, was for public use, and would have satisfied a public need that outweighed harm to navigation, fisheries, and recreation.

[Senate Bill 978](#)

Effective Date: January 1, 2018

Investigation of Industry Effects on Oregon's Utility Regulatory System**At the request of:** Senate Committee on Business and Transportation**Committees:** Senate Business and Transportation, Joint Ways and Means

Background and Current Law: The investor-owned electric utility model relies on a regulatory compact under which an electric utility is granted a monopoly over a given service area and authorized to recover all its costs, as well as a reasonable return on investment. Under the model, the Oregon Public Utility Commission (PUC) administers a rate-setting process. A primary factor in setting electric utility rates is the cost incurred by the electric company for procuring the energy needed to provide electricity to its service area.

Bill Summary: Senate Bill 978 directs the PUC to establish a public process for investigating how developing industry trends, technologies, and policy drivers impact the existing regulatory system and incentives the PUC currently employs. The measure describes issues to be considered, and directs the PUC to explore changes to the existing regulatory system, provide opportunities for public comment, and report to the legislature by September 15, 2018.

Oregon Laws 2017: Chapter 741[Senate Bill 990](#)

Not Enacted

Exemption from Siting Requirements for Small Modular Nuclear Reactors**Chief Sponsors:** Sen. Boquist**Committees:** Senate Business and Transportation, House Energy and Environment

Background and Current Law: Small modular reactors (SMR) are nuclear power plants that are smaller in size (generally 300 megawatt electric (MWe)) than typical base load nuclear power plants (typically 1,000 MWe or higher). SMRs are factory fabricated and can be transported by truck or rail to a site, making them potentially useful in remote areas that have difficulty accessing economically efficient, reliable energy sources. Nuclear power generation produces heat through nuclear fission; heat generated by a sustained fission chain reaction can be used to generate electricity.

Bill Summary: Senate Bill 990 would have exempted SMRs from certain siting restrictions that apply to nuclear fueled thermal power plants. To be eligible, the site must have been approved by electors in the relevant city or county. High-level radioactive waste was required to be disposed of in compliance with the U.S. Nuclear Regulatory Commission.

[House Bill 2020-B](#)

Not Enacted

Oregon Department of Energy and Climate Agency Structure**Chief Sponsors:** Rep. Holvey**Committees:** House Energy and Environment, House Rules, Joint Ways and Means

Background and Current Law: The Oregon Department of Energy (ODOE) was first established in 1975 in response to the national energy crisis. Its statutory mission is to promote the efficient use of energy and advocate for the use and development of new renewable energy. In the 42 years since its creation, the department has been assigned a variety of energy related responsibilities, including some regulatory functions. In January 2016, the Joint Interim Committee on Department of Energy Oversight was appointed to conduct a thorough review of ODOE and to make recommendations to the 2017 Legislative Assembly.

Bill Summary: House Bill 2020-B would have changed the name of ODOE to the Oregon Department of Energy and Climate (ODEC) and broadened its scope to include both energy and climate related responsibilities. In addition, the measure established the Oregon Energy and Climate Board as an advisory body for ODEC. HB 2020-B also established the Interagency Climate Coordinating Committee to make recommendations to the board concerning the coordination of state policies and programs related to energy and climate and to abolish the Oregon Global Warming Commission.

[House Bill 2072-A](#)

Not Enacted

Biomass Tax Credit Sunset Extension**At the request of:** House Interim Committee on Revenue**Committees:** House Energy and Environment, Joint Tax Credits

Background and Current Law: Oregon's biomass producer or collector tax credit was created by the Legislative Assembly in 2007 to promote sustainable growth of the biofuels market in Oregon. The Oregon Department of Energy (ODOE) accepts tax credit applications from those who collect or produce certain biomass material in Oregon that is delivered for use as feedstock for bioenergy or biofuel production. ODOE issues a tax credit certificate to successful applicants, and certificate holders may sell the credit with certain limitations. Only entities with tax liability are eligible to apply, which excludes nonprofits, tribes, and public entities. Senate Bill 1507 (2016) extended the sunset for the tax credit for animal manure and rendering offal until 2022; other biomass tax credits are set to expire on January 1, 2018.

Bill Summary: House Bill 2072-A would have extended the sunset on all biomass tax credits until January 1, 2024 and transferred authority to the Oregon Department of Forestry for the woody biomass portion of the biomass producer or collector tax credit. In addition, the measure capped the total amount of allowed tax credits for woody biomass at \$600,000 per year.

[House Bill 2074](#)

Not Enacted

Energy Conservation Project Tax Credit Sunset Extension**At the request of:** House Interim Committee on Revenue**Committees:** House Energy and Environment

Background and Current Law: Taxpayers who invest in a qualifying energy conservation project can claim a tax credit of up to 35 percent of the eligible project costs, as certified by the Oregon Department of Energy. The credit is taken over five years and may not exceed the tax liability of the taxpayer. Ten percent of the certified cost of the facility may be claimed in the first and second years, and five percent may be claimed in the succeeding three years. If the project has certified costs of no more than \$20,000, the tax credit may be taken in one year. The credit has a five-year carryforward and may be transferred. There is a program cap of \$28 million in tax credits that may be issued per biennium.

Bill Summary: House Bill 2074 would have extended the sunset on the energy conservation project tax credit from 2018 to 2024.

[House Bill 2111](#)

Effective Date: January 1, 2018

Solar Panel Prohibition in Planned Communities**Chief Sponsors:** Rep. Greenlick**Committees:** House Energy and Environment, Senate Business and Transportation

Background and Current Law: Common solar technologies include daylighting, passive solar space heating, solar water heating, and solar electric or photovoltaic (PV) systems. Photovoltaic systems generate electricity, which is typically fed to the grid via an electric service panel. The majority of solar energy projects installed in Oregon are PV systems. Developers and homeowners' associations can prohibit or restrict the use of solar energy systems in some communities by utilizing "covenants, conditions and restrictions," commonly referred to as CC&Rs; CC&Rs typically attach to the titles of properties.

Bill Summary: House Bill 2111 prohibits the inclusion of provisions that prevent an owner from installing and using solar panels in any declaration or bylaws of any planned community. The measure also allows an owner who is subject to such provisions to petition for their removal and allows homeowners' associations to adopt and enforce provisions that impose reasonable size, placement, or aesthetic requirements on solar panel installation and use.

Oregon Laws 2017: Chapter 282

Property-Assessed Clean Energy Program Expansion

At the request of: House Interim Committee on Energy and Environment

Committees: House Energy and Environment, Senate Business and Transportation

Background and Current Law: Property-assessed clean energy (PACE) programs allow local governments, state governments, or other interjurisdictional authorities to fund the up-front cost of energy improvements on commercial and residential properties, which are paid back over time by the property owners. PACE financing is generally based on an existing structure known as a “land secured financing district,” often referred to as a local improvement district. This financing structure allows a property owner to make improvements without large up front payments.

Property owners who choose to participate in a PACE program repay their improvement costs over a set time through property assessments, which are secured by the property itself and added to the owner’s property tax bills. Nonpayment generally results in the same repercussions as a failure to pay any other portion of a property tax bill. Under current law, a local government is authorized to establish a PACE program to make loans to the owners of multifamily residential dwellings and commercial or industrial buildings to pay for energy efficiency or renewable energy improvements. In 2015, the Legislative Assembly created a similar authorization to be used for seismic rehabilitation with the passage of Senate Bill 85.

Bill Summary: House Bill 2132 expands the purposes of improvements that can be made through the PACE program to include energy storage, smart electric vehicle charging stations, and water efficiency, and clarifies that any unpaid final assessments are liens on each lot in favor of the local government that have priority over all other liens and encumbrances.

Oregon Laws 2017: Chapter 283

House Bill 2134**Effective Date: January 2, 2018****Low-Income Bill Payment Assistance****At the request of:** House Interim Committee on Energy and Environment**Committees:** House Energy and Environment, Senate Business and Transportation

Background and Current Law: The Oregon legislature enacted Senate Bill 461 in 2007, directing the Public Utility Commission (PUC) to establish a rate to be collected by each electric company sufficient to generate \$15 million to provide bill payment assistance for low income Oregonians. Senate Bill 863 in 2011 directed PUC to collect an additional \$5 million per year for the program in the event that certain criteria were met. The additional allocation was scheduled to sunset on January 2, 2014 but was extended in 2013 via House Bill 2004 and again in 2015 via House Bill 3257. The additional \$5 million is currently scheduled to sunset on January 2, 2018.

Bill Summary: House Bill 2134 does not extend the sunset on the additional \$5 million collection; instead, the measure increases the originally authorized \$15 million to \$20 million, effective the day that the additional \$5 million is scheduled to sunset.

Oregon Laws 2017: Chapter 200

House Bill 2136**Not Enacted****Small-Scale Renewables Eligibility for Renewable Portfolio Standard****At the request of:** House Interim Committee on Energy and Environment**Committees:** House Energy and Environment

Background and Current Law: The Oregon Renewable Portfolio Standard (RPS) was enacted in 2007 with the passage of Senate Bill 838, which adopted a 25 percent RPS by 2025 for large utilities. In 2016, Senate Bill 1547 increased the RPS to 50 percent by 2040 while mandating the elimination of coal generation from Oregon rates by 2030. Senate Bill 1547 also directed Portland General Electric and PacifiCorp to source, by 2025, at least eight percent of their sales from projects with generating capacities of 20 megawatts or less, or from facilities that generate electricity using biomass that also generates thermal energy for a secondary purpose.

Bill Summary: House Bill 2136 would have replaced the eight percent requirement with a phased in schedule by which a certain percentage of electricity sold by electric companies that sell to over 25,000 consumers must have been generated by qualifying small scale renewable energy projects.

[House Bill 2343](#)

Effective Date: January 1, 2018

Biennial Comprehensive Energy Report**At the request of:** Governor Brown for State Department of Energy**Committees:** House Energy and Environment, Senate Business and Transportation

Background and Current Law: The Oregon Department of Energy (ODOE) is required to prepare a comprehensive energy plan every biennium. The energy plan must include comments on utilities' energy forecasts and ODOE's independent analysis and evaluation. ODOE must also include: identification of emerging trends related to energy supply, need, and conservation; public health and safety factors; and an estimate of the level of statewide energy need for each year in the upcoming five-year period, as well as for the 10th and 20th years following issuance of the plan. ODOE is also required to issue a biennial energy forecast.

Bill Summary: House Bill 2343 replaces the current reporting requirements with a directive to complete a biennial comprehensive energy report.

Oregon Laws 2017: Chapter 286[House Bill 2481](#)

Not Enacted

Low Carbon Fuel Standard Receipt Statement**Chief Sponsors:** Rep. Bentz**Committees:** House Energy and Environment

Background and Current Law: According to the Department of Environmental Quality (DEQ), approximately one third of Oregon's greenhouse gases are produced by the transportation sector. The 2009 legislature passed House Bill 2186 authorizing the Oregon Environmental Quality Commission to adopt rules to reduce the average carbon content of Oregon's transportation fuels by 10 percent over a 10-year period. The 2015 legislature passed Senate Bill 324 allowing DEQ to fully implement the Low Carbon Fuel Standard in 2016.

Bill Summary: House Bill 2481 would have required gas station owners or operators to print, on any receipt for a gasoline purchase provided to customers, the cost to the customer of the Low Carbon Fuel Standard per gallon of gasoline.

[House Bill 2510](#) and [House Bill 2511](#)

Effective Date: June 20, 2017

Tenant Electric Vehicle Charger Installation**Chief Sponsors:** Rep. Barnhart**Committees:** House Energy and Environment, Senate Business and Transportation

Background and Current Law: Recharging electric vehicle (EV) batteries can require several hours depending on the type of charging station used. The proportion of EVs on Oregon's roads is between two and four times higher than the national average: between 2010 and 2015, there were approximately 9,000 electric vehicles sold in Oregon. In 2013, the Governor joined seven other states to create a Zero Emission Vehicle program to promote the growth of the electric vehicle market. Oregon has also partnered with Washington and California to create the West Coast Electric Highway, installing fast charging stations along Interstate 5.

Bill Summary: House Bills 2510 and 2511 authorize commercial and residential tenants, respectively, to install and use electric vehicle charging stations at or near any assigned parking spot. Tenants are financially responsible for the costs associated with permitting, installing, maintaining, and removing the charging station, as well as for the cost of electricity associated with the charging station.

Oregon Laws 2017: Chapter 386 and 387[House Bill 2514-A](#)

Not Enacted

Electric Vehicle Sales Incentive**Chief Sponsors:** Rep. Barnhart**Committees:** House Energy and Environment, Joint Ways and Means

Background and Current Law: Electric cars have motors that run on a rechargeable battery instead of traditional petroleum based fuels. These motors are about three times more efficient than traditional internal combustion engines. New electric vehicle models can travel as many as 200 miles or more on a single charge and produce fewer greenhouse gas emissions than traditional cars. In 2013, Oregon, California, Connecticut, Maryland, Massachusetts, New York, Rhode Island, and Vermont created a collaborative Multi-State Zero-Emission Vehicle Action Plan that is intended to guide efforts to put 3.3 million zero-emission vehicles on the roads by 2025.

Bill Summary: House Bill 2514-A would have directed the Oregon Department of Revenue to pay a \$250 sales incentive to any salesperson, not employed by a dealership that exclusively sells electric vehicles, for the sale or lease of a new electric vehicle to an Oregon resident.

[House Bill 2680](#)

Not Enacted

Renewable Energy Development Tax Credit Sunset Extension**Chief Sponsors:** Rep. Nosse**Committees:** House Energy and Environment

Background and Current Law: The legislature created the Renewable Energy Development (RED) grant program in 2011 to promote investment in and development of renewable energy projects. The Oregon Department of Energy (ODOE) administers the program and solicits grant applications for renewable energy projects. Grants may cover 35 percent of the cost of a project (not to exceed \$250,000) and businesses, public bodies, schools, nonprofits, and tribes are eligible to apply. Grant funds are not disbursed until projects are completed and operating, and have received final approval from ODOE. As of May 2016, approximately \$365,000 in RED grants had funded 14 projects with a total nameplate capacity of 522 kilowatts, and ODOE had awarded performance agreements for 35 further projects yet to be completed. Approximately \$2.8 million in grant funds have been allocated to projects awaiting completion and approval.

Bill Summary: House Bill 2680 would have extended the sunset for RED tax credits until January 1, 2024 and added “waste heat” as a qualifying renewable energy production system. In addition, the measure extended the limitation on the total amount of potential tax credits from 2017 to 2023.

[House Bill 2681-A](#)

Not Enacted

Residential Energy Tax Credit Sunset Extension**Chief Sponsors:** Reps. Nosse, G. Smith**Committees:** House Energy and Environment, Joint Tax Credits

Background and Current Law: The Residential Energy Tax Credit (RETC) is a credit against personal income taxes for constructing or installing an energy-saving device in a residence. The amount of the credit depends on the type of device and the energy savings or yield. The Oregon Department of Energy reports that since its inception, the program has provided 570,000 tax credits worth \$172 million that saved enough energy to serve about 400,000 households for a year. RETC beneficiaries primarily use the credit for installing energy-efficient heat pumps, furnaces, and solar photovoltaic panels. The Oregon Department of Revenue estimates the credit cost the state \$26 million in the 2013-2015 biennium and will cost \$31.5 million in 2015-17. The tax credit is scheduled to sunset on December 31, 2017.

Bill Summary: House Bill 2681-A would have extended the tax credit for construction or installation of residential alternative energy devices from 2018 to 2024.

[House Bill 2704-A](#)

Not Enacted

Alternative Fuel or Zero-Emission Vehicle Rebate Program**Chief Sponsors:** Rep. Helm**Committees:** House Energy and Environment, House Revenue

Background and Current Law: Electric cars have motors that run on a rechargeable battery instead of traditional petroleum-based fuels. These motors are about three times more efficient than traditional internal combustion engines. New electric vehicle models can travel as many as 200 miles or more on a single charge and produce fewer greenhouse gas emissions than traditional cars. In 2013, Oregon, California, Connecticut, Maryland, Massachusetts, New York, Rhode Island and Vermont created a collaborative “Multi-State Zero-Emission Vehicle Action Plan.” The plan is intended to guide efforts to put 3.3 million zero-emission vehicles on roads by 2025.

Bill Summary: House Bill 2704-A would have established the alternative fuel or zero-emission vehicle rebate program and set the rebate amount that certain types of vehicles would be eligible to receive. The bill also created the Charge Ahead Oregon program to offer rebates or similar incentives for low- and moderate-income households.

[House Bill 2710](#)

Not Enacted

Building Code Energy Conservation Requirements**Chief Sponsors:** Rep. Helm**Committees:** House Energy and Environment

Background and Current Law: According to the U.S. Department of Energy, Oregon’s first energy conservation requirements were developed in 1975 and were limited to residential buildings. This code was upgraded in 1978 and again in 1980 to reflect new national standards. Since 1980, the residential energy conservation requirements have been amended on a three-year cycle in sequence with the Oregon One- and Two-Family Dwelling Specialty Code. The energy conservation requirements for commercial buildings were developed in 1978 and upgraded in 1980. Since 1980, the energy conservation requirements have been upgraded in sequence with the Oregon Structural Specialty Code. Starting in 2007, non-residential buildings became subject to the 2007 Oregon Structural Specialty Code.

Bill Summary: House Bill 2710 would have required the director of the Department of Consumer and Business Services to review codes, standards, and technical components for adopting or amending provisions of the Reach Code applicable to newly constructed buildings. The director was to consider whether any standards and methods applicable to newly constructed buildings should be removed from the Reach Code and adopted in the state building code at least once every three years.

[House Bill 2760](#)

Effective Date: October 6, 2017

Alternative Energy Systems Property Tax Exemption Sunset Extension

Chief Sponsors: Rep. Holvey

Committees: House Energy and Environment, House Revenue, Senate Finance and Revenue

Background and Current Law: Oregon law exempts from ad valorem property taxation an alternative energy system if the system is a net metering facility or is primarily designed to offset onsite electricity use. “Alternative energy system” is defined as property consisting of solar, geothermal, wind, water, fuel cell, or methane gas energy systems for the purpose of heating, cooling, or generating electricity.

Bill Summary: House Bill 2760 extends the sunset of the property tax exemption for alternative energy systems from tax years beginning after July 1, 2017 to tax years beginning after July 1, 2023.

Oregon Laws 2017: Chapter 542

[House Bill 2853](#)

Not Enacted

Tax Credits for Biomass

At the request of: House Committee on Revenue

Committees: House Agriculture and Natural Resources

Background and Current Law: Tax credits for biomass produced from a variety of sources as a feedstock for bioenergy or biofuel production in Oregon are scheduled to sunset January 1, 2018. These include biomass made from oilseed and grain crops; virgin oil or alcohol from feedstock; used cooking oil or waste grease; wastewater biosolids; woody biomass; and grass, wheat, straw, or other vegetative biomass from agricultural crops.

Bill Summary: For future tax years beginning January 1, 2018, House Bill 2853 would have limited the tax credit on animal manure or rendering offal to animal manure processed in a digester in service prior to January 1, 2017.

Legislation similar to this bill was enacted within [House Bill 2066](#).

Solar Siting on High-Value Farmland

At the request of: House Committee on Agriculture and Natural Resources

Committees: House Agriculture and Natural Resources

Background and Current Law: Oregon's Statewide Planning Goals and Guidelines indicate the state's preference for restricting urbanization and preserving farmland through the implementation of strict zoning rules. Under current Oregon law, lands zoned for Exclusive Farm Use have a set of activities and structures allowed on their premises. Common non-farm uses include "commercial activities in conjunction with farm use," "home occupations," and "utility facilities necessary for public service." High-value farmland refers to lands composed predominantly of soils that are particularly well-suited for growing agricultural crops.

Bill Summary: House Bill 3050 would have expanded the set of activities and structures allowed on Exclusive Farm Use lands to include solar power generation facilities generating electricity for public use. The bill authorized siting of such facilities on high-value farmland if the relevant governing body adopted an exception to a statewide planning goal related to agricultural lands or if the governing body determined no alternative site is available.

Oregon Department of Energy Program Modifications

Chief Sponsors: Rep. Holvey; Sen. Beyer

Committees: House Energy and Environment, Joint Ways and Means

Background and Current Law: The Oregon Department of Energy (ODOE) was first established in 1975 in response to the national energy crisis. Its statutory mission is to promote the efficient use of energy and advocate for the use and development of new renewable energy. In the 42 years since its creation, it has been assigned a variety of energy-related responsibilities, including some regulatory functions. In January 2016, the Joint Interim Committee on Department of Energy Oversight was appointed to conduct a thorough review of ODOE and to make recommendations to the 2017 Legislative Assembly. Some of these recommendations were focused on the following areas.

ODOE is responsible for the Small Energy Loan Program (SELP). The program loans money to individuals, businesses, schools, state and local governments, tribes, public cooperatives, and nonprofits for small-scale local energy projects that save energy, produce energy from renewable resources, use recycled material to create products, or use alternative fuels.

The Oregon Legislative Assembly established the Energy Facility Siting Council (EFSC) in 1975, and charged EFSC with overseeing energy facility siting in Oregon. EFSC's jurisdiction covers specific types and sizes of energy facilities including proposed thermal power plants, wind projects, and utility-scale solar projects. Liquefied Natural Gas facilities and very large energy facilities are subject to federal siting processes with support from ODOE's Siting Division. Many smaller facilities (less than a 25-megawatt capacity) are subject to local jurisdictions.

In Oregon, each energy resource supplier is required to pay ODOE its share of an annual assessment to fund EFSC and ODOE programs and activities. Under current law, the ODOE Director is required to exempt from the payment of an assessment any individual energy resource supplier whose calculated share of the annual assessment is less than \$250.

Bill Summary: House Bill 3166-B would have included several recommendations considered by the Joint Interim Committee on Department of Energy Oversight. Specifically, the measure transferred the duties, functions and powers of ODOE related to the issuance of loans for SELP to the Oregon Business Development Department, effective July 1, 2018. In addition, the measure modified the cost-recovery formula for site certificate holders.

[House Bill 3227](#)

Not Enacted

Alternative Energy Device Tax Credit Sunset Extension**Chief Sponsors:** Rep. Holvey**Committees:** House Energy and Environment, House Revenue

Background and Current Law: The tax credit for alternative energy devices, commonly referred to as the Residential Energy Tax Credit (RETc), provides personal income tax credits to Oregonians who purchase energy-efficient devices and renewable energy systems for their homes. The alternative energy devices that are currently eligible for a tax credit include electric heat pump water heaters, tankless gas water heaters, and storage gas water heaters. Tax credits are issued for the lesser of 50 percent of the cost of the device or \$1,500, with some exceptions. Credits over \$1,500 must be claimed over multiple years, with no more than \$1,500 being claimed per year per device.

A community solar project is a solar power plant whose electricity is shared by more than one household. These projects are sometimes referred to as solar gardens or shared renewable energy plants.

Bill Summary: House Bill 3227 would have allowed a Residential Energy Tax Credit for an alternative energy device to be claimed by the owner or subscriber of a community solar project.

[House Bill 3241-A](#)

Not Enacted

Residential Property-Assessed Clean Energy Program**Chief Sponsors:** Rep. Marsh**Committees:** House Energy and Environment, House Rules

Background and Current Law: Property-assessed clean energy (PACE) programs allow local governments, state governments, or other inter-jurisdictional authorities to fund the up-front cost of energy improvements on commercial and residential properties, which are paid back over time by the property owners. PACE financing is generally based on an existing structure known as a “land-secured financing district,” which allows a property owner to implement improvements without a large up-front cash payment. Property owners that choose to participate in a PACE program repay their improvement costs over time through property assessments. Under current law, a local government is authorized to establish a PACE program to make loans to the owners of multifamily residential dwellings, commercial buildings, or industrial buildings for the purpose of paying for energy efficiency, renewable energy improvements, and seismic rehabilitation.

Bill Summary: House Bill 3241-A would have authorized a local government to establish programs to assist owners of single-family dwellings in financing cost-effective seismic rehabilitation or utility improvements including: energy efficiency, renewable energy, energy storage, smart electric vehicle charging stations, and water efficiency.

[House Bill 3344](#)

Not Enacted

Bulk Coal or Oil Terminal Projects**Chief Sponsors:** Rep. Helm**Committees:** House Committee on Energy and Environment

Background and Current Law: On June 6, 2014, an Emergency Order issued by the U.S. Department of Transportation went into effect requiring railroad carriers operating trains transporting one million gallons or more of Bakken crude oil on a single train to provide information to the State Emergency Response Commission estimating volumes and frequencies of the train traffic implicated. In 2015, the legislature enacted House Bill 3225, which required the Office of the State Fire Marshal to adopt a plan for the coordinated response to an oil or hazardous material spill or releases that occur during rail transport.

Bill Summary: House Bill 3344 would have prohibited the Legislative Assembly from appropriating funds for any new bulk coal or oil terminal project for the biennium beginning July 1, 2017. The measure established a formula for calculating the cleanup cost of a “worst case spill” and requirements for an annual statement to be submitted to the Department of Environmental Quality from applicable rail carriers. The measure also required that the Department of State Lands use criteria to issue or renew removal-fill permits or leases for projects that facilitate the transportation of crude oil.

[House Bill 3386-A](#)

Not Enacted

Low Carbon Fuel Standard Compliance Credits**Chief Sponsors:** Rep. Bentz**Committees:** House Energy and Environment, House Rules

Background and Current Law: The Department of Environmental Quality (DEQ) reports that approximately one third of Oregon’s greenhouse gases are produced by the transportation sector. The 2009 Oregon Legislative Assembly passed House Bill 2186 authorizing the Oregon Environmental Quality Commission to adopt rules to reduce the average carbon intensity of Oregon’s transportation fuels by 10 percent over a 10-year period. The 2015 Oregon Legislative Assembly passed Senate Bill 324 allowing the DEQ to fully implement the low carbon fuel standard in 2016.

Bill Summary: House Bill 3386-A would have required the Environmental Quality Commission to adopt a program to facilitate compliance with the low carbon fuel standard that included provisions for regulated parties to purchase credits to demonstrate compliance with the standard.

Legislation modifying the low carbon fuel standard was included in [House Bill 2017](#).

2017 SUMMARY OF LEGISLATION



ENVIRONMENT



ENVIRONMENT MEASURES

Air Quality

Enacted: SB 1008, HB 2748

Not Enacted: SB 115, SB 197, SB 557, SB 1007,
HB 2135-A, HB 2269-A,
HB 2725-A, HB 3269, HB 3344
HB 3386-A

General Environment Policy

Enacted:

Not Enacted: SB 198, HB 2481

Materials Management

Enacted:

Not Enacted: HB 3105-A, HB 3349

Oceans

Enacted: SB 1039

Not Enacted: SB 281, SB 285

Toxics

Enacted: SB 871

Not Enacted: SB 836, SB 892, SB 928, SB 929,
HB 2669

Water Quality

Enacted: SB 812

Not Enacted: SB 383, SB 866, HB 2131-B,
HB 2404-A, HB 2711-A,
HB 2954

Picture: Haystack Rock, Clatsop County - [Gary Halvorson](#), [Oregon State Archives](#)

ENVIRONMENT

TASK FORCES AND REPORTING REQUIREMENTS

The following bills created task forces and reporting requirements. Additional information is provided in the bill summaries.

SB 1039	The Oregon Coordinating Council on Ocean Acidification and Hypoxia must report on the Council's activities and recommendations to the Legislative Assembly and the Ocean Policy Advisory Council.	Septemeber 14th of every even-numbered year
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[Senate Bill 115](#)

Not Enacted

Aviation Fuel

Chief Sponsors: Sen. Riley

Committees: Senate Environment and Natural Resources

Background and Current Law: According to the Federal Aviation Administration, owners and operators of more than 167,000 piston-engine aircraft operating in the United States rely on aviation gasoline, commonly known as “avgas,” to power their aircraft. Avgas is the only remaining transportation fuel containing lead.

Bill Summary: Senate Bill 115 would have prohibited the use of aviation fuel containing lead after January 1, 2022.

[Senate Bill 197](#)

Not Enacted

Dairy Air Emissions

At the request of: Senate Interim Committee on Environment and Natural Resources

Committees: Senate Environment and Natural Resources

Background and Current Law: Senate Bill 235 (2007) established a Task Force on Dairy Air Quality and charged it with studying the emissions from dairy operations, evaluating available alternatives for reducing emissions, and presenting findings and recommendations to the Oregon departments of Agriculture and Environmental Quality. The task force delivered its report in July 2008, recommending that the Oregon Environmental Quality Commission work with other agencies to adopt rules to implement a program, based upon a set of guiding principles and starting as a voluntary program.

Bill Summary: Senate Bill 197 would have directed the Oregon Environmental Quality Commission to adopt, by rule, a program for regulating air contaminant emissions from dairy-confined animal feeding operations based, to the extent feasible, on the recommendations of the Task Force on Dairy Air Quality.

[Senate Bill 198](#)

Not Enacted

Independent Science Review Board

At the request of: Senate Interim Committee on Environment and Natural Resources

Committees: Senate Environment and Natural Resources

Background and Current Law: Senate Bill 202 (2015) established the Task Force on Independent Scientific Review for Natural Resources to evaluate and assess the need for independent science reviews in Oregon and to make recommendations to the governor and appropriate legislative committees. The final task force report was submitted to the legislature in September 2016.

Bill Summary: Senate Bill 198 would have created the Oregon Independent Science Review Board to convene scientific panels to address questions from state agencies, local governments, and private persons for independent scientific review of complex, multidisciplinary, natural resource issues that required the involvement of multiple agencies.

[Senate Bill 281](#)

Not Enacted

Oregon Ocean Science Trust Funding

Chief Sponsors: Sen. Roblan

Committees: Senate Environment and Natural Resources, Joint Ways and Means

Background and Current Law: The 2013 Oregon Legislative Assembly established the Ocean Science Trust. Subject to available funding, the trust is directed to establish and execute a competitive grant program to conduct research and monitoring related to Oregon's ocean and coastal resources. The trust is comprised of five voting members appointed by the State Land Board, and two nonvoting members from the legislature.

Bill Summary: Senate Bill 281 would have appropriated, from the General Fund, \$1 million to the Oregon Ocean Science Trust Fund.

[Senate Bill 285](#)

Not Enacted

Marine Deepwater Test Facility Funding

Chief Sponsors: Sens. Roblan, Kruse; Rep. Gomberg

Committees: Senate Environment and Natural Resources, Joint Ways and Means

Background and Current Law: The Northwest National Marine Renewable Energy Center was established in 2008 by the U.S. Department of Energy to facilitate the development of marine renewable energy technologies. University partners include Oregon State University, the University of Washington, and the University of Alaska Fairbanks.

Bill Summary: Senate Bill 285 would have appropriated, from the General Fund, \$4.6 million to provide matching funds for the Northwest National Marine Renewable Energy Center at Oregon State University to receive federal funds for a deepwater test facility for utility scale wave energy converters.

[Senate Bill 383](#)

Not Enacted

Septic System Loan Funding

Chief Sponsors: Sen. Roblan; Rep. McLane

Committees: Senate Environment and Natural Resources, Joint Ways and Means

Background and Current Law: A septic system is the most common method of sewage treatment for homes and businesses that are not connected to an area-wide sewage treatment system. Over 30 percent of Oregonians rely on septic systems to treat wastewater from their homes and businesses. Septic systems which fail or malfunction can pollute Oregon's land and waterways with raw sewage and create public health hazards. In 2016, Senate Bill 1563 required the Oregon Department of Environmental Quality (DEQ) to establish a program to award grants for developing and administering a low-interest loan program for the repair, replacement, upgrade, or evaluation of residential or small business on-site septic systems.

Bill Summary: Senate Bill 383 would have appropriated, from the General Fund, \$1.5 million to continue the DEQ program of supporting low-interest loan programs for improving residential and business septic systems.

Cap-and-Invest Program

Chief Sponsors: Sen. Beyer

Committees: Senate Environment and Natural Resources, Senate Business and Transportation

Background and Current Law: A cap-and-trade program is a market-based system designed to reduce greenhouse gas emissions. Total allowed emissions are capped and decrease each year. Polluters are required to buy an allowance for each ton of greenhouse gas they emit. Allowances are purchased at auctions held by the government or a contracted third party, and may be distributed for free, often to emissions-intensive, trade-exposed industries. A floor price is set for allowances and rises annually. At the end of each compliance period, polluters must remit a number of allowances equal to their emissions or face a penalty. Companies may sell surplus allowances to other companies. A cap-and-invest program uses the proceeds generated from the program for designated purposes, which may include bill assistance for low-income utility customers, transportation infrastructure projects, and grant programs for clean energy and economic development.

Bill Summary: Senate Bill 557 would have established a cap-and-invest system covering sources that emitted more than 25,000 metric tons of greenhouse gases. Such sources included fossil fuel suppliers, natural gas suppliers, electric utilities, landfills, universities, high tech industries, and certain other heavy industries. These sources were required to obtain allowances and remit allowances equal to their level of emissions for each compliance period. Proceeds would have been invested in various grant program funds, infrastructure projects, and bill assistance for low-income utility customers.

[Senate Bill 812](#)

Effective Date: June 6, 2017

Septic System Loan Program Modifications

Chief Sponsors: Sen. Roblan; Reps. Gomberg, McKeown

Committees: Senate Environment and Natural Resources, House Energy and Environment

Background and Current Law: A septic system is the most common method of sewage treatment for homes and businesses that are not connected to an area-wide sewage treatment system. Over 30 percent of Oregonians rely on septic systems to treat wastewater from their homes and businesses. Septic systems which fail or malfunction can pollute Oregon's land and waterways with raw sewage and create public health hazards. In 2016, Senate Bill 1563 required the Oregon Department of Environmental Quality (DEQ) to establish a program to award grants for developing and administering a low-interest loan program for the repair, replacement, upgrade, or evaluation of residential or small business on-site septic systems.

Bill Summary: Senate Bill 812 allows DEQ's septic system loan funds to be used for a regional evaluation of a community septic system, requires that loans be used to connect to an available sewer system, and specifies that a borrower is not required to borrow the full cost of the septic system repair or replacement.

Oregon Laws 2017: Chapter 255

[Senate Bill 836](#)

Not Enacted

Toxic-Free Kids Act Modifications

At the request of: Senate Committee on Business and Transportation

Committees: Senate Environment and Natural Resources

Background and Current Law: In 2015, the legislature established the Toxic-Free Kids Act (Senate Bill 478), requiring the Oregon Health Authority (OHA) to establish and maintain on its website a list of designated high-priority chemicals of concern for children's health used in children's products and to periodically review and revise the list.

Bill Summary: Senate Bill 836 would have made several changes to the Toxic-Free Kids Act, including adding a requirement for legislative ratification of chemicals in children's products that OHA determined should be removed and substituted.

Storm Water Discharges

Chief Sponsors: Sen. Hansell

Committees: Senate Environment and Natural Resources

Background and Current Law: Storm water runoff, from land and impervious areas such as paved streets, parking lots, and building rooftops during rainfall and snow events, often contains pollutants that can adversely affect water quality. Permits are required for storm water discharges to surface waters from construction and industrial activities as well as municipalities if storm water from rain or snow melt leaves a site through a “point source” and reaches surface waters either directly or through storm drainage.

Bill Summary: Senate Bill 866 would have required “discharge agencies,” such as a state agency, special district, or local government, that discharged storm water into canals or other infrastructure of a special district or local government to take reasonable steps to ensure that the discharge complied with state and federal water quality standards. Starting July 1, 2019, the bill also required discharging agencies to obtain permission for storm water discharges or prepare a plan for infrastructure improvements that avoided water quality and liability consequences and that could be fully implemented within five years.

Senate Bill 871**Effective Date: October 6, 2017****Residential Demolitions - Asbestos and Lead Removal****Chief Sponsors:** Sen. Dembrow; Rep. Keny-Guyer**Committees:** Senate Environment and Natural Resources, Joint Ways and Means

Background and Current Law: Asbestos is the generic name given to a group of fibrous minerals used to make a wide range of construction materials. Exposure to asbestos has been shown to increase the risk of an individual developing lung disease. In 2015, Senate Bill 705 directed the Environmental Quality Commission to adopt rules requiring inspectors to perform asbestos surveys prior to beginning demolition. If asbestos is found, it must be properly removed and disposed of by a licensed asbestos abatement contractor prior to the demolition.

Although leaded paint and gasoline are no longer used in the United States, an individual may still be exposed to lead dust generated during building renovation activities such as sanding, cutting, and demolition. Houses built prior to 1978 were commonly painted with leaded paint inside and out. The U.S. Environmental Protection Agency (EPA) issued the Renovation, Repair, and Painting rule on April 22, 2008 to protect children and adults against hazardous lead dust and chips disturbed during common renovation activities. In 2010, the EPA gave the Oregon Construction Contractors Board and the Oregon Health Authority the authority to administer the rule in Oregon.

Bill Summary: Senate Bill 871 authorizes a city to establish a program for the demolition of residences or residential buildings. The measure requires the Oregon Health Authority to establish a lead containment certification program to certify contractors to perform demolitions of residences or residential buildings built before 1978 in cities with a demolition program.

Oregon Laws 2017: Chapter 739**Senate Bill 892****Not Enacted****Aerial Pesticide Applications to Forestlands****Chief Sponsors:** Sen. Dembrow**Committees:** Senate Environment and Natural Resources

Background and Current Law: Under current Oregon law, a person may apply pesticides from an aircraft if they hold a pesticide applicator's license and a license to operate the aircraft from which the pesticide is being applied. The application of chemicals on forestland is also identified by administrative rule as a forest practice that requires written notice to the State Forester.

Bill Summary: Senate Bill 892 would have directed the Oregon Department of Forestry to maintain an electronic reporting and notification system, including provisions for filing, viewing, and sending notices and reports to the State Forester of aerial application of pesticides to privately owned forestland. The measure required an operator, timber owner, or landowner using the system to file notice of a proposed application with the State Forester no later than 15 business days prior to the proposed date of application.

[Senate Bill 928](#)

Not Enacted

Pesticide Label Requirements for Neonicotinoids

Chief Sponsors: Sen. Prozanski; Reps. Marsh, Holvey

Committees: Senate Environment and Natural Resources

Background and Current Law: Neonicotinoids are a type of insecticide that can be applied to either a plant or soil.

Bill Summary: Senate Bill 928 would have required pesticide products and seed containers that contain neonicotinoids to be clearly labeled. The measure deemed a food, unless the container was clearly labeled, as misbranded if it was a raw commodity that was a product of soil treated, either before or after harvest, with neonicotinoids.

[Senate Bill 929](#)

Not Enacted

Restricted Use of the Insecticide Neonicotinoids

Chief Sponsors: Sen. Prozanski; Reps. Marsh, Holvey

Committees: Senate Environment and Natural Resources

Background and Current Law: Neonicotinoids are a type of insecticide that can be applied to either a plant or soil. The Oregon Department of Agriculture (ODA) is authorized to establish, maintain, and amend lists of restricted-use pesticides, and can restrict their application and use by rule.

Bill Summary: Senate Bill 929 would have directed ODA to include neonicotinoids as restricted-use pesticides.

[Senate Bill 1007](#) and [House Bill 3343](#)

Not Enacted

Climate Test Development

Chief Sponsors: Sen. Dembrow; Rep. Helm

Committees: Senate Environment and Natural Resources (SB 1007), House Energy and Environment (HB 3343)

Background and Current Law: The legislature has enacted several policies and programs to reduce greenhouse gas emissions, including a renewable portfolio standard and a low carbon fuel program.

Bill Summary: Senate Bill 1007 and House Bill 3343 would have directed the Oregon Department of Energy, in consultation with the Environmental Quality Commission and other interested agencies, to develop a climate test to be used by state permitting agencies for evaluating applications for proposed fossil fuel infrastructure projects.

[Senate Bill 1008](#)

Effective Date: August 15, 2017

Clean Diesel Engine Fund

Chief Sponsors: Sens. Dembrow, Taylor, Frederick, Gelser; Reps. Greenlick, Malstrom, Nosse

Committees: Senate Environment and Natural Resources, Senate Rules, Joint Ways and Means

Background and Current Law: Diesel engines are used throughout Oregon and the United States because of their reliability, durability, power, and fuel efficiency. In Oregon, on-road heavy-duty diesel trucks and diesel construction equipment are the largest source of diesel exhaust. Diesel exhaust is considered a health risk, particularly in urban areas that are close to highways and major roads.

Bill Summary: Senate Bill 1008 adds grants and loans for diesel engine replacements to the list of permissible uses of the Clean Diesel Engine Fund and makes other adjustments to provisions governing the issuance of grants and loans. The measure authorizes the State of Oregon to receive funds under the Volkswagen Environmental Mitigation Trust Agreement and specifies the allocation of these funds for grants to reduce emissions from diesel engines.

Oregon Laws 2017: Chapter 742

Ocean Acidification and Hypoxic Waters

Chief Sponsors: Sens. Roblan, Kruse

Committees: Senate Environment and Natural Resources, Joint Ways and Means

Background and Current Law: Oceans absorb a portion of the carbon dioxide (CO₂) released into the atmosphere each year. Ocean acidification is the term given to the chemical changes in the ocean that result from CO₂ absorption. “Hypoxia” refers to oxygen-deficient waters. According to the West Coast Ocean Acidification and Hypoxia Science Panel, ocean acidification and hypoxia frequently occur together and share a common set of causes, including increased atmospheric CO₂ levels and local nutrient and organic carbon inputs. The panel reached consensus on six major findings, including that ocean acidification and hypoxia will have severe environmental, ecological, and economic consequences for the West Coast and require a concerted regional management focus.

Bill Summary: Senate Bill 1039 declares the state’s policy to ensure a coordinated, effective response to ocean acidification and hypoxia.

Oregon Laws 2017: Chapter 744

[House Bill 2131-B](#)

Not Enacted

Oil Spill Prevention and Emergency Response Plan**Chief Sponsors:** Rep. Smith Warner**Committees:** House Energy and Environment, House Rules, Joint Ways and Means

Background and Current Law: On June 6, 2014, an Emergency Order issued by the U.S. Department of Transportation went into effect requiring railroad carriers operating trains transporting one million gallons or more of Bakken crude oil on a single train to provide information to the State Emergency Response Commission on estimated volumes and frequencies of implicated train traffic. In 2015, the Oregon Legislative Assembly enacted House Bill 3225, which required the State Fire Marshal to adopt a plan for a coordinated response to an oil or hazardous material spill or release that could occur during rail transport. In June 2016, a train shipping crude oil derailed near the city of Mosier in the Columbia River Gorge. Eleven cars from the 96-car train left the rails near Rock Creek, which feeds the Columbia River. Interstate 84 was closed in both directions and a community school and others were evacuated. Several cars caught fire and some oil was released.

Bill Summary: House Bill 2131-B would have required the owner or operator of a high-hazard train route to submit an oil spill prevention and emergency response plan to the Department of Environmental Quality for review and approval. The Environmental Quality Commission was directed to adopt rules standardizing the preparation of high-hazard train route contingency plans and a “financial responsibility statement” was defined and required from railroads to demonstrate their ability to pay the cost to clean up a “worst-case spill.”

[House Bill 2135-A](#)

Not Enacted

Cap-and-Invest System**At the request of:** House Interim Committee on Energy and Environment**Committees:** House Energy and Environment, House Rules

Background and Current Law: A cap-and-trade program is a market-based system designed to reduce greenhouse gas emissions. Total allowed emissions are capped at a given level that decreases each year. Emitters are required to buy an allowance for each ton of greenhouse gas they emit, as quantified through mandatory reporting of emissions. Allowances are purchased at auctions, but may also be distributed for free, often to emissions intensive, trade exposed industries. At the end of each compliance period, companies must remit a number of allowances equal to their emissions or face a penalty. A cap-and-invest program uses the proceeds generated from a cap-and-trade program for designated purposes. Ten states currently have cap-and-trade systems.

Bill Summary: House Bill 2135-A would have created a cap-and invest system covering sources that emitted more than 25,000 metric tons of greenhouse gases. Such sources would have included certain fossil fuel suppliers, natural gas suppliers, electric utilities, landfills, universities, high-tech industries, and certain other heavy industries. These sources would have been required to obtain allowances and remit a number of allowances equal to their level of emissions for each compliance period. Proceeds were to be invested in various grant programs, infrastructure projects, and bill payment assistance for low-income utility customers.

[House Bill 2269-A](#)

Not Enacted

Air Quality Fees/Volkswagen Settlement**At the request of:** Governor Brown for Department of Environmental Quality**Committees:** House Energy and Environment, Joint Ways and Means

Background and Current Law: The federal Clean Air Act requires each state's Title V operating permit program to be fully funded by permit fees. Oregon's Title V fees include annual fees and fees for specific activities such as permit modifications. Each facility subject to the Title V operating permit program is required to pay Title V fees, which are governed by administrative rules and adjusted annually to keep pace with inflation.

On June 28, 2016, a federal court initially approved a partial settlement of claims that Volkswagen manufactured diesel cars with systems intended to defeat emissions tests. These systems allowed vehicles to emit nitrogen oxide (NOx) pollution at levels that significantly exceeded the amounts allowed under the Clean Air Act. The proposed settlement includes an environmental mitigation fund to offset the impact of the noncompliant vehicles' excess emissions. The mitigation fund will consist of \$2.7 billion to be distributed among states based on the proportion of diesel Volkswagen vehicles registered in each jurisdiction. Oregon is expected to receive about \$68 million dollars.

Bill Summary: House Bill 2269-A would have established a specific activity fee to fund the investigation of complaints related to sources that were subject to the federal operating permit program. It also established a one-time supplemental fee at a base amount of \$1,256 plus \$9.49 per ton of each regulated pollutant during the 2016 calendar year. The bill also authorized the state to receive funds pursuant to the Volkswagen Environmental Mitigation Trust Agreement and set preferences for spending those funds.

[House Bill 2404-A](#)

Not Enacted

Well-Water Testing for Rental Properties**Chief Sponsors:** Rep. Lively; Sen. Roblan**Committees:** House Energy and Environment, Joint Ways and Means

Background and Current Law: Domestic well testing is the process of having an accredited laboratory test a water sample from a private well for possible contaminants, the most common being arsenic, nitrate, and total coliform bacteria. The testing of domestic well water is required by state law only during a real estate transaction. Property owners must communicate specific information about wells and the quality of water, within 90 days of receiving test results, to both the potential buyer and the Oregon Health Authority (OHA).

Bill Summary: House Bill 2404-A would have required landlords, who rent properties with drinking water from wells, to collect and test samples of drinking water for arsenic, total coliform bacteria, and nitrates on a specified schedule and report results to tenants and OHA. The measure would have authorized OHA to award grants and make loans for the installation of treatment systems, repair or replacement of wells, provision of ground water contaminant education, and conducting free or low-cost water tests.

[House Bill 2481](#)

Not Enacted

Low Carbon Fuel Standard Receipt Statement**Chief Sponsors:** Rep. Bentz**Committees:** House Energy and Environment

Background and Current Law: According to the Department of Environmental Quality (DEQ), approximately one third of Oregon's greenhouse gases are produced by the transportation sector. The 2009 legislature passed House Bill 2186 authorizing the Oregon Environmental Quality Commission to adopt rules to reduce the average carbon content of Oregon's transportation fuels by 10 percent over a 10-year period. The 2015 legislature passed Senate Bill 324 allowing DEQ to fully implement the Low Carbon Fuel Standard in 2016.

Bill Summary: House Bill 2481 would have required gas station owners or operators to print, on any receipt for a gasoline purchase provided to customers, the cost to the customer of the Low Carbon Fuel Standard per gallon of gasoline.

[House Bill 2669](#)

Not Enacted

Community Right to Know Program Modifications**Chief Sponsors:** Reps. Nosse, Keny-Guyer; Sen. Taylor**Committees:** House Energy and Environment

Background and Current Law: In 1985, the legislature passed the Oregon Community Right to Know and Protection Act to provide first responders and the public with information about hazardous substances in their response areas and neighborhoods. The act directs the Office of State Fire Marshal (OSFM) to survey business and government facilities for information about the presence of hazardous substances and to collect information about incidents. The Act further directs the OSFM to provide planning and training assistance to local jurisdictions on hazardous substance emergency response and preparedness. One year later, in 1986, the federal Emergency Planning and Community Right to Know Act (EPCRA) was passed, also requiring certain businesses to report information about the storage of hazardous substances to their state regulatory agency. In 1996, the City of Eugene established its own community right-to-know program by amendment to its city charter. It is overseen by a seven-member volunteer citizen board appointed by the Eugene City Council.

Bill Summary: House Bill 2669 would have increased the fee allowed for a community right-to-know regulatory program from \$2,000 to \$10,000 and required an assessment method for covered facilities that included the output of the facility and the number of full-time equivalent employees. In addition, the measure added "public concern" as an acceptable reason to establish a program and required all employers with a total annual output of more than 1,000 pounds of hazardous substances to report.

[House Bill 2711-A](#)

Not Enacted

Hydraulic Fracturing Moratorium**Chief Sponsors:** Reps. Helm, Lively**Committees:** House Energy and Environment, Senate Environment and Natural Resources

Background and Current Law: Hydraulic fracturing is a drilling technique that forces a mixture of liquids and other material under high pressure through rock to create or expand fractures in the rock. The fractured rock can release crude oil, natural gas, or geothermal energy that would not otherwise be accessible using conventional drilling techniques. Although the technology has existed since the 1960s, in recent years, the use of hydraulic fracturing in combination with advances in horizontal drilling has led to a major increase in U.S. oil and natural gas production.

Bill Summary: House Bill 2711-A would have imposed a statewide moratorium on hydraulic fracturing until 2027.

[House Bill 2725-A](#)

Not Enacted

Residential Solid Fuel Heating Air Quality Improvement Appropriation**Chief Sponsors:** Reps. Helm, Keny-Guyer, Greenlick, Johnson; Sen. Prozanski**Committees:** House Energy and Environment, Joint Ways and Means

Background and Current Law: Smoke created from wood burning can be a significant source of air pollution and can have health consequences for those with asthma, respiratory or heart conditions, and other illnesses. Under current law, individuals buying or selling a home with a wood stove or fireplace insert in Oregon must ensure it was certified to meet emissions performance standards at the time of manufacture. If it was not certified, state law requires it to be removed, destroyed, and disposed of when a home is sold. In 2009, the legislature established the Residential Solid Fuel Heating Air Quality Improvement Fund to reduce the emission of air contaminants by providing grants, loans, or other subsidies for the replacement or removal of noncertified solid fuel burning devices.

Bill Summary: House Bill 2725-A would have appropriated \$1 million from the General Fund to the Residential Solid Fuel Heating Air Quality Improvement Fund to support community efforts to improve economic development and public health by reducing air quality emissions from solid fuel burning devices that burn wood.

Rebates for Uncertified Solid Fuel Burning Devices

Chief Sponsors: Reps. Johnson, Keny-Guyer

Committees: House Energy and Environment, Senate Environment and Natural Resources

Background and Current Law: Smoke created from wood burning can be a significant source of air pollution and can have health consequences for individuals with asthma, respiratory or heart conditions, and other illnesses. Under current law, anyone buying or selling a home with a wood stove or fireplace insert in Oregon must ensure it was certified to meet emissions performance standards at the time of manufacture. If it was not certified, state law requires it to be removed, destroyed, and disposed of when a home is sold. In 2009, the Legislative Assembly established the Residential Solid Fuel Heating Air Quality Improvement Fund to reduce the emission of air contaminants by providing grants, loans or other subsidies for the replacement or removal of noncertified solid fuel burning devices.

A nonattainment area is a federal designation given to an area not meeting one or more National Ambient Air Quality Standards. Under U.S. Environmental Protection Agency rules, industries seeking to expand or open an operation in a nonattainment area may face more stringent requirements because of the nonattainment designation. Both Klamath Falls and Oakridge are currently designated as nonattainment areas, in part due to the large number of wood stoves present in these areas.

Bill Summary: House Bill 2748 modifies the Residential Solid Fuel Heating Air Quality Improvement Fund to include moneys received from any public or private source. The bill expands use of the fund through the issuance of rebates for programs designed to reduce the emission of air contaminants from solid fuel burning devices and providing grants, loans, rebates, or other subsidies to make dry wood or cleaner fuels available to communities or individuals. The measure requires the prioritization of grants, loans, or other subsidies to be used in nonattainment areas.

Oregon Laws 2017: Chapter 122

[House Bill 2954](#)

Not Enacted

Crescent Sanitary District Sewer System**Chief Sponsors:** Rep. McLane**Committees:** House Energy and Environment, Joint Ways and Means

Background and Current Law: Crescent, Oregon is located along the Highway 97 corridor between the Walker and Cascade Mountain ranges. The city does not have a citywide wastewater facility; instead, businesses and residents rely on individual septic systems. Many of these systems are aged and failing, and the resulting pollution of the local groundwater and the Deschutes River, with high levels of nitrates, has led the Oregon Department of Environmental Quality to place the Crescent area on a moratorium prohibiting the installation of any new septic systems. The Crescent Sanitary District is a volunteer board of directors comprised of community district members dedicated to finding a solution to the city's wastewater issues.

Bill Summary: House Bill 2954 would have appropriated \$5 million from the General Fund to the Oregon Department of Administrative Services for upgrading the Crescent Sanitary District sewer system.

[House Bill 3105-A](#)

Not Enacted

Household Hazardous Waste Product Stewardship Program**Chief Sponsors:** Reps. McLain, Keny-Guyer; Sens. Dembrow, Prozanski**Committees:** House Energy and Environment, Joint Ways and Means

Background and Current Law: Product stewardship programs require manufacturers to share in the financial and physical responsibility of collecting and recycling products at the end of their useful lives. There are two statewide product stewardship programs currently operating in Oregon addressing paint and electronic equipment.

In 2007, House Bill 2626 established a statewide program financed by manufacturers for recycling computers, monitors, and televisions. The program allows anyone bringing seven or fewer items at one time to recycle their electronics at no charge at participating collection sites. In 2015, computer peripherals (keyboards and mice) and printers were added to the program.

In 2009, House Bill 3037 created a paint stewardship pilot program to reduce the generation of post-consumer paint and required the creation of a stewardship organization made up of paint manufacturers to implement the program by developing a plan and funding its implementation. Under the legislation, consumers may take unwanted paint to locations throughout the state for disposal. The program was made permanent in 2013.

Bill Summary: House Bill 3105-A would have established a product stewardship program for household hazardous waste. The measure prohibited manufacturers or retailers from selling or offering for sale a "covered product" unless the covered product was labeled with a brand and the brand was included in a plan for a stewardship program. House Bill 3105-A would have required a stewardship organization to register annually with the Department of Environmental Quality.

[House Bill 3269](#)

Not Enacted

Oregon Climate Change Commission**Chief Sponsors:** Reps. Power, Helm; Sen. Taylor**Committees:** House Energy and Environment, House Rules

Background and Current Law: The Global Warming Commission, created in 2007 by House Bill 3543, consists of 11 voting members representing a variety of interests including energy, forestry, environment, and transportation. Seven state agencies serve as ex-officio members of the commission, three additional ex-officio members are appointed from a state agency or academic institution, and four additional ex-officio members are appointed from the Legislative Assembly. The Commission's general charge is to recommend ways to coordinate state and local efforts to reduce Oregon's greenhouse gas emissions consistent with Oregon's goals and to recommend efforts to help the state, local governments, businesses, and residents prepare for the effects of global warming.

Bill Summary: House Bill 3269 would have changed the name of the Oregon Global Warming Commission to the Oregon Climate Change Commission and required the commission to appoint an executive director. The measure also appropriated an unspecified amount from the General Fund to the commission for purposes related to the executive director.

[House Bill 3344](#)

Not Enacted

Bulk Coal or Oil Terminal Projects**Chief Sponsors:** Rep. Helm**Committees:** House Committee on Energy and Environment

Background and Current Law: On June 6, 2014, an Emergency Order issued by the U.S. Department of Transportation went into effect requiring railroad carriers operating trains transporting one million gallons or more of Bakken crude oil on a single train to provide information to the State Emergency Response Commission estimating volumes and frequencies of the train traffic implicated. In 2015, the legislature enacted House Bill 3225, which required the Office of the State Fire Marshal to adopt a plan for the coordinated response to an oil or hazardous material spill or releases that occur during rail transport.

Bill Summary: House Bill 3344 would have prohibited the Legislative Assembly from appropriating funds for any new bulk coal or oil terminal project for the biennium beginning July 1, 2017. The measure established a formula for calculating the cleanup cost of a "worst case spill" and requirements for an annual statement to be submitted to the Department of Environmental Quality from applicable rail carriers. The measure would have also required that the Department of State Lands use criteria to issue or renew removal-fill permits or leases for projects that facilitate the transportation of crude oil.

Adequate Coverage of Bottle Redemption Centers

Chief Sponsors: Rep. Johnson

Committees: House Energy and Environment

Background and Current Law: In 1971, Oregon enacted the “Bottle Bill,” which is the nation’s longest-standing deposit law. In 2007, the legislature expanded coverage of the five-cent beverage container deposit to include water and flavored water. In 2011, the legislature passed House Bill 3145, expanding the types of beverage containers subject to the deposit to include juices, teas and more; the measure also set a trigger for the deposit to increase to 10 cents if the recycling rate fell below 80 percent for two consecutive years, and set up a redemption center pilot project. In 2012, the legislature passed Senate Bill 1508 to provide incentives for a more efficient system for distributors to collect empty containers from stores. In 2013, Senate Bill 117 modified the redemption center program by removing its status as a pilot program and authorizing the Oregon Liquor Control Commission (OLCC) to approve additional centers. The redemption centers—known as “BottleDrops”—are operated and funded by the Oregon Beverage Recycling Cooperative in partnership with grocery retailers.

In 2016, the OLCC determined the redemption rate had fallen below 80 percent for two consecutive years, 2014 and 2015, triggering the increase of the refund value to 10 cents effective April 1, 2017. Additionally, on January 1, 2018, containers accepted for refund will expand to include any nondairy, nonliquor, nonwine beverage, or nonplant-based milk container for human consumption of at least 4 fluid ounces and less than 1½ fluid liters.

Bill Summary: House Bill 3349 would have required the OLCC to ensure that an adequate number of dealers and redemption centers existed in the state to provide convenient service to all persons in the state for the return of empty beverage containers prior to expanding the eligibility of containers for redemption.

Low Carbon Fuel Standard Compliance Credits

Chief Sponsors: Rep. Bentz

Committees: House Energy and Environment, House Rules

Background and Current Law: The Department of Environmental Quality (DEQ) reports that approximately one third of Oregon's greenhouse gases are produced by the transportation sector. The 2009 Oregon Legislative Assembly passed House Bill 2186 authorizing the Oregon Environmental Quality Commission to adopt rules to reduce the average carbon intensity of Oregon's transportation fuels by 10 percent over a 10-year period. The 2015 Oregon Legislative Assembly passed Senate Bill 324 allowing the DEQ to fully implement the low carbon fuel standard in 2016.

Bill Summary: House Bill 3386-A would have required the Environmental Quality Commission to adopt a program to facilitate compliance with the low carbon fuel standard that included provisions for regulated parties to purchase credits to demonstrate compliance with the standard.

Legislation modifying the low carbon fuel standard was included in [House Bill 2017](#).

2017 SUMMARY OF LEGISLATION



GOVERNMENT



GOVERNMENT MEASURES

Access to Information

Enacted: SB 106, SB 481, HB 2101,
HB 2874, HB 2946, HB 3060,
HB 3464

Not Enacted: SB 829, HB 2577-A

Miscellaneous

Enacted: SB 802, HB 2162, HB 2332,
HB 2901

Not Enacted: HB 2168, HB 2590

Regulatory Structures or Activities

Enacted: SB 227, SB 1022, HB 3203
HB 3377, HB 3434

Not Enacted: SB 649, SB 746, SB 872-A,
HB 2164, HB 2183, HB 2907

Resolutions, Memorials

Enacted: SCR 14, SCR 18, HCR 13,
HCR 19

Not Enacted: SCR 1, SCR 4, SJR 42, SJR 44
HCR 16, HCR 24-A, HJR 10

Revenue or Economic Development

Enacted: SB 254, HB 2833, HB 2899,
HB 2900, HB 2902, HB 3139,
HB 3350

Not Enacted: SB 89-A, HB 3374-A

Technology

Enacted: SB 90, HB 3213, HB 3268,
HB 3361

Not Enacted:

:

GOVERNMENT

TASK FORCES AND REPORTING REQUIREMENTS

The following bills created task forces and reporting requirements. Additional information is provided in the bill summaries.

HB 2101	Report on any changes in existing law, policy, and practice to enhance transparency and facilitate rapid fulfillment of public records requests	Subcommittee of the Legislative Counsel Committee on or by July 1 of each even numbered year

Efficient Collection of Debts to the State

At the Request of: Governor Brown for Oregon Department of Administrative Services

Committees: Senate General Government and Accountability, Joint Ways and Means

Background and Current Law: Oregon law currently allows state agencies to offer certain delinquent accounts for assignment to either the Oregon Department of Revenue (DOR) or to private collection agencies. If the state agency chooses a private collection agency, the private agency has “a reasonable time” to collect before the account is relinquished back to the state agency. If the state agency chooses DOR, DOR has six months to collect, and then the account is offered to a private collection agency.

Bill Summary: Senate Bill 89-A would have eliminated state agencies’ choice to offer certain delinquent debts to either DOR or to private collection companies, and centralized assignment with DOR. DOR would have been required to offer the accounts to private collection agencies if they were inactive for six months. The measure also would have clarified how state agencies could request disclosure of social security numbers from debtors and prohibited using social security numbers for debt collection purposes without proper notice unless otherwise permitted by law.

Consolidating and Strengthening Government Cybersecurity

At the Request of: Governor Brown for Oregon Department of Administrative Services

Committees: Senate General Government and Accountability, Joint Legislative Information Management and Technology, Joint Committee on Ways and Means

Background and Current Law: Executive Order (EO) 16-13 was implemented in response to recent information technology (IT) security audit findings, breaches, and other vulnerabilities among state executive branch entities, and directs the consolidation of IT security functions with the State Chief Information Officer (SCIO) according to timelines established by the SCIO. The state's IT security functions are currently the responsibility of each independent agency, an approach that is criticized for creating an environment where one agency can be put at risk because of deficiencies at another. Oregon also lacks a mechanism to exchange cybersecurity information across political subdivisions, and with the private sector and other partners in an organized and useful way.

Bill Summary: As introduced, the measure sought to create an Oregon Cybersecurity Center of Excellence within the office of the SCIO to: centralize cybersecurity information sharing between public and private sectors; serve as an "Information Sharing and Analysis Organization" for purposes of federal critical infrastructure protection programs; act as a liaison with the Department of Homeland Security and other entities concerning cybersecurity; and promote development of the cybersecurity workforce. As enacted, Senate Bill 90 requires state agencies and the SCIO to cooperatively develop and implement a plan to consolidate information technology security functions with the SCIO, including the transfer of personnel, records, and property. The measure also establishes the Oregon Cybersecurity Advisory Council to advise the SCIO on cybersecurity issues and to provide a forum for discussion. It further directs the SCIO to develop and submit a plan for the establishment of a Cyber Security Center of Excellence to the legislature by January 1, 2019.

Oregon Laws 2017: Chapter 513

Public Records Advocate

At the Request of: Governor Brown

Committees: Senate General Government and Accountability, Joint Ways and Means

Background and Current Law: In Oregon, as elsewhere, government records are available to the public unless they are exempt from disclosure. Each public body in Oregon maintains its own records and handles requests for access. They are required to have a process, available in writing, for those seeking access to request a copy of the records or an opportunity to inspect them. Public bodies are also required to respond in a reasonable amount of time and may recover costs associated with satisfying the request. If a public body asserts that an exemption applies, denying a request for records, the assertion may be appealed through the Oregon Department of Justice or a county district attorney at no cost (depending on the public body), and if that appeal is denied, it may be challenged in court. Denials of requests for public records by elected officials must be challenged in court directly, without an intermediate appeal. Although the majority of public records requests are satisfied without controversy, a certain number involve complexities that are not always capable of simple or rapid resolution.

Bill Summary: Senate Bill 106 establishes the office of Public Records Advocate located within the Secretary of State's Archives Division or within the Department of Administrative Services, to facilitate conflicts between those who request and those who hold public records, within 21 days of a written request from either party. The Advocate is authorized to make determinations about either party's good faith participation in facilitated dispute resolution, and the measure provides for remedies and an appeal process. The measure also creates a Public Records Advisory Council to make recommendations at least every even-numbered year concerning the Advocate's role, and the practices, procedures, exemptions, and fees related to public records.

Oregon Laws 2017: Chapter 728

Searchable Online Database of Administrative Rules

At the Request of: Secretary of State Atkins

Committees: Senate General Government and Accountability, House Rules

Background and Current Law: The Secretary of State's Archives Division is nearing completion of a fully searchable online database of Oregon Administrative Rules (OAR), expected to be completed by June 30, 2017. The electronic database was developed to permit the rulemaking process, from original action through publication and updating, to be automated and maintained in one place. However, statutes that govern rulemaking still contemplate a manual process, requiring, for example, manual filing of rules and an annually printed compilation of OARs.

Bill Summary: Senate Bill 227 updates statutes governing rulemaking to be consistent with the use of digital technology and current practice. The measure: authorizes rulemaking by the Secretary of State (SOS) as to the form of filings; requires electronic transmission between the SOS and the Legislative Counsel (LC) within ten days of filing rule adoptions, changes, and repeals; requires the SOS to notify agencies when a rule has been transmitted to the LC; and requires agencies to report their five-year rule reviews to the SOS.

Oregon Laws 2017: Chapter 518

Efficient and Increased Collection of Debts to the State

Chief Sponsors: Sens. Taylor, Johnson; Rep. Nathanson

Committees: Senate General Government and Accountability, Joint Ways and Means

Background and Current Law: Liquidated and delinquent debt owed to the state of Oregon totals about \$3.3 billion; the Oregon Department of Revenue (DOR) alone is owed over \$600 million. Oregon does not currently permit DOR to use financial institution data matching (FIDM) programs for debt collection purposes. If the location of a debtor's funds are not known, DOR must guess which institution the debtor might use, and issue a garnishment. The financial institution then conducts a search upon receipt of the garnishment, to determine whether the debtor has an account. DOR pays the fee to conduct the search and the cost is added to the delinquent balance owed the state. In Oregon, only the Oregon Department of Justice (DOJ) uses FIDM programs, in addition to receiving federally mandated reports from employers on all newly hired and rehired personnel (for child support enforcement purposes). To improve the efficiency of garnishments, potentially increase collections and relieve financial institutions from conducting unnecessary searches, the State Debt Collection Audit issued by the Secretary of State in 2015 recommended allowing DOR to use FIDM programs and to access new hire information available to DOJ.

Bill Summary: Senate Bill 254 requires financial institutions to use DOR's data match system to identify delinquent debtors' accounts on a regular, scheduled basis (once per quarter), with exceptions for institutions where it would not be cost-effective, or those experiencing financial hardship. DOR is directed to reimburse financial institutions up to \$2,500 for start-up costs and up to \$150 per quarter. The measure provides immunity from liability for financial institutions complying in good faith, and protects against misuse of information by providing for a penalty of up to \$2,500 for unauthorized disclosures to delinquent debtors, and up to \$1,000 for other unauthorized disclosures. The measure also creates a Class C felony for unauthorized use or disclosure of information by a state officer or employee, which would also subject employees to dismissal and prohibit them from public office for five years. Finally, Senate Bill 254 authorizes DOJ's Division of Child Support to share information with DOR about new and rehired employees, but prioritizes collection of delinquent child support obligations enforced by DOJ, before DOR may act to collect other debt. These provisions become operative July 1, 2018.

Oregon Laws 2017: Chapter 644

Improvement of Public Records Response

At the Request of: Attorney General Rosenblum

Committees: Senate General Government and Accountability, House Rules

Background and Current Law: In Oregon, as elsewhere, government records are available to the public unless they are exempt from disclosure. Each public body in Oregon maintains its own records and handles requests for access. They are required to have a process, available in writing, for those seeking access to request a copy of the records or an opportunity to inspect them. Public bodies are also required to respond in a reasonable amount of time and may recover costs associated with satisfying the request. If a public body asserts that an exemption applies, denying a request for records, the assertion may be appealed through the Oregon Department of Justice or a county district attorney at no cost (depending on the public body), and if that appeal is denied, it may be challenged in court. Denials of requests for public records by elected officials must be challenged in court directly, without an intermediate appeal. Although the majority of public records requests are satisfied without controversy, a certain number involve complexities that are not always capable of simple or rapid resolution.

Bill Summary: Senate Bill 481 modifies the existing requirement that public bodies respond to requests for public records within a reasonable time frame by adding deadlines. The bill requires public bodies to acknowledge requests within five business days, and complete them as soon as practicable, but no later than 10 business days after the acknowledgement. The five- and ten-day deadlines may be exceeded for specified reasons, but the public body must inform the requester and provide a reasonable, estimated completion date. The bill encourages communications between the public body and the requester to clarify requests and to keep the requester informed, and it requires detailed explanations if a request is denied or the public body is unable to satisfy it for other reasons. Senate Bill 481 also permits requesters to seek review for noncompliance and to challenge the reasonableness of estimated completion dates, in addition to denials. It further provides for the establishment of a publicly available, comprehensive list of statutory exemptions in a searchable format, and protects public bodies from liability for any damage caused by disclosures made in good faith.

Oregon Laws 2017: Chapter 456

[Senate Bill 649](#)

Not Enacted

New State Board of Education**Chief Sponsors:** Sen. Kruse**Committees:** Senate Education, Senate Rules

Background and Current Law: The legislature created the State Board of Education in 1951. The Board has seven members, appointed by the Governor and confirmed by the Senate. Five members represent Oregon's congressional districts, and two members represent the entire state. Members serve four-year terms, and are limited to two consecutive terms. The Board meets at least six times per year, open to the public, and is responsible for adopting administrative rules that govern operation of Oregon's 197 public school districts and 20 educational service districts. Senate Joint Resolution 37, introduced in 2017, amends the state constitution to create a new State Board of Education with alternate responsibilities, including the appointment of the Superintendent of Public Instruction, who oversees education and establishes education policy for the state.

Bill Summary: Senate Bill 649 would have taken effect if Senate Joint Resolution 37 was enacted and then approved by voters at the next regular general election. The bill would have required the new board to have 11 members, appointed by the Governor and confirmed by the Oregon Senate, and established membership requirements, term limits, and a process for the removal of members. The bill also made the new board responsible for appointing the Superintendent of Public Instruction, among other duties.

[Senate Bill 746](#)

Not Enacted

Election of Statewide Superintendent of Public Instruction**Chief Sponsors:** Sen. Roblan; Rep. Doherty**Committees:** Senate Education, Senate Rules

Background and Current Law: From 1873 until 2012, Oregon's Superintendent of Public Instruction was a nonpartisan, statewide elected office. In 2011, as part of a reorganization of Oregon's education system, the legislature passed a package of bills transferring the superintendent's duties to the Governor, assisted by a Deputy Superintendent and a seven-member State Board of Education. The Governor assumed these duties in 2012 and has been the state's Superintendent since, with a Deputy Superintendent appointed to manage the Oregon Department of Education.

Bill Summary: Senate Bill 746 would have established the Superintendent of Public Instruction as a statewide, nonpartisan, elected office, with a four-year term, to manage the Oregon Department of Education. It would have required the Superintendent to have at least five years of experience as a teacher or administrator in a public elementary or secondary school, and directed an election to be held at least two years after the Governor notifies the legislature of the current Deputy Superintendent's departure or in the 2026 general election, whichever was earlier. The measure also would have replaced the current seven-member State Board of Education with an 11-member board on January 7, 2019, consisting of six nonpartisan elected members and five members appointed by the Governor and confirmed by the Oregon Senate. At least three of the elected board members were required to have at least five years of experience as teachers or administrators in public elementary or secondary schools, and the Governor was directed to nominate members from each congressional district and to consider appointees from a 15-person list submitted by labor organizations representing school employees. The measure also would have authorized the Superintendent to seek and lobby for legislation without the Governor's approval.

[Senate Bill 802](#)

Effective Date: January 1, 2018

Voter Registration Expansion**Chief Sponsors:** Sens. Taylor, Steiner Hayward, Manning, Jr.; Rep. Lininger**Committees:** Senate Rules, House Rules

Background and Current Law: To register to vote in Oregon, a person must be a resident, at least age 17, and a United States citizen. However, though registered, they will not receive a ballot until an election occurs on, or after, their 18th birthday, when they become eligible to vote. Allowing people to register in advance of their 18th birthday makes it possible for them to vote in the first election they are legally eligible to participate in, even if their birthday occurs after the voter registration deadline.

Bill Summary: Senate Bill 802 permits a person age 16 years or older to register to vote.

Oregon Laws 2017: Chapter 468

[Senate Bill 829](#)

Not Enacted

Closed-Captioning Public Meetings

Chief Sponsors: Sens. Gelser, Knopp, Manning Jr.; Rep. Noble

Committees: Senate General Government and Accountability, Joint Ways and Means

Background and Current Law: Oregon does not provide centralized assistive services for deaf, deaf-blind and hard of hearing persons to access the policymaking process.

Bill Summary: Senate Bill 829 would have required closed-captioning of all legislative and executive branch video transmissions starting January 1, 2018.

[Senate Bill 872-A](#)

Not Enacted

Establishes the Oregon Department of Information Technology

At the Request of: Joint Information Management and Technology

Committees: Senate General Government and Accountability, Joint Legislative Information Management and Technology, Joint Ways and Means

Background and Current Law: There is a long-standing trend among state and local governments across the country to consolidate information technology and telecommunications functions. The trend toward consolidation is motivated by multiple factors including: the pace of technological evolution; security and interoperability concerns; pressure to control spending; and a desire to improve public services and the public's interaction or experience with government bodies. In addition, state and local governments are working to improve efficiencies by sharing data, infrastructure, technology resources, and data management across agencies and political subdivisions to improve emergency communications, disaster resilience, and continuity of government.

Bill Summary: Senate Bill 872-A would have transferred all information technology and telecommunications powers and responsibilities from the Department of Administrative Services to a new stand-alone agency: the Oregon Department of Information Technology.

Elimination of Inactive Boards and Commissions

At the Request of: Senate General Government and Accountability

Committees: Senate General Government and Accountability, House Rules

Background and Current Law: During the 2016 interim, staff in the Legislative Policy and Research Office were directed to identify inactive or obsolete boards and commissions for potential repeal from statute. Data was developed identifying 252 government boards and commissions (excluding commodity commissions) based primarily on the 2015-2017 Legislative Fiscal Office Detailed Budget Analysis, the Governor's 2015 Board Book, and the 2012 Secretary of State Boards and Commissions Audit. Of the 252 boards and commissions, 46 showed no evidence of activity within the previous year. The number was reduced to 29 after eliminating entities that were: created by executive order or federal law; required to receive federal dollars; licensed professions; or possibly convened intermittently by design. After conducting outreach, 25 were identified for potential elimination. The Office of the Legislative Counsel further reduced the number to 19, respecting the formalities of interstate compact language, and over the course of public hearings on the measure, the final number was reduced to 11.

Bill Summary: Senate Bill 1022 sunsets the following 11 government boards and commissions: the Baseball Advisory Committee; the Board of Directors of the Oregon School for the Deaf; the Committee on Performance Excellence; the Governor's Council on Oregon's Economy; the Military Council; the Natural Resources Policy Administrator; the Oregon Progress Board; the Outdoor Youth Program Advisory Board; the Public Officials Compensation Commission; the Task Force on Military Families; and the Western States Legislative Forestry Task Force.

Oregon Laws 2017: Chapter 532

[Senate Concurrent Resolution 1](#)

Not Adopted

Designation of Kiger Mustang as Official State Horse

Chief Sponsors: Sens. Devlin, Hansell

Committees: Senate Rules

Background and Current Law: Kiger Mustangs are a distinct breed of wild Mustang located in the Steens Mountain area of southeastern Oregon that are associated with settlement of the western United States. Kiger Mustangs are generally medium sized and dun-colored, with distinctive facial features and many of the physical characteristics of Spanish Mustangs – small, round bones, small feet and very little feather on their legs and fetlocks. In the 1970s, the Bureau of Land Management (BLM) was charged with managing the Kiger population. Kiger Mustangs are currently protected within the Kiger and Riddle Mountain Herd Management Areas. In order to preserve the breed while maintaining genetic diversity, the BLM introduces high quality Spanish type wild horses and monitors the herd’s genetic markers. The Kiger population remains robust, intelligent, and athletic, and Kiger Mustangs with highly prized primitive markings endure as a classic symbol of the West.

Bill Summary: Senate Concurrent Resolution 1 would have designated the Kiger Mustang as the official state horse of Oregon.

[Senate Concurrent Resolution 4](#)

Not Adopted

Designation of Border Collie as Official State Dog

Chief Sponsor: Sen. Hansell

Committees: Senate Rules

Background and Current Law: Border Collies are a breed of working and herding dogs that originated on the border of England and Scotland. They were brought to Oregon from Europe during westward expansion. Historically, Border Collie breeding selection was based on their willingness and ability to follow directions, their instinctive understanding of how livestock behave, and their stamina on rugged terrain. As a result, Border Collies became known for their tireless work ethic and extraordinary ability to control livestock.

Bill Summary: Senate Concurrent Resolution 4 would have designated the Border Collie as Oregon’s official state dog.

Recognition of Japanese American Internment Survivors

Chief Sponsors: Sens. Dembrow, Monnes Anderson, Thomsen; Rep. Clem

Committees: Senate Rules, House Rules, Conference Committee on SCR 14

Background and Current Law: More than 4,000 Oregonians of Japanese ancestry endured racial segregation and removal to internment camps during World War II, pursuant to Executive Orders 9066 and 9102, signed by President Roosevelt on February 19 and March 18, 1942, respectively. Order 9066 was suspended by President Roosevelt in 1944. World War II ended in 1945, and the last internment camp, Tule Lake, about forty miles southeast of Klamath Falls, Oregon, near the town of Tulelake, California, closed March 20, 1946. Order 9102 was terminated by President Truman on June 26, 1946. The original order authorizing internment, Executive Order 9066, was not formally rescinded until 1976 by President Ford, exactly 30 years after it was issued. In 1980, President Carter requested an official study of Order 9066 and its impact on Japanese Americans and native Alaskans: the Commission on Wartime Relocation and Internment of Civilians issued its final report in 1982, concluding that incarceration was a “grave injustice.” In 1988, President Reagan signed the Civil Liberties Act into law, extending a formal apology and offering some financial compensation to surviving internees.

Bill Summary: Many Japanese Americans observe February 19th – the anniversary of the signing of Executive Order 9066 – as a Day of Remembrance every year, to honor internees and their families and educate the public. Today, a copy of the Civil Liberties Act is on display at the National Archives alongside Executive Order 9066. Senate Concurrent Resolution 14 recognizes the historical significance of February 19, 1942, acknowledges the 75th anniversary of Japanese American internment during World War II, and honors civilian internees and Japanese American World War II veterans.

Senate Concurrent Resolution 18**Filed on July 18, 2017****Designation of Official State Birds****Chief Sponsors:** Sens. Girod, Steiner Hayward**Committees:** Senate Rules, House Rules

Background and Current Law: The western meadowlark was first chosen as Oregon's state bird in 1927 by school children across the state in a poll sponsored by the Oregon Audubon Society. The western meadowlark is a colorful member of the blackbird family with a vibrant yellow breast crossed by a distinctive black, V-shaped band, although they are more likely to be heard than seen: they are renowned for their distinctive flute like song. Oregon shares recognition of the western meadowlark with Kansas, Montana, Nebraska, North Dakota, and Wyoming. With the passage of Senate Concurrent Resolution 18, Oregon's designation of the western meadowlark will be distinct in naming it the official state songbird.

The osprey is a day-hunting, fish eating bird of prey whose range extends across the United States and beyond. According to the United States Geological Survey (USGS), ospreys were first documented in Oregon in 1855. Historically, their populations were reported as robust, nesting in forested areas near water, but during the 1970s, the population declined due to use of a certain pesticide. Ospreys have since rallied and can now be found nesting along the lower Columbia and Willamette rivers. The USGS determined that the number of pairs nesting along the Willamette River, between Eugene and Portland, increased from 13 to 78 between 1976 and 1993, and increased to 234 pairs by 2001.

Bill Summary: Senate Concurrent Resolution 18 designates the western meadowlark as Oregon's official state songbird, and the osprey as Oregon's official state raptor.

Senate Joint Resolution 42**Not Adopted****Restriction of Legislative Measures Introduced****Chief Sponsors:** Sen. Thatcher; Rep. Nearman**Committees:** Senate Rules

Background and Current Law: Prior to introduction, legislative measures in Oregon are typically referred to as legislative concepts or drafts. Individual legislators and committees are permitted to have legislative concepts drafted, along with the Executive and Judicial departments, the Secretary of State, the State Treasurer, the Attorney General, and the Commissioner of Labor. Any of these requesters, and also multiple legislators, may also be listed as the sponsor of a concept. Sponsors may also have legislative concepts drafted "at the request of" a particular agency, group, or individual. Draft requests must include the name of any public agency, private organization, or individual other than a legislator who has made the request. Approximately 3,000 measures are introduced in the Oregon legislature each session.

Bill Summary: Senate Joint Resolution 42 would have proposed an amendment to the Oregon Constitution for referral to voters for their approval or rejection at the next general election that would have precluded legislative committees from introducing legislative concepts and required introduction by a Senator or Representative.

[Senate Joint Resolution 44](#)

Not Adopted

Removal of Outdated References from Oregon's Constitution

Chief Sponsors: Sen. Boquist

Committees: Senate Rules

Background and Current Law: The Oregon Constitution prohibits a person who has agreed to, challenged another to, or participated in a duel from holding office. At least seven other states have similar statutory or constitutional prohibitions. The most notorious American duel occurred in 1804 between two political rivals, former Secretary of the Treasury Alexander Hamilton and seated Vice President of the United States Aaron Burr. The duel resulted in Alexander Hamilton's death. According to *A History of Oregon, 1792-1849* by William Henry Gray, references to dueling in Oregon go back to the state's provisional government in 1845, when a bill to prohibit dueling was drafted by committee and reportedly signed by the Governor within half an hour.

Bill Summary: Senate Joint Resolution 44 would have proposed an amendment to the Oregon Constitution for referral to voters for their approval or rejection at the next regular general election that, if approved, would have removed references to dueling.

Review of Public Records Exemptions

Chief Sponsors: Rep. Huffman

Committees: House Rules, Joint Ways and Means

Background and Current Law: In Oregon, as elsewhere, government records are available to the public unless they are exempt from disclosure. Each public body in Oregon maintains its own records and handles requests for access. They are required to have a process, available in writing, to request a copy of the records or an opportunity to inspect them. Public bodies are also required to respond in a reasonable amount of time and may recover costs associated with satisfying the request. If a public body asserts that an exemption applies, denying a request for records, the assertion may be appealed through the Oregon Department of Justice or a county district attorney at no cost (depending on the public body), and if that appeal is denied, it may be challenged in court.

There are two categories of public records that are exempt from disclosure. The first may be released upon a showing that the public interest requires disclosure (ORS 192.501), such as information about active litigation, trade secrets, investigative reports in criminal proceedings, and electors' residential addresses. The second are those that require a particularized showing in order to warrant being made public (ORS 192.502), such as advisory communications where the public interest outweighs the interest in frank discussions, medical or other similar personal information where the public interest is clear and convincing and does not constitute an unreasonable invasion of privacy, and the private addresses, phone numbers, and dates of birth of public employees and volunteers, where the public interest is shown by clear and convincing evidence.

The majority of public records requests are satisfied without controversy, but some involve complexities that are not always capable of simple or rapid resolution. Conflicts can arise between those seeking information, those in possession of information, and those who are the subject of the information.

Bill Summary: House Bill 2101 establishes a process for the regular legislative review of longstanding and proposed exemptions to requests for public records. The measure creates a four member public records subcommittee of the Legislative Counsel Committee and a 15 member Oregon Sunshine Committee (OSC) to work in coordination on a review of public records exemptions by December 31, 2026. The OSC will submit a biennial report to the subcommittee recommending retention, amendment, or repeal of recently reviewed public records exemptions. The subcommittee may then accept, modify, or reject recommendations contained in the OSC report, prior to submitting the report to the Legislative Counsel Committee. In addition, House Bill 2101 creates an open government impact statement to be prepared by the Office of the Legislative Counsel, for each measure reported out of a legislative committee that impacts the disclosure of public records. The statement must describe how the measure changes existing standards regarding disclosure, and its impact on the public interest.

Oregon Laws 2017: Chapter 654

[House Bill 2162](#)

Effective Date: October 6, 2017

Apprenticeship Utilization in State Contracts**At the request of:** House Interim Committee on Business and Labor**Committees:** House Business and Labor, Senate Workforce

Background and Current Law: Apprenticeships are occupational career training that combines on-the-job training experience with classroom instruction. Apprentices usually begin at half the salary of certified “journey” workers. Apprenticeship committees, made up of employee and employer representatives, operate apprenticeship programs. Apprenticeships are typically two to five years long, depending on industry requirements, and are highly competitive, with waiting periods of up to two years. The Apprenticeship and Training Division of the Bureau of Labor and Industries registers apprentices, works with industry to establish apprenticeship programs, and monitors apprenticeship committee compliance.

Bill Summary: House Bill 2162 requires a contractor who is awarded a state public improvement contract worth at least \$5 million, and a subcontractor with a subcontract worth over \$1 million or 25 percent of the contract price, to employ apprentices to perform 10 percent of the work hours that workers in apprenticeable occupations perform on that contract. In 2022, the percentage increases to 12 percent and the contract size threshold drops to \$3 million. Contracts with the Oregon Department of Transportation are exempt, as are emergency procurements. The measure establishes a six-member advisory committee to monitor implementation and compliance and to advise the Legislative Assembly on subsequent changes to improve implementation.

[House Bill 2164](#)

Not Enacted

E-Permitting System for Building Codes Division**At the request of:** House Interim Committee on Business and Labor**Committees:** House Business and Labor

Background and Current Law: In 2003, the Department of Consumer and Business Services (DCBS) worked with local governments and contractors to implement a pilot project for an electronic building permit system referred to as “e-permitting.” The system allows contractors to apply for, pay for, and receive building permit approvals online and around the clock. Legislation, passed in 2005 and 2007, transitioned the program from pilot to a regional, then statewide, service to contractors and local governments with a sunset date in 2018. In 2015, the Legislative Assembly removed the sunset and reduced the surcharge that supports the e-permitting system. Use of the system by cities and counties is voluntary, and DCBS is prohibited from taking any adverse action against an entity that chooses not to use the system.

Bill Summary: HB 2164 would have required cities, counties, and other government entities that administer and enforce building inspection programs to provide electronic access to building code information and services by January 1, 2020. The measure would have allowed municipalities to use the Building Codes Division e-permitting system or develop their own equivalent system.

[House Bill 2168](#)

Not Enacted

Equipment Used By Building Inspectors

At the request of: House Interim Committee on Business and Labor

Committees: House Business and Labor

Background and Current Law: Building inspectors do not always bring equipment to the work site to assist them in the performance of inspections. For example, an inspector who needs to access the roof may rely on the contractor's ladders or lifts. If an accident occurs while the building inspector is using the contractor's ladder, it is unclear who is liable.

Bill Summary: House Bill 2168 would have clarified that the building inspector assumes the risk of injury when using equipment belonging to the contractor, subcontractor, material supplier, or property owner.

[House Bill 2183](#)

Not Enacted

Plan Review and Inspection of Health Care Facilities

At the request of: House Interim Committee on Business and Labor

Committees: House Business and Labor

Background and Current Law: The plan review and inspection of health care facilities is performed by the Office of the State Fire Marshal, a responsibility typically held by the Department of Consumer and Business Services' Building Codes Division. In 2015, a work group was formed to improve this process with four agencies involved: Oregon Health Authority, Oregon Department of Human Services, Department of Consumer and Business Services, and the Office of the State Fire Marshal. The Oregon Health Authority contracted with a business management consulting firm to provide an independent analysis and to make recommendations. The resulting recommendations are currently being implemented by the Oregon Health Authority, Oregon Department of Human Services, and the Office of the State Fire Marshall.

Bill Summary: House Bill 2183 would have transferred the duty of reviewing plans and inspecting health care facilities from the State Fire Marshal to the Department of Consumer and Business Services.

Ratio of State Employees to Supervisory Employees

At the request of: Governor Brown for Oregon Department of Administrative Services

Committees: House Rules, Senate General Government and Accountability

Background and Current Law: Since 2011, the Legislative Assembly has adopted four measures to address concerns that Oregon state agencies have experienced a decrease in the number of employees supervised by each manager, leading to operational inefficiencies and increased personnel costs. House Bill 2020 (2011) required the Department of Administrative Services (DAS) to report to the Joint Committee on Ways and Means on the ratio of supervisory employees to nonsupervisory employees, and to develop a plan for agencies with more than 100 employees to attain a ratio of at least 11 to 1. In 2012, legislation excluded a number of public entities from the 11 to 1 ratio requirement, and provided direction to state agencies not yet attaining the prescribed ratio, including to lay off or reclassify supervisory employees in some circumstances. It also prohibited state agencies from filling supervisory positions until they increased the ratio of nonsupervisory employees by at least one, although DAS could grant exceptions. House Bill 3165 (2013) replaced DAS' general authority to grant exceptions with specific language identifying circumstances under which agencies could qualify. The fourth measure passed in 2015, delaying implementation of the 11 to 1 ratio until June 30, 2017. During the two-year delay, agencies were prohibited from reducing the ratio of nonsupervisory to supervisory employees unless DAS granted an exception; DAS was required to monitor and report on ratios quarterly, and if an agency increased its ratio of nonsupervisory to supervisory employees, the increase would count after the end of the delay. DAS also convened a work group to study and report on appropriate staffing ratios to the 2017 legislature.

Bill Summary: House Bill 2332 requires state agencies with more than 100 employees to develop proposed, maximum supervisory ratios and report them to the Joint Committee on Ways and Means as part of the agency's legislatively adopted budget. Agencies must start with the 11 to 1 ratio and are allowed to make adjustments based on some or all of the following factors: safety of the public or state agency employees; geographic location of agency employees; complexity of agency duties; industry best practices and standards; size and hours of operation; unique personnel needs, including the agency's use of volunteers or seasonal or temporary employees, or the exercise of supervisory authority by agency employees over personnel who are not agency employees; and the financial scope and responsibility of the agency. The measure requires the committee to review the maximum supervisory ratios reported by each agency and include ratio information in a budget report or note. Agencies whose actual supervisory ratios are greater than their proposed maximum supervisory ratios are prohibited from filling supervisory positions unless DAS determines that doing so is reasonably necessary. DAS is also required to notify all labor organizations representing agency employees, at least five business days before granting an exception.

Oregon Laws 2017: Chapter 285

Expansion of Lobbyist Disclosure Requirements

Chief Sponsors: Rep. Rayfield; Sens. Manning, Jr, Riley, Thatcher

Committees: House Rules, Senate Rules

Background and Current Law: People are currently required to register as lobbyists with the Oregon Government Ethics Commission (OGE) within three business days after: exceeding an aggregate amount of 24 hours during any calendar quarter lobbying; spending an aggregate amount in excess of \$100 lobbying during any calendar quarter; or agreeing to provide personal services for money (or any other consideration) for the purpose of lobbying. Lobbyists are required to file quarterly reports that include amounts expended for food, refreshments, and entertainment for the purpose of lobbying, and the name of any legislative or executive official to whom or for whose benefit, on any one occasion, an expenditure is made for the purposes of lobbying. If the expenditure exceeds \$50 by one or more persons on any one occasion, then the date, name of payee, purpose, and amount of that expenditure must also be reported. This information, and information reported on total expenditures made by clients to lobbyists and lobbying organizations, is currently available in a public, searchable database.

Bill Summary: House Bill 2577-A would have expanded the reporting requirements for lobbyists to include specific information about lobbying activities on specific legislative measures and legislative topics, including each measure lobbied, whether in favor or against, and whether the lobbyist sought amendments. The measure would also have expanded the functionality of the OGE database to account for this new information, and to improve the public's ability to search for and view information about payments made to lobbyists. Finally, the measure would have established an Advisory Committee on Lobbying Transparency to advise and assist in the development, design, testing, and implementation of the expanded database.

[House Bill 2590](#)

Not Enacted

Recovery Assistance for Umpqua Community College**Chief Sponsors:** Reps. Hayden, Heard; Sens. Kruse, Prozanski**Committees:** House Rules, Joint Ways and Means

Background and Current Law: On October 1, 2015, a student at Umpqua Community College killed nine people in a classroom and then himself. Funds were appropriated to the college to pay for site cleanup and increased security. Shortly after the attack, the Community Health and Recovery Team (CHART) formed. CHART is a coalition of agencies and organizations involved in the recovery effort. CHART's governing structure and organizational support is provided by The Leadership Council (TLC), which includes local leaders and decision-makers who represent the community. TLC has developed a recovery framework to help the community heal and has worked with the U.S. Department of Justice's Office for Victims of Crime to apply for grants from the Antiterrorism Emergency Assistance Program (AEAP) to meet the community's current needs. TLC has also identified service gaps and long-term community needs not included as part of the AEAP grant criteria.

Bill Summary: House Bill 2590 would have appropriated \$3 million from the General Fund to meet the recovery needs of the community impacted by the shooting at Umpqua Community College.

[House Bill 2833](#)

Effective Date: October 6, 2017

Clarifying Property Tax Exemptions in Enterprise Zones**At the request of:** House Committee on Revenue**Committees:** House Economic Development and Trade, Senate Finance and Revenue

Background and Current Law: The last major update of statutes governing enterprise zones occurred in 2003 with House Bill 2299. Since that time, several potential issues have been identified through litigation and operational practices, and Business Oregon worked with the Legislative Revenue Office to address them.

Bill Summary: House Bill 2833 makes technical corrections and clarifications in statutes governing property tax exemptions in enterprise zones.

Oregon Laws 2017: Chapter 83

[House Bill 2874](#)

Effective Date: October 6, 2017

Exemption from Disclosure of Emails in Possession of Legislative Department

At the request of: House Committee on Rules

Committees: House Rules, Senate General Government and Accountability

Background and Current Law: A member of the public may sign up through the Oregon legislature's website to receive a variety of information via email automatically, including materials directly from individual state Senators and Representatives, agendas from legislative committees, notifications about legislative employment opportunities, and updates on specific measures as they move through the legislative process. The email address an individual provides to receive these alerts and notifications is in the possession of the legislative department. Current law only protects email addresses from automatic disclosure as public records that are in the possession of the executive department, local governments, local service districts, and other special government bodies.

Bill Summary: House Bill 2874 adds email addresses in the possession of the legislative department to the exemption that already exists for email addresses in the possession of the executive branch, to protect them from automatic disclosure as public records. The exemption applies to email addresses in the possession of the Legislative Assembly, the committees of the Legislative Assembly, and all administrative divisions of the Legislative Assembly and its committees, whether identified as boards, commissions, departments, or by any other designation. The measure allows current legislative officeholders to disclose email addresses that receive the officeholder's newsletter, if requested by the campaign office of a candidate for office or another current officeholder, but prohibits the requester from making further disclosure.

Oregon Laws 2017: Chapter 475

[House Bill 2899](#)

Effective Date: January 1, 2018

Port Agreements

Chief Sponsors: Rep. Boone

Committees: House Economic Development and Trade, Senate Business and Transportation

Background and Current Law: Oregon law allows units of local government to enter into all manner of intergovernmental agreements for a variety of purposes, but ports are restricted to intergovernmental agreements that improve or maintain bays, harbors, channels, banks, or shores.

Bill Summary: House Bill 2899 allows ports to enter into the same intergovernmental agreements as other units of local government.

Oregon Laws 2017: Chapter 84

[House Bill 2900](#)

Effective Date: January 1, 2018

Port Advertising

Chief Sponsors: Reps. Boone, DB Smith; Sen. Kruse

Committees: House Economic Development and Trade, Senate Business and Transportation

Background and Current Law: Under Oregon law, a port can advertise and promote its own facilities and commerce, but it is not specifically allowed to promote its activities or the activities of others using the port.

Bill Summary: House Bill 2900 allows ports to advertise their own activities and the activities of those using port facilities.

Oregon Laws 2017: Chapter 85

[House Bill 2901](#)

Effective Date: January 1, 2018

Port Appraisal

Chief Sponsors: Rep. Boone; Sen. Kruse

Committees: House Economic Development and Trade, Senate Business and Transportation

Background and Current Law: Currently, a port is required to get a second appraisal on all purchases of real property greater than \$500,000. The \$500,000 limit has been the statutory requirement since 1993. It is difficult for some Oregon ports in rural areas to find multiple qualified appraisers of port and marine property to acquire a second appraisal.

Bill Summary: House Bill 2901 raises the threshold for ports to obtain second appraisals on real property to \$2 million.

Oregon Laws 2017: Chapter 86

[House Bill 2902](#)

Effective Date: January 1, 2018

Public Shipyard Ownership

At the request of: Rep. Gomberg for Oregon Public Ports Association

Committees: House Economic Development and Trade, Senate Business and Transportation

Background and Current Law: Shipyards are facilities that construct, repair, and maintain watercraft. Under current Oregon law, ports are not specifically allowed to acquire, build, or operate shipyards.

Bill Summary: House Bill 2902 allows ports to acquire, construct, maintain, and operate shipyards.

Oregon Laws 2017: Chapter 165

[House Bill 2907](#)

Not Enacted

Third-Party Building Inspectors

Chief Sponsors: Rep. Rayfield; Sen. Gelser

Committees: House Business and Labor

Background and Current Law: A pilot program, created in 2009, was designed to address the shortage in some regions of the state of building inspectors in various specialty codes. The program cross-trains building inspectors so an inspector can perform an inspection in more than one specialty code, referred to as specialized building inspectors. Legislation in 2013 provided permanency for the program and granted authority to the Department of Consumer and Business Services to certify building inspectors in multiple specialty codes or parts of a specialty code. This language had the effect of requiring the specialized building code inspector to be an employee of the municipality for which it was performing inspections.

Bill Summary: House Bill 2907 would have allowed specialized building inspectors to be third-party contractors with a municipality, rather than employees of the municipality.

[House Bill 2946](#)

Effective Date: January 1, 2018

Expanding Information Included on Oregon Transparency Website

Chief Sponsors: Reps. Whisnant, Holvey; Sens. Thatcher, Roblan

Committees: House Rules, Senate Rules

Background and Current Law: The Oregon Transparency website was established in 2009 to make information about state agency revenues, expenditures, contracting, human resources, and other data publicly available at one internet location. Since its inception, the legislature has expanded materials and links that are posted on the website to include information about education service districts, Oregon Administrative Rules and agency rulemaking processes, local governments, special districts, and quasi-public agencies. Individuals can find information about public meetings, state budget processes, Oregon's revenue system, legislatively adopted budgets versus governors' proposed budgets, state agency and school district expenditure reports, and more.

Bill Summary: House Bill 2946 allows semi-independent agencies and other entities to request that links to their websites be posted on the Oregon Transparency website, for the purpose of sharing information about revenues, expenditures, and budgets.

Oregon Laws 2017: Chapter 667

[House Bill 3060](#)

Effective Date: October 6, 2017

Preventing Discrimination by State Contractors

Chief Sponsors: Reps. Lininger, Nosse, Sanchez, Alonso Leon, Power

Committees: House Business and Labor, Senate Workforce

Background and Current Law: Employment laws protect workers from discrimination and harassment regardless of their race, gender, ethnicity, religion, sexual orientation, gender identity, or disability. Civil service protections in Oregon do not extend to employees of those who hold contracts with the State of Oregon.

Bill Summary: House Bill 3060 prohibits state public contracting agencies from entering a contract worth \$150,000 or more unless the contractor certifies in writing that it has a policy and practice to prevent sexual harassment, sexual assault, and discrimination against members of protected classes. An exception is made for the following types of contracts: sole-source procurements, emergency procurements, and special procurements.

Oregon Laws 2017: Chapter 212

Museum-Related Activities within Arts Program

Chief Sponsors: Reps. Buehler, Whisnant; Sen. Knopp

Committees: House Economic Development and Trade, Senate Business and Transportation

Background and Current Law: The Oregon Arts Commission was established in 1967 to foster the arts in Oregon and ensure their excellence. Nine Commissioners, appointed by the Governor, determine policies, establish long-range plans, and review applications to grant programs. In 1993, the Oregon Arts Commission became a division of the Oregon Business Development Department. In 2003, the legislature focused the work of the Commission toward expertise in grant-making, arts and cultural information, and community cultural development. The Commission operates two grant programs: Operating Support Grants and Arts Learning Grants.

Bill Summary: House Bill 3139 adds museum-related activities to the definition of “arts” and requires the Oregon Arts Commission, when determining grant eligibility under the Arts Program, to consider regional differences in arts and cultural development as well as to promote investment in communities where engagement in arts and cultural development is limited.

Oregon Laws 2017: Chapter 274

[House Bill 3203](#)

Effective Date: October 6, 2017

Cost Analysis for Public Improvements**Chief Sponsors:** Rep. Clem**Committees:** House Business and Labor, House Rules, Joint Ways and Means

Background and Current Law: Current law requires public contracting agencies to provide a list to the Bureau of Labor and Industries (BOLI) of all public improvement projects that the agency plans to fund in the upcoming budget period. For projects that the agency intends to perform in-house, and that exceed \$125,000 in estimated costs, the agency must show that its decision conforms with Oregon policy that every effort shall be made to construct public improvements at the least cost to the contracting agency. For projects performed in-house, the contracting agency must prepare plans and the estimated cost of each classification of work. Contracting agencies and private contractors that would like to bid on public improvement projects are not able to determine least-expensive alternatives without detailed cost analyses.

Bill Summary: House Bill 3203 specifies what contracting agencies must consider when conducting a cost analysis before deciding to self-perform a public improvement. The measure also clarifies that resurfacing highways, roads, or streets at a depth of at least two inches, or at an estimated cost exceeding \$175,000, is considered a public improvement project and increases the \$175,000 threshold every two years through 2025. The measure further provides for a complaint process, allowing contractors or trade associations to allege violations of the least-cost policy that BOLI may investigate. If substantial evidence of a violation is found and there has been at least one violation within the previous five years, BOLI can require the contracting agency to negotiate and enter into an agreement with the complainant to remedy the violation and prevent future violations.

Oregon Laws 2017: Chapter 715[House Bill 3213](#)

Effective Date: January 1, 2018

Broadband and Economic Development**Chief Sponsors:** Reps. Nathanson, Holvey**Committees:** House Economic Development and Trade, Senate General Government and Accountability

Background and Current Law: In 2009, House Bill 3158 created the Oregon Broadband Advisory Council. The mission of the Council is to encourage coordination and collaboration between organizations and economic sectors to leverage the development and utilization of broadband. The Council is required to report by November 1 of each even-numbered year to the Joint Legislative Committee on Information Management on the affordability and accessibility of broadband in the state as well as broadband's use in telehealth, energy management, education, and government.

Bill Summary: HB 3213 requires a new subject to be included in the biennial report: the role of broadband technology in local, state, and regional economies and economic development.

Oregon Laws 2017: Chapter 124

[House Bill 3268](#)

Effective Date: January 1, 2018

Oregon Telephone Assistance Program Advisory Committee

Chief Sponsors: Reps. Keny-Guyer, Piluso; Sen. Boquist

Committees: House Health Care, Senate Business and Transportation

Background and Current Law: The federal Lifeline Program provides free telephones to low-income individuals; all Medicaid members are eligible for one telephone or Internet connection per household. There are approximately 1 million individuals enrolled in the Oregon Health Plan. At least 41 states differ from the federal government regarding regulation of the program; Oregon is the only state with its own regulatory agency, the Public Utility Commission, which imposes additional regulations on the program.

Bill Summary: House Bill 3268 creates the Oregon Telephone Assistance Program Advisory Committee and directs the Public Utility Commission to use surcharge moneys from the Telephone Assistance Program on marketing and outreach to increase participation in the assistance plan developed by the Commission.

Oregon Laws 2017: Chapter 434

[House Bill 3350](#)

Effective Date: August 8, 2017

Office of Outdoor Recreation

Chief Sponsors: Reps. Johnson, Helm, Buehler

Committees: House Economic Development and Trade, Joint Ways and Means

Background and Current Law: A 2016 survey completed by Task Force on Funding for Fish, Wildlife, and Related Outdoor Recreation and Education, found that over 60% of Oregonians report engaging in at least one outdoor activity in the past year. These activities include visiting a state or national park, hiking, camping, wildlife viewing, biking, and hunting. A recent industry study estimates the economic impact of Oregon's recreation industry at \$12 billion.

Bill Summary: House Bill 3350 creates an Office of Outdoor Recreation in the Oregon State Parks and Recreation Department, and an Associate Director position to oversee the Office. The measure directs the Associate Director to consult with outdoor recreation representatives to assist the Office in carrying out its duties. House Bill 3350 also establishes the Outdoor Recreation fund to be used to fund the operations of the Office.

Oregon Laws 2017: Chapter 678

[House Bill 3361](#)

Effective Date: January 1, 2018

Web Portal for State Agencies to Release Data**Chief Sponsors:** Rep. Nathanson; Sens. Thatcher, Roblan**Committees:** House Rules, Joint Ways and Means

Background and Current Law: The Oregon Transparency website is currently maintained by the State Chief Information Officer (SCIO). The website provides materials and links to a variety of records and information about state entities, including reports, financial information, descriptions of agency functions and programs, notices of public meetings, links to administrative rules, information about contracts and economic development programs, and links and instructions about how to request public records.

Bill Summary: House Bill 3361 establishes the position of Chief Data Officer (CDO), appointed by the SCIO, to enhance the utility of the Oregon Transparency website by maintaining a web portal for state agencies to release all publishable data. The measure requires the CDO to establish an open data standard, publish a technical standards manual, and create an inventory of publicly available state information. The measure also creates an advisory group to assist the CDO.

Oregon Laws 2017: Chapter 720[House Bill 3374-A](#)

Not Enacted

Service Consolidation Funding**Chief Sponsors:** Reps. Brock-Smith, Lininger; Sen. Kruse**Committees:** House Economic Development and Trade, House Revenue

Background and Current Law: Historically, rural communities and schools have relied on receipts from timber harvests to supplement local funding for education services and roads. During the 1980s, forest management practices changed substantially, diminishing the revenue-generating activity permitted. The resulting steep decline in timber sales decreased the revenues that rural counties and school districts received from forest management activities. The federal Secure Rural Schools (SRS) program helped rural counties and school districts affected by the decline in revenue from timber harvests on federal lands. The SRS program expired in September 2015.

Bill Summary: House Bill 3374 would have created the Oregon County Assistance Fund and directed the Oregon Department of Revenue to use moneys from the Fund to provide grants to counties seeking to consolidate or share services if they received at least 30% of their total county general fund budget from SRS funding in 2008.

[House Bill 3377](#)

Effective Date: June 14, 2017

Business Development Department Oversight

Chief Sponsors: Rep. Smith Warner

Committees: House Economic Development and Trade, Senate Business and Transportation

Background and Current Law: The Secretary of State's Audit Division released the Oregon Business Development Department, Report 2016-34 in December 2016. The Department is the state's primary economic development agency with roughly 140 employees and a 2015-2017 budget of roughly \$700 million. Among other findings, the Audit Division recommends that the Department improve the evaluation and transparency of the individual economic development incentives and business loan programs it oversees.

Bill Summary: House Bill 3377 requires The Oregon Business Development Department to report on their response to the recommendations of the Audit Report to the Legislative Assembly by January 2, 2018.

Oregon Laws 2017: Chapter 298

[House Bill 3434](#)

Effective Date: October 6, 2017

Extends Public Safety Fiscal Emergency Program

Chief Sponsors: Reps. Esquivel, Lininger; Sen. Roblan

Committees: House Rules, Senate Rules

Background and Current Law: In 2013, the legislature enacted House Bill 3453 to establish a mechanism for state intervention in the event a county experienced compromised public safety services resulting from financial distress due to the current economic climate. House Bill 3453 permits the Governor to declare a "Public Safety Fiscal Emergency" that allows for assistance to be arranged from other local governments on behalf of the county in financial distress. To declare such an emergency, the Governor, in consultation with legislative leadership (both minority and majority political parties) and any affected legislators, may assess the subject county's fiscal conditions to determine whether its ability to provide a minimally adequate level of services is compromised. While such declaration is in effect, the Governor may enter into intergovernmental agreements (IGAs) with local governments to provide public safety services for the distressed county. Such IGAs must specify the functions or activities to be performed and how they are to be performed, and must address the apportionment of fees and revenues. The distressed county benefiting from an IGA is responsible for half the cost, which can be funded through income tax or alternative assessments, only to the extent necessary to satisfy the obligation. The declaration terminates after 18 months unless it is ended earlier or later by the Governor or by action of the Legislative Assembly. To date, no Public Safety Fiscal Emergency has been declared.

Bill Summary: House Bill 3434 extends the sunset on the Governor's ability to declare a Public Safety Fiscal Emergency through January 2, 2024.

Oregon Laws 2017: Chapter 681

Policies for Public Bodies and Federal Immigration Enforcement

Chief Sponsors: Reps. Alonso Leon, Hernandez, Kotek, Lininger, Williamson; Sens. Taylor, Burdick, Dembrow, Frederick, Gelser, Manning, Jr, Roblan

Committees: House Rules, Senate Rules

Background and Current Law: Oregon has been a sanctuary state for several decades, meaning the use of state and local resources to enforce federal immigration law is prohibited under state law unless a person has committed a crime other than merely being in the country illegally. Increased federal commitment to enforcing federal immigration laws has recently resulted in fear and uncertainty amongst immigrant populations and some instability at public institutions that serve all individuals regardless of their immigration status. School administrators, county judges, other direct service providers, and other public bodies have increasingly sought clarity and guidance from the state concerning federal immigration enforcement attempts to commandeer state resources and collect sensitive information, and about how to respond appropriately to the presence of Immigration and Customs Enforcement (ICE) agents and their requests. Executive Order 17-04 reaffirmed Oregon's status as a sanctuary state by expanding the prohibition in state law that bars the use of state resources for federal enforcement purposes to include state agencies.

Bill Summary: House Bill 3464 provides guidance for state agencies about how to implement policies that respect confidentiality while complying with state and federal law. It describes the duties of public bodies and the rights of Oregon residents concerning the disclosure of personal information when interacting with federal immigration authorities on matters related to immigration or citizenship status. In addition, the measure assures residents that if they provide a school, court, or other public entity with personal information, such as an address or workplace, the public body is prohibited from disclosing that information for purposes of federal immigration enforcement except when required by law. Further, the measure requires the Attorney General to develop model policies to address federal immigration enforcement at public schools, public health agencies, courthouses, public shelters, and other public facilities operated by public bodies, and encourages all public bodies or entities that provide health, education, or access to justice services to adopt said policies for consistency concerning the collection of sensitive information.

Oregon Laws 2017: Chapter 724

House Concurrent Resolution 13**Filed on July 18, 2017****Designation of Official State Tartan****Chief Sponsors:** Rep. Doherty**Committees:** House Rules, Senate Rules

Background and Current Law: An important symbol of Scottish identity is the tartan—commonly known as a plaid pattern outside Scotland – particularly when worn in the form of a kilt, as it may correlate directly with a particular clan or district, signifying clan or district allegiance and identification. Depending on the identification, a particular pattern may be governed by clan chiefs, official districts, legislative authority, and/or the Scottish Tartans Authority. The establishment of a state tartan in Oregon recognizes the contribution of Scots and Oregonians of Scottish descent.

Bill Summary: House Concurrent Resolution 13 creates a tartan for the State of Oregon whose colors symbolize the state’s distinctive features: blue representing the blue of Oregon’s flag, the ocean, the fishing industry, and Oregon’s deep lakes and major inland rivers; gold representing the center color of Oregon’s flag and the many and varied agricultural regions of the state; green representing the state’s many and varied forests; white representing Oregon’s beautiful snowcapped mountains; taupe representing her high desert and grasslands; crimson representing her fiery volcanic past and unique cinder cones; azure representing Oregon’s streams and creeks, wetland marshes, shallow lakes, and wide sweeping skies; and black to represent her obsidian buttes.

House Concurrent Resolution 16**Not Adopted****Designation of Official State Dog****At the request of:** Rep. Gomberg for Oregon Humane Society**Committees:** House Rules

Background and Current Law: Every year, Oregon animal shelters accept tens of thousands of homeless dogs. Dedicated staff, volunteers, animal behaviorists, and veterinarians work hard to ready these dogs for a second chance at finding a permanent home. Dog lovers across the state open their hearts to over 18,000 rescued and sheltered dogs every year, representing every shape, size, and breed. Twelve states across the nation have designated a particular breed as their official state dog: the Alaskan Malamute in Alaska, the Golden Retriever in Delaware, the Catahoula Leopard in Louisiana, the Chesapeake Bay Retriever in Maryland, the Boston Terrier in Massachusetts, the Chinook in New Hampshire, the Pilot Hound in North Carolina, the Great Dane in Pennsylvania, the Boykin Spaniel in South Carolina, the Blue Lacy in Texas, the American Foxhound in Virginia, and the American Water Spaniel in Wisconsin.

Bill Summary: House Concurrent Resolution 16 would have designated rescued shelter dogs as Oregon’s official state dog.

[House Concurrent Resolution 19](#)

Filed on July 18, 2017

Designation of Official State Pie

Chief Sponsors: Rep. Malstrom

Committees: House Rules, Senate Rules

Background and Current Law: The Marionberry, or Marion blackberry, is a hybrid—a cross between Chehalem and Olallie blackberries. It is a vigorous grower that produces up to six tons of berries per acre. Oregon has been home to the Marionberry since 1956, when George F. Waldo introduced it as a product of Oregon State University’s blackberry breeding program in cooperation with the U.S. Department of Agriculture. Oregon is the birthplace of the Marionberry, and its name is inspired by Marion county. With 300 growers and 20 packers, Oregon continues to be the primary grower of Marion blackberries globally, producing 21 million pounds every year.

Five state legislatures have adopted a state pie: Key Lime in Florida, Pumpkin in Illinois, Pecan in Texas, Sugar Cream in Indiana, and Apple in Vermont.

Bill Summary: House Concurrent Resolution 19 designates Marionberry pie as Oregon’s official state pie.

[House Concurrent Resolution 24-A](#)

Not Adopted

Video Testimony to Legislative Committees

Chief Sponsors: Reps. Hack, Buehler, Holvey; Sens. Hansell, Roblan

Committees: House Rules, Senate Rules, Joint Ways and Means

Background and Current Law: Oregon’s legislative committee process provides legislators with opportunities to hear from many who support or oppose proposed legislation, and allows the public to actively participate in the lawmaking process. This is most often achieved through the submission of written testimony regarding a measure or issue (which is distributed to legislators and posted publicly on the Oregon Legislative Information System), and attending public hearings at the Oregon State Capitol in-person, to sign up and speak directly to a committee. When travel to Salem is not practicable, a committee may receive testimony by phone or video conference, on a case by case basis, limited to specific circumstances such as required appearances for executive appointment hearings, or state budget or redistricting issues.

Bill Summary: House Concurrent Resolution 24-A would have permitted the President of the Senate and Speaker of the House of Representatives to authorize, by rule, all committees of the legislature to accept remote testimony via video conferencing.

Proposed Constitutional Amendment to Impeach Elected Executive Branch Officials

Chief Sponsors: Reps. Hack, McLane, Williamson

Committees: House Rules, Senate Rules

Background and Current Law: Impeachment is a process that provides legislatures with oversight of official government conduct and the means to remove executive or judicial public officers. The impeachment process has two stages, usually overseen separately. The first stage is the development of a formal accusation or statement of charges, typically by the house chamber of a legislature. The second stage of the process involves hearings modeled after trial proceedings, typically in the senate chamber of a legislature.

Impeachment is relatively rare, and usually reserved for extreme cases. Impeachment and removal of governors has happened occasionally throughout the history of the United States, usually for corruption. A total of at least 11 state governors have faced impeachment proceedings, but in many cases individuals resign before such proceedings begin or conclude. The Oregon Constitution does not currently provide for impeachment, but does provide for recall in Article II, Section 18.

Bill Summary: House Joint Resolution 10 would have proposed an amendment to the Oregon Constitution that would have provided a process for impeachment. It would have authorized the Oregon House of Representatives to bring articles of impeachment against statewide elected officials in the executive department, and correspondingly would have authorized the Oregon Senate to try such persons, with a two-thirds majority vote required to conclude the process with a conviction.

2017 SUMMARY OF LEGISLATION



HEALTH CARE



HEALTH CARE MEASURES

Behavioral Health	Enacted: HB 3090, HB 3091, HB 3262 Not Enacted: HB 3355
Health Coverage and Affordability	Enacted: SB 147, SB 187, SB 419, SB 558, HB 2302, HB 2339, HB 2839, HB 3391 Not Enacted: HB 3336
Health Insurance and Regulation	Enacted: SB 368, SB 934, HB 2342, HB 2391, HB 2620, HB 3276 Not Enacted: HB 2664-A, HB 3418-A
Workforce, Professional Licensure and Training	Enacted: SB 111, HB 2103, HB 2397, HB 2432, HB 2503, HB 2527, HB 3261 Not Enacted: SB 217, HB 2524
Medicaid/Oregon Health Plan	Enacted: HB 2015, HB 2398, HB 2675, HB 2882 Not Enacted: HB 2122-B, HB 2221-A, HB 2834-A, HB 2838-B, HB 2979-A, HB 3135-A
Personal Health Information	Enacted: SB 367, HB 2402, HB 2673 Not Enacted:
Prescription Drugs	Enacted: HB 2114, HB 2388, HB 2673 Not Enacted: SB 272, SB 792, SB 793, HB 2387-A, HB 2645-A
Public Health	Enacted: SB 52, SB 743, SB 754, HB 2310, Not Enacted: SB 580, SB 785, SB 808-A, SB 869, SB 914, SB 998
Veterans Health	Enacted: SB 81 Not Enacted: SB 1054-A

Picture: Crater Lake, Klamath County - [Gary Halvorson, Oregon State Archives](#)

HEALTH CARE

TASK FORCES AND REPORTING REQUIREMENTS

The following bills created task forces and reporting requirements. Additional information is provided in the bill summaries.

SB 52	Requires the Oregon Health Authority to make publicly available on a website an annual report on emergency medical services.	January 1 each year, starting 2020
SB 147	Requires Department of Consumer and Business Services to convene a workgroup to develop recommendations to provide oral health care for low-income individuals in Oregon under Compact of Free Association (COFA) treaty.	September 15, 2017
SB 419	Establishes Task Force on Health Care Cost Review to study feasibility of creating rate-setting process modeled on process used by Maryland. Requires report to interim committees of Legislative Assembly.	September 15, 2018
SB 934	Requires Public Employees' Benefit Board and Oregon Educators Benefit Board to report to the Legislative Assembly on progress toward achieving target of spending of 12 percent of total medical expenditures on payments for primary care.	February 1 each year, starting 2018
	Requires Primary Care Reform Collaborative to report to the Legislative Assembly on achievement of primary care spending targets and implementation of the Primary Care Transformation Initiative.	December 31 each year, starting 2018
HB 2342	Requires the Department of Consumer and Business Services to report if the agency adopts temporary rules recommended by the Health Insurance Exchange Advisory Committee.	Report to the legislature immediately, if DCBS exercises its authority

HEALTH CARE

TASK FORCES AND REPORTING REQUIREMENTS

The following bills created task forces and reporting requirements. Additional information is provided in the bill summaries.

HB 3090	Requires the Oregon Health Authority to report on policies and progress on, and barriers to improving behavioral health outcomes for individuals released from hospitals following treatment for a behavioral crisis.	January 1, 2018
HB 3261	Requires the Oregon Health Authority to report on the health care workforce needs in the state.	February 1 biennially, starting 2019
HB 3262	Requires the Department of Human Services to submit the findings and recommendations for best practices to prescribing psychotropic medications to elderly persons and persons with disabilities.	December 31, 2017
HB 3276	Directs the Public Health Director to convene a task force to develop recommendations to improve student health insurance coverage.	October 30, 2017

[Senate Bill 52](#)

Effective Date: June 6, 2017

Emergency Medical Services Reporting to Oregon Health Authority

At the request of: Governor Brown for Oregon Health Authority

Committees: Senate Health Care, House Health Care

Background and Current Law: The Emergency Medical Services (EMS) and Trauma Systems Program, managed by the Oregon Health Authority (OHA), develops and regulates systems for quality medical care in Oregon. The Oregon Trauma Registry collects data, reported voluntarily from 44 trauma hospitals, about the causes of injury, emergency response, cost, and outcome of all injured patients that receive trauma care. Oregon trauma hospitals, however, are not able to send, electronically, patient information to EMS providers, who voluntarily report patient encounter data to OHA. Currently, 70 percent of Oregon's 92 licensed EMS providers voluntarily report patient care records to the state's EMS system.

Bill Summary: Senate Bill 52 requires licensed ambulance service providers to report a standardized set of patient encounter data directly to OHA, which the agency can waive if a provider is unable to comply with requirements. The bill also allows hospitals to electronically report patient information back to local EMS providers.

Oregon Laws 2017: Chapter 229

[Senate Bill 81](#)

Effective Date: January 1, 2018

Health Care Navigation

At the request of: Governor Brown for Department of Veterans' Affairs

Committees: Senate Veterans and Emergency Preparedness, House Veterans and Emergency Preparedness

Background and Current Law: Individuals who are isolated or elderly or who have mobility or complex health issues often face increased barriers to receiving health care. There is an emerging profession to help such people navigate the health care system, called Patient Advocates or Health Navigators. These individuals have expertise working with social service agencies, medical and behavioral health providers, and the insurance industry. Veterans face similar barriers, along with additional challenges, accessing care through the U.S. Department of Veterans Affairs. Although assistance is available through the Oregon Department of Veterans' Affairs (ODVA), its primary focus is to provide access to and advocacy for federal and state benefits, such as compensation and pensions, by processing claims and appeals and making referrals to state and local resources.

Bill Summary: Senate Bill 81 authorizes the ODVA to assist veterans with obtaining health care, including mental health care, through federal, state, or local health care delivery systems.

Oregon Laws 2017: Chapter 478

Senate Bill 111

Effective Date: August 8, 2017

Medicaid Funding and School Nursing Services

Chief Sponsors: Sen. Monnes Anderson; Rep. Whisnant

Committees: Senate Education, Joint Ways and Means

Background and Current Law: Medicaid provides funding for treatment of a variety of medical conditions for qualifying individuals. Each state's Medicaid plan governs reimbursement rates. In Oregon, Medicaid billing for school health services consists of Medicaid administrative claiming (MAC) reimbursement for individuals with services covered by the federal Individuals with Disabilities Education Act. In 2015, 65 school districts or education service districts participated in MAC, while 63 participated in direct-care billing. The Task Force on School Nursing reported in September 2016 that the percentage of Medicaid-eligible students in Oregon has increased from 27 percent in 2007 to 58 percent in 2015. Recent changes in federal rules expand the types of services school districts can bill to Medicaid for nursing services.

Bill Summary: Senate Bill 111 requires the Oregon Department of Education (ODE) to develop and administer a pilot program to assist school districts and education service districts in increasing the use of Medicaid billing and sunsets the pilot program December 31, 2020. The bill requires ODE to provide ongoing technical assistance to school districts and education service districts, help schools maximize Medicaid billing for school nursing services, collaborate with other state agencies, and prioritize assistance to entities participating in the pilot program. The bill also allows ODE to enter contracts with public or private entities to provide technical assistance.

Oregon Laws 2017: Chapter 688

[Senate Bill 147](#)

Effective Date: June 6, 2017

Oral Health Coverage for Compact of Free Association Residents

Chief Sponsors: Sens. Girod, Steiner Hayward; Rep. Kennemer

Committees: Senate Health Care, House Health Care

Background and Current Law: After World War II, the United States assumed administration of the Trust Territory of the Pacific Islands. Individuals from these islands, referred to as “Compact of Free Association” (COFA) citizens, can freely migrate, without work permits or visas, study, live, and work in the United States. In 2016, the Oregon Legislative Assembly established the COFA Premium Assistance Program. The program provides financial assistance to enable low-income COFA citizens residing in Oregon to purchase health insurance through the federal marketplace and to pay out-of-pocket costs associated with the coverage. The program does not provide financial assistance with dental coverage, as most of the federal marketplace health plans do not include adult dental benefits and federal subsidies are not designed to cover them.

Bill Summary: Senate Bill 147 requires the Department of Consumer and Business Services to convene a work group to develop recommendations to create a program to reimburse the costs of oral health care for low-income COFA residents living in Oregon.

Oregon Laws 2017: Chapter 243

[Senate Bill 187](#)

Effective Date: August 2, 2017

Vision Screening Reimbursements

Chief Sponsors: Sens. Roblan, Johnson, Devlin; Reps. Hack, McLane, Parrish, Williamson

Committees: Senate Education, Joint Ways and Means

Background and Current Law: House Bill 3000 (2013) directed the Oregon Department of Education to make recommendations regarding regular vision screenings in public schools. The department, in its report dated December 2013, recommended that the state provide vision screening to every student in kindergarten, first, third, and fifth grade. The department estimated that providing screenings to 165,000 students in the affected grades in Oregon’s 796 elementary schools would cost \$10.58 per student. The Oregon Lions Sight and Hearing Foundation screened 172,000 children at 550 schools during the 2015-2016 school year. The organization coordinates its screenings with school nurses and relies on volunteers to conduct screenings

Bill Summary: Senate Bill 187 requires the Oregon Department of Education to reimburse education providers for expenses related to vision screening, including contracting with private entities. It establishes the Vision Health Account in the State Treasury and appropriates \$1 million from the General Fund for the account.

Oregon Laws 2017: Chapter 640

[Senate Bill 217](#)

Not Enacted

Sport Concussions - Returning Students to Play

At the request of: Senate Interim Committee on Education

Committees: Senate Health Care

Background and Current Law: In the United States, sport and recreational activities are the third leading cause of traumatic brain injuries for children and adolescents; often these are concussions. National awareness, new guidelines, and recommendations have emerged that seek to inform coaches, athletic trainers, and teachers as to when a student should return to activities after a sports-related head injury. State and local governments have enacted laws to govern return-to-play guidelines after a young athlete exhibits a concussion. Such laws often require an athlete to complete a medical evaluation by a qualified health care professional before returning to play. Oregon law encourages each school district to provide training to individuals who train or instruct athletic teams (ORS 336.485).

Bill Summary: Senate Bill 217 would have added chiropractic and naturopathic physicians to the definition of health professionals able to issue a medical release for students to return to school-sponsored events and activities.

[Senate Bill 272](#)

Not Enacted

Prescription Formulary Requirements

At the request of: Senate Interim Committee on Health Care

Committees: Senate Health Care, Senate Rules

Background and Current Law: A formulary is a list of medications covered by a health plan used by health care insurers to manage the use of prescription drugs by patients. In the past decade, states have enacted consumer-related laws to create transparency and coverage notification requirements among health insurers for prescription drug benefits, including changes to formularies. These regulations are designed to help individuals compare covered benefits among health plans and require insurers to notify affected members when changes are made to a prescription drug formulary in a specified period.

Bill Summary: Senate Bill 272 would have required the Department of Consumer and Business Services to create new requirements for health plans to notify a member when changes are made to their plan's drug formulary.

[Senate Bill 367](#)

Effective Date: January 1, 2018

Disclosure of Inmates' Personal Health Information

Chief Sponsors: Sens. Hansell, Knopp, Steiner Hayward; Rep. Barreto

Committees: Senate Health Care, House Health Care

Background and Current Law: With rates of chronic and infectious diseases significantly higher than the general population, individuals at correctional facilities are disproportionately ill. Inmates released from secure correctional facilities represent 13 to 19 percent of individuals with human immunodeficiency virus (HIV), 12 to 16 percent of individuals with hepatitis B, 20 to 32 percent of individuals with hepatitis C, and 35 percent of individuals with tuberculosis. State and federal laws protect health information, specifically HIV status, mental health conditions, and substance use. Such laws encourage greater participation and trust in the health care system through protection of a patient's sensitive personal health information (PHI). Oregon correctional facilities may not use or disclose an inmate's health information without authorization, unless it is permitted or required by federal or state law. Federal law does permit, under limited circumstances, certain disclosures without an inmate's authorization. In Oregon, a correctional facility can disclose an inmate's PHI for the limited purpose of providing health care or ensuring the health or safety of the person or other inmates.

Bill Summary: Senate Bill 367 allows a health care provider to disclose an inmate's health information to another health care provider without authorization from the inmate when an employee of the Department of Corrections or Oregon Corrections Enterprise is exposed to the inmate's bodily fluids. Disclosure is only permitted when exposure is substantial and the inmate has tested positive for HIV, hepatitis B or C, or other communicable diseases.

Oregon Laws 2017: Chapter 484

Juvenile Justice System and Commercial Health Coverage

Chief Sponsors: Sens. Hansell, Steiner Hayward; Rep. Barreto

Committees: Senate Health Care, House Judiciary

Background and Current Law: Most individuals who encounter the criminal justice system are not incarcerated. In 2008, 2.11 million people under the age of 18 were arrested. A census in the same year showed that only 81,000 juvenile offenders were incarcerated. Studies estimate that between 50 and 75 percent of youth detained or incarcerated in the criminal justice system have a mental health or substance use disorder, and a substantial portion have a serious mental health condition. In Oregon, youth who are in the custody of a local authority are often placed in short-term detention facilities that provide temporary care for juveniles pending court disposition (i.e., pre-adjudicated), awaiting placement elsewhere, or awaiting transfer to another jurisdiction. Youth placed in detention centers receive medically necessary care provided by the county, often by contracted health care providers (i.e., physicians, dentists, and mental health professionals). Medical services provided by Oregon's 11 detention facilities are the financial responsibility of the county.

Bill Summary: Senate Bill 368 requires commercial insurance carriers to reimburse a local municipality for the cost of medical services provided to an insured juvenile in a detention facility. The measure requires insurance carriers to accept the credentials of a health care provider who is an employee or contractor of a juvenile detention facility, unless the insurer provides a written notice.

Oregon Laws 2017: Chapter 329

[Senate Bill 419](#)

Effective Date: October 6, 2017

Establishes Hospital Rate-Setting Process Task Force

Chief Sponsors: Sen. Beyer

Committees: Senate Health Care, Joint Ways and Means

Background and Current Law: To contain rising health expenditures, state and federal agencies have created programs designed to regulate provider payments, using increased health care price transparency and disclosure of health costs as policy tools. Such tools include establishing large databases that collect health care data from insurers and hospitals, requiring public reporting of hospital prices and provider payments, or establishing state-based hospital rate-setting systems. For example, Maryland created an all-payer hospital rate-setting program in 1971 with a federal waiver. Maryland's Health Services Cost Review Commission serves as an independent state agency to authorize and establish hospital rates. Several other states have historically used hospital rate setting, but were limited to rates for Medicaid or commercial insurers (i.e., non-Medicare payers).

Bill Summary: Senate Bill 419 establishes a Task Force on Health Care Cost Review to study the feasibility of establishing a hospital rate-setting system in Oregon and submit recommendations to the Legislative Assembly no later than September 15, 2018.

Oregon Laws 2017: Chapter 648

[Senate Bill 558](#)

Effective Date: August 2, 2017

Health Coverage for All Kids

Chief Sponsors: Sens. Roblan, Kruse; Reps. Huffman, Keny-Guyer

Committees: Senate Health Care, Joint Ways and Means

Background and Current Law: The Oregon Health Plan provides health coverage to individuals and families through the federal Medicaid and Children's Health Insurance Program (CHIP). The Oregon Health Plan is available to children 18 years of age or younger whose family earns up to 300 percent of the federal poverty level. According to the Oregon Health Authority's Oregon Health Insurance Survey (2015), after implementation of the federal Affordable Care Act, 3.6 percent of children 6 years of age or younger and 3.7 percent of children between the ages of 6 and 17 are still uninsured. In 2016, 400,000 children were enrolled in Medicaid/CHIP in Oregon.

Bill Summary: Senate Bill 558 extends the Oregon Health Plan to all children in Oregon below 300 percent of the federal poverty level regardless of their immigration status. The bill requires the Oregon Health Authority to create a work group to advise the agency on outreach and marketing for the program.

Oregon Laws 2017: Chapter 652

[Senate Bill 580](#)

Not Enacted

Parental Vaccine Notices

Chief Sponsors: Sen. Knopp

Committees: Senate Health Care

Background and Current Law: Oregon law requires that all children in public and private schools, preschools, Head Start, and certified child care facilities have up-to-date documentation on their immunizations, or go through the established process for claiming an exemption. Parents who do not want their children to be vaccinated can claim a nonmedical exemption for one or all school immunizations. College age students can claim a nonmedical exemption for the measles vaccine. Parents who decide to claim a nonmedical exemption can talk with their child's health care provider or watch an online education module (operated by the Oregon Health Authority) to receive a Vaccine Education Certificate, which must be submitted to the school or facility before the child can attend class.

Bill Summary: Senate Bill 580 would have required health care professionals to provide a written notice to the parent of a child, or a child who is emancipated, describing what vaccinations are required of school-aged children and the availability of nonmedical exemptions in Oregon.

[Senate Bill 743](#)

Effective Date: January 1, 2018

Prohibit Minor's Purchase of Dextromethorphan

Chief Sponsors:

Committees: Senate Health Care, House Health Care

Background and Current Law: Dextromethorphan (DXM) is the active ingredient most widely used in cough medicines in the United States. The cough suppressant is available in more than 125 over-the-counter products that include capsules, liquids, lozenges, and tablet forms. In recent years, DXM has been abused by adolescents and young adults for its euphoriant properties when ingested in doses 10 to 20 times greater than recommended for cough suppression. A 2015 report by the National Institute on Drug Abuse indicated that the annual prevalence of nonmedical use of a cough and cold medicine among adolescents was three percent, and that their misuse can cause death, as well as other serious adverse events such as brain damage, seizure, loss of consciousness and irregular heartbeat.

Bill Summary: Senate Bill 743 creates a violation for the retail sale of DXM to individuals under the age of 18. The measure requires businesses and their employees to verify whether an individual trying to purchase DXM is 18 years of age or older. The measure bans local municipalities from passing laws that regulate any retail products that contain DXM beyond the regulations created by the measure.

Oregon Laws 2017: Chapter 345

[Senate Bill 754](#)

Effective Date: August 9, 2017

Legal Age to Buy Tobacco Products Increased to 21

Chief Sponsors: Sens. Steiner Hayward, Manning, Jr.; Reps. Keny-Guyer, Vial

Committees: Senate Health Care, House Health Care, House Rules

Background and Current Law: The Oregon Health Authority (OHA) states that tobacco use is the number one preventable cause of death and disease in Oregon, annually resulting in an estimated 7,000 deaths and \$2.5 billion in medical expenditures and lost productivity. Research indicates that 90 percent of adults who smoke started before the age of 18. OHA's Public Health Division indicates that in 2013, 10 percent of Oregon's 11th grade students smoked cigarettes, and approximately 20 percent used other tobacco products. California and Hawaii recently raised the minimum age to purchase or consume tobacco from 18 to 21 years of age.

Bill Summary: Senate Bill 754 raises the legal age to purchase and possess tobacco or inhalant delivery systems to 21 years of age and establishes a set of fines ranging from \$50 to \$1,000 that may be assessed against individuals or businesses that distribute or sell tobacco-related products or inhalant delivery systems to anyone under the age of 21.

Oregon Laws 2017: Chapter 701

[Senate Bill 785](#)

Not Enacted

Animal Antibiotics

At the request of: Senate Committee on Health Care

Committees: Senate Health Care

Background and Current Law: Antibiotics are drugs that fight infections caused by bacteria. Overuse of antibiotics creates resistant bacteria, impairing or obviating the effectiveness of the antibiotic. The Centers for Disease Control and Prevention and the World Health Organization report that this constitutes a public health threat, as almost every type of bacteria has become stronger and less responsive to antibiotic treatments. In the United States, at least two million people each year become infected with bacteria that are resistant to antibiotics, and at least 23,000 people die as a direct result. Up to 70 percent of antibiotics sold in the United States are given to food-producing animals, often for nonmedical purposes such as promoting faster growth. When antibiotic-resistant bacteria develop in livestock facilities, they can reach the human population through food and through contact with the air, soil, water, and animals directly.

Bill Summary: Senate Bill 785 would have limited the use of medical antibiotics given to food producing animals in Oregon. Livestock producers would have been required to obtain a veterinarian's approval for the use of antibiotics, based on a set of criteria, and file annual reports.

Pharmaceutical Pricing, Reporting, and Cost Controls

Chief Sponsors: Sen. Steiner Hayward; Rep. Nosse

Committees: Senate Health Care

Background and Current Law: Pharmaceutical expenditures in the United States are effected by access to and use of prescription drugs, clinical breakthroughs and introduction of new medications, price negotiations among public and private payers, and a complex set of legal and regulatory policies, among other factors. The increasing cost of prescription drugs is and continues to be an important issue for patients, payers, and policy makers. A 2016 article in the Journal of the American Medical Association reports spending on prescription drugs increased by approximately 20 percent between 2013 and 2015, with government entities paying for approximately 40 percent of the country's total retail prescription drug costs.

A key element of prescription drug costs in the United States is reimbursement methodologies used by public and private payers. These methodologies are tools that federal and state governments use to address increasing drug costs, particularly in Medicaid. There are several concepts related to reimbursement methodologies, such as the estimated acquisition price, which reflects the price that providers and retail pharmacies pay for a drug from a drug manufacturer. The estimated acquisition price is often based on the average wholesale price or the wholesale acquisition cost, both of which are published in commercially available drug pricing books. Multiple pricing and reimbursement approaches are two factors that determine how much federal and state governments spend on prescription drugs, and they have changed over past decades.

Bill Summary: Senate Bill 792 would have required pharmaceutical manufacturers to disclose the wholesale price for individual drugs in all forms of advertising and created a civil penalty of up to \$5,000 for violations.

Senate Bill 793 would have required drug manufacturers to report increases in the price of prescription drugs to the Department of Consumer and Business Services (DCBS) if the drug had been available for sale for at least three years. DCBS would have been authorized to review price increases and supporting documentation from manufacturers to determine if the increase was excessive and, if so, required manufacturers to refund purchasers.

Newborn Screening

Chief Sponsors: Sens. Boquist, Beyer; Reps. Buehler, Parrish

Committees: Senate Health Care, Joint Ways and Means

Background and Current Law: A well-established practice of state public health programs is universal screening of newborns before they leave the hospital. Screening helps detect serious medical conditions that can result in early death or lifelong disability even when a newborn appears initially healthy. Early detection and intervention can prevent mortality and improve the quality of life for newborns with metabolic disorders, and advances in screening technologies have enabled health care providers to detect increased numbers of such disorders. In Oregon, hospitals and midwives collect a blood sample from every newborn as part of the newborn screening program. Newborns are often screened twice; once at the hospital and then again at their first medical appointment. The Northwest Regional Newborn Screening Program screens newborns for more than 40 metabolic disorders approved by the Oregon Health Authority (OHA) and the Oregon State Public Health Laboratory tests them and shares the results with health care providers.

Bill Summary: Senate Bill 808-A would have required OHA to adopt rules for newborn health screening tests as new conditions are added to national guidelines, and created a statewide committee to submit recommendations to the legislature on Oregon's newborn screening program.

[Senate Bill 869](#)

Not Enacted

Informed Consent for Vaccinations**Chief Sponsors:** Sen. Boquist**Committees:** Senate Health Care

Background and Current Law: Oregon law requires that all children in public and private schools, preschools, Head Start, and certified child care facilities have up-to-date documentation on their immunizations, or go through the established process for claiming an exemption. In 2015, Senate Bill 895 required specific reporting, posting, and communication of aggregate data on immunization rates for the Oregon Health Authority (OHA), local health departments, schools, children's facilities, and the Superintendent of Public Instruction. Parents who do not want their children to be vaccinated can claim a nonmedical exemption for one or all school immunizations. College students can claim a nonmedical exemption for the measles vaccine. Parents who decide to claim a nonmedical exemption can talk with their child's health care provider or watch an online education module (operated by the OHA) to receive a Vaccine Education Certificate, which must be submitted to the school or facility before the child can attend class.

Bill Summary: Senate Bill 869 would have required health care professionals to obtain informed consent from the parent of a child, or from a child that is emancipated, prior to administering vaccinations. The informed consent would have included: descriptions of the risks and benefits of each individual vaccination; a copy of the vaccine package; information from the Centers for Disease Control and Prevention; notice of how to file a petition with the National Vaccine Injury Compensation Program; and information about nonmedical exemptions for school-age children.

[Senate Bill 914](#)

Not Enacted

Immunizations for Employment**Chief Sponsors:** Sen. Knopp**Committees:** Senate Health Care

Background and Current Law: Health care workers and first responders can be at higher risk of exposure to infectious diseases given the nature of their professions. Current law requires certain employers to offer preventive immunizations to their employees at no cost; those that operate hospitals, mental health clinics, or alcohol and drug treatment facilities. The Centers for Disease Control and Prevention recommends a number of preventive vaccines for adults employed as health care workers that include: hepatitis B; influenza; measles, mumps, and rubella (MMR); pertussis; varicella; and meningococcal.

Bill Summary: Senate Bill 914 would have prohibited an employer from requiring an individual to be immunized as a condition of employment unless required by federal law.

Health Care Payment Reform

Chief Sponsors: Sen. Steiner Hayward; Rep. Buehler

Committees: Senate Health Care, House Health Care

Background and Current Law: The “patient-centered medical home” is a delivery of care model that is intended to reduce costs and the inappropriate use of health services while improving the quality of care and patient experience. “Patient centered” refers to the full scope of a patient’s physical and mental needs being addressed in coordination, including specialist and hospital care. With the proliferation of medical homes in the United States over the past decade, a growing body of research assessing their effects has become available. Based on available evidence, federal and state policy makers and health care payers have increasingly expressed interest in medical homes as a tool to restructure primary care.

Bill Summary: Senate Bill 934 requires coordinated care organizations, commercial insurers, the Public Employees’ Benefit Board (PEBB), and the Oregon Educators Benefit Board (OEBB) to spend at least 12 percent of their total expenditures on primary care by January 1, 2023. Insurers that spend less than 12 percent of their premiums on primary care are required to develop a plan to increase spending by at least one percent each year. The Oregon Health Authority (OHA) and Department of Consumer and Business Services are authorized to implement the provisions of the measure, and both are directed to report on annual progress to the legislature. The measure authorizes OHA to convene a collaborative to advise and assist with the implementation of the Primary Care Transformation Initiative.

Oregon Laws 2017: Chapter 489

[Senate Bill 998](#)

Not Enacted

Tobacco Retail Licensure

Chief Sponsors: Sen. Boquist

Committees: Senate Health Care

Background and Current Law: States and local governments have the authority to regulate the sale and distribution of tobacco products in their jurisdictions. States can require retailers that sell tobacco products to obtain a license or permit from the state or from the local government where the retailer does business.

Bill Summary: Senate Bill 998 would have required individuals selling tobacco products or inhalant delivery systems to register with the Oregon Department of Revenue and precluded regulation at the local level. The Oregon Department of Revenue would have been allowed to share registration information with the Oregon Health Authority (OHA) and the Oregon Department of Justice. OHA would have been authorized to inspect businesses.

[Senate Bill 1054-A](#)

Not Enacted

Improving Access to Behavioral Health Services for Veterans

Chief Sponsors: Senate Committee on Veterans and Emergency Preparedness

Committees: Senate Veterans and Emergency Preparedness, Senate Rules

Background and Current Law: Data from the National Center for Health Statistics and the United States Census Bureau rank Oregon among the states with the highest rates of serious depression and suicide. The Oregon Health Authority (OHA) reports that suicide is the second leading cause of death among Oregonians under age 35, with over 760 suicides in 2015 and around 2,000 people hospitalized for associated behaviors. Veterans represent a little more than eight percent of Oregon's total population, but account for nearly 25 percent of the total number of people who commit suicide, and suicide is the leading cause of death for veterans under the age of 45. According to the Oregon Violent Death Reporting System, mental health concerns, alcohol and/or substance use, relationship issues, and other stressors are common and associated with suicide incidents among Oregon veterans. Hospitals seeking to expand their services in Oregon are required to obtain a "certificate of need" from OHA. The certificate process is designed to promote efficiencies across Oregon's system of care and help keep health care costs down.

Bill Summary: Senate Bill 1054-A would have created a temporary exemption available to hospitals that would otherwise be required to obtain a certificate of need, but only to increase capacity to provide behavioral health services to veterans and active duty personnel. The measure would have made an exemption available for two years and required facilities taking advantage of it to provide services for at least eight years.

[House Bill 2015](#)

Effective Date: January 1, 2018

Doula Reimbursement

Chief Sponsors: Reps. Koteck, Greenlick; Sen. Frederick

Committees: House Health Care, House Rules, Senate Health Care

Background and Current Law: A doula (professional childbirth assistant) provides physical and emotional support to a woman and her partner during pregnancy, childbirth, and postpartum. Although research is limited, some studies have shown that continuous support from doulas during childbirth correlates with decreases in the use of pain medications during labor, incidence of C-sections, length of labor, and negative childbirth experiences.

Bill Summary: House Bill 2015 directs the Oregon Health Authority (OHA) to establish reimbursement rates for doulas in coordination with the Traditional Health Workers Commission. The measure specifies that rates are to be reviewed, and revised if necessary, every even-numbered year, and requires coordinated care organizations to make information about doulas available to the public to increase access to their services. The bill directs OHA to study possible changes to Medicaid to facilitate direct payments for doulas and requires OHA to report annually to both the Oregon Health Policy Board and the Oregon Public Health Advisory Board.

Oregon Laws 2017: Chapter 281

[House Bill 2103](#)

Effective Date: January 1, 2018

Permits Nurse Practitioners to Perform Vasectomies

Chief Sponsors: Reps. Nosse, Rayfield, Williamson; Sen. Dembrow

Committees: House Health Care, Senate Health Care

Background and Current Law: A nurse practitioner (NP) is a registered nurse with advanced training in diagnosis and treatment. They are generally authorized to prescribe medications, treat illnesses, and administer physical exams. Nurse practitioners provide primary care and some acute care, and are qualified to meet most patients' health care needs. Studies have indicated that NPs increase access to services, provide high quality interaction between provider and client, and emphasize health education and prevention. With the appropriate training and competency, current Oregon law allows NPs to perform procedures such as bone marrow aspiration, chest tube placement, and lumbar puncture.

Bill Summary: House Bill 2103 expands the procedures that may be performed by NPs with appropriate training and credentialing to include vasectomies.

Oregon Laws 2017: Chapter 381

House Bill 2114**Effective Date: October 6, 2017****Opioid Prescription Guidelines****Chief Sponsors:** Reps. Greenlick, Williamson**Committees:** House Health Care, Senate Health Care

Background and Current Law: According to the Oregon Health Authority's Public Health Division, Oregon has one of the highest rates of prescription opioid misuse in the nation. More drug poisoning deaths involve prescription opioids than any other type of drug, including alcohol, methamphetamines, heroin, and cocaine. An average of three Oregonians die every week from prescription opioid overdose, and many more develop opioid use disorders. The Public Health Division convened the Oregon Opioid Prescribing Guidelines Task Force in the spring of 2016 to develop statewide guidelines for clinicians and health care organizations to combat prescription opioid abuses.

Bill Summary: House Bill 2114 directs the Oregon Medical Board, the Oregon State Board of Nursing, the Oregon Board of Dentistry, and the Oregon Board of Naturopathic Medicine to notify their respective licensees who are authorized to prescribe opioids or opiates, of the Oregon Opioid Prescribing Guidelines: Recommendations for the Safe Use of Opioid Medications, as endorsed by the Oregon Medical Board in January 2017, no later than January 1, 2018.

Oregon Laws 2017: Chapter 146**House Bill 2122-B****Not Enacted****Coordinated Care Organization's Nonprofit Status****Chief Sponsors:** Reps. Greenlick, Holvey**Committees:** House Health Care, House Rules, Joint Ways and Means

Background and Current Law: The coordinated care model was first implemented in Oregon by coordinated care organizations (CCOs). CCOs are networks of multiple types of health care providers (physical health care, addictions and mental health care, and dental care providers) who work together in their local communities to serve people who receive care through the Oregon Health Plan (Medicaid). CCOs are focused on prevention and helping people manage chronic conditions. With national questions on the status of the federal Affordable Care Act (ACA), the Oregon Health Policy Board (OHPB) was asked to provide policy guidance to the legislature and the Oregon Health Authority about the future of CCOs. In 2016, OHPB conducted statewide listening sessions, producing a report with 12 recommendations.

Bill Summary: House Bill 2122-B would have modified current requirements for CCOs to direct their governing bodies to take specific steps to improve transparency; to dedicate a portion of their annual net income or services to addressing health disparities and social determinants; and require that CCOs be §501(c)(3) organizations or public benefit corporations beginning January 1, 2023. The bill would have required CCOs' governing bodies to meet jointly with their corresponding community advisory councils, open to the public, once per year.

[House Bill 2221-A](#)

Not Enacted

Reimbursement of Child Abuse Medical Assessments

Chief Sponsors: Reps. Whisnant, Stark; Sens. Gelser, Taylor

Committees: House Human Services and Housing, Joint Ways and Means

Background and Current Law: In 2015, the Oregon Legislative Assembly passed House Bill 2234 requiring the Oregon Health Authority to reimburse community assessment centers for child abuse medical assessments and related services.

Bill Summary: House Bill 2221-A would have required the Oregon Health Authority (OHA) to ensure the community assessment center is reimbursed by the coordinated care organization (CCO) for child abuse medical assessments conducted on a child enrolled in a CCO. CCOs would have been required to report to OHA on any unpaid claims for reimbursement made by a community assessment center. House Bill 2221-A also required OHA and the Department of Consumer and Business Services to report to the Legislative Assembly every twelve months on the implementation of child abuse medical assessments. OHA would have been required to immediately report to the Joint Committee on Ways and Means any instance of insufficient funds in a CCO's budget to reimburse child abuse medical assessments.

[House Bill 2302](#)

Effective Date: May 17, 2017

Arrangement of Benefits for Oregon State Hospital Patients

At the request of: Governor Brown for Oregon Health Authority

Committees: House Health Care, Senate Human Services

Background and Current Law: The Oregon State Hospital (OSH) provides patient-centered, psychiatric treatment for adults throughout the state who need hospital-level care. The hospital's primary goal is to help people recover from their illness and return to the community. Services include psychiatric evaluation, diagnosis and treatment, community outreach, and peer support.

Bill Summary: House Bill 2302 expands OSH staff authority to apply for Social Security Disability Insurance (SSDI), Supplemental Security Income (SSI), the Supplemental Nutrition Assistance Program (SNAP), and other appropriate federal and state benefits on behalf of patients upon their discharge.

Oregon Laws 2017: Chapter 65

Public Health Modernization

At the request of: Governor Brown for Oregon Health Authority

Committees: House Health Care, Joint Ways and Means

Background and Current Law: In 2015, the Legislative Assembly passed House Bill 3100, to establish foundational public health capabilities and programs, detect and prevent infectious diseases, protect the public from exposure to environmental hazards, and respond to natural and manmade disasters in Oregon communities. Efforts to modernize the public health system are driven by three priorities: expanding outreach through collective action with health care and other partners; addressing health priorities using foundational capabilities; and demonstrating the impact of public health through accurate data collection and evaluation.

Bill Summary: House Bill 2310 modifies provisions relating to the schedule by which local public health authorities must submit local plans for applying the foundational public health capabilities and implementing foundational public health programs. The bill modifies the timeline and process for submitting the local public health implementation plans; directs Oregon Health Authority (OHA) to establish accountability metrics to monitor progress; and requires OHA to submit a report to the Oregon Public Health Advisory Board and the Legislative Fiscal Office. The bill clarifies how and when a county could relinquish their local public health authority to the state.

Oregon Laws 2017: Chapter 627

Prohibiting Balance Billing

At the request of: Governor Brown for Department of Consumer and Business Services

Committees: House Health Care, Senate Health Care

Background and Current Law: “Balance billing” is the practice of billing the difference between a provider’s charge and the allowed amount (the most an insurance company will pay for covered medical care). Typically, balance billing is discovered by the consumer after the service is performed, when there is little opportunity to dispute unanticipated charges. For example, balance billing can impact consumers following an emergency room visit or after surgery. In Oregon, between 2014 and 2016, the Department of Consumer and Business Services (DCBS) processed more than 300 complaints related to balance billing. Other states have introduced and enacted a variety of consumer protection measures related to balance billing, including: capping or limiting charges for services delivered outside of an insured’s provider network; improving consumer notification, disclosure and transparency requirements; providing for dispute resolution; and prohibiting the practice of balance billing outright.

Bill Summary: House Bill 2339 prohibits balance billing by nonparticipating, facility-based providers, and providers in cases of emergency. The bill directs DCBS to develop recommendations for reimbursement of services performed by out-of-network providers at health care facilities that are in-network.

Oregon Laws 2017: Chapter 417

[House Bill 2342](#)

Effective Date: August 2, 2017

Health Insurance Regulation

At the request of: Governor Brown for Department of Consumer and Business Services

Committees: House Health Care, House Rules, Senate Health Care, Senate Rules

Background and Current Law: The Department of Consumer and Business Services (DCBS) is Oregon's largest consumer protection and business regulatory agency. DCBS' Division of Financial Regulation oversees financial and insurance industries in Oregon. If future changes in federal health insurance laws occur outside of the ordinary rate review process, DCBS may be unable to respond to maintain a stable insurance market and ensure that consumers continue to have access to affordable coverage. Additionally, federal changes may provide insufficient lead time to propose and pass a legislative solution.

Bill Summary: House Bill 2342 permits DCBS to adopt rules inconsistent with state law governing health insurance if certain conditions are met and recommended by the Health Insurance Exchange Advisory Committee. Such rules, if temporary, cannot be readopted; and, if permanent, will not remain in effect more than six months absent legislative ratification. The measure also requires DCBS to report to the legislature immediately, if the agency exercises this authority, which expires July 2019.

Oregon Laws 2017: Chapter 626

[House Bill 2387-A](#)

Not Enacted

The Oregon Premium Protection Program

At the request of: House Interim Committee on Health Care

Committees: House Health Care, Joint Ways and Means

Background and Current Law: Pharmaceutical expenditures in the United States are impacted by access to and utilization of prescription drugs, clinical breakthroughs and introduction of new medications, price negotiations among public and private payers, a complex set of legal and regulatory policies, and other factors. The increasing cost of prescription drugs has and continues to serve as an important issue for patients, payers, and policy makers. According to an article in the Journal of the American Medical Association (2016), between 2013-2015, spending on prescription drugs increased approximately 20 percent with government entities paying for approximately 40 percent of the country's total retail prescription drug costs.

Bill Summary: House Bill 2387-A would have created the Oregon Premium Protection Program within the Department of Consumer and Business Services. The bill would have required determinations of excess costs incurred by payers, and amounts of rebates owed by manufacturers based on claims for rebates.

[House Bill 2388](#)

Effective Date: May 17, 2017

Regulation of Pharmacy Benefit Managers

At the request of: House Interim Committee on Health Care

Committees: House Health Care, Senate Health Care

Background and Current Law: Pharmacy benefit managers (PBM) administer drug benefit programs according to contractual relationships between wholesalers and manufacturers and health insurers or employers. Some PBM services include processing and analyzing prescription claims, contracting with a network of pharmacies, and developing and managing formularies and prior authorization programs. Currently, there are more than 40 entities registered as PBMs doing business in Oregon. Nationally, PBMs manage the drug benefits for an estimated 95 percent of all patients with drug coverage.

In 2016, in a budget note in Senate Bill 5701, the Department of Consumer and Business Services (DCBS) was directed to convene a work group to develop recommendations for rulemaking regarding PBM compliance. Recommendations included: DCBS playing a limited role as registrar of active PBMs, consistent with the statutory registration fee; minimal enforcement changes by rule or legislation; and authorizing DCBS to suspend or revoke registrations for noncompliance with statute or rule.

Bill Summary: House Bill 2388 authorizes DCBS to deny, revoke, or suspend a PBM's registration under specific conditions. The measure also directs DCBS to establish a process for pharmacies or pharmacy representatives to file complaints against PBMs and to develop an appropriate registration fee structure.

Oregon Laws 2017: Chapter 73

[House Bill 2391](#)

Effective Date: October 6, 2017

Health System Fund

At the request of: House Interim Committee on Health Care

Committees: House Health Care, House Rules, Joint Ways and Means

Background and Current Law: In 2003, the Legislative Assembly created the hospital assessment as a revenue source to fund the Oregon Health Plan (OHP) and other hospital initiatives. The statutory authority for this assessment is set to expire in 2019.

Bill Summary: House Bill 2391 establishes the Health System Fund and the Oregon Reinsurance Program and modifies statutes relating to hospital assessment, including extending hospital assessment for two more years from September 30, 2019 to September 30, 2021. In addition, the bill establishes the Oregon Reinsurance Program within the Department of Consumer and Business Services. The effective date of the Oregon Reinsurance Program is the later of the date of approval by the United States Department of Health and Human Services or January 1, 2018. Additionally, the bill repeals the Oregon Reinsurance Program on January 2, 2024.

Oregon Laws 2017: Chapter 538

[House Bill 2397](#)

Effective Date: May 18, 2017

Expansion of Services Provided by Pharmacists

At the request of: House Interim Committee on Health Care

Committees: House Health Care, Senate Health Care

Background and Current Law: The role of pharmacists as health care providers has enhanced access to cost-effective and quality health care management for patients. In January 2017, the Center for Medicaid and CHIP (Children's Health Insurance Program) Services (CMCS) released an informational bulletin encouraging states to expand the scope of practice for pharmacists to improve timely access to care.

Bill Summary: House Bill 2397 creates a seven-member Public Health and Pharmacy Formulary Advisory Committee and directs the State Board of Pharmacy to establish, by rule, the formulary drugs and devices that pharmacists may prescribe and dispense to patients under specific conditions.

Oregon Laws 2017: Chapter 106

[House Bill 2398](#)

Effective Date: January 1, 2018

Medicaid Patient Billing

At the request of: House Interim Committee on Health Care

Committees: House Health Care, Senate Health Care

Background and Current Law: Federal law requires Medicaid providers to accept only the amount paid by the Oregon Health Authority (OHA) for Medicaid services as "payment in full" plus any deductible, coinsurance, or copayment (i.e., cost-sharing) required to be paid by the patient. Some Medicaid clients report that they have been billed for services covered by the plan when they should not have been and, due to inadequate safeguards, the current system has failed to catch these transactions. When Medicaid clients receive these bills, they may assume there is a mistake and not respond, which may cause unpaid balances to be turned over to a collection agency.

Bill Summary: House Bill 2398 prohibits health care providers from billing Medicaid recipients except as provided by rule by OHA. It requires health care providers to check with OHA to confirm an individual's eligibility for Medicaid when a claim remains unpaid after 90 days, and prohibits them from assigning claims to a collection agency if the individual was eligible for Medicaid at the time services were rendered.

Oregon Laws 2017: Chapter 287

[House Bill 2402](#)

Effective Date: October 6, 2017

Free Birth Certificates for Homeless Individuals

Chief Sponsors: Rep. Lively

Committees: House Health Care, Joint Ways and Means

Background and Current Law: Identification cards are required for homeless individuals to find employment or receive prescription medications, among other things, with certified birth certificates required to obtain identification cards. Many nonprofit organizations throughout Oregon operate a free birth certificate program on a regular basis. Generally, current budgets allow the nonprofits to provide a limited number of free birth certificates to a limited number of individuals.

Bill Summary: House Bill 2402 requires the Oregon Health Authority to establish a grant program allowing homeless individuals to obtain a certified copy of their birth records at a reduced rate or free of charge. The bill establishes the Birth Certificates for Homeless Persons Fund, consisting of all moneys credited to the fund, including moneys appropriated or transferred to it by the legislature. The fund earns interest and all moneys in the fund are continuously appropriated for awarding grants to state, regional, and local agencies and organizations to carry out the program's requirements.

Oregon Laws 2017: Chapter 540

[House Bill 2432](#)

Effective Date: May 25, 2017

Regulation of Art Therapy

Chief Sponsors: Rep. Parrish; Sen. Dembrow

Committees: House Health Care, Senate Health Care

Background and Current Law: The American Art Therapy Association defines art therapy as a mental health profession in which art therapists facilitate clients' use of art media, the creative process, and resulting artwork to explore feelings, reconcile emotional conflicts, foster self-awareness, manage behavior and addictions, develop social skills, improve reality orientation, reduce anxiety, and increase self-esteem. Art therapy is practiced in a wide range of settings including hospitals, psychiatric and rehabilitation facilities, wellness centers, forensic institutions, schools, crisis centers, senior communities, private practice, and other clinical and community settings. Recent studies on the clinical effectiveness and cost effectiveness of art therapy among individuals with mental health disorders indicate art therapy may offer benefits for individuals with a mental health diagnosis.

Bill Summary: House Bill 2432 directs the Oregon Health Licensing Office (OHLO) to issue licenses to practice art therapy to qualified art therapists, specifies license qualifications, and provides for administrative and regulatory oversight by OHLO.

Oregon Laws 2017: Chapter 155

[House Bill 2503](#)

Effective Date: June 29, 2017

Lactation Consultant Licensure

Chief Sponsors: Rep. Nathanson

Committees: House Health Care, Joint Ways and Means

Background and Current Law: Lactation consultants are professional breastfeeding specialists trained to teach mothers how to feed their infants. Most lactation consultants are trained and certified by the International Board of Lactation Consultant Examiners.

The Oregon Health Licensing Office (OHLO) is the central licensing and regulatory office that oversees 14 health and related boards, councils, and programs in Oregon. OHLO reviews and approves applicant qualifications, conducts examinations, inspects licensed facilities and independent contractors, responds to and investigates consumer complaints, and disciplines licensees who are found in violation of state requirements.

Bill Summary: House Bill 2503 allows OHLO to establish a board and program for licensing and regulating the practice of lactation consultants. The bill authorizes OHLO to adopt rules, establish licensing fees, and outline certification requirements. Additionally, the bill directs lactation consultants to complete cultural competency and trauma-informed care through programs approved by OHLO.

Oregon Laws 2017: Chapter 499

[House Bill 2524](#)

Not Enacted

Administration of Loans for Primary Care Residency Programs

Chief Sponsors: Rep. Buehler

Committees: House Health Care, Joint Ways and Means

Background and Current Law: The Office of Student Access and Completion (OSAC) administers a variety of state, federal, and privately funded student financial aid programs for the benefit of Oregonians attending post-secondary educational institutions. It is responsible for the administration of state financial aid and access programs, including budget recommendations, fiscal management and policy, and awarding financial aid to Oregon students at private and public institutions statewide.

Bill Summary: House Bill 2524 would have transferred the administration of a program that provides loans to hospitals to establish new primary care residency programs, from OSAC to the Oregon Health Authority. The bill would have modified the cost-sharing program to train residency physicians and interns and extended the program's sunset to July 1, 2019.

[House Bill 2527](#)

Effective Date: June 14, 2017

Self-Administered Hormonal Contraceptives**Chief Sponsors:** Rep. Buehler; Sen. Steiner Hayward**Committees:** House Health Care, Senate Health Care

Background and Current Law: To improve access to contraceptives for women and prevent unintended pregnancy, the Oregon Legislative Assembly enacted House Bill 2879 (2015). The bill permits pharmacists to prescribe and dispense hormonal contraceptive patches and self-administered oral hormonal contraceptives to women who are at least 18 years of age, and provide contraceptives to women under 18 years of age, if they have an existing prescription from a physician for contraceptives. Additionally, all women seeking prescriptions for birth control from their pharmacist must complete a questionnaire designed to screen for potential risks, allowing the prescribing pharmacist to select an appropriate product. Pharmacists are required to notify their patient's primary prescriber when a medication is prescribed, and they can only continue to dispense the product for three years unless they receive proof that a patient has seen her physician since the medication was initially prescribed.

Bill Summary: House Bill 2527 authorizes pharmacists to prescribe self-administered hormonal contraceptives and administer injectable hormonal contraceptives. The bill defines self-administered hormonal contraceptives and injectable hormonal contraceptives and specifies that pharmacist consultations are a covered benefit in prescription drug benefit plans.

Oregon Laws 2017: Chapter 289[House Bill 2620](#)

Not Enacted

Crime of Assault Against Hospital Employees Specifications**At the request of:** House Interim Committee on Judiciary**Committees:** House Judiciary

Background and Current Law: There are four degrees of assault crimes in Oregon. Assault in the fourth degree is usually a misdemeanor, committed when a person intentionally, knowingly, or recklessly causes physical injury to another. Assault in the first, second, and third degrees are felonies. Third degree assault includes a variety of specified conduct, such as intentionally, knowingly, or recklessly causing physical injury to an emergency medical services provider while the provider is performing their official duties.

Bill Summary: House Bill 2620 would have added intentionally, knowingly, or recklessly causing physical injury to a person working in a hospital while they are performing their duties to the list of prohibited conduct that constitutes assault in the third degree.

Oregon Laws 2017: Chapter 162

[House Bill 2644](#)

Effective Date: January 1, 2018

Administration of Vitamin K to Newborns**Chief Sponsors:** Rep. Malstrom**Committees:** House Health Care, Senate Health Care

Background and Current Law: According to the Centers for Disease Control and Prevention, a vitamin K shot prevents serious bleeding in newborns. Vitamin K is necessary for blood to clot, which prevents severe bleeding and blood loss. Vitamin K does not cross the placenta from a mother to a developing baby. After birth, there is little Vitamin K in breast milk and breastfed newborns can have a Vitamin K deficiency for several weeks following birth. Infant formula often has added Vitamin K, and formula-fed infants tend to have very low levels of Vitamin K for several days after birth. With low levels of Vitamin K, some infants are susceptible to severe bleeding, and to prevent this bleeding, infants are routinely given Vitamin K after birth.

Bill Summary: House Bill 2644 requires that the most effective procedure be used to administer Vitamin K to a newborn.

Oregon Laws 2017: Chapter 162[House Bill 2645-A](#)

Not Enacted

Prescription Drug Take-Back Program**Chief Sponsors:** Rep. Malstrom**Committees:** House Health Care, Joint Ways and Means

Background and Current Law: Approximately a third of pharmaceutical drugs purchased in the United States go unused, are considered hazardous wastes, and end up in water systems or landfills. Current disposal options are limited and inconsistent. In 2014, U.S. Drug Enforcement Administration (DEA) regulations expanded the types of locations allowed to accept unwanted medications on a routine basis. As of 2015, there are 615 authorized collectors nationwide that include drug manufacturers and distributors, narcotic treatment programs, retail pharmacies, and hospitals. Prior to this expansion, pharmacies and hospitals were banned from accepting unwanted prescription drugs, and the public's only legal option to discard unwanted medications safely was giving them to a law enforcement agency. Instead, many people flushed them down the toilet, resulting in contamination of the water supply, or kept them at home, leading to the theft and abuse of the prescription drugs.

Bill Summary: House Bill 2645-A would have required manufacturers of certain drugs to participate in a drug take-back program and submit program plans to the Department of Environmental Quality for approval. The measure would have also made changes to the statutes governing prescription drug take-back programs.

[House Bill 2664-A](#)

Not Enacted

Ambulatory Surgery Centers**Chief Sponsors:** Reps. Nosse, Lively, Buehler; Sen. Monnes Anderson**Committees:** House Health Care, Joint Ways and Means

Background and Current Law: Ambulatory Surgery Centers (ASC) are health care facilities that focus on providing same-day surgical care, including diagnostic and preventive procedures. In response to the increasing interest in ASCs and extended stay facilities, in 2015, the House Health Care Committee formed a work group to explore the possibility of allowing patients to recover from outpatient surgery in an extended stay facility or extended stay recovery center. Currently, Arizona, Colorado, Florida, Illinois, and Nevada have adopted extended stay recovery licensure.

Bill Summary: House Bill 2664-A would have defined “extended stay centers,” “extended stay services,” “health system,” and “local hospital,” and directed the Oregon Health Authority (OHA) to adopt rules specifying the criteria for the licensing of extended stay centers and for emergency transfer agreements. The bill specified hospital requirements where the patient would be transferred; that the patient stay in an extended stay center for up to 48 hours, or four hours past the 48-hour limit based on patient safety; and that OHA license no more than 16 extended stay centers until January 2, 2023. Additionally, the bill would have required OHA to convene a nine-member advisory group to monitor the implementation of the bill.

[House Bill 2673](#)

Effective Date: October 6, 2017

Procedures for Updating Birth Certificates**Chief Sponsors:** Reps. Nosse, Greenlick, Williamson; Sen. Monnes Anderson**Committees:** House Health Care, Senate Judiciary

Background and Current Law: To update a birth certificate, a transgender person must currently ask a court for a legal name or gender marker amendment and then take the court order to the Oregon Health Authority’s Vital Records Department. The court process can be inconsistent from county to county, costly and difficult to navigate.

Bill Summary: House Bill 2673 provides an alternative process for people to change their names and gender on a vital record. The bill eliminates the requirement for courts to publicly post court orders on name and gender changes.

Oregon Laws 2017: Chapter 100

[House Bill 2675](#)

Effective Date: January 1, 2018

Oral Health in Community Health Improvement Plans

Chief Sponsors: Reps. Nosse, Hayden

Committees: House Health Care, Senate Health Care

Background and Current Law: When House Bill 3650 (2011) and Senate Bill 1580 (2012) were enacted and coordinated care organizations (CCO) were established, the addition of oral health to their responsibilities was delayed for two years. The initial community health improvement plans created by community advisory councils (CACs) often did not include plans to integrate physical, behavioral, and oral health services. Subsequent plans and reports required by CACs have not addressed the need for plans and strategies to integrate services for enrollees served by coordinated care organizations.

Bill Summary: House Bill 2675 requires a community advisory council's health improvement plan to focus on and develop strategies for the CCO to integrate physical, behavioral, and oral health services.

Oregon Laws 2017: Chapter 82

[House Bill 2834-A](#)

Not Enacted

Expanding Dental Care Coverage

At the request of: House Committee on Health Care

Committees: House Health Care, Joint Ways and Means

Background and Current Law: When House Bill 3650 (2011) and Senate Bill 1580 (2012) were enacted and coordinated care organizations (CCO) were established, the addition of oral health to their responsibilities was delayed for two years. Each coordinate care organization was required to develop their initial community health improvement plans, which were created by community advisory councils (CACs). These plans often did not include efforts to integrate physical, behavioral, and oral health services. Subsequent plans and reports required by CACs have not addressed the need for plans and strategies to integrate services for enrollees served by CCOs.

Bill Summary: House Bill 2834-A would have required a dental care organization that contracts with a CCO to provide oral health care services to individuals who are at or below 250 percent of the federal poverty level and without certain oral health care coverage, if they are veterans or age of 65 or older.

[House Bill 2838-B](#)

Not Enacted

Medicaid Application Assistance Grant

At the request of: House Committee on Health Care

Committees: House Health Care, Senate Health Care, Joint Ways and Means

Background and Current Law: Most Oregonians can enroll in either private health insurance or enroll in free or low-cost coverage through the Oregon Health Plan (OHP), Oregon's Medicaid program. Medicaid is available to people who meet requirements for age, income, disability status, residency, and other factors. Every year, OHP enrollees must reapply to continue receiving Medicaid benefits. In recent years, to help individuals navigate the application process to receive insurance coverage available through the federal Affordable Care Act including Medicaid and Marketplace-based coverage, application assisters have helped work with individuals with enrollment and re-enrollment in health coverage options.

Bill Summary: House Bill 2838-B would have created the Oregon Health Authority Assister Fund to provide grants to nonprofit or governmental organizations to give application assistance to individuals eligible for Medicaid.

[House Bill 2839](#)

Effective Date: June 20, 2017

Prohibits Transplant Eligibility Determination Based on a Disability

At the request of: House Committee on Health Care

Committees: House Health Care, Senate Health Care

Background and Current Law: It has been reported that individuals with mental or physical disabilities have been denied access to life-saving organ transplants based on their disability, as some believe that these individuals should not participate in a transplant operation without considering supports and other assistance due to their disability. Reports also indicate that people with disabilities may at times be viewed as "less worthy" of such operations.

In recent years, California, Maryland, Massachusetts, and New Jersey have enacted legislation prohibiting discrimination regarding organ transplants against people with disabilities. In 2016, members of Congress sent a letter to the federal Department of Health and Human Services asking the agency to issue guidance on organ transplant discrimination with regards to individuals with disabilities, specifically stating that organ transplant discrimination violates the federal Americans with Disabilities Act.

Bill Summary: House Bill 2839 prohibits discrimination against individuals with a disability in the provision of organ transplants in Oregon.

Oregon Laws 2017: Chapter 396

[House Bill 2882](#)

Effective Date: June 22, 2017

Dental Care Representative on Coordinated Care Organization Governing Body

Chief Sponsors: Reps. Nosse, Keny-Guyer, Buehler

Committees: House Health Care, Senate Health Care

Background and Current Law: A coordinated care organization (CCO) is a network of health care providers (physical, mental health, and dental care) who work together in their local communities to serve people who receive Medicaid coverage under the Oregon Health Plan (OHP). Currently, there are 16 CCOs operating in communities throughout Oregon. CCOs are not required to have a dental care organization (DCO) representative on the governing board.

Bill Summary: House Bill 2882 requires a CCO governing board to include a representative from at least one dental care organization that is selected by the CCO.

Oregon Laws 2017: Chapter 429

[House Bill 2979-A](#)

Not Enacted

Medicaid Enrollment Process

At the request of: House Committee on Health Care

Committees: House Health Care, Joint Ways and Means

Background and Current Law: A coordinated care organization (CCO) is a network of all types of health care providers (physical, mental health, and dental care) who work together in their local communities to serve people who receive health care coverage under the Oregon Health Plan (i.e., Medicaid). CCOs are focused on prevention and helping people manage chronic conditions. Currently, there are 16 CCOs operating in communities around Oregon.

Bill Summary: House Bill 2979-A would have eliminated certain categories of Medicaid recipients historically exempt from enrollment into a CCO. The measure would have required the Oregon Health Authority to enroll individuals into a CCO no later than 30 days after eligibility had been determined or disenrollment had occurred from another CCO, and to re-enroll eligible Medicaid recipients into their original CCO or to a new CCO if the client requested the change.

House Bill 3030**Effective Date: January 1, 2018****Regulation of Nitrous Oxide****Chief Sponsors:** Rep. Hayden**Committees:** House Health Care, Senate Judiciary

Background and Current Law: Dentists routinely use nitrous oxide for its pain-numbing effects. It is also used for medical purposes for the same reason. A commonly abused form of nitrous oxide is found in small, pressurized food-preparation containers called “whip-its.” These are commonly used in products such as whipped cream dispensers. Abusers place the whip-it in a “cracker” (a type of valve device), put a balloon on one end of the cracker, and turn it until the whip-it pops. The nitrous oxide can create an intense but brief high. A blast of nitrous oxide from a balloon can, within eight to 10 seconds, cause dizziness, giddiness, disorientation and, occasionally, visual hallucinations.

Bill Summary: House Bill 3030 prohibits businesses and their employees from selling nitrous oxide canisters from which a person can directly inhale nitrous oxide to anyone under age 18. It specifies that a violation of this offense is a Class A violation and that a subsequent conviction is a Class C misdemeanor. The bill provides an exception to this offense if the business or employee verifies the age of the purchaser.

Oregon Laws 2017: Chapter 402**House Bill 3090****Effective Date: October 6, 2017****Hospital Discharge Policies for Behavioral Health Treatment****Chief Sponsors:** Reps. Keny-Guyer, Greenlick, Buehler; Sen. Gelser**Committees:** House Health Care, Senate Human Services

Background and Current Law: In 2015, the Legislative Assembly enacted House Bill 2023, which directed hospitals to adopt and enforce discharge policies for individuals admitted for mental health treatment. The measure specified that policies include a disclosure authorization signed by the patient and assessments of suicide risk, long-term needs, needed community services, and the patient’s capacity for self-care. The measure also required hospitals to create a process to coordinate the patient’s care and transition from inpatient to outpatient treatment and a follow-up appointment no later than seven days after discharge.

Bill Summary: House Bill 3090 requires hospitals with emergency departments to adopt policies on the release of patients presenting signs of “behavioral health crisis” and to provide “suicide prevention measures” if necessary. The bill requires hospitals to submit information on adopted policies to the Oregon Health Authority and directs the agency to make recommendations to the legislature to improve behavioral health outcomes by January 1, 2018.

Oregon Laws 2017: Chapter 272

[House Bill 3091](#)

Effective Date: January 1, 2018

Medicaid Behavioral Health Treatment

Chief Sponsors: Reps. Keny-Guyer, Greenlick; Sen. Gelser

Committees: House Health Care, Senate Human Services

Background and Current Law: In 2015, the Legislative Assembly enacted House Bill 2023, which directed hospitals to adopt and enforce discharge policies for individuals admitted for mental health treatment. The measure specified that policies include a disclosure authorization signed by the patient and assessments of suicide risk, long-term needs, needed community services, and the patient's capacity for self-care. The measure also required hospitals to create a process to coordinate the patient's care and transition from inpatient to outpatient treatment and a follow-up appointment no later than seven days after discharge.

Bill Summary: House Bill 3091 requires coordinated care organizations (CCOs) to provide and prioritize specified behavioral health services for members, including "behavioral health assessments" and medically necessary treatments to members in "behavioral health crisis." It adds "behavioral health clinicians" to the list of funded "health services," "behavioral health crisis" to the list of emergency medical conditions, and "behavioral health assessment" to the list of emergency services.

Oregon Laws 2017: Chapter 273

[House Bill 3135-A](#)

Not Enacted

Medicaid Reimbursement for Intrauterine Devices and Progestin Implants

Chief Sponsors: Rep. Buehler

Committees: House Health Care, Joint Ways and Means

Background and Current Law: The American College of Obstetricians and Gynecologists recommends strategies for immediate use of postpartum, long-acting reversible contraception.

Bill Summary: House Bill 3135-A would have required the Oregon Health Authority (OHA) to reimburse Medicaid clients for the postpartum insertion of an intrauterine device or progestin implant at the rate established by OHA. The measure would have required OHA to pay for the removal of this device at any time the client chooses, even if the client was no longer eligible for coverage under the Oregon Health Plan (i.e., Medicaid).

[House Bill 3261](#)

Effective Date: October 6, 2017

Health Care Provider Incentive Fund

Chief Sponsors: Rep. Nathanson; Sen. Steiner Hayward

Committees: House Human Services and Housing, House Health Care, Joint Ways and Means

Background and Current Law: Oregon offers a variety of financial incentives to help recruit and retain health care providers in rural and other underserved areas. Loan forgiveness or repayment programs, tax credits for rural health care providers, and subsidies for malpractice insurance premiums impact efforts to recruit or retain health care providers in underserved communities. House Bill 3396 (2015) repealed the authorizing statutes and funds for most of Oregon's health care provider incentive programs, and created a new Health Care Provider Incentive Fund administered by the Oregon Health Authority (OHA). The bill also required the Oregon Health Policy Board (OHPB) to study and report on the efficacy of Oregon's provider incentives and develop recommendations to improve current incentives.

Bill Summary: House Bill 3261 requires OHPB in collaboration with the Oregon Health and Science University (OHSU) and the Office of Rural Health, to regularly assess the health care workforce needs in Oregon, and evaluate the effectiveness of provider incentive programs. The bill specifies the amounts and distribution of moneys in the Health Care Provider Incentive Fund and requires OHA to enter an agreement with OHSU to administer provider incentive programs.

Oregon Laws 2017: Chapter 718

[House Bill 3262](#)

Effective Date: June 29, 2017

Psychotropic Medication Regulations

Chief Sponsors: Rep. Nathanson

Committees: House Human Services and Housing, Senate Human Services

Background and Current Law: Psychotropic medication is defined in Oregon statute as medication with the prescribed intent to affect or alter thought process, mood, or behavior. This includes antipsychotic, antidepressant, anxiolytic, and behavior medications. Oregon law requires the Department of Human Services (DHS) to develop rules for use of psychotropic medications for children placed in foster care.

Bill Summary: House Bill 3262 requires DHS, in collaboration with other agencies, to adopt rules related to the prescription of psychotropic medicine to elderly people or person with disabilities living in adult foster homes, residential care facilities, or long-term care facilities. The bill specifies rule requirements, including the review of the prescription of psychotropic medicines by the person's primary care or mental health provider or a DHS-designated licensed health care practitioner, if the prescription was not written by one of those individuals.

Oregon Laws 2017: Chapter 503

[House Bill 3276](#)

Effective Date: August 15, 2017

Treatment Reimbursement for Disease Outbreaks

Chief Sponsors: Reps. Greenlick, Nathanson; Sen. Steiner Hayward

Committees: House Health Care, Joint Ways and Means

Background and Current Law: Meningitis outbreaks occurred in Eugene at the University of Oregon in 2015 and in Corvallis at Oregon State University in 2017. Meningitis is a communicable disease; the University of Oregon outbreak resulted in hospitalizations and one death. In each case, the university responded by working with public health agencies to quickly vaccinate thousands of students. In some instances, insurers refused to reimburse the university for the cost of the vaccinations as insurers require that vaccines be administered by a primary care or in-network physician, even if that provider is hundreds of miles away. Reimbursement was also denied due to the specific vaccine's status as a recently approved drug.

Bill Summary: House Bill 3276 requires health benefit plan coverage of health services to reimburse the cost of necessary antitoxins, serums, vaccines, immunization agents, antibiotics, antidotes, and other necessary items if the Public Health Director determines there is a disease outbreak, epidemic or other condition of public health importance in a geographic area of the state or statewide. The measure directs the Public Health Director to convene a task force to develop recommendations to improve student health insurance coverage.

Oregon Laws 2017: Chapter 719

[House Bill 3336](#)

Not Enacted

Family Medical Leave Savings Accounts

Chief Sponsors: Reps. Hack, Buehler

Committees Assigned: House Early Childhood and Family Supports

Background and Current Law: Under the Oregon Family Leave Act (OFLA), employers with 25 or more employees are required to provide up to 12 weeks per year of unpaid family leave. Eligible employees may take OFLA leave for parental leave, a serious health condition, pregnancy disability leave, sick child leave, or death of a family member. There is additional leave time available for pregnancy disability leave, parental leave, and sick child leave. The federal Family and Medical Leave Act (FMLA) requires a business with 50 or more employees to provide up to 12 weeks of unpaid leave for certain family and medical reasons. Any leave taken under FMLA counts as OFLA leave.

Bill Summary: House Bill 3336 would have created family medical leave savings accounts for employees who qualify and take OFLA or FMLA leave. This would have allowed an individual or a couple to create accounts to cover lost wages. The funds in the account would not be subject to federal taxes. There would have been a tax credit for a person, such as an employer, that contributes to the account.

[House Bill 3355](#)

Vetoed

Prescribing Authority for Licensed Psychologists**Chief Sponsors:** Reps. Kennemer, Greenlick, Malstrom; Sen. Monnes Anderson**Committees:** House Health Care, Joint Ways and Means**Background and Current Law:** In 2004, New Mexico became the first state to authorize psychologists to prescribe psychotropic medication, which was codified as “The Professional Psychologist Act.”**Bill Summary:** House Bill 3355 authorizes the State Board of Psychologist Examiners to issue a certificate of prescriptive authority to a licensed psychologist who meets the specified requirements. The measure creates a nine-member Committee on Prescribing Psychologists and specifies committee membership.[House Bill 3391](#)**Effective Date: August 15, 2017****Reproductive Health Care Coverage****Chief Sponsors:** Reps. Barker, Williamson, Fahey; Sens. Devlin, Monnes Anderson**Committees:** House Health Care, Joint Ways and Means**Background and Current Law:** Currently, under the federal Affordable Care Act (ACA), women’s preventive health care, such as mammograms, screenings for cervical cancer, prenatal care, and other services that include reproductive health care, generally must be covered with no cost-sharing. The ACA also “grandfathered” some plans to enable them to continue cost-sharing practices, which allows those plans to maintain copays and deductibles for preventive services.**Bill Summary:** House Bill 3391 updates the state Insurance Code by requiring health plans to include certain health care services, drugs, devices, products, and procedures relating to reproductive health without cost-sharing, including: well-women visits; screenings and counseling for sexually transmitted infections; pregnancy-related services; screening, counseling, and intervention for both tobacco use and domestic violence; breast-feeding counseling and supplies; breast cancer screening; contraceptives approved by the U.S. Food and Drug Administration; and voluntary sterilization. The bill specifies that an insurer may offer to a religious employer a health plan that does not cover contraceptives or abortion, if the insurer notifies all employees who may be enrolled in the health plan, in writing, of all the contraceptives the employer refuses to cover for religious reasons. Additionally, the bill requires coverage of services by out-of-network providers without cost-sharing, when an in-network provider is not reasonably accessible or able to provide timely service, and prohibits discrimination based on certain classes by a health benefit plan or medical assistance program.**Oregon Laws 2017:** Chapter 721

House Bill 3404**Effective Date: May 25, 2017****Rear-Facing Child Car Seats****Chief Sponsors:** Reps. Malstrom, Huffman, Hack, Piluso; Sen. Steiner Hayward**Committees Assigned:** House Early Childhood and Family Supports, Senate Health Care

Background and Current Law: Oregon law requires children under the age of one, or children weighing 20 pounds or less, to be in a rear-facing position in a car seat, which supports the neck and spine if a crash occurs. A 2007 study in the Injury Prevention Journal analyzed the National Highway Traffic Safety Administration crash data of 870 children and found that rear-facing car seats are more effective than forward-facing seats in protecting children aged 0-23 months for all crash types. In 2011, the American Academy of Pediatrics issued a recommendation that all infants and toddlers should ride in a rear-facing car seat until the age of two or until they reach the height or weight limit of the car seat's manufacturer.

Bill Summary: House Bill 3404 requires children under the age of two to be properly secured with a child safety system in a rear-facing position. It exempts children who are one year of age or older immediately before the bill becomes law.

Oregon Laws 2017: Chapter 177

House Bill 3418-A**Not Enacted****Reimbursement Rates for PEBB and OEBB Health Plans****Chief Sponsors:** Reps. Kotek, G. Smith, Greenlick**Committees:** House Health Care, House Rules, Joint Ways and Means

Background and Current Law: Oregon's Public Employees' Benefit Board (PEBB) designs, contracts, and administers a program of benefits for state employees. The benefits include medical and dental coverage; life, accident, disability and long-term care insurance; and flexible spending accounts. The Board also offers health care insurance options for retirees not yet eligible for Medicare and individuals in other participating groups. PEBB's total membership is approximately 127,000 individuals.

The Oregon Educators Benefit Board (OEBB) was created in 2007 to provide a comprehensive selection of benefit plan options for most of Oregon's K-12 school districts, education service districts, and community colleges, as well as several charter schools and local governments across the state. OEBB currently provides benefits for almost 150,000 individuals, including actively employed and retired members, and their families.

Bill Summary: House Bill 3418-A would have established in-network and out-of-network reimbursement rates for inpatient and outpatient hospital claims for PEBB and OEBB health plans and self-insurance programs administered by a third party.

2017 SUMMARY OF LEGISLATION



HOUSING



HOUSING MEASURES

Development and Preservation

Enacted: SB 1051, HB 2002, HB 2737,
HB 2912

Not Enacted: HB 2007-A

General Housing Policy

Enacted: SB 298, SB 821, HB 3063,
HB 3175, HB 3370

Not Enacted: HB 3357-B

Homeownership

Enacted:

Not Enacted: HB 2570-A, HB 2961,
HB 2996-A, HB 3192-A

Manufactured Homes

Enacted: SB 277, HB 2008

Not Enacted: HB 3331

Property Taxes and Deductions

Enacted: HB 2377, HB 2964

Not Enacted: HB 2006, HB 2852-A

Rentals

Enacted: HB 2724, HB 2944

Not Enacted: SB 794, HB 2004-B

Picture: Shore Acres State Park, Coos County - [Gary Halvorson](#), [Oregon State Archives](#)

HOUSING

TASK FORCES AND REPORTING REQUIREMENTS

The following bills created task forces and reporting requirements. Additional information is provided in the bill summaries.

HB 2724	The Housing and Community Services Department must submit an annual report on implementation of the Rent Guarantee Program, number of participants, amount of financial assistance, and performance outcomes to the interim legislative committees on housing.	September 15th of each year
HB 2737	The Department of Consumer and Business Services will report on implementation and use of construction standards for small homes to the Legislative Assembly.	March 1, 2019
HB 2912	The Housing and Community Services Department must report on performance measures for the Affordable Housing Land Aquisition program to the interim legislative committees on housing.	December 1st of each year, beginning in 2018

[Senate Bill 277](#)

Effective Date: June 14, 2017

Termination of Manufactured Dwelling and Floating Home Rental Agreements

Chief Sponsors: Sens. Roblan, Olsen; Rep. Helm

Committees: Senate Human Services, House Human Services and Housing

Background and Current Law: Oregon law permits landlords to terminate a rental agreement for tenants in manufactured dwellings or floating homes after providing a 30-day written notice. The notice must include a description of the causes for termination including how the tenant can avoid termination, the process for informing the landlord of a completed correction, and information about the tenant's right to request an extension to make corrections. Unless the cause for termination poses imminent risk of serious harm, landlords must grant a 60-day extension when weather prevents completion of work, or if work cannot reasonably be finished in 30 days. Landlords must also grant a six-month extension if they knew about the issues leading to termination during the preceding 12 months.

Bill Summary: Senate Bill 277 increases the notice period from 30 days to 60 days for a landlord to terminate a month-to-month or fixed-term rental agreement and require removal of a manufactured dwelling or floating home. The measure allows landlords to terminate a rental agreement with 30 days' written notice if the manufactured dwelling or floating home creates a risk of serious or imminent harm. The measure requires landlords to give a prospective buyer of a manufactured dwelling or floating home copies of termination documents outlining maintenance issues and potential liability for repairs. Within six months of new tenant occupation, a landlord may terminate a rental agreement if the tenant fails to complete repairs.

Oregon Laws 2017: Chapter 324

[Senate Bill 298](#)

Effective Date: June 14, 2017

Labor Commissioner Discretion on Housing Discrimination Claims

At the request of: Senate Interim Committee on Workforce

Committees: Senate Workforce, Senate Judiciary, House Business and Labor

Background and Current Law: The Commissioner of the Bureau of Labor and Industries (BOLI) has authority to investigate and remedy housing discrimination claims. Prior to June 2015, if BOLI determined there was substantial evidence to support a housing discrimination claim, it was required to seek civil penalties if a settlement could not be reached. Similarly, BOLI was required to pursue a discrimination-related matter in court if either party elected to seek judicial remedies. The Legislative Assembly, through Senate Bill 380 (2015), granted the Commissioner discretion for a two-year period to seek civil penalties or appear in court in these circumstances.

Bill Summary: Senate Bill 298 extends the sunset from 2017 to 2021 on provisions granting the Commissioner of BOLI discretion to seek civil penalties or appear in court on housing discrimination claims.

Oregon Laws 2017: Chapter 325

[Senate Bill 794](#)

Not Enacted

Oregon Renter Assistance Program

At the request of: Senate Committee on Finance and Revenue

Committees: Senate Human Services

Background and Current Law: Oregon has seen some of the fastest-growing rent increases in the country in recent years. Studies identify low vacancy rates, high demand, and increasing property prices as factors in rising rents. Oregon Housing and Community Services (OHCS) oversees several housing assistance programs. These programs primarily focus on housing for low-income or homeless populations.

Bill Summary: Senate Bill 794 would have directed OHCS to develop the Oregon Renter Assistance Program to provide temporary rent subsidies to tenants in privately owned rental housing who have experienced rent increases caused by changes in the housing market. The measure required OHCS to contract with an approved nonprofit organization to administer the program. The measure also would have created a Trust for Oregon Renter Assistance Account in the state treasury to fund the assistance program and provided a tax credit for qualifying taxpayers that contribute to the account.

[Senate Bill 821](#)

Effective Date: January 1, 2018

Development of Housing Policy

At the request of: Senate Committee on Human Services

Committees: Senate Human Services, House Human Services and Housing

Background and Current Law: Oregon's Emergency Housing Account, administered by the Oregon Housing Stability Council (OHSC), funds programs to assist the homeless and those at risk of becoming homeless. The use of the Emergency Housing Account also qualifies the state to receive federal matching funds for antipoverty programs if federal criteria are met. The Community Action Partnership of Oregon is the nonprofit association that currently works with the state to deliver federal antipoverty programs and advise state agencies.

Bill Summary: Senate Bill 821 directs the OHSC to develop a policy, in consultation with the Community Action Partnership of Oregon, for awarding grants to organizations through the Emergency Housing Account, including developing policies that align with federal homelessness prevention strategies and resources.

Oregon Laws 2017: Chapter 350

Augmented Housing Construction and Production

Chief Sponsors: Reps. Kotek, Stark

Committees: Senate Business and Transportation, House Early Childhood and Family Supports, House Rules

Background and Current Law: State economists have estimated that 111,000 market rate units of housing would need to be built this year to make up the deficit of the past 10 years and keep up with demand from new Oregonians. In addition, Oregon Housing and Communities Services estimates the shortage of available affordable housing for low-income households at over 100,000 units.

Landowners in Oregon are required to apply in writing for a permit or zone change for a development project, when the county they reside in has enacted rules or regulations regarding permit and zone change applications (ORS 215.416). Every application submitted to the county is required to have at least one public hearing to determine approval or denial. This decision is made based on the standards and criteria determined by the county zoning ordinances and comprehensive plan for the area. Applications for development projects are not approved if the proposed use of land is found to be in conflict with the comprehensive plan or other land use regulations. Cities and counties are required to take final action on an application for a permit, limited land use decision, or zone change within 120 days after the application is determined to be complete.

Bill Summary: Senate Bill 1051 requires a city or county to review and take final action within 100 days on an application to develop a multifamily residential building that has five or more units, at least 50 percent of its units affordable to households making 60 percent of median family income or below, and an agreement that such units will be affordable for at least 60 years. The measure updates the definition of “needed housing” to include affordable housing and housing built on land zoned for residential use, allowing local jurisdictions to assess whether they are providing sufficient affordable housing when completing their housing needs assessments. In addition, the measure maintains existing exemptions from clear and objective standards for regional centers, as defined by Metro, and historic areas, and the ability for developers to use discretionary process. The measure requires local governments to report to the Department of Land Conservation and Development the number of complete development applications received for units sold or rented below market rate as part of a housing assistance program.

Senate Bill 1051 also allows the development of affordable housing on land owned by religious organizations that is inside an urban growth boundary, if the development complies with local land use regulations, and allows at least one accessory dwelling unit (ADU) for each single-family home in areas zoned for single-family dwellings. Local jurisdictions may impose reasonable regulations related to the approval of ADUs, including design and site-specific infrastructure.

Oregon Laws 2017: Chapter 699

Preservation of Publicly Supported Housing Properties

Chief Sponsors: Rep. Kotek

Committees: House Human Services and Housing, Joint Ways and Means

Background and Current Law: Under current Oregon law (ORS 456.260), property owners participate in federal housing programs are required to provide notice of an expiring contract to the United States Department of Housing and Urban Development one year prior to the expiration date. This notice must be given to each local government that has requested notice and each affected tenant.

Bill Summary: House Bill 2002 requires publicly supported property owners with an expiring or terminating contract to provide notice to local government and Oregon Housing and Community Services (OHCS) two years before the contract expires or the property is withdrawn from publicly supported housing. The measure allows the local government to impose penalties for failure to notice. For sale of publicly supported housing, the property owner is required to provide OHCS and local government the opportunity to offer to purchase the property and a right of first refusal. House Bill 2002 also requires OHCS to maintain a database on publicly supported housing.

Oregon Laws 2017: Chapter 608

Termination of Tenancies and No Cause Evictions

Chief Sponsors: Reps. Gorsek, Piluso, Power, Hernandez; Sens. Dembrow, Gelser, Monnes Anderson

Committees: House Human Services and Housing, Senate Human Services, Senate Rules

Background and Current Law: Oregon state law allows both landlords and tenants to terminate month-to-month tenancies with 30 days notice (some localities, like Portland, have imposed different notice requirements). Fixed term tenancies can be terminated without cause by either landlords or tenants at any time during a tenancy with 30 days notice prior to the end of the term or 60 days notice after the end of the term. State law prohibits cities and counties from enacting rent control ordinances, and there are no restrictions on the number of times a landlord can increase rent during a month-to-month tenancy.

Bill Summary: House Bill 2004-B would have permitted landlords to terminate month-to-month tenancies without cause, with 30 days notice, at any time during the first nine months of occupancy (except when a tenant requested specified repairs in the previous 60 days). After the first nine months of tenancy, landlords would have to provide cause for termination. Landlords would have to provide cause with 30 days notice prior to termination of a fixed term tenancy, and fixed term tenancies would have been a minimum of six months unless a shorter term was requested by the tenant. Tenants of both month-to-month and fixed term tenancy would have been permitted to terminate tenancies at any time without cause, with 30 days notice.

House Bill 2004-B provided exceptions to the measure requirements for landlords to provide cause for termination of month-to-month tenancies after nine months with 90 days notice in situations such as good faith efforts to: renovate or repair units unfit to occupy or where work would render unit unfit to occupy; demolish or convert the unit to nonresidential use; sell the unit (with specified notice) as a primary residence; list a unit for sale that reasonably needs to be unoccupied to sell; or use the unit as the landlord's or immediate family's primary residence if the landlord does not own a comparable unoccupied unit. In addition, the measure required landlords to provide notice of the exception used.

House Bill 2004-B would have required landlords who violated the measure's provisions to pay three months' rent plus damages to the tenant. Tenants could have used violations as a defense against possession actions. Finally, the measure restricted landlords from increasing rents more than once in a 12-month period for month-to-month tenancies.

The Senate Rules Committee adopted the -B21 amendment prior to adjournment. The -B21 amendment would have amended the B-Engrossed version of House Bill 2004 to allow termination of month-to-month tenancies without cause any time during the first year instead of during the first nine months. Among other things, the amendment would have modified the penalty provision to require landlords who violated the measure's provisions to pay the greater of two months' rent or twice actual damages to the tenant.

[House Bill 2006](#)

Not Enacted

Mortgage Interest Deduction for Secondary Residences

At the request of: House Committee on Human Services and Housing

Committees: House Human Services and Housing, House Revenue

Background and Current Law: Oregon's mortgage interest deduction is available to taxpayers who pay interest on their mortgages for qualified properties within a given tax year. This deduction is claimed through the taxpayer's individual itemized deductions.

Bill Summary: House Bill 2006 would have amended the mortgage interest deduction for Oregon income tax by disallowing mortgage interest deduction for a secondary residence, based on adjusted gross income thresholds.

[House Bill 2007-A](#)

Not Enacted

Affordable Housing Development

Chief Sponsors: Reps. Kotek, Stark

Committees: House Human Services and Housing, Joint Ways and Means

Background and Current Law: Landowners in Oregon are required to apply in writing for a permit or zone change for a development project (ORS 215.416). Every application submitted to a county is required to have at least one public hearing to determine approval or denial. This decision is made based on the standards and criteria determined by county zoning ordinances and the comprehensive plan for the area.

Bill Summary: House Bill 2007-A would have required a city or county to take final action on an application to develop a multifamily residential building with at least 50 percent of units sold or rented as affordable housing within 100 days after the application completion. The measure prohibited a city or county from denying an application if it complied with clear and objective standards outlined within the city or county comprehensive plan or zoning ordinances. The measure would have prohibited local governments from discouraging needed housing through designating a neighborhood as a national historic district or reducing the density of an application unless necessary for health, safety, or habitability.

[House Bill 2008](#)

Effective Date: June 6, 2017

Landlord Termination Fees on Manufactured Homes Rental Agreements

Chief Sponsors: Reps. Marsh, Fahey

Committees: House Human Services and Housing, Senate Human Services

Background and Current Law: The Office of Manufactured Dwelling Park Community Relations (Manufactured Communities Resource Center or MCRC) was created in 1989 to improve landlord and tenant relations in manufactured home parks. MCRC monitors continuing education compliance for landlords and maintains park registration requirements. Oregon law requires landlords closing a manufactured home park and terminating rental agreements to provide one year's notice and to pay displaced tenants a fixed termination fee depending on the size of dwelling. Current fees are \$5,000 to terminate a single-wide tenancy, \$7,000 for a double-wide, and \$9,000 for a triple-wide or larger manufactured home.

Bill Summary: House Bill 2008 increases the termination fees for single-wide (\$6,000), double-wide (\$8,000) and triple-wide or larger manufactured dwellings (\$10,000). Owners of a manufactured dwelling park are required to notify the MCRC on the number of vacant spaces and homes, final sale price, and information about the new owner upon sale, transfer, or exchange of a manufactured dwelling park.

Oregon Laws 2017: Chapter 198

[House Bill 2377](#)

Effective Date: October 6, 2017

Property Tax Exemption for Rehabilitated or Constructed Multi-unit Rental

Chief Sponsors: Reps. Brock Smith, G. Smith, Buehler, Marsh; Sen. Roblan

Committees: House Human Services and Housing, House Revenue, Senate Finance and Revenue

Background and Current Law: Property tax exemptions provide relief from all or part of property taxes for qualified individuals and organizations. County assessors manage and implement property tax exemptions in Oregon through approving or denying applications. The total number of applications for property tax exemptions varies significantly. Under Oregon law (ORS 307.606), cities and counties are allowed to adopt an ordinance or resolution allowing a property tax exemption for low-income housing or newly constructed multi-unit housing that meets specific criteria.

Bill Summary: House Bill 2377 permits a city or county government to adopt an ordinance or resolution granting a property tax exemption for newly rehabilitated or constructed qualified multi-unit rental housing. A city or county that adopts an ordinance or resolution is required to establish a schedule for the number of years the exemption is provided increases directly with the percentage of affordable units rented to households with an annual income at or below 120 percent of the area median income. prescribe exemption application forms and information required on the property tax exemption application.

Oregon Laws 2017: Chapter 624

[House Bill 2570-A](#)

Not Enacted

Affordable Homeownership Grant Program

Chief Sponsors: Reps. Witt, Gomberg, Olson, Post, Whisnant

Committees: House Human Services and Housing, Joint Ways and Means

Background and Current Law: Oregon Housing and Community Services currently implements programs assisting low- to moderate-income families through the Home Ownership Assistance Program, Residential Loan Program, and Oregon Foreclosure Avoidance Program.

Bill Summary: House Bill 2570-A would have directed Oregon Housing and Community Services to establish the Affordable Homeownership Grant Program to provide grants to eligible nonprofit organizations with homeownership programs providing opportunities to help first-time low-income homeowners to purchase or leverage a loan for new homes, to rehabilitate homes, or to purchase manufactured homes.

[House Bill 2724](#)

Effective Date: January 1, 2018

Rent Guarantee Program

Chief Sponsors: Reps. Keny-Guyer, Heard; Sen. Dembrow

Committees: House Human Services and Housing, Joint Ways and Means

Background and Current Law: Rent Well is a tenant education course taught by certified instructors on how to be a successful renter. This course is offered to tenants throughout the Portland metro area. Participants in the Rent Well course include individuals who have poor or no credit, past evictions, no rental history, or a criminal history, and are low-income, at risk of homelessness, or are currently homeless. When a participant has completed the Rent Well course, they receive a certificate to present to landlords when applying for rental housing. Landlords accepting Rent Well tenants can register for the Rent Well Landlord Guarantee Fund, which may cover damages, unpaid rent, or eviction costs.

Bill Summary: House Bill 2724 directs Oregon Housing and Community Services to develop and implement the Rent Guarantee Program to provide tenants from low-income households training on achieving successful tenancy, and offer certification of such training. The measure requires the program to provide incentives and financial assistance for unpaid rent, eviction, and property damages to landlords renting or leasing to low-income households with certain limitations.

Oregon Laws 2017: Chapter 659

[House Bill 2737](#)

Effective Date: October 6, 2017

Construction Standards for Tiny Houses

Chief Sponsors: Reps. Barnhart, Bynum

Committees: House Business and Labor, Senate Business and Transportation

Background and Current Law: The demand for tiny houses is driven by a several factors, including the cost of building materials, efforts to reduce the use of energy and natural resources, housing density goals, and homelessness. Tiny houses have difficulty in meeting the existing residential building code, which was developed for traditional houses. The International Code Council (ICC) has approved new tiny house standards for inclusion in its 2018 code update. The Department of Consumer and Business Services (DCBS) typically has a delay of one to three years before adjusting its codes to reflect ICC changes.

Bill Summary: House Bill 2737 directs the DCBS to adopt construction standards for tiny houses, no later than January 1, 2018. The measure requires the DCBS Director to report to the appropriate legislative committees regarding implementation of the new standards by March 1, 2019.

Oregon Laws 2017: Chapter 394

[House Bill 2852-A](#)

Not Enacted

Affordable Housing Tax Credits Auction

Chief Sponsors: Rep. Lininger

Committees: House Human Services and Housing, Joint Tax Credits

Background and Current Law: The Oregon Affordable Housing Tax Credit (OAHTC) allows mortgage banking companies to claim the OAHTC with respect to loans for construction or acquisition and rehabilitation of multifamily rental housing development projects. Tenants receive lower rent rates for each dollar of the credit taken by the lending institution. The OAHTC has a tax credit cap of \$17 million.

Bill Summary: House Bill 2852-A would have extended the sunset date for the OAHTC from January 1, 2020 to January 1, 2026 and increased the tax credit cap to \$25 million. House Bill 2852 also required the Oregon Department of Revenue, in collaboration with Oregon Housing and Community Services, to conduct an auction of the reserved tax credits no later than December 1 of the tax year for which the credits are allowed.

The OAHTC sunset was extended to January 1, 2026 and the tax credit cap increased to \$25 million with the passage of [House Bill 2066](#).

[House Bill 2912](#)

Effective Date: January 1, 2018

Affordable Housing Land Acquisition Revolving Loan Fund

Chief Sponsors: Reps. Gomberg, Huffman, Johnson, Keny-Guyer

Committees: House Human Services and Housing, Joint Ways and Means

Background and Current Law: Oregon Housing and Community Services surveyed developers and providers of affordable housing in 2016 to examine barriers to improving affordable housing in Oregon. Rising costs of land and land use obstacles were identified as contributing barriers to affordable housing development and provision.

Bill Summary: House Bill 2912 establishes the Affordable Housing Land Acquisition Revolving Loan Program within Oregon Housing and Community Services. The purpose of the program is to make loans to eligible organizations that purchase land for development of affordable housing and facilities providing supportive services to low-income households. The bill requires 40 percent of loans be allocated to eligible organizations operating home ownership programs for low-income households and 60 percent of loans be allocated to other eligible organizations.

Oregon Laws 2017: Chapter 666

[House Bill 2944](#)

Effective Date: June 8, 2017

Proof of Damages for Housing Choice Landlord Guarantee Program

Chief Sponsors: Rep. Kotek

Committees: House Human Services and Housing, Senate Human Services

Background and Current Law: The Housing Choice Landlord Guarantee Program was established to provide financial assistance to landlords mitigating damages caused by tenants participating in the Housing Choice Voucher Program, also known as Section 8. Landlords are eligible for the program if they leased to a Section 8 tenant and obtained a judgment in small claims court against the tenant for damages. Financial assistance may be awarded in a partial amount or up to \$5,000 for property damage exceeding normal wear and tear, loss of rental income, and attorney's fees.

Bill Summary: House Bill 2944 requires landlords to prove the amount of damages in a judicial proceeding to be eligible for financial assistance from the Housing Choice Landlord Guarantee Program. The measure also repeals the requirement for tenants to repay the Housing Choice Landlord Guarantee Program for assistance paid to landlords.

Oregon Laws 2017: Chapter 271

[House Bill 2961](#)

Not Enacted

Homeownership Repair and Rehabilitation Program

Chief Sponsors: Reps. Witt, Whisnant, Gomberg, Post; Sen. Johnson

Committees: House Human Services and Housing, Joint Ways and Means

Background and Current Law: Oregon Housing and Community Services (OHCS) offers a weatherization program to low-income families needing to make home health and safety improvements, heating system repairs, insulation improvements, and window and door repair. This program helps promote energy efficiency in the homes of low-income Oregonians.

Bill Summary: House Bill 2961 would have established the Homeownership Repair and Rehabilitation Program within OHCS to provide grants to eligible nonprofit organizations to provide financial assistance to eligible low-income households for the repair and rehabilitation of their residences.

[House Bill 2964](#)

Effective Date: October 6, 2017

Single-Unit Housing Property Tax Exemption

Chief Sponsors: Rep. Smith Warner; Sens. Dembrow, Thompsen

Committees: House Human Services and Housing, House Revenue, Senate Finance and Revenue

Background and Current Law: Property tax exemptions relieve qualified individuals or organizations from all or part of their property taxes. These exemptions can be in full or partial amounts depending on the program requirements and the property qualifications. Oregon law allows cities to approve limited property tax exemptions for proposed construction of single-unit housing.

Bill Summary: House Bill 2964 allows cities to approve applications for a limited property tax exemption to existing single-unit housing that is purchased, rehabilitated, or newly constructed.

Oregon Laws 2017: Chapter 294

[House Bill 2996-A](#)

Not Enacted

First-Time Home Buyer Savings Account

Chief Sponsors: Reps. Meek, Johnson; Sen. Olsen

Committees: House Human Services and Housing, House Revenue

Background and Current Law: Oregon Housing and Community Services provides resources for first-time home buyers including access to homeownership education, homeownership counseling, and assistance with securing loans. These services are delivered locally by nonprofits throughout the state.

Bill Summary: House Bill 2996-A would have allowed an individual to create a first-time home buyer savings account to pay or reimburse the account holder's eligible costs related to purchasing a single-family residence and allowed joint ownership of first-time home buyer savings account if both account holders were first-time home buyers and file a joint income tax return. The measure also established certain income tax reductions for account contributions.

[House Bill 3063](#)

Effective Date: June 6, 2017

Mental Health Housing Fund

Chief Sponsors: Reps. Olson, Keny-Guyer; Sen. Gelser

Committees: House Human Services and Housing, Joint Ways and Means

Background and Current Law: The Oregon legislature in 2015 dedicated \$20 million in lottery bonds to the Housing for Mental Health Fund at Oregon Housing and Community Services (OHCS). These funds were allocated to provide financial assistance to aid in the development, acquisition, renovation or improvement of affordable housing for Oregonians who have mental illnesses or addiction disorders. Currently, OHCS is collaborating with the Oregon Health Authority (OHA) to seek applications for and subsequently fund eligible, affordable, multifamily residential rental housing developments supporting Oregonians with serious mental illnesses, or substance abuse disorders.

Bill Summary: House Bill 3063 establishes the Mental Health Housing Fund to develop community-based housing for individuals with mental illness and provide other housing-related services. The measure specifies maximum allocation of funds towards certain construction and start-up costs. House Bill 3063 also requires OHA to convene an advisory group to make recommendations for the Mental Health Housing Fund.

Oregon Laws 2017: Chapter 671

[House Bill 3175](#)

Effective Date: June 6, 2017

Low Income Households LIFT Definition Change

Chief Sponsors: Reps. Gomberg, Whisnant

Committees: House Human Services and Housing, Senate Human Services

Background and Current Law: The Local Innovation and Fast Track (LIFT) Housing program awards subsidies to developers building affordable housing for low-income households in Oregon with a focus on rural communities and communities of color. LIFT applicants are eligible to obtain a maximum \$38,000 subsidy per affordable housing unit offered to residents earning at or below 60 percent of the area median income.

Bill Summary: House Bill 3175 modifies the definition for low-income households in the LIFT program. The measure defines a low-income household in two ways – those renting and those purchasing affordable housing. “Households renting” are defined as having an income at or below 60 percent of the area median income. “Households purchasing” are defined as having an income at or below 80 percent of the area median income.

Oregon Laws 2017: Chapter 214

[House Bill 3192-A](#)

Not Enacted

Homeownership Down Payment Assistance Program

Chief Sponsors: Rep. Meek

Committees: House Human Services and Housing, House Revenue, Joint Ways and Means

Background and Current Law: According to the U.S. Census Bureau Housing Vacancy Survey, homeownership rates in Oregon have been declining since 2004. The Legislative Assembly in 2009 established the Home Ownership Assistance Account to expand the state’s supply of homeownership housing to low-income and very low-income families and individuals. Funds are granted to organizations sponsoring and managing low-income homeownership programs.

Bill Summary: House Bill 3192-A would have required Oregon Housing and Community Services (OHCS) to provide funds assisting first-time home buyers from low-income households through programs administered by OHCS including the Home Ownership Assistance Account. The measure required OHCS to make grants to eligible nonprofit organizations, housing authorities, and local governments to provide financial assistance to eligible first-time home buyers purchasing single-family residences.

[House Bill 3331](#)

Not Enacted

Manufactured Homes Landlord-Tenant Dispute Resolution Program

Chief Sponsors: Rep. Fahey

Committees: House Human Services and Housing, House Rules, Joint Ways and Means

Background and Current Law: The Office of Manufactured Dwelling Park Community Relations was created in 1989 by the Oregon legislature (ORS 446.543) with three main purposes: (1) to provide services and activities to support the improvement of manufactured dwelling park landlord and tenant relationships; (2) to develop and implement a centralized resource referral program for tenants and landlords to encourage voluntary dispute resolution; and (3) to maintain a directory of manufactured dwelling parks.

Bill Summary: House Bill 3331 would have required the Office of Manufactured Dwelling Park Community Relations to establish and administer a landlord-tenant dispute resolution program. The program would have been available to manufactured dwelling park tenants if they receive a rent increase notice of more than one percent above the specified Consumer Price Index and a majority of tenants agree to dispute the increase.

[House Bill 3357-B](#)

Not Enacted

Document Recording and Filing Fee Increase

Chief Sponsors: Rep. Keny-Guyer

Committees: House Human Services and Housing, Joint Ways and Means

Background and Current Law: Document recording is a duty of county clerks required under Oregon law for certain real property records including deeds, mortgages, and contracts affecting the titles to real property. Currently, the document recording fee is set at \$20. Oregon Housing and Community Services reports receiving approximately \$14 million from the document recording fee to fund the General Housing Account Program, Home Ownership Assistance Program, and Emergency Housing Account during the 2016 fiscal year.

Bill Summary: House Bill 3357-B would have increased the fee amount charged and collected by county clerks from \$20 to \$40 for certain real property documents. The measure specified that money from the General Housing Account, Home Ownership Assistance, and Emergency Housing Account programs at Oregon Housing and Community Services be allocated to provide affordable housing.

Housing with Services Project Agency Collaboration

Chief Sponsors: Rep. Sanchez

Committees Assigned: House Human Services and Housing, Senate Human Services

Background and Current Law: “Housing with services” programs coordinate health and social services for senior citizens and people with disabilities living in low-income housing and subsidized housing. The programs are generally aimed at helping low-income residents maintain independence and access to the health care and services they need.

Bill Summary: House Bill 3370 defines a “housing with services” project as an entity coordinating two or more health and social services for senior citizens and people with disabilities living in public or private settings. The Oregon Department of Human Services is required to collaborate with Oregon Housing and Community Services and the U.S. Department of Housing and Urban Development to develop a joint inventory of “housing with services” projects.

Oregon Laws 2017: Chapter 219

2017 SUMMARY OF LEGISLATION



HUMAN SERVICES



HUMAN SERVICES MEASURES

Abuse and Investigations	Enacted: SB 95, SB 101, SB 243, SB 244, SB 268, SB 819, SB 942, SB 948, HB 2930 Not Enacted: HB 2221-A
Behavioral and Mental Health	Enacted: SB 48, SB 231, SB 860, SB 944, HB 3063 Not Enacted: SB 833-A
Child Care	Enacted: SB 245, HB 2903, HB 3067 Not Enacted: HB 2985-A
Deaf, Deaf-Blind, and Hard of Hearing	Enacted: HB 3160, HB 3253 Not Enacted: SB 841, SB 1018-A, SB 1023-A
Foster Children	Enacted: SB 830, HB 2216 Not Enacted:
General Human Services	Enacted: SB 17, SB 140, SB 241, SB 275, HB 3370, HB 3405 Not Enacted: SB 238, SB 242, SB 1029, HB 2170-A, HB 2347-A, HB 2534-A
Intellectual and Developmental Disabilities	Enacted: SB 263, SB 834 Not Enacted: HB 2685
Long-term Care	Enacted: SB 58, SB 59, HB 2661, HB 3359 Not Enacted: SB 239-A

Picture: Vineyard, Yamhill County - [Gary Halvorson](#), [Oregon State Archives](#)

HUMAN SERVICES

TASK FORCES AND REPORTING REQUIREMENTS

The following bills created task forces and reporting requirements. Additional information is provided in the bill summaries.

SB 48	Requires the Oregon Health Authority to report on initiatives led by professional regulatory boards to promote awareness about suicide risk assessment, treatment, and management.	August 1, biennially, starting 2019
SB 860	Requires the Department of Consumer and Business Services to report on reimbursement parity between behavioral health providers and medical providers with prescribing privileges.	September 1, 2019
HB 2903	Requires the Department of Human Services to report on child welfare on the establishment of a “deemed status” determination among child-caring agencies.	September 15, 2018
HB 3067	Requires Marion and Polk Counties to report on the progress of CourtCare Pilot Programs.	September 15, 2019
HB 3253	Requires the Commission for the Blind to report on the performance of the commission’s business enterprise program.	January 15, annually, starting 2018

[Senate Bill 17](#)

Effective Date: June 6, 2017

Designation of Chief Medical Officer

At the request of: Governor Brown for Department of Corrections

Committees: Senate Human Services, House Human Services and Housing

Background and Current Law: The Department of Corrections' Health Services Director has designated chief medical officers in certain state institutions in recent years, despite Oregon law requiring chief medical officers to be designated by the superintendent of their facilities.

Bill Summary: Senate Bill 17 removes the requirement that superintendents of certain state institutions designate a chief medical officer for their facilities, permitting the Health Services Director of the Department of Corrections to continue designation of chief medical officers.

Oregon Laws 2017: Chapter 223

[Senate Bill 48](#)

Effective Date: June 29, 2017

Suicide Risk Assessment Continuing Education

At the request of: Governor Brown for Oregon Health Authority

Committees: Senate Human Services, House Health Care

Background and Current Law: According to the Oregon Health Authority, suicide is the second-leading cause of death for Oregonians under the age of 35. Although people at risk of suicide often encounter medical and non medical professionals, there is no periodic continuing education requirement for those professionals on suicide prevention, nor is there a way to ensure their training in suicide prevention is up to date.

Bill Summary: Senate Bill 48 directs the state licensing boards responsible for certain medical and non medical professions, in conjunction with the Oregon Health Authority, to adopt rules regarding the reporting and completion of continuing education relating to suicide risk assessment, treatment, and management upon reauthorization to practice. The bill requires the Oregon Health Authority to develop a list of continuing education opportunities related to these subjects and requires the boards to report to the Oregon Health Authority and the Legislative Assembly on even-numbered years.

Oregon Laws 2017: Chapter 511

[Senate Bill 58](#)

Effective Date: June, 22, 2017

Establishment of Residential Facilities Ombudsman

At the request of: Governor Brown for Oregon Long-Term Care Ombudsman

Committees: Senate Human Services, Senate Rules, House Human Services and Housing

Background and Current Law: Current Oregon law establishes the Office of the Long-Term Care Ombudsman (LTCO) as an independent advocate for individuals who reside in long-term care facilities. The LTCO is tasked with investigating and resolving complaints against residential facilities, and providing other services to long-term care residents. The Residential Facilities Advisory Committee nominates candidates to serve as LTCO, consults on rules adopted by the LTCO, monitors LTCO programs, and advises the Governor and the legislature.

Bill Summary: Senate Bill 58 requires the LTCO to appoint a Residential Facilities Ombudsman (RFO) and prescribes the powers and duties of the RFO. The measure requires the LTCO and RFO to enter into an agreement to protect the confidentiality of records and requires the Oregon Health Authority (OHA) and Oregon Department of Human Services (DHS) to provide the RFO with specified monthly data. The measure grants civil and criminal immunity to individuals who make complaints or participate in investigations in good faith. The measure permits the LTCO access to a resident's records if the LTCO has reasonable cause to believe that a resident's legal representative is not acting in the resident's best interest and permits RFO to access records of a resident who is unable to provide consent and does not have legal representation.

Oregon Laws 2017: Chapter 441

[Senate Bill 59](#)

Effective Date: August 2, 2017

Protective Order Petitions by Long-Term Care Ombudsman

At the request of: Governor Brown for Oregon Long-Term Care Ombudsman

Committees: Senate Human Services, Senate Judiciary, House Human Services and Housing

Background and Current Law: Oregon law does not currently provide a mechanism for the Long-Term Care Ombudsman (LTCO) to petition a court for protective orders on behalf of a resident of a long-term care facility, residential facility, or adult foster home, and concerns about confidentiality inhibit the LTCO from filing petitions without explicit authorization. The current practice of the LTCO is to request protective orders through the Department of Human Services under its authority in statute (ORS 125.012). This authority only extends to abuse cases and not cases where other individual rights are concerned.

Bill Summary: Senate Bill 59 authorizes the LTCO to appear in an existing protective proceeding and file motions to remove a fiduciary, modify powers of a fiduciary, or terminate a protective proceeding. It limits the information that the LTCO may disclose to a court about a resident of a long-term care facility, residential facility, or adult foster home. The measure makes certain visitor reports and information disclosed by the LTCO confidential in a court file absent good cause.

Oregon Laws 2017: Chapter 633

[Senate Bill 95](#)

Effective Date: January 1, 2018

Securities Professionals as Mandatory Reporters

At the request of: Governor Brown for Department of Consumer and Business Services

Committees: Senate Human Services, Senate Judiciary, House Judiciary

Background and Current Law: Oregon law makes several categories of professionals “mandatory reporters” of suspected abuse of elderly or disabled persons, including suspected financial exploitation. Mandatory reporters include state agency employees, attorneys, medical professionals, behavioral health professionals, and emergency services professionals. In 2013, at least 60 percent of reports of financial exploitation were made by non mandatory reporters, with securities professionals as the second-most common type of reporter.

Bill Summary: Senate Bill 95 makes certain securities professionals mandatory reporters who must report suspected financial exploitation to the Department of Consumer and Business Services (DCBS), which forwards the information to the Oregon Department of Human Services (DHS) and law enforcement. The measure permits securities professionals to delay disbursement from an account, and provide notice to parties other than the person suspected of exploitation, upon reasonable belief that the disbursement might result in financial exploitation. The measure requires securities professionals to provide certain records to DCBS, DHS, or law enforcement upon request; exempts records from public disclosure; and punishes violation of the measure with a civil penalty up to \$1,000.

Oregon Laws 2017: Chapter 514

[Senate Bill 101](#)

Effective Date: June 29, 2017

Confidentiality in Child Abuse Investigations at Schools

At the request of: Governor Brown for Department of Human Services

Committees: Senate Human Services, Senate Judiciary, House Human Services and Housing

Background and Current Law: In 2016, the Oregon Department of Human Services (DHS) reported they had received 20 percent of their child abuse reports from schools. School administrators are required to be notified after receiving such a report.

Bill Summary: Senate Bill 101 provides that DHS and law enforcement are not required to reveal information pertaining to a child abuse investigation to the school as a condition of conducting an investigation, and prohibits school personnel from notifying parties beyond law enforcement and DHS of the investigation or disclosing information. The measure specifies that the school district and school personnel may not be held liable for civil damages resulting from compliance with these notification and disclosure provisions. It specifies that these provisions apply to investigations involving the interview of a suspected victim and not to investigations of a person who is suspected of committing the abuse. SB 101 also applies to private schools.

Oregon Laws 2017: Chapter 515

[Senate Bill 140](#)

Effective Date: August 15, 2017

Gang Intervention Services Funding

Chief Sponsors: Sen. Monnes Anderson; Reps. Piluso, Gorsek

Committees: Senate Human Services, Joint Ways and Means

Background and Current Law: The East Metro Gang Enforcement Team is an interagency team focused on combating gang activity in east Multnomah County and includes members from the Fairview, Gresham, and Troutdale city police departments as well as the Multnomah County Sheriff's Office.

Bill Summary: Senate Bill 140 appropriates funds for the East Metro Gang Enforcement Team and allows the funds to be spent on other gang intervention services in east Multnomah County.

Oregon Laws 2017: Chapter 730

[Senate Bill 231](#)

Effective Date: October 6, 2017

Task Force on Student Mental Health Support

Chief Sponsors: Sen. Gelser; Rep. Evans

Committees: Senate Human Services, Senate General Government and Accountability, Joint Ways and Means

Background and Current Law: In recent years, the American Psychological Association has reported an increase in the number of severe psychological problems addressed at college counseling centers.

Bill Summary: Senate Bill 231 establishes the Task Force on Student Mental Health Support, staffed by the Higher Education Coordinating Commission, to investigate how mental health issues and substance abuse disorders affect college students. The task force is required to report to the legislature by July 1, 2018 and sunsets on December 31, 2018.

Oregon Laws 2017: Chapter 643

[Senate Bill 238](#)

Not Enacted

Direct Support Professionals Payment and Training

At the request of: Senate Interim Committee on Human Services and Early Childhood

Committees: Senate Human Services

Background and Current Law: Direct support professionals assist people with disabilities to achieve greater independence and integration into their local communities. The Center for Medicare and Medicaid Services reports that there are challenges with recruitment and retention of direct care professionals due to low wages and benefits, unclear roles, undefined career paths, and insufficient training.

Bill Summary: Senate Bill 238 would have required the Oregon Department of Human Services to pay contracting agencies enough to allow those agencies to pay their direct support professionals at least 150 percent of the state minimum wage, and required that online training in conformity with the National Alliance for Direct Support Professionals be made available to direct support professionals.

[Senate Bill 239-A](#)

Not Enacted

Consent Requirements in Long-Term Care Facilities

At the request of: Senate Interim Committee on Human Services and Early Childhood

Committees: Senate Human Services, Senate Judiciary

Background and Current Law: Oregon law does not provide a mechanism for residential care facilities and adult foster homes to impose limitations on certain rights of residents without the resident's consent, even if a resident is determined to be incapable of providing or withholding consent, and regardless of whether a limitation is in the resident's best interest.

Bill Summary: Senate Bill 239-A would have established a process for residential care facilities and adult foster homes to obtain decisions regarding consent to individually based limits on certain rights on behalf of residents determined to be incapable of consent. It required a facility to seek the decision from responsible persons and family members in a specified order, or by a committee in the absence of such persons. If a decision was not obtained in a timely manner to protect the safety of the resident or other persons, the facility may have imposed an emergency limitation for up to 10 days, or up to 30 days with the permission of the Long-Term Care Ombudsman or the resident's Medicaid case manager. The bill would have provided for review of these decisions and required notice of the contested case process be provided to residents and their representatives in order to appeal. The bill prohibited limitations on nutrition, hydration, and eating assistance to avoid impairment of major bodily functions; provided immunity from civil and criminal liability for decision-makers and facilities complying in good faith; and required facilities to notify the Long-Term Care Ombudsman and the resident's Medicaid case manager when an individually based limitation was imposed.

[Senate Bill 241](#)

Effective Date: January 1, 2018

Bill of Rights for Children of Incarcerated Parents

At the request of: Senate Interim Committee on Human Services and Early Childhood

Committees: Senate Human Services, Senate General Government and Accountability, House Judiciary

Background and Current Law: Nationally, between 1991 and mid-year 2007, there was an increase of 79 percent in the number of incarcerated people with children. In Oregon, there are around 70,000 children who have had or currently have an incarcerated parent. Children with an incarcerated parent can experience a variety of stresses and detrimental effects, including those that result from added financial burdens on families, mental and physical health issues, and difficulties that arise when a parent is reintegrating back into a family and society.

Bill Summary: Senate Bill 241 establishes certain essential rights for children of incarcerated parents as a “bill of rights of children of incarcerated parents.” It includes rights related to maintaining relationships between parents and children, informing and caring for children during a parent’s incarceration, consideration of a child’s wishes in decision-making processes, and maintaining a relationship and contact with incarcerated parents. The Oregon Department of Corrections is responsible for working with an existing public body in developing guidelines based on this bill of rights.

Oregon Laws 2017: Chapter 447

[Senate Bill 242](#)

Not Enacted

Family Preservation Project Funding

At the Request of: Senate Interim Committee on Human Services and Early Childhood

Committees: Senate Human Services, Joint Ways and Means

Background and Current Law: The Family Preservation Project is a program administered by the YWCA of Greater Portland that provides family-centered services for inmates and children of inmates at the Coffee Creek Correctional Facility in Wilsonville. The program helps inmates maintain connections with their families and prepare for reintegration with society upon release. The YWCA of Greater Portland took over administration of the Family Preservation Project from the Oregon Department of Corrections through legislation passed in 2015.

Bill Summary: Senate Bill 242 would have appropriated an unspecified amount of money from the General Fund to the Oregon Department of Administrative Services for the biennium beginning July 1, 2017 for the YWCA of Greater Portland and permitted the funds to be spent on the Family Preservation Project.

Definition of Child in Care for Abuse Reporting and Notification

At the request of: Senate Interim Committee on Human Services and Early Childhood

Committees: Senate Human Services, Joint Ways and Means

Background and Current Law: Oregon statutes contain provisions concerning the welfare of “children in care.” Among other things, these statutes require Oregon Department of Human Services (DHS) investigations of suspected abuse of children in care at child-caring agencies and investigation notification procedures.

Bill Summary: Senate Bill 243 includes children at a certified foster home or developmental disabilities residential facility as “children in care” for the purposes of these statutes. It excludes from these provisions children at one of these facilities, a child-caring agency, or proctor home if the care is provided in the child’s home by a parent. The measure requires that DHS notify a local citizen advisory board of a substantiated abuse report, in addition to those who already receive this notice. SB 243 relieves child-caring agencies without staff or volunteers from meeting certain protocol and training requirements related to abuse reporting. It excludes age-appropriate discipline from the definition of “involuntary seclusion.”

Oregon Laws 2017: Chapter 733

[Senate Bill 244](#)

Effective Date: June 22, 2017

Notification Requirements in Child Abuse Allegations

At the request of: Senate Interim Committee on Human Services and Early Childhood

Committees: Senate Human Services, House Human Services and Housing

Background and Current Law: Oregon law requires the Department of Human Services (DHS) to investigate child-caring agencies when DHS becomes aware of any suspected or founded abuses, deficiencies, violations, or failures to comply with licensing criteria. DHS is required to notify relevant state agencies or governing boards responsible for the child-caring agency, other government agencies that have contracts with the child-caring agency, or individuals involved in the child care's case about the suspected or founded abuses or violations. If the alleged abuses or violations are founded, DHS may suspend the child-caring agency's license and impose corrective measures for the child-caring agency to implement. Additionally, DHS is required to update individuals regarding the founded abuse or violations.

Bill Summary: Senate Bill 244 clarifies DHS notification requirements regarding abuse allegations. The measure requires DHS to inform the Oregon Youth Authority, county juvenile departments, and the developmental disabilities office of alleged abuse if the child-caring agency serves children committed to the care of those state agencies. The measure also expands notification requirements to include notice to relevant DHS employees of alleged abuse violation and clarifies what actions DHS can take if an investigation reveals deficiencies affecting child health, safety, or welfare. Additionally, DHS is required to notify certain individuals involved with the child who is the subject of the abuse investigation if the allegations are substantiated.

Oregon Laws 2017: Chapter 448

[Senate Bill 245](#)

Effective Date: June 6, 2017

Definitions of Child and Child-Caring Agency

At the request of: Senate Interim Committee on Human Services and Early Childhood

Committees: Senate Human Services, House Human Services and Housing

Background and Current Law: For child-caring agencies, current Oregon law defines "child" as an unmarried person under 21 years of age. Additionally, the current definition of a "child-caring agency" excludes licensed residential facilities and certified foster homes serving developmentally disabled children, respite services, youth job development organizations, certain shelter-care homes, and other foster homes.

Bill Summary: Senate Bill 245 amends the definition of "child" to apply only to persons under age 21 who receive care or services from child-caring agencies. The bill modifies the definition of "child-caring agency" to exclude facilities that serve only people over the age of 18 and facilities serving children accompanied by a custodial parent or guardian.

Oregon Laws 2017: Chapter 244

[Senate Bill 263](#)

Effective Date: July 1, 2017

Student Placement in Abbreviated School Day Programs

Chief Sponsors: Sen. Gelser

Committees: Senate Human Services, House Education

Background and Current Law: Disability rights advocates have expressed concerns about decreasing instructional time for students on Individualized Education Programs (IEPs), which are documents that describe children's learning needs and the services public schools will provide. Districts are required to ensure that at least 92 percent of all students in the district, including students with disabilities, receive the following number of hours in instructional time: grade 12 requires 966 hours, grades 9 through 11 require 990 hours, and grades kindergarten through 8 require 900 hours. The Oregon Department of Education recommends that a district's decision to decrease instructional time for a student on an IEP be reserved for students with the most severe behaviors; this assumes that restrictive alternative placements have already failed.

Bill Summary: Senate Bill 263 permits placement of a student into an abbreviated school day program only if the student's IEP team makes the determination based on the student's needs, provides parents with a meaningful opportunity to participate in the decision, and documents consideration of at least one school-day-length alternative. The measure requires school districts to take the following action when deciding to abbreviate a student's school days: (1) provide notice to parents regarding the district's legal requirements for abbreviated school-day programs; (2) obtain a signed acknowledgment from parents each term; and (3) include a statement in the student's IEP regarding the reasons for placement in an abbreviated school-day program.

Oregon Laws 2017: Chapter 322

[Senate Bill 268](#)

Effective Date: January 1, 2018

Record Sharing in Child Abuse Investigations

Chief Sponsors: Sen. Gelser

Committees: Senate Human Services, House Human Services and Housing

Background and Current Law: Oregon law provides the Department of Human Services with broad authority to investigate alleged child abuse, and requires many corresponding records be kept confidential unless specifically exempted. Child abuse investigations in schools, especially for children with disabilities, can present unique issues for investigators.

Bill Summary: Senate Bill 268 requires the Department of Human Services to make certain records and reports available to Disability Rights Oregon when the reports are related to abuse against a child with a disability in a school or educational setting.

Oregon Laws 2017: Chapter 377

[Senate Bill 275](#)

Effective Date: July 3, 2017

Release of Individually Identifiable Health Information

At the request of: Senate Interim Committee on Health Care

Committees: Senate Human Services, House Health Care

Background and Current Law: Oregon law requires that state health plans, health insurers, certain health care providers, and health care clearinghouses (collectively “covered entities”) provide one free copy of a patient’s individually identifiable health information when that person is appealing a denial of Social Security disability benefits. Such records are required to be released to the appellant or to the appellant’s representative in paper or electronic form upon request.

Bill Summary: Senate Bill 275 requires covered entities to provide one free copy of an appellant’s health records from the alleged onset of the disability after the appellant’s initial application for Social Security disability benefits and before the administrative hearing. It permits the appellant to choose the format of the health records provided. The measure allows covered entities to charge a fee or to deny additional requests for copies of records by an appellant or their representative when appealing a denial of Social Security disability benefits. Additionally, SB 275 allows covered entities to deny requests in general by persons other than the patient or patient’s representative who do not have the patient’s authorization, and to charge for such requests made with the patient’s authorization.

Oregon Laws 2017: Chapter 551

[Senate Bill 819](#)

Effective Date: June 22, 2017

Critical Incident Response Teams’ Responsibilities

Chief Sponsors: Sens. Gelser, Olsen

Committees: Senate Human Services, House Human Services and Housing

Background and Current Law: Oregon law requires the Department of Human Services (DHS) to assign a Critical Incident Response Team (CIRT) to investigate certain child deaths if the child was in DHS custody or if the child was subjected to a recent Child Protective Services assessment. Investigations begin within 24 hours of the determination that a child may have died from abuse or neglect. CIRT reviews the case and develops recommendations to improve the child welfare system to prevent future incidents.

Bill Summary: Senate Bill 819 expands the responsibilities of CIRTs by requiring assignment whenever a deceased child, the child’s sibling, or any child in the same household was subject to a Child Protective Services assessment, a recent child welfare or adoption case, or any report of abuse. It sets forth members of CIRTs and directs DHS to provide all available information. The bill also establishes timelines for a CIRT to file initial, progress, and final reports with DHS.

Oregon Laws 2017: Chapter 469

[Senate Bill 830](#)

Effective Date: January 1, 2018

Definition of Current Caretaker

Chief Sponsors: Sen. Gelser; Reps. Stark, Olson

Committees: Senate Human Services, House Human Services and Housing

Background and Current Law: Oregon defines a “current caretaker” as a foster parent that has had a long-term relationship with a foster child, and who may be prioritized over others seeking to adopt the child. Current law contemplates consecutive care for the previous 12 months only, which may result in the loss of priority adoption status for otherwise long-term foster parents, if there are any interruptions in care.

Bill Summary: Senate Bill 830 modifies the definition of “current caretaker” to allow for cumulative calculation of a foster parent’s time spent caring for a foster child or the child’s sibling. The measure includes foster parents who have cared for the child or sibling for a cumulative 12 months, or foster parents who have provided care for half of the life of a child or sibling, if the child or sibling is under two years old, with that time calculated cumulatively.

Oregon Laws 2017: Chapter 351

[Senate Bill 833-A](#)

Not Enacted

Suicide Prevention Hotlines

Chief Sponsors: Sen. Gelser; Reps Keny-Guyer, Buehler

Committees: Senate Human Services, House Judiciary

Background and Current Law: In 2013, Oregon was one of the country’s top 10 states for frequency of suicide incidents, a position it has occupied for several decades. The Oregon Health Authority reports that suicide is the second-leading cause of death for people under the age of 35, with 760 suicides and 2,000 people hospitalized for suicide-associated behavior in Oregon in 2015. Suicide prevention hotlines exist to connect people in need with relevant support, particularly those who may not have access to on-the-ground resources. Individuals in need may not seek assistance on their own initiative.

Bill Summary: Senate Bill 833-A would have required law enforcement agencies to adopt policies and procedures for officers to follow when responding to an attempted suicide. The bill permitted officers responding to a suicide attempt to call a suicide prevention and intervention hotline on the individual’s behalf.

[Senate Bill 834](#)

Effective Date: June 14, 2017

Independent Human Rights Commission

Chief Sponsors: Sen. Gelser; Rep. Piluso

Committees: Senate Human Services, House Human Services and Housing

Background and Current Law: Federal law protects the rights of intellectually and developmentally disabled individuals. However, these rights are sometimes unnecessarily restricted, and oversight is necessary. Several states have commissions or agencies dedicated to adjudicating the rights of individuals with disabilities. Some of those commissions or agencies are independent, and others are a division within a larger department. Oregon currently has no such commission.

Bill Summary: Senate Bill 834 directs the Department of Human Services to develop a proposal for creating an independent human rights commission and to submit the proposal to the Legislative Assembly by December 1, 2017. The bill requires the commission to safeguard the dignity and basic rights of persons with intellectual and developmental disabilities.

Oregon Laws 2017: Chapter 353

[Senate Bill 841](#)

Not Enacted

Mandatory Purchasing from Commission for the Blind

Chief Sponsors: Senate Human Services

Committees: Senate Human Services

Background and Current Law: Oregon law requires state agencies to purchase products and services from the Commission for the Blind to increase economic opportunities for people who are visually impaired. The commission is authorized to operate vending facilities in public buildings and properties. The commission also surveys public properties to determine the suitability of vending facilities, and it trains and certifies qualified blind staff.

Bill Summary: Senate Bill 841 would have clarified that state agencies are required to purchase products and services from the Commission for the Blind when they meet the agency's requirements and are offered by the commission. The bill would have created a Business Enterprise Program to oversee the maintenance and management of the commission's vending facilities. The commission was required to facilitate dispute resolution between state agencies and any person who is blind. Finally, it would have required the commission to submit an annual report to the legislature prior to each regular session.

[Senate Bill 860](#)

Effective Date: August 8, 2017

Behavioral Health Parity of Insurance Reimbursements

At the request of: Oregon Independent Mental Health Professionals

Committees: Senate Human Services, Joint Ways and Means

Background and Current Law: Federal and state law require group health insurance policies to cover and reimburse expenses for treating chemical dependency and mental health conditions at the same level as other medical care. Insurers are prohibited from discriminating against providers that are providing care within the scope of their license under a health benefit plan; however, many states that expanded Medicaid are having trouble achieving parity between different types of health care providers.

Bill Summary: Senate Bill 860 requires the Department of Consumer and Business Services (DCBS) to examine the parity of insurance reimbursements between behavioral and physical health care providers, including mental health providers with prescribing privileges, and consider specified metrics. The measure also requires DCBS to adopt rules fully implementing existing mental health parity and network adequacy statutes, including incorporating the examination's findings, which are due to the Legislative Assembly by September 1, 2019.

Oregon Laws 2017: Chapter 694

[Senate Bill 942](#)

Effective Date: August 15, 2017

Child Abuse Investigations and Substitute Care

Chief Sponsors: Senate Human Services

Committees: Senate Human Services, Joint Ways and Means

Background and Current Law: Oregon law requires the Department of Human Services (DHS) or a law enforcement agency to conduct child abuse investigations upon receipt of a report; however, DHS is not required to make a finding after an investigation. DHS has requirements for assessing substitute care placements, but the agency does not currently conduct exit interviews with a child being removed from substitute care.

Bill Summary: Senate Bill 942 requires DHS to conduct child abuse investigations as outlined in Oregon law in the Reporting of Child Abuse Act and to make specified findings until statewide metrics and goals are met. The bill also requires DHS to conduct exit interviews with children over the age of five that are removed from substitute care. Interviews must include the child's perception of the safety and quality of life at the placement, as well as improvements that could be made.

Oregon Laws 2017: Chapter 740

[Senate Bill 944](#)

Effective Date: August 8, 2017

Youth Acute Behavioral Health Leadership Council

Chief Sponsors: Senate Human Services

Committees: Senate Human Services, Joint Ways and Means

Background and Current Law: It can be challenging for high-needs youth to access all the behavioral health services they might need. In large part, Oregon service providers report there is often a misalignment of behavioral health services available in an area and the demand for those services, including some providers who have a waiting list for potential patients while others have unused capacity. There are also different services and programs administered by different entities that can be difficult for children to navigate.

Bill Summary: Senate Bill 944 requires the Oregon Health Authority to contract with an in-state nonprofit organization to operate a 24-hour call center dedicated to providing information about available placements.

Oregon Laws 2017: Chapter 695

[Senate Bill 948](#)

Effective Date: January 1, 2018

Disqualifying Abuses for Residential Care Workers

Chief Sponsors: Senate Committee on Human Services

Committees: Senate Human Services, House Human Services and Housing

Background and Current Law: Oregon law provides mechanisms for the investigation of abuse in residential facilities. Claims, if substantiated, can result in penalties for the facility and the violating employee. Facilities are required to conduct a background check and include employment application questions regarding the job applicant's history of substantiated abuse claims. Public funds may not be used to support the employment of someone convicted of specified crimes.

Bill Summary: Senate Bill 948 requires the Department of Human Services to adopt rules specifying the types of abuse perpetrated by an individual that disqualify them from working at a residential training facility or residential training home. The bill specifies that any facility that is wholly or partially funded by public money cannot hire or retain an employee with a substantiated allegation of abuse and restricts disqualified individuals from seeking a fitness determination.

Oregon Laws 2017: Chapter 378

[Senate Bill 1018-A](#)

Not Enacted

Oregon Deaf, Deaf-Blind, and Hard of Hearing Program

Chief Sponsors: Sens. Monnes Anderson, Hansell; Rep. Heard

Committees: Senate Human Services, Joint Ways and Means

Background and Current Law: The Oregon Deaf and Hard of Hearing Program exists within the Department of Human Services (DHS). It offers technical assistance to make agency programs accessible to hearing-disabled people, advises policy makers, and promotes information the needs of hearing-disabled people and available programs.

Bill Summary: Senate Bill 1018-A would have replaced the Oregon Deaf and Hard of Hearing Program with the Oregon Deaf, Deaf-Blind, and Hard of Hearing Program, and specified the powers and duties of the program. The measure established a committee to advise DHS on the implementation and administration of the program, and required the State Board of Education to consult with the committee on standards for interpreters in schools. The measure also would have directed DHS to consult the committee on entering contracts with certified sign language interpreters.

[Senate Bill 1023-A](#)

Not Enacted

Deaf, Deaf-Blind, and Hard of Hearing Fund

Chief Sponsors: Sens. Monnes Anderson, Manning, Jr.

Committees: Senate Human Services, Joint Ways and Means

Background and Current Law: The Oregon Deaf and Hard of Hearing Services Program is funded through General Fund appropriations. The Residential Service Protection Fund, established in 1987, is a separate fund in the state treasury that collects money from surcharges placed on telecommunication subscribers by the Public Utility Commission (PUC) to help maintain services for specific populations, including customers who are deaf.

Bill Summary: Senate Bill 1023-A would have created a separate Deaf, Deaf-Blind, and Hard of Hearing Fund for the Oregon Department of Human Services (DHS) to administer programs for deaf, deaf-blind, or hard of hearing people. The measure directed the PUC to transfer up to \$200,000 annually from the Residential Service Protection Fund to the Deaf, Deaf-Blind, and Hard of Hearing Fund. The measure also would have required DHS and PUC to enter into an agreement regarding the amount of money transferred, the money's usage, and the plan for biennial reductions of transferred amounts.

[Senate Bill 1029](#)

Not Enacted

Farm Direct Nutrition Program Funding

Chief Sponsors: Sen. Thomsen; Reps. Meek, Keny-Guyer

Committees: Senate Human Services, Joint Ways and Means

Background and Current Law: The Oregon Farm Direct Nutrition Program is a supplemental nutrition program funded by the U.S. Department of Agriculture that gives checks to eligible low-income applicants to buy locally grown produce at approved farm stands and farmers' markets. The program includes a Senior Farm Direct Nutrition Program for people who are at least age 62 who receive Medicaid or food assistance. The Farm Direct program also includes the Women, Infants and Children (WIC) program that serves low-income pregnant or postpartum women, children under the age of five, and infants under the age of four months who have a health or nutrition risk.

Bill Summary: Senate Bill 1029 would have appropriated an unspecified amount of money from the General Fund to the Oregon Health Authority for the biennium beginning July 1, 2017 for the Senior Farm Direct Nutrition Program and the WIC Farm Direct Nutrition Program.

[House Bill 2170-A](#)

Not Enacted

Establishment of the Office of Oregon Ombudsmen

Chief Sponsors: Reps. Stark, Olson, Keny-Guyer, Piluso; Sens. Gelser, Dembrow, Hansell, Kruse

Committees: House Human Services and Housing, Joint Ways and Means

Background and Current Law: The United States Ombudsman Association defines public-sector ombudsman as an independent, impartial public official with authority and responsibility to receive, investigate, or informally address complaints about government actions. Oregon currently has a Long Term Care Ombudsman and a Foster Care Ombudsman.

Bill Summary: House Bill 2170-A would have established the Office of Oregon Ombudsmen including the offices of the Long Term Care Ombudsman, Residential Facilities Ombudsman, Oregon Public Guardian, Foster Parent Ombudsman and Foster Child Ombudsman. The measure specified the Office of Oregon Ombudsmen's services: providing information regarding rights, conducting investigations, helping with processes for engagement with other stakeholders, and establishing a hotline and working with stakeholders to identify and solve problems.

[House Bill 2216](#)

Effective Date: January 1, 2018

Foster Children's Siblings Bill of Rights

Chief Sponsors: Reps. Piluso, McLain; Sen. Gelser

Committees: House Human Services and Housing, Senate Human Services

Background and Current Law: Currently, Oregon statute establishes the Foster Children's Bill of Rights and the Foster Parent's Bill of Rights. These statutes are designed to inform foster children and foster parents of their rights within the child welfare system.

Bill Summary: House Bill 2216 directs the Department of Human Services to establish the Foster Children's Sibling Bill of Rights. Outlined within HB 2216 are essential rights for siblings who are foster children including placements together, communication guidance, and training for foster parents on sibling relationships. The measure specifies that it does not affect the application of the federal Indian Child Welfare Act.

Oregon Laws 2017: Chapter 36

[House Bill 2221-A](#)

Not Enacted

Reimbursement of Child Abuse Medical Assessments

Chief Sponsors: Reps. Whisnant, Stark; Sens. Gelser, Taylor

Committees: House Human Services and Housing, Joint Ways and Means

Background and Current Law: In 2015, the Oregon Legislative Assembly passed House Bill 2234 requiring the Oregon Health Authority (OHA) to reimburse community assessment centers for child abuse medical assessments and related services.

Bill Summary: House Bill 2221-A would have required OHA to ensure community assessment centers are reimbursed by coordinated care organizations (CCO) for child abuse medical assessments conducted on a child enrolled in a CCO. The bill would have required OHA and the Department of Consumer and Business Services to report annually to the Legislative Assembly on the implementation of child abuse medical assessments and any instance of insufficient funds in a CCO's budget to reimburse for child abuse medical assessments.

[House Bill 2347-A](#)

Not Enacted

Temporary Assistance for Needy Families Extension

At the request of: Governor Brown for Department of Human Services

Committees: House Human Services and Housing, Senate Human Services, Joint Ways and Means

Background and Current Law: The Temporary Assistance for Needy Families (TANF) program provides cash assistance to low-income families. Cash assistance is used to meet a family's basic needs such as food, clothing, shelter, and utilities. To qualify for TANF, families must be at or below 37 percent of the federal poverty level and have few assets. Most people who receive TANF are required to participate in the Job Opportunities and Basic Skills (JOBS) program. The JOBS program provides a variety of activities including education, health services, life skills, and job training. Over 60,000 Oregonians participate in the TANF program.

Bill Summary: House Bill 2347-A would have extended the authority of the Oregon Department of Human Services to offer resources to individuals eligible for TANF, including the JOBS program, until July 1, 2019. The measure would have delayed the increase in cash assistance paid to families enrolled in the State Family Pre-Supplemental Security Income/Social Security Disability Insurance program until July 1, 2019. Additionally, the measure would have delayed the scheduled increase in the amount of time a family receiving temporary assistance may continue to receive assistance upon becoming ineligible due to employment or increased hours of work until July 1, 2019.

[House Bill 2534-A](#)

Not Enacted

Oregon Opportunity Commission

Chief Sponsor: Rep. Reardon

Committees: House Economic Development and Trade, House Human Services and Housing, Joint Ways and Means

Background and Current Law: The American Community Survey reports that 15 percent of Oregonians were living in poverty in 2015. For someone considered to be living in poverty in a four-person household, that household made \$24,250 or less in a year, and \$11,770 for an individual household (i.e., single individual).

Bill Summary: House Bill 2534-A would have established the Oregon Opportunity Commission and the Oregon Opportunity Fund. The purpose of the commission was to award funds, develop assessment tools, review laws and rules, and identify incentives to address concentrated poverty throughout Oregon. Commission membership included 19 different stakeholders representing the public, private, and nonprofit sectors.

[House Bill 2661](#)

Effective Date: August 8, 2017

Long Term Care Referral Agent Regulation

Chief Sponsors: Reps. Keny-Guyer, Meek

Committees: House Human Services and Housing, Joint Ways and Means

Background and Current Law: Oregon's Department of Human Services provides resources for individuals and families making decisions on long-term care facilities which include adult foster home, assisted living, residential care, memory care, and nursing facilities. There are also placement or referral agencies providing services to help individuals and families decide on long-term care facilities, which are not regulated under Oregon law.

Bill Summary: House Bill 2661 prohibits long-term care referral agents from sharing or selling a client's placement information or referring a client to a facility no agent has an ownership interest in. The bill requires a long-term care referral agent to provide clients with the disclosure of specific information regarding referrals and privacy of information. The bill also requires long-term care referral agents to register with the Oregon Department of Human Services every two years.

Oregon Laws 2017: Chapter 656

[House Bill 2685](#)

Not Enacted

Placement Choice for Adults with Developmental Disabilities

Chief Sponsors: Rep. Rayfield; Sen. Steiner Hayward

Committees: House Human Services and Housing, Joint Ways and Means

Background and Current Law: Oregon law requires the Department of Human Services (DHS) to present an adult with developmental disabilities at least three appropriate placement setting options, including two different types of residential settings.

Bill Summary: House Bill 2685 would have required DHS, when providing placement options to an eligible adult with developmental disabilities, to ensure that one of the options would help maintain the individual within their own home or the home of a family member.

[House Bill 2903](#)

Effective Date: May 24, 2017

Licensing Regulations for Child-Caring Agencies

Chief Sponsors: Reps. Olson, Stark; Sens. Prozanski, Gelser, Olsen

Committees: House Human Services and Housing, Senate Human Services

Background and Current Law: Oregon currently licenses over 4,000 child-caring facilities. The state's Department of Human Services (DHS) is required, by law, to immediately begin the process of revoking or suspending a child-caring agency's license, certificate, or authorization if: a child dies from abuse or neglect at the agency; the agency knows of abuse and does not take proper steps to ensure child safety; the agency fails to cooperate with investigations; or the agency fails to provide required financial statements.

Bill Summary: House Bill 2903 allows DHS to immediately place conditions on the license, certificate or authorization of a child-caring agency for certain child abuse-related findings or noncompliance with specified requirements when there is serious danger to public health or safety. The measure permits DHS to rescind a notice of intent to suspend or revoke a license upon finding that health and safety issues have been resolved. Child-caring agencies who receive a notice of intent to suspend or revoke from DHS must renew their license, certificate, or authorization on an annual basis for three years following the notice of intent. The bill also requires DHS to submit a report to legislative committees regarding "deemed status" determination of a child-caring agency by September 15, 2018.

Oregon Laws 2017: Chapter 138

[House Bill 2930](#)

Effective Date: January 1, 2018

Military Status Information in Child Abuse Reports

Chief Sponsors: Rep. Boone

Committees: House Human Services and Housing, Senate Human Services

Background and Current Law: The U.S. Department of Defense's Family Advocacy Program works to prevent child abuse by implementing programs, education, assessments, rehabilitative treatment, and ongoing monitoring and risk management for military families. Federal law requires the Secretary of Defense to request a report from each state on known or suspected instances of child abuse and neglect in which the person having care of the child is a member or a spouse of a member of the armed forces. Oregon law requires child abuse reports to be made at the Department of Human Services (DHS) or at a law enforcement agency.

Bill Summary: House Bill 2930 allows DHS or law enforcement agencies to collect information concerning the military status of a parent or guardian of a child who is the subject of a child abuse report. DHS or the law enforcement agency can share the information concerning military status with appropriate military authorities if a report of child abuse is received.

Oregon Laws 2017: Chapter 210

[House Bill 2985-A](#)

Not Enacted

Task Force on Employment-Related Child Care

Chief Sponsors: House Committee on Early Childhood and Family Supports

Committees: House Early Childhood and Family Supports, Joint Ways and Means

Background and Current Law: The Oregon Department of Human Services administers the Employment-Related Day Care (ERDC) program to help offset the cost of child care. ERDC provides subsidies to families who are working or in school with incomes at or below 185 percent of the federal poverty level.

Bill Summary: House Bill 2985-A would have created a 20-member Task Force on Employment-Related Child Care to conduct a study on ERDC access and availability of subsidies and to develop a plan to expand access. The bill would have required an initial report to the legislature by January 2, 2018 and a second report by January 2, 2019. Reports to the legislature would have included recommendations and identification of costs associated with expanding access to the program and increasing the number of providers of child care.

[House Bill 3063](#)

Effective Date: August 8, 2017

Housing for Health Fund

Chief Sponsors: Reps. Olson, Keny-Guyer; Sen. Gelser

Committees: House Human Services and Housing, Joint Ways and Means

Background and Current Law: The Oregon legislature in 2015 dedicated \$20 million in lottery bonds to the Housing for Mental Health Fund at Oregon Housing and Community Services (OHCS). These funds were allocated to provide financial assistance to aid in the development, acquisition, renovation, or improvement of affordable housing for Oregonians who have mental illnesses or addiction disorders. Currently, OHCS is collaborating with the Oregon Health Authority to seek applications for and subsequently fund eligible affordable multifamily residential rental housing developments supporting Oregonians with serious mental illnesses or substance abuse disorders.

Bill Summary: House Bill 3063 establishes the Housing for Mental Health Fund to develop community-based housing for individuals with mental illness and provide other housing-related services.

Oregon Laws 2017: Chapter 671

[House Bill 3067](#)

Effective Date: August 8, 2017

CourtCare Pilot Program

Chief Sponsors: House Committee on Early Childhood and Family Supports

Committees: House Early Childhood and Family Supports, Joint Ways and Means

Background and Current Law: Children who accompany their parents or guardians to court proceedings may witness conflict that creates trauma and stress. Trauma harms brain development and can lead to lifelong problems in learning, behavior, and physical and mental health. CourtCare was created in 2001 by Multnomah County Court to prevent children from experiencing trauma and to curb disruptions in the hearing room. The program provides free child care and court-related family services in a courthouse or in reasonable proximity to a courthouse.

Bill Summary: House Bill 3067 authorizes Marion and Polk counties to establish CourtCare pilot programs to provide quality child care to individuals and families. CourtCare programs must serve as a clearinghouse for information and resource referrals and must report on outcomes. The legislation directs counties to ensure that staff at CourtCare programs are enrolled in the Central Background Registry and that the program is certified or registered by the Office of Child Care in the Early Learning Division. The bill appropriates \$200,000 out of the General Fund to the Oregon Department of Administrative Services. Marion and Polk counties must report on the progress of the pilot programs to the Legislative Assembly by September 15, 2019.

Oregon Laws 2017: Chapter 672

[House Bill 3160](#)

Effective Date: May 25, 2017

White Cane Usage

Chief Sponsors: Reps. Doherty, Piluso

Committees: House Human Services and Housing, Senate Human Services

Background and Current Law: A person who is blind has 20/200 vision or less, or a visual field of 20 degrees or less. The American Optometric Association states that 20/200 vision means the individual must be as close as 20 feet to see what a person with normal vision can see at 200 feet. Current Oregon law allows individuals who are blind or blind and deaf to carry and use a white cane for mobility when crossing highways and other public places.

Bill Summary: House Bill 3160 allows an individual who has limited vision to carry and use a white cane on highways and other public places. The measure defines “limited vision” as a visual acuity that does not exceed 20/70 and is no worse than 20/200 in the better eye with corrective lenses, and blind is redefined to include a visual acuity not exceeding 20/200 in the better eye with corrective lenses.

Oregon Laws 2017: Chapter 175

Mandatory Agency Purchases from Commission for the Blind

Chief Sponsors: House Committee on Human Services and Housing

Committees: House Human Services and Housing, House Rules, Senate Rules

Background and Current Law: Oregon law requires state agencies and departments to purchase certain products and services from the Commission for the Blind as part of the state's efforts to increase economic opportunities for the visually impaired. The commission is authorized in statute to operate vending facilities in public buildings and properties, with the approval of the relevant agency head. The commission is also tasked with surveying public properties for determining suitability of vending facilities, as well as training and licensing qualified blind staff for the facilities.

Bill Summary: House Bill 3253 requires state agencies and departments to purchase certain products and services from the Commission for the Blind. The bill establishes the Business Enterprise Program in the commission to maintain and manage authorized vending facilities and requires facilitation of certain dispute resolution meetings. The bill also requires the commission to submit an annual report to Legislative Assembly.

Oregon Laws 2017: Chapter 717

2017 SUMMARY OF LEGISLATION



JUDICIARY



JUDICIARY MEASURES

Business/Trust

Enacted: SB 899, HB 2608, HB 2610

Not Enacted: SB 301-A

Corrections

Enacted: SB 844, HB 2251, HB 3078

Not Enacted: SB 692-A, SB 1005, HB 2105

Courts

Enacted: SB 505, HB 2308

Not Enacted: HB 2807-B

Crimes

Enacted: SB 1050, HB 2355, HB 2360,
HB 2988, HB 3047

Not Enacted: SB 356-A, HB 2615, HB 2793-A

Animals

Enacted: HB 2625, HB 3283

Assault

Enacted: SB 493, HB 2598, HB 2721

Not Enacted: HB 2620, HB 2717

Driving/Vehicle Operation

Enacted: SB 34, SB 117, SB 483, SB 488,
HB 2409, HB 2597, HB 2638, HB 2732

Not Enacted: SB 385, SB 693-C, HB 2794-A

Public Transportation

Enacted: SB 357, HB 2777

Fiduciary

Enacted: HB 2622, HB 2630

Not Enacted: SB 494-B, SB 503-A

Guns

Enacted: SB 719

Not Enacted: HB 2526

Picture: Wallowa Lake, Wallowa County - [Gary Halvorson, Oregon State Archives](#)

JUDICIARY MEASURES

Juveniles	Enacted:	SB 846, HB3242
	Not Enacted:	HB 2171, HB 2345-A, HB 2718, HB 3244
Land	Enacted:	SB 327
	Not Enacted:	HB 2739
Miscellaneous	Enacted:	HB 2113
	Not Enacted:	SB 215-A, HB2472
Rehabilitation	Enacted:	SB 65, SB 360, SB 690, HB 2249, HB 2579
	Not Enacted:	SB 689
Victims Protection	Enacted	SB 249, SB 250, SB 257, SB 261, SB 508, SB 762
	Not Enacted:	

Picture: Wallowa Lake, Wallowa County - [Gary Halvorson, Oregon State Archives](#)

JUDICIARY

TASK FORCES AND REPORTING REQUIREMENTS

The following bills created task forces and reporting requirements. Additional information is provided in the bill summaries.

HB 2238	Study and report findings, including recommendations for legislation, on reducing racial and ethnic disparity in pretrial incarceration, the impact of pretrial fees, and review the implementation of the Justice Reinvestment Program	January 2, 2018
HB 3061	Report findings and recommendations of study examining financial tools with regard to land transfer and succession planning for working land.	December 31, 2019

[Senate Bill 34](#)

Effective Date: January 1, 2018

Expanded Driver Requirements for Passing Hazards

At the request of: Governor Brown for Oregon Department of Transportation

Committees: Senate Judiciary, House Judiciary

Background and Current Law: Oregon requires drivers to change lanes or slow down to five miles per hour below the maximum speed limit when approaching stopped emergency or roadside assistance vehicles with warning lights on. Failure to do so is punishable by a fine of up to \$1,000.

Bill Summary: Senate Bill 34 expands the requirement to change lanes or slow down to include any stopped vehicle with warning lights on or people using flares or emergency signs.

Oregon Laws 2017: Chapter 305

[Senate Bill 65](#)

Effective Date: June 22, 2017

Jurisdiction of Mentally Ill Offenders

At the request of: Governor Brown for Psychiatric Security Review Board

Committees: Senate Judiciary, Joint Ways and Means

Background and Current Law: People determined to be legally insane at the time they commit a crime (*i.e.*, “guilty except for insanity”) may be placed in the Oregon State Hospital or a similar psychiatric facility. If it is determined that they are no longer dangerous, they may be released into the community under supervision. Prior to 2011, these individuals were supervised by the Psychiatric Security Review Board (PSRB). In 2011, the Legislative Assembly transferred supervision authority over some people found guilty except for insanity to the Oregon Health Authority (OHA): those who commit less serious crimes. PSRB retains jurisdiction over people who commit more serious crimes, including crimes that carry mandatory minimum sentences.

Bill Summary: Senate Bill 65 transfers jurisdiction over all people determined to be legally insane at the time they commit a felony from OHA to PSRB, operative July 1, 2018. OHA retains jurisdiction over people committed to the Oregon State Hospital for misdemeanors. Senate Bill 65 also authorizes the PSRB to establish a restorative justice program.

Oregon Laws 2017: Chapter 442

Senate Bill 117**Effective Date: January 1, 2018****Expanded Towing Regulations****Chief Sponsors:** Sens. Riley, Manning, Jr.**Committees:** Senate Judiciary, House Judiciary

Background and Current Law: In 2016, the Oregon Department of Justice received over 130 complaints related to towing operations. Complaints expressed frustration and confusion about when and how a motor vehicle may be towed. The majority of laws that govern towing have not been updated since 2007, and have inspired discussions involving consumers, towers, and the Oregon Department of Justice.

Bill Summary: Senate Bill 117 clarifies and generally strengthens requirements that must be met before a motor vehicle may be towed. It prohibits towing from parking facilities unless towers have advance, signed authorization from facility owners or agents and there are signs in plain view that restrict parking. Signed authorizations must also be available to vehicle owners or operators upon request and towers are no longer permitted to tow vehicles, without prior authorization,

that are parked in violation of signs that prohibit parking 24 hours a day. Copies of photographs, that towers are already required to take, must also be available to vehicle owners upon request. Finally, the measure clarifies when a vehicle hook-up is complete for purposes of fee determination, and requires vehicles to be towed in-county to the nearest storage lot with available space that is operated by the tower.

Oregon Laws 2017: Chapter 480**Senate Bill 215-A****Not Enacted****Emergency Medical Treatment for Rare Diseases****At the request of:** Senate Interim Committee on Education**Committees:** Senate Health Care, Senate Judiciary, Joint Ways and Means

Background and Current Law: Approximately 7,000 rare diseases are currently listed in the Global Rare Diseases Registry. The National Institutes of Health considers a disease or condition to be rare if it affects fewer than 200,000 people in the United States. An estimated 25 million people in the United States live with a rare disease. Reliable information is difficult for providers to locate to help diagnose these diseases.

Bill Summary: Senate Bill 215-A would have directed the Oregon Health Authority to create and operate a statewide database for the collection and dissemination of instructions on rare disease emergency medical response, to ensure the safe treatment of individuals with rare diseases in emergency situations.

[Senate Bill 249](#)

Effective Date: January 1, 2018

Vacation of Convictions for Prostitution

Chief Sponsors: Sens. Taylor, Gelser, Knopp; Rep. Huffman

Committees: Senate Judiciary, House Judiciary

Background and Current Law: A person commits the crime of prostitution if the person engages in, or offers or agrees to engage in, sexual conduct or sexual contact for a fee. An accused person may assert duress as a defense if they can demonstrate that the crime was committed because they were coerced by threats or physical force sufficient to overcome earnest resistance.

Bill Summary: Senate Bill 249 requires courts to vacate prostitution convictions if a motion is filed within 21 days of judgment and the court finds based on clear and convincing evidence, that the use of force, intimidation, fraud, or coercion caused the person to engage in, or attempt to engage in, the prohibited conduct.

Oregon Laws 2017: Chapter 245

[Senate Bill 250](#)

Effective Date: January 1, 2018

Affirmative Defense to Prostitution Charge

Chief Sponsors: Sens. Taylor, Gelser, Knopp; Rep. Huffman

Committees: Senate Judiciary, House Judiciary

Background and Current Law: A person commits the crime of prostitution if the person engages in, or offers or agrees to engage in, sexual conduct or sexual contact for a fee.

Bill Summary: Senate Bill 250 creates an affirmative defense to the crime of prostitution if the accused person was a victim of human trafficking at the time of the offense. The person must show, by a preponderance of the evidence, that another person knowingly recruited, enticed, harbored, transported, provided, or obtained them, or attempted to, and that the other person knew or recklessly disregarded the fact that they would be caused to engage in a commercial sex act through force, fraud, or coercion, or at a time when they were under age 15.

Oregon Laws 2017: Chapter 246

[Senate Bill 257](#)

Effective Date: January 1, 2018

Official Misconduct and Vulnerable Victims

Chief Sponsors: Sens. Gelser, Manning, Jr.

Committees: Senate Judiciary, House Judiciary

Background and Current Law: Official misconduct in the second degree occurs when a public servant knowingly violates any laws relating to their office. Official misconduct in the first degree occurs when a public servant knowingly fails to perform an inherent or legally imposed duty in order to obtain a benefit or harm another, or knowingly engages in an unauthorized exercise of their official duties.

Bill Summary: Senate Bill 257 expands the crime of official misconduct in the first degree to include acts constituting official misconduct in the second degree when the public servant is acting as a supervisory employee and is aware of, and consciously disregards, a risk that places a vulnerable person in danger of physical injury or a sex crime, or deprivation of food, physical care, or medical attention.

Oregon Laws 2017: Chapter 519

[Senate Bill 261](#)

Effective Date: June 14, 2017

“Rape Shield” in Civil Proceedings

Chief Sponsors: Sens. Dembrow, Knopp, Manning, Jr., Monnes Anderson; Reps. Lininger, Williamson

Committees: Senate Judiciary, House Judiciary

Background and Current Law: Historically, in a criminal trial for sexual assault, accused individuals were permitted to introduce information about alleged victims’ past sexual behavior or manner of dress as evidence. In the latter half of the 20th century, most if not all jurisdictions in the United States adopted “rape shield” laws to limit the admissibility of this kind of information as evidence. More recently, the federal government and several states have begun also limiting the introduction of this kind of information in civil proceedings that involve allegations of sexual assault.

Bill Summary: Senate Bill 261 prohibits the introduction of information about an alleged victim’s past sexual behavior or manner of dress as evidence in civil proceedings involving allegations of sexual assault, with an exception if the alleged victim first raises the issue and a court determines that the probative value of the information substantially outweighs the danger of harm and unfair prejudice.

Oregon Laws 2017: Chapter 321

Senate Bill 301-A**Not Enacted****Unlawful Employment Practices and Medical Marijuana****At the request of:** Joint Interim Committee on Marijuana Legalization**Committees:** Senate Judiciary, Senate Business and Transportation

Background and Current Law: It is an unlawful employment practice in Oregon to restrict a person's lawful tobacco use away from work, as a condition of employment. There are exceptions if the restriction relates to a bona fide occupational requirement or if an applicable collective bargaining agreement prohibits off duty use of tobacco. Medical use of marijuana was legalized in Oregon in 1998, but it does not have the same employment protections as tobacco.

Bill Summary: Senate Bill 301-A would have made it unlawful to discharge, penalize, refuse to employ, or discriminate against an employee in compensation or employment terms because of their status as a marijuana registry identification cardholder, with some exceptions.

Senate Bill 327**Effective Date: June 22, 2017****Immunity from Liability for Public Use of Land****At the request of:** Senate Interim Committee on Business and Transportation**Committees:** Senate Judiciary, House Judiciary

Background and Current Law: The Oregon Public Use of Lands Act protects public and private landowners from tort liability when they allow their lands to be used for public recreation. In a 2016 case, the Oregon Supreme Court held that officers, employees, volunteers, and other agents of owners were not considered "owners" for purposes of this protection (*Johnson v. Gibson*, 369 P.3d 1151 (Or. 2016)). As a result, public entities and private landowners were very hesitant to give consent to public access for recreation because of uncertainty about liability.

Bill Summary: Senate Bill 327 broadens the definition of owner to include the holder of any legal or equitable title; officers, employees, volunteers, or agents of possessors of any interest in land acting within the scope of their assigned duties; and the director, partner, general partner, shareholder, limited liability company member, limited liability partner, or limited partner of possessors of any interest in land.

Oregon Laws 2017: Chapter 449

[Senate Bill 356-A](#)

Not Enacted

Intimidation Crimes**Chief Sponsors:** Sen. Frederick**Committees:** Senate Judiciary, House Judiciary

Background and Current Law: Intimidation in the second degree is when someone tampers or interferes with another's property, subjects them to offensive physical contact, or intentionally causes alarm with threats of injury or property damage against them or their family because of race, color, religion, sexual orientation, disability, or national origin. Intimidation in the first degree is when multiple people commit intimidation in the second degree, or assault in the fourth degree based on their perception of the victim's race, color, religion, sexual orientation, disability, or national origin. District attorneys in Oregon are authorized to pursue civil claims when they have reasonable cause to believe that criminal intimidation has occurred.

Bill Summary: Senate Bill 356-A would have added gender and ethnicity to the list of characteristics protected against intimidation. The bill would also have added assault in the fourth degree by a person acting alone within the ambit of intimidation in the first degree, and renamed intimidation crimes as bias crimes. Finally, Senate Bill 356-A would have authorized the Oregon Attorney General to also pursue civil claims when there is reasonable cause to believe that criminal intimidation has occurred.

[Senate Bill 357](#)

Effective Date: January 1, 2018

Graduated Penalties for Trespassing on Public Transportation**Chief Sponsors:** Sen. Frederick; Rep. Greenlick**Committees:** Senate Judiciary, House Judiciary

Background and Current Law: In Oregon, criminal trespass is classified as a Class C misdemeanor. It is elevated to a Class A misdemeanor when it occurs in a public transit vehicle or at a public transit station, under the crime of interfering with public transportation.

Bill Summary: Senate Bill 357 reduces this form of interfering with public transportation to a Class C misdemeanor unless the offender has at least three prior convictions for this conduct.

Oregon Laws 2017: Chapter 454

[Senate Bill 360](#)

Effective Date: October 6, 2017

Community Service Exchange Programs**Chief Sponsors:** Sen. Frederick**Committees:** Senate Judiciary, Joint Ways and Means

Background and Current Law: Criminal convictions can result in a number of financial burdens, such as fines for the criminal conduct, restitution to any victims, court fees, and fees for the appointment of counsel. There are also monthly fees for probation and post-prison supervision, and if a person is ordered to take classes or participate in treatment, they pay the associated costs. These expenses are in addition to ordinary financial obligations a person may have, such as child support.

Bill Summary: Senate Bill 360 directs the governing body of each county to create a community service exchange program that allows individuals on parole or post prison supervision following incarceration with the Department of Corrections to enter into written agreements with a community-based organization to perform community service in lieu of payment of delinquent fees or debts, court-appointed attorney fees, and supervision fees.

Oregon Laws 2017: Chapter 522[Senate Bill 385](#)

Not Enacted

Motorcycle “Lane-Splitting”**Chief Sponsors:** Sen. Kruse; Rep. Post (at the request of former Rep. Hoyle)**Committees:** Senate Judiciary

Background and Current Law: In 2016, California became the first state to allow motorcycle “lane-splitting” by directing the California Highway Patrol to develop educational guidelines.

Bill Summary: Senate Bill 385 would have authorized motorcycles and mopeds to drive in between adjacent lanes of traffic travelling in the same direction, when traffic slowed to less than 10 miles per hour on high speed roadways.

[Senate Bill 483](#)

Effective Date: January 1, 2018

Nonconsensual Use of GPS Tracking Devices

Chief Sponsors: Sen. Prozanski

Committees: Senate Judiciary, Joint Ways and Means

Background and Current Law: Currently, Oregon does not clearly govern the nonconsensual use of GPS tracking devices by private parties.

Bill Summary: Senate Bill 483 criminalizes knowingly affixing a GPS tracking device to a motor vehicle without the owner's consent, while preserving existing uses of such devices by commercial motor carriers and law enforcement acting pursuant to a warrant or other court order. The crime is classified as a Class A misdemeanor, unless the accused person previously engaged in stalking-related behavior, in which case the crime is classified as a Class C felony.

Oregon Laws 2017: Chapter 649

[Senate Bill 488](#)

Effective Date: January 1, 2018

Recovery of Stolen Vehicles

At the request of: Senate Interim Committee on Judiciary

Committees: Senate Judiciary, House Judiciary

Background and Current Law: The Federal Bureau of Investigation estimates that over 721,000 motor vehicles were stolen nationwide in 2012. Owners of stolen vehicles sometimes incur significant costs getting their vehicles back due to towing fees and vehicle storage charges.

Bill Summary: Senate Bill 488 requires law enforcement agencies to provide towers with vehicle owners' contact information when stolen vehicles are recovered; prohibits accrual of storage fees until towers first attempt to notify owners; allows registered owners of vehicles totaled in connection with theft to transfer the title to the tower in lieu of fees when there is no applicable insurance coverage; and allows owners to inspect vehicles to determine their current condition and contents.

Oregon Laws 2017: Chapter 523

[Senate Bill 493](#)

Effective Date: January 1, 2018

Fourth-Degree Assault against Vulnerable Road Users

At the request of: Senate Interim Committee on Judiciary

Committees: Senate Judiciary, House Judiciary

Background and Current Law: In Oregon, assault in the fourth degree is usually a misdemeanor, committed when a person intentionally, knowingly, or recklessly causes physical injury to another, or causes physical injury to another by means of a deadly weapon while acting with criminal negligence.

Bill Summary: Senate Bill 493 broadens assault in the fourth degree to include also causing serious physical injury to a vulnerable user of a public way by means of a motor vehicle while acting with criminal negligence. Vulnerable road users include pedestrians, bicyclists, tractor operators, and others.

Oregon Laws 2017: Chapter 337

[Senate Bill 494-B](#)

Not Enacted

Modification of Advance Directives

At the request of: Senate Interim Committee on Judiciary

Committees: Senate Judiciary, Senate Rules, House Judiciary

Background and Current Law: Advance directives are legal documents that allow people to plan for health care treatments and other decisions like placement in a facility, in the event they are unable to make their own decisions. Advance directives may be used to appoint representatives or agents to make health care decisions and to provide health care instructions and preferences.

Bill Summary: Senate Bill 494-B would have modified a number of provisions governing advance directives in Oregon, including the definition of advance directive and their manner of execution. It would also have created an Advance Directive Adoption Committee and periodically review and revise Oregon's advance directive form.

[Senate Bill 503-A](#)**Not Enacted****Appointment of Visitors in Protective Proceedings****At the request of:** Senate Interim Committee on Judiciary**Committees:** Senate Judiciary, Joint Ways and Means

Background and Current Law: Courts are authorized to appoint fiduciaries to make decisions on behalf of individuals who are incapacitated. Fiduciaries include both guardians and conservators. Under current law, courts are required to appoint visitors in guardianship proceedings and have the discretion to do so in any other protective proceeding. Appointed visitors are required to interview fiduciaries and individuals who are the subject of the proceedings, are authorized to interview others, and must submit a report to the court assessing the fiduciary and the appropriateness of appointment. Presiding judges are responsible for establishing the standards and qualifications of visitors they appoint.

Bill Summary: Senate Bill 503-A would have required the Chief Justice of the Oregon Supreme Court to establish policies and qualifications for court appointed visitors rather than the individual presiding judges. Visitor appointments would have been required in conservatorship as well as guardianship proceedings and courts would have been authorized to obtain visitors' criminal histories.

[Senate Bill 505](#)**Effective Date: August 2, 2017****Recording Grand Jury Proceedings****At the request of:** Senate Interim Committee on Judiciary**Committees:** Senate Judiciary, Joint Ways and Means

Background and Current Law: Most felony charges are by grand jury indictment, although they can also occur after a preliminary hearing. A grand jury consists of seven people who evaluate evidence and decide whether there is enough evidence to file formal charges. A district attorney typically presents evidence but is not present for deliberations. Individuals who may be charged cannot be at all of grand jury proceedings, but they can testify; in contrast, the defense attorney is not allowed to attend any of the proceedings. Grand jury proceedings are not recorded, although jurors often take handwritten notes that may be disclosed with a court order.

Bill Summary: Senate Bill 505 requires grand jury proceedings to be recorded electronically or by shorthand reporters beginning March 1, 2018 on a graduated basis, and implemented statewide by July 1, 2019. The measure specifies what matters must be recorded, what is prohibited from being recorded, and how transcripts may be obtained or protected from release. The measure also specifies when recorded information may be used in subsequent court proceedings, such as to refresh a witness' recollection, and further allows peace officers to present the statements of certain people, such as minor victims, that might otherwise be considered hearsay.

Oregon Laws 2017: Chapter 650

[Senate Bill 508](#)

Effective Date: January 1, 2018

Public Records Exemption for Images of Deceased Persons**At the request of:** Senate Interim Committee on Judiciary**Committees:** Senate Judiciary, House Judiciary

Background and Current Law: In Oregon, government records must be disclosed to the public unless they are exempt from disclosure. Each public body must maintain its own records and handle requests for documents. They are required to have a process, available in writing, to request a copy of records or an opportunity to inspect them. There are, however, several categories of public records that are not subject to mandatory disclosure. For example, Oregon law contains an exemption for information of a “personal nature,” including medical files, if the disclosure would create an unreasonable invasion of privacy, unless the person seeking the information can demonstrate that the public interest requires disclosure.

Bill Summary: Senate Bill 508 similarly classifies images of a decedent that are part of a law enforcement investigation, deeming the images exempt from public disclosure, absent an individualized showing of a clear and convincing public interest that does not constitute an unreasonable invasion of privacy.

Oregon Laws 2017: Chapter 340[Senate Bill 689](#)

VETOED

Reestablishment of Task Force on Reentry, Employment and Housing**Chief Sponsors:** Sens. Dembrow, Frederick, Winters; Rep. Parrish**Committees:** Senate Judiciary, Joint Ways and Means

Background and Current Law: In 2015, the legislature established a Task Force on Reentry, Employment and Housing, charged with studying and making recommendations on a number of issues to improve reentry success and reduce recidivism. It concluded in December 2016 and issued a report in January 2017. Several legislative concepts resulted from its work. One of its recommendations was to continue work on reentry needs specific to women.

Bill Summary: Senate Bill 689 would have continued the work of the Task Force on Reentry, Employment and Housing until December 31, 2018.

[Senate Bill 690](#)

Effective Date: January 1, 2018

Certificates of Good Standing for Nonviolent Offenders**Chief Sponsors:** Sens. Dembrow, Frederick; Rep. Parrish**Committees:** Senate Judiciary, House Judiciary

Background and Current Law: In 2015, the legislature established a Task Force on Reentry, Employment and Housing, charged with studying a number of issues to improve reentry success and reduce recidivism, and required to make recommendations to the legislature. Several legislative concepts resulted from its work.

Bill Summary: Senate Bill 690 authorizes a pilot, modeled after a similar program in Washington State, that allows courts to issue Certificates of Good Standing to persons convicted of nonperson crimes who meet specified criteria, including the completion of all requirements of their sentence. If employers hire persons with certificates, it provides a presumption of non-negligence in cases that allege negligent hiring. Senate Bill 690 also requires courts to revoke certificates if a recipient made a material misrepresentation in the application or was subsequently convicted of a crime other than a Class C misdemeanor. Finally, the issuance of certificates and any subsequent revocation must be recorded in the Law Enforcement Data System. The pilot program is scheduled to sunset January 2, 2022.

Oregon Laws 2017: Chapter 526[Senate Bill 692-A](#)

Not Enacted

Pre-Entry Services Pilot Program**Chief Sponsors:** Sens. Dembrow, Frederick; Rep. Parrish**Committees:** Senate Judiciary, Joint Ways and Means

Background and Current Law: In 2015, the legislature established a Task Force on Reentry, Employment and Housing, charged with studying and making recommendations on a number of issues to improve reentry success and reduce recidivism. As part of its work, the task force examined the pre-entry program at Metropolitan Public Defender Services (MPDS). The program assists people in preparing for incarceration, such as teaching them how to defer or suspend financial obligations during incarceration. The task force recommended establishing a program for pre-entry services.

Bill Summary: Senate Bill 692-A would have created a pre-entry pilot program administered by MPDS in Multnomah and one rural county. The measure would have directed MPDS to develop a pre-entry checklist, partner with the Oregon Department of Corrections, and collect data on the results of the program.

[Senate Bill 693-C](#)

Not Enacted

Driver License Suspensions**Chief Sponsors:** Sens. Winters, Courtney, Dembrow**Committees:** Senate Judiciary, Joint Ways and Means

Background and Current Law: In 2015, the legislature established a Task Force on Reentry, Employment and Housing, charged with studying and making recommendations on a number of issues to improve reentry success and reduce recidivism. Several legislative concepts resulted from its work. In most jurisdictions, including Oregon, a person's driver license may be suspended for a variety of administrative or technical reasons unrelated to driving, such as failing to pay a fine for littering. The task force found that an inability to reinstate one's driver license was "one of the single greatest barriers to obtain/maintain stable employment."

Bill Summary: Senate Bill 693-C would have made several changes to provisions governing driver licenses, including the elimination of probationary driving permits and several driving privilege suspensions unrelated to the operation of motor vehicles. The measure would have also standardized the various requirements for a hardship permit.

[Senate Bill 719](#)

Effective Date: January 1, 2018

Extreme Risk Protection Orders**Chief Sponsors:** Senate Committee on Judiciary**Committees:** Senate Judiciary, House Rules

Background and Current Law: Protective or restraining orders, also called injunctions, are sought in court to prohibit action or conduct by persons or entities, and may be issued in connection with criminal or civil cases, or from an independent process. Oregon separates such orders by type and circumstances, such as stalking protection orders for stalking cases.

Bill Summary: Senate Bill 719 authorizes an extreme risk protection order for law enforcement or family or household members to prohibit someone from possessing deadly weapons, if it can be shown by clear and convincing evidence that they present a risk, in the near future, of committing suicide or causing physical injury to another. The measure provides for a hearing, allows modification and termination of the order, and creates Class A misdemeanor crimes for both violating such an order and for falsely seeking such an order. Such violations can result in a five-year prohibition against possessing firearms.

Oregon Laws 2017: Chapter 737

[Senate Bill 762](#)

Effective Date: January 1, 2018

Immunity for Certain Minors in Possession of Alcohol

Chief Sponsors: Sen. Gelser, Sen. Taylor

Committees: Senate Judiciary, House Judiciary

Background and Current Law: Oregon prohibits individuals under age 21 from purchasing or possessing alcohol. However, minors cannot be prosecuted if evidence of a violation is obtained when they seek medical assistance for alcohol use for themselves or others.

Bill Summary: Senate Bill 762 extends this immunity from prosecution for purchasing or possessing alcohol to include minors seeking assistance from law enforcement or emergency medical providers for themselves or others due to sexual assault.

Oregon Laws 2017: Chapter 347

[Senate Bill 844](#)

Effective Date: August 8, 2017

Use of Inmate Trust Funds

Chief Sponsors: Committee on Judiciary

Committees: Senate Judiciary, Joint Ways and Means

Background and Current Law: The Oregon Department of Corrections (DOC) establishes trust accounts for inmates. Inmate earnings, and funds from other sources, such as family, may be deposited into the account to purchase items and services during incarceration. On November 28, 2016, an Inmate Financial Accountability Workgroup issued a report recommending legislation to allow inmate funds to be used to save for reentry and to pay certain financial obligations.

Bill Summary: Senate Bill 844 creates a process for DOC to collect certain amounts from inmates' trust accounts for their transition and the payment of court-ordered financial obligations. It specifies the percentage of funds that DOC may collect and how those funds are dispersed, including establishing a priority system for payment of court-ordered financial obligations.

Oregon Laws 2017: Chapter 692

[Senate Bill 846](#)

Effective Date: January 1, 2018

Prohibition of Physical Restraint in Juvenile Proceedings and Youth Transport

Chief Sponsors: Sens. Gelser, Frederick, Manning, Jr., Thatcher

Committees: Senate Judiciary, House Judiciary

Background and Current Law: Oregon has recognized the right of an accused person to appear unshackled in front of a jury since 1883. A person may only be restrained if there is an immediate and serious risk of dangerous or disruptive behavior.

Bill Summary: Senate Bill 846 prohibits youth in any juvenile proceeding from being subject to physical restraints unless it is necessary because of an immediate and serious risk of dangerous or disruptive behavior and no less restrictive alternative exists. The measure also prohibits the use of restraints during the transport of youth in the custody of the Oregon Department of Human Services or the Oregon Health Authority unless it is secure transport or necessary because of an immediate and serious risk of dangerous or disruptive behavior and no less restrictive alternatives exist.

Oregon Laws 2017: Chapter 257

[Senate Bill 899](#)

Effective Date: January 1, 2018

Establishment of Oregon Receivership Code

Chief Sponsors:

Committees: Senate Judiciary, Senate General Government and Accountability, House Judiciary

Background and Current Law: Receivership is a process by which courts appoint persons to manage the property of others (receivers), usually business entities that are being liquidated or dissolved. Receivers may have broad authority to manage and dispose of real and personal property, to reject or execute contracts, and to settle outstanding claims from available assets. Oregon does not currently have a comprehensive code to govern receiverships.

Bill Summary: Senate Bill 899 establishes the Oregon Receivership Code. It provides for appointment of receivers, their powers and duties, claims processes, the obligations of property owners, notification and reporting requirements, and stays of certain related judicial and administrative proceedings.

Oregon Laws 2017: Chapter 358

[Senate Bill 1005](#)

Not Enacted

Restrictions on Public Investment in Private Prisons**Chief Sponsors:** Sen. Taylor**Committees:** Senate Judiciary**Background and Current Law:** The Oregon Department of Corrections (DOC) is authorized to contract with public entities for correctional services in other states, but not with private prisons.**Bill Summary:** Senate Bill 1005 would have directed the Oregon Investment Council and the State Treasurer to ensure, insofar as possible, that money in the Public Employees Retirement Fund was not invested in companies that operate private prisons or that own more than one million shares in other companies that operate private prisons. It would have also directed the State Treasurer to adopt a policy statement instructing fund managers to end such investments within 90 days, if possible without monetary loss, consistent with fiduciary standards.[Senate Bill 1050](#)

Effective Date: January 1, 2018

Presumptive Life Sentence for Felony Sex Crimes with Prior Convictions**Chief Sponsors:** Sens. Courtney, Thatcher**Committees:** Senate Judiciary, Joint Ways and Means**Background and Current Law:** Offenders convicted of multiple sex crimes in Oregon may be subject to specific enhanced sentences. For example, offenders are subject to a presumptive life sentence if convicted of a third felony sex crime, and persons convicted of more than one specified “major felony” sex crime are subject to a 25-year minimum mandatory sentence.**Bill Summary:** Senate Bill 1050 creates a presumptive life sentence for persons convicted of specified first degree sex crimes, if they have previously been convicted of a crime on the same list or a similar crime in another jurisdiction.**Oregon Laws 2017:** Chapter 699

[House Bill 2105](#)

Not Enacted

Creation of Budget Oversight Commission for Department of Corrections**Chief Sponsors:** Rep. Gorsek**Committees:** House Judiciary, Joint Ways and Means

Background and Current Law: Oregon Department of Corrections (DOC) employees can be required to work overtime, due to the nature of the work: corrections facilities are 24/7 operations where order and supervision are maintained over populations that greatly outnumber staff. The American Federation of State, County and Municipal Employees (AFSCME) estimates that DOC personnel across 13 institutions in Oregon worked in excess of 300,000 hours of overtime in 2016, and that 126,302 (or 40 percent) of those hours were mandatory. In addition to obvious budget implications, required overtime can impact the health and safety of employees.

Bill Summary: House Bill 2105 would have created a DOC Budget Oversight Commission to advise the Governor and DOC, and to recommend legislation concerning the management and implementation of DOC's biennial budget, including employee overtime and healthcare expenses.

[House Bill 2113](#)

Effective Date: January 1, 2018

Secular Solemnization of Marriages**Chief Sponsors:** Rep. Greenlick; Sen. Steiner Hayward**Committees:** House Judiciary, Senate Judiciary

Background and Current Law: Oregon allows marriages to be solemnized by a judicial officer, county clerk, religious organization or congregation, or clergy person authorized by a religious congregation or organization. Oregon law is silent with regard to secular organizations or officiants.

Bill Summary: House Bill 2113 adds secular organizations and celebrants or officiants of secular organizations to the list of persons and entities authorized to solemnize marriages.

Oregon Laws 2017: Chapter 61

[House Bill 2171](#)

Not Enacted

Court Appointed Special Advocates

Chief Sponsors: Reps. Stark, Olson; Sens. Roblan, Gelser

Committees: House Judiciary, Joint Ways and Means

Background and Current Law: Nearly 1,900 individuals volunteered to serve as Court Appointed Special Advocates (CASAs) in 2015. CASAs are appointed by courts to advocate for children involved in juvenile dependency proceedings. There are 26 individual CASA programs in Oregon serving children in 35 counties. These programs are supported by the Oregon Volunteers Commission for Voluntary Action and Service.

Bill Summary: House Bill 2171 would have required the Oregon Volunteers Commission to maintain a volunteer CASA base large enough to appoint:

- 1.) a CASA for each juvenile dependency proceeding
- 2.) only 45 cases per CASA
- 3.) at least 1 supervisor per 30 volunteer CASAs as recommended by the National CASA

[House Bill 2249](#)

Effective Date: January 1, 2018

Reentry Services for More Youth Offenders

At the Request of: Governor Brown for Department of Corrections

Committees: House Judiciary, Senate Judiciary

Background and Current Law: The Department of Corrections (DOC) currently awards grants to counties to support reentry services for youth offenders serving DOC sentences in the physical custody of the Oregon Youth Authority who are released on supervision prior to turning age 19. Reentry services may include aid for housing, employment and vocational assistance, transportation, access to health care and medications, mentoring, and specialized supervision strategies.

Bill Summary: House Bill 2249 authorizes DOC to enter into agreements with counties to include services for youth who are released on transitional leave, work release, into conditional or supervised programs, or who received a reduced sentence prior to turning age 25.

Oregon Laws 2017: Chapter 150

[House Bill 2251](#)

Effective Date: January 1, 2018

Incarceration of All Youth Offenders at Oregon Youth Authority Facilities

At the Request of: Governor Kate Brown for Department of Corrections

Committees: House Judiciary, Senate Judiciary

Background and Current Law: In Oregon, adult offenders are housed at Department of Corrections (DOC) facilities, and youth offenders are housed at Oregon Youth Authority (OYA) facilities, including the small number of juveniles who are prosecuted as adults and sentenced to terms of imprisonment at DOC before they reach age 20. When a juvenile reaches the age of 25 while housed at OYA with time remaining on their sentence, they are transferred to DOC.

Bill Summary: House Bill 2251 codifies current practice by prohibiting incarceration of persons under age 18 at DOC institutions.

Oregon Laws 2017: Chapter 134

[House Bill 2308](#)

Effective Date: January 1, 2018

Credit for Time Served for Persons Who Are Unfit to Proceed

At the Request of: Governor Kate Brown for Oregon Health Authority

Committees: House Judiciary, Senate Judiciary, Senate Rules

Background and Current Law: The United States Constitution prohibits criminal prosecution of people who, as a result of mental illness, are not competent to stand trial. Every state has established processes to suspend prosecutions so that accused individuals may receive treatment designed to restore competency, at which time prosecution may continue. In Oregon, such individuals are referred to as unfit to proceed by reason of incapacity, and they may be committed to the Oregon State Hospital for evaluation and treatment. Oregon's process also includes enforceable timelines to guard against the risk of indefinite institutionalization when a person's competence is not capable of restoration: an accused person may not be committed to the Oregon State Hospital for more than three years or a period of time equal to the maximum sentence that could have been imposed if the person had been convicted, whichever is shorter.

Bill Summary: House Bill 2308 authorizes credit against the maximum period of commitment to the Oregon State Hospital for restorative treatment for each day an accused person served in jail unless the person is charged with aggravated murder or a specified crime with a mandatory minimum sentence.

Oregon Laws 2017: Chapter 628

Juvenile Dependency Proceedings Improvements

At the Request of: Governor Brown for Department of Human Services

Committees: House Judiciary, Joint Ways and Means

Background and Current Law: In juvenile dependency proceedings, courts may temporarily or permanently remove children from the care of their parents or guardians to protect them from abuse or neglect. Dependency cases are typically brought by the Department of Human Services (DHS) on behalf of the state, and the agency is required to appear with its attorney from the Department of Justice (DOJ). In historical practice, however, DHS caseworkers often appear without counsel. In 2014, House Bill 4156 authorized DHS to continue to appear without counsel in certain uncontested dependency cases, but only until a more permanent solution could be found. This authority was extended by Senate Bill 222 in 2015, but only until 2018, SB 222 also established a task force to make recommendations to improve or resolve legal representation and other issues in juvenile court proceedings. House Bill 2345-A resulted from task force efforts.

Bill Summary: House Bill 2345-A would have required DOJ to appear at all phases of dependency proceedings for a flat fee. The measure would also have established performance standards and capped attorney caseloads by implementing the Parent-Child Representation Program, currently operating in three counties in Oregon, by January 1, 2022.

Race-Based Concerns in the Public Safety System

At the Request of: Attorney General Rosenblum

Committees: House Judiciary, Joint Ways and Means

Background and Current Law: Public safety and criminal justice systems across the nation, and the communities they serve, are increasingly concerned with racial profiling, the collateral consequences of criminal convictions, and the effect of individuals' immigration status on their involvement with such systems.

The possession of certain controlled substances is currently punishable as a felony and often results in collateral consequences, including adverse effects on employment opportunity, housing, jury service, and the ability to possess a firearm, even long after a person successfully completes all the conditions of a criminal sentence.

In most jurisdictions, including Oregon, misdemeanors may be punished by sentences that include up to a year of imprisonment, and felonies may be punished by longer sentences. The federal Immigration and Nationality Act (INA) defines certain crimes as deportable if they are punishable by a term of "at least one year" or "one year or longer" in order to capture felony conduct.

Bill Summary: House Bill 2355 provides for both misdemeanor and felony classifications of controlled substance possession crimes, depending on the seriousness of the specific circumstances of each case, and requires the Criminal Justice Commission (CJC) to study the effect of this change. The measure requires the CJC, along with the Department of State Police (DSP) and the Department of Justice (DOJ), to develop a standard method for law enforcement entities to record data about traffic and pedestrian stops by July 1, 2018, and tasks the Department of Public Safety Standards and Training (DPSST) to develop corresponding training. Law enforcement entities must begin forwarding data to CJC on a staggered basis, and CJC will report annually to the Governor, DPSST, and the legislature. House Bill 2355 also reduces the possible term of imprisonment for a Class A misdemeanor in Oregon from a maximum of 365 days to a maximum of 364 days.

Oregon Laws 2017: Chapter 706

[House Bill 2360](#)

Effective Date: June 22, 2017

Sex Offender Reporting

At the Request of: Attorney General Rosenblum

Committees Assigned: House Judiciary, Senate Judiciary

Background and Current Law: Sex offenders who reside, work, or attend school in Oregon are required to register with law enforcement at specified times, including within 10 days of a change of residence. Failure to do so is a crime: the state must prove beyond a reasonable doubt that the offender moved and failed to report both the move and their new address.

Bill Summary: House Bill 2360 restores the crime of failing to report a change of address as it existed prior to 2009: the state must prove that the offender moved and did not inform authorities, without also having to prove what the offender's new address is. This change sunsets January 1, 2022, when the elements of the crime will again include having to prove the offender's new address.

Oregon Laws 2017: Chapter 418

[House Bill 2409](#)

Effective Date: October 6, 2017

Traffic Tickets Issued Based on Recorded Data

Chief Sponsors: Reps. Barker, Olson, Lininger; Sens. Kruse, Steiner Hayward

Committees: House Judiciary, House Revenue, Senate Judiciary

Background and Current Law: As a general rule, a traffic ticket may be issued by law enforcement only if the underlying conduct is witnessed by law enforcement. There are several exceptions, including the issuance of tickets based on evidence collected by red light cameras or photographic radar systems operated by some cities.

Bill Summary: House Bill 2409 authorizes cities to operate cameras and other technologies, mounted on street lights or other appropriate places, to record drivers who speed more than 11 miles per hour over the limit so long as: communities and drivers are notified; law enforcement reviews data prior to issuing citations; and registered owners are permitted to respond to such citations with a certificate of innocence or nonliability. House Bill 2409 also prohibits tickets, based on recorded data, for both running a red light and speeding unless the speed limit is exceeded by more than 21 miles per hour.

Oregon Laws 2017: Chapter 288

[House Bill 2472](#)

Not Enacted

Responsibilities for Death Investigations**Chief Sponsors:** Rep. Bentz**Committees:** House Judiciary, Joint Ways and Means

Background and Current Law: Death investigations in Oregon are supervised by the Medical Examiner Division of the Oregon State Police. The division currently employs six medical examiners and one forensic anthropologist. Most counties also employ deputy medical examiners, who are often local sheriff's deputies, to respond and conduct initial assessments. Some counties struggle to fund and maintain these positions and resources to train and supervise deputy medical examiners are limited.

Bill Summary: House Bill 2472 would have required the State Medical Examiner to assume all death investigation responsibilities currently being undertaken by counties by July 2021.

[House Bill 2526](#)

Not Enacted

Suicide Prevention Materials for Firearms Transactions**Chief Sponsors:** Rep. Buehler**Committees:** House Judiciary, Joint Ways and Means

Background and Current Law: The Oregon Health Authority reports there were 2,280 firearm fatalities in Oregon between 2010 and 2014, and of those, 1,897 were suicides.

Bill Summary: House Bill 2526 would have directed the Department of Justice to create a firearm safety and suicide prevention education program to provide a variety of free education materials to gun dealers for dissemination to gun purchasers.

[House Bill 2579](#)

Effective Date: January 1, 2018

Youth Offenders Supervision**Chief Sponsors:** Reps. Rayfield, Olson**Committees:** House Judiciary, Senate Judiciary

Background and Current Law: In Oregon, a person convicted in adult court is allowed to serve a sentence at the Oregon Youth Authority (OYA) if the person committed the offense as a minor and was sentenced prior to turning age 20. However, a person may not remain in the legal and physical custody of OYA after turning age 25. If a person still has remaining time to serve when the person turns age 25, that person's legal and physical custody is returned to the Department of Corrections (DOC). Under current law, these persons are supervised upon release by the State Board of Parole and Post-Prison Supervision, regardless of whether the person ever served part of the sentence at DOC.

Bill Summary: House Bill 2579 authorizes OYA to provide reentry support and services to youth sentenced to DOC who served their entire period of incarceration at an OYA facility, until they either turn 25 or complete all the other conditions of their sentence.

Oregon Laws 2017: Chapter 79[House Bill 2597](#)

Effective Date: October 1, 2017

Expanded Prohibitions Against Distracted Driving**Chief Sponsors:** Reps. Olson, Lininger; Sen. Burdick**Committees:** House Judiciary, Senate Judiciary, Senate Rules

Background and Current Law: Since 2007, Oregon law has restricted the use of mobile communication devices while driving. In 2015, the Oregon Court of Appeals interpreted the law to prohibit "talking and texting on a mobile communication device, but not all activities that can be performed using such a device" (State v. Rabanales-Ramos, 359 P.3d 250 (Or. Ct. App. 2015)). The Oregon Department of Transportation, Oregon State Police, and the American Automobile Association organized a task force on distracted driving during 2016 that developed recommendations, resulting in House Bill 2597.

Bill Summary: House Bill 2597 strengthens restrictions against the use of mobile devices while driving, eliminates several exceptions, increases penalties, and allows the fine to be suspended for a first offense.

Oregon Laws 2017: Chapter 629

[House Bill 2598](#)

Effective Date: January 1, 2018

Motorcyclists Protection from Reckless Drivers

Chief Sponsors: Reps. Olson, Barker, Post

Committees: House Judiciary, Senate Judiciary

Background and Current Law: It is against the law in Oregon to recklessly operate a vehicle upon a highway in a manner that results in contact between the vehicle and a pedestrian, bicycle, or bicycle operator, when the contact results in physical injury to the pedestrian or bicycle operator.

Bill Summary: House Bill 2598 expands this offense to include contact with a motorcycle, operator, or passenger that results in injury to the operator or passenger.

Oregon Laws 2017: Chapter 388

[House Bill 2608](#)

Effective Date: May 15, 2017

Uniform Trust Code Applicability Corrections

At the Request of: House Interim Committee on Judiciary

Committees: House Judiciary, Senate Judiciary

Background and Current Law: In 2015, House Bill 2331 updated the Oregon Uniform Trust Code. The Oregon Uniform Trust Code was originally adopted in 2005 after it was developed by the National Conference of Commissioners on Uniform State Laws. House Bill 2331 made several updates and changes, but due to an oversight, those changes were only applied to trusts executed after the bill went into effect. Changes were intended to apply to all trust proceedings commenced after the bill passed, regardless of when the underlying trust was executed.

Bill Summary: House Bill 2608 corrects the oversight, making updates to Oregon's Uniform Trust Code applicable to trust proceedings commenced on or after May 15, 2017.

Oregon Laws 2017: Chapter 54

[House Bill 2610](#)

Effective Date: January 1, 2018

Electronic Signatures and Notices in Corporate Documents

At the Request of: House Interim Committee on Judiciary

Committees: House Judiciary, Senate Judiciary

Background and Current Law: Many actions taken or meetings held by corporations require some form of written notice to the Board of Directors or shareholders, which includes electronic communications; however, electronic notices are not specifically contemplated by current law.

Bill Summary: House Bill 2610 provides for electronic signatures on corporate documents and the sending, receipt, and refusal of electronic notices.

Oregon Laws 2017: Chapter 55

[House Bill 2615](#)

Not Enacted

Penalty for Theft by Receiving Adjustment

At the Request of: House Interim Committee on Judiciary

Committees: House Judiciary

Background and Current Law: Theft crimes are divided by degree, generally based on the value of the stolen property. In Oregon, theft crimes include aggravated theft in the first degree, theft in the first degree, theft in the second degree, and theft in the third degree. There are also crimes of theft by deception and by extortion. Theft in the first degree is committed by either theft by receiving or theft of property worth at least \$1000. In 1980, the Oregon Court of Appeals held that an offender's attempt to return merchandise worth \$400 to the business it was stolen from constituted theft by receiving and upheld a conviction for first degree theft even though the value of the stolen property was less than \$1,000 (State v. Rocha, 618 P.2d 475 (Or. Ct. App. 1980)).

Bill Summary: House Bill 2615 would have made the penalty for theft committed by returning stolen merchandise dependent on the value of the merchandise.

[House Bill 2616](#)

Effective Date: January 1, 2018

Mandated Appointment of Counsel for Indigent Youth**At the Request of:** House Interim Committee on Judiciary**Committees:** House Judiciary, Senate Judiciary

Background and Current Law: Youth have the same right to counsel as adults. The U.S. Supreme Court held that juveniles have a constitutional right to counsel in delinquency proceedings in 1967. Youth involved in delinquency proceedings are entitled, but not required, to have counsel, and counsel may be appointed at state expense if they are indigent. In Oregon, minors can currently waive counsel, regardless of age.

Bill Summary: House Bill 2616 requires courts to appoint counsel for indigent youth in delinquency proceedings whenever incarceration is a possible penalty, for probation proceedings, and to any case where an adult charged with the same conduct would be entitled to counsel. The measure also specifies procedures for youth to waive counsel.

Oregon Laws 2017: Chapter 389[House Bill 2620](#)

Not Enacted

Crime of Assault Against Hospital Employees**At the Request of:** House Interim Committee on Judiciary**Committees:** House Judiciary

Background and Current Law: There are four degrees of assault crimes in Oregon. Assault in the fourth degree is usually a misdemeanor, committed when a person intentionally, knowingly, or recklessly causes physical injury to another. Assault in the first, second, and third degrees are felonies. Third degree assault includes a variety of specified conduct, such as intentionally, knowingly, or recklessly causing physical injury to an emergency medical services provider while the provider is performing their official duties.

Bill Summary: House Bill 2620 would have added intentionally, knowingly, or recklessly causing physical injury to a person working in a hospital while they are performing their duties to the list of prohibited conduct that constitutes assault in the third degree.

[House Bill 2622](#)

Effective Date: June 14, 2017

Financial Institutions Account Freeze to Limit Finance Exploitation**At the Request of:** House Interim Committee on Judiciary**Committees:** House Judiciary, Senate Judiciary

Background and Current Law: According to a 2015 report by the Oregon Department of Human Services' (DHS) Office of Adult Abuse Prevention and Investigation, of the 19,000 investigations of abuse conducted by DHS that year, over 1,500 resulted in findings of substantiated financial exploitation, which is the leading type of abuse of vulnerable adults.

Bill Summary: House Bill 2622 allows financial institutions, including credit unions, to refuse transactions when they reasonably suspect financial exploitation or have received information from DHS, law enforcement, or a district attorney's office that financial exploitation is suspected or has occurred. Financial institutions are not required to freeze transactions, but if they do so in good faith, they are provided with blanket immunity from liability. Accounts may be frozen up to 15 days, and the hold may be terminated by a court order or if the financial institution is satisfied that exploitation is not occurring.

Oregon Laws 2017: Chapter 290[House Bill 2625](#)

Effective Date: January 1, 2018

Forfeiture of Abused and Neglected Animals**At the Request of:** House Interim Committee on Judiciary**Committees:** House Judiciary, Senate Judiciary

Background and Current Law: In Oregon, law enforcement may remove an animal when there is probable cause to believe the animal has been abused or neglected. Animals may be placed with care agencies and agencies can petition courts to order forfeiture of the animal prior to resolution of a corresponding criminal case. After a hearing on the petition, a court may order an animal forfeited, unless the defendant posts a bond sufficient to provide for the animal's care until the criminal case is resolved. Only animals identified as abused or neglected in pending criminal cases may be forfeited, which encourages prosecutors to file separate charges in the interest of each animal, even if fewer charges might be more appropriate.

Bill Summary: House Bill 2625 applies the existing animal forfeiture process to any animal that is lawfully recovered pending a criminal trial for animal abuse or neglect, regardless of whether the specific animal is involved in a particular criminal charge.

Oregon Laws 2017: Chapter 279

[House Bill 2630](#)

Effective Date: January 1, 2018

Expanded Requirements for Fiduciary Appointments

At the Request of: House Interim Committee on Judiciary

Committees: House Judiciary, Senate Judiciary

Background and Current Law: Fiduciaries are persons or entities appointed by courts to assume duties on behalf of protected persons. Fiduciaries include both guardians and conservators: guardians may have broad authority to act, while the scope of a conservator's authority is limited to financial decisions. In order for an appointment to be made, a court must first determine that a person lacks the capacity to make decisions on their own behalf.

Bill Summary: House Bill 2630 strengthens requirements around the appointment and conduct of fiduciaries. Petitions for appointment must describe less-restrictive alternatives that were considered, explain why those alternatives were inadequate, and identify the scope of authority being sought. The measure also allows protected persons to object orally to motions in protective proceedings. It further requires guardians to follow a specific process to change the abode or placement of protected adults and authorizes the removal of guardians who fail to comply. Finally, the measure requires the yearly guardian's report to specify facts that support findings of incapacity and to provide notice for anyone concerned about the guardian's conduct to contact the court.

Oregon Laws 2017: Chapter 391

[House Bill 2638](#)

Effective Date: October 6, 2017

Standards for Ignition Interlock Devices

At the Request of: House Interim Committee on Judiciary

Committees: House Judiciary, Joint Ways and Means

Background and Current Law: Any person convicted of driving under the influence of intoxicants (DUI) or participating in a DUI diversion program and driving must have an ignition interlock device installed in any vehicle they drive. Interlock devices record and report breath samples provided by drivers and prevent vehicles from starting if alcohol is detected. Interlock devices also record and report tampering and lockouts.

Bill Summary: House Bill 2638 strengthens standards and requirements imposed on providers of ignition interlock devices: they must offer service centers statewide, have a 24-hour assistance line, and complete background checks on technicians. The measure also requires interlock devices to take location readings via GPS when test violations occur, permits diversion participants to be ordered back into treatment upon receipt of two negative reports, and transfers oversight of providers from the Oregon Department of Transportation to the Department of State Police in 2019.

Oregon Laws 2017: Chapter 655

[House Bill 2717](#)

Not Enacted

Crime of Assault Against Public Transit Employees**Chief Sponsors:** Reps. Gorsek, McLain; Sen. Dembrow**Committees:** House Judiciary, Joint Ways and Means

Background and Current Law: There are four degrees of assault crimes in Oregon. Assault in the fourth degree is usually a misdemeanor, committed when a person intentionally, knowingly, or recklessly causes physical injury to another. Assault in the first, second, and third degrees are felonies. Third degree assault includes a variety of specified conduct, such as intentionally, knowingly, or recklessly causing physical injury, by means other than a motor vehicle, to a public transit vehicle operator while they are operating the vehicle.

Bill Summary: House Bill 2717 would have broadened assault in the third degree to include causing injury to public transit employees acting within the scope of their employment.

[House Bill 2718](#)

Not Enacted

Requirement of Counsel for Youth Prior to Custodial Interviews**Chief Sponsors:** Reps. Gorsek, Piluso, Bynum**Committees:** House Judiciary

Background and Current Law: Law enforcement may not interrogate individuals in custody unless such individuals are first advised of their rights to counsel and against self-incrimination, including youth. Both rights can be waived. Because brain development is not yet complete among youth, they may have decreased decision-making ability.

Bill Summary: House Bill 2718 would have required youth to consult with an attorney in person, by telephone, or by video conference, prior to consenting to a custodial interview with law enforcement. The measure would also have provided a narrow exception for law enforcement to obtain information believed necessary to protect life or property from a substantial threat.

[House Bill 2721](#)

Effective Date: August 8, 2017

Crime of Assault Against Highway Workers

Chief Sponsors: Reps. McLain, Gorsek, Sprenger; Sen. Thomsen

Committees: House Judiciary, Joint Ways and Means

Background and Current Law: There are four degrees of assault crimes in Oregon. Assault in the fourth degree is usually a misdemeanor, committed when a person intentionally, knowingly, or recklessly causes physical injury to another. Assault in the first, second, and third degrees are felonies. Third degree assault includes a variety of specified conduct, such as intentionally, knowingly, or recklessly causing physical injury, by means other than a motor vehicle, to the operator of a taxi while the operator is in control of the taxi.

Bill Summary: House Bill 2721 adds knowingly or recklessly causing physical injury to a flagger or highway worker performing their duties to the list of prohibited conduct that constitutes assault in the third degree.

Oregon Laws 2017: Chapter 658

[House Bill 2732](#)

Effective Date: June 22, 2017

Unattended Children and Pets in Motor Vehicles

Chief Sponsors: Rep. Clem

Committees: House Judiciary, Senate Judiciary

Background and Current Law: Law enforcement officers who have probable cause to believe that an animal is being abused or neglected are authorized to enter premises or motor vehicles to recover the animal and care for it without being held liable for damage that was necessary to make entry.

Bill Summary: House Bill 2732 similarly protects any person who enters a motor vehicle to assist an unattended child or domestic animal from criminal or civil liability, under specific circumstances. Among other factors, the person making entry must reasonably believe that the child or animal is in imminent danger of suffering harm.

Oregon Laws 2017: Chapter 424

[House Bill 2739](#)

Not Enacted

Patent Holder Liability for Genetically Engineered Organisms**Chief Sponsors:** Rep. Barnhart**Committees:** House Judiciary, House Rules

Background and Current Law: A “GMO” is a genetically modified organism. Genetic changes are achieved through laboratory techniques, including the manipulation of existing genetic material or the introduction of modified genetic material into the organism. Crops may be genetically altered to be resistant to pesticides and herbicides, to combat disease and parasites, or to increase nutritional value. Several countries ban producing or importing genetically modified crops and local farmers and agricultural operations may be concerned about accidental contamination of nonmodified crops.

Bill Summary: House Bill 2739 would have allowed lawsuits against GMO patent holders if their products were discovered on land without permission. If a GMO was found on public land, any person within the jurisdiction of the public body owning the land would have been authorized to bring an action if the public body declined to do so. The measure also provided an affirmative defense if a GMO was present on land through an intentional act without the patent holder’s permission.

[House Bill 2777](#)

Effective Date: January 1, 2018

Transit Violations Administrative Resolutions**Chief Sponsors:** Rep. Barker; Sen. Dembrow**Committees:** House Judiciary, Senate Judiciary

Background and Current Law: Public transit riders who fail to pay the fare or who commit other transit-related violations may be issued citations to appear in court the same as with ordinary traffic violations, and may be subject to fines.

Bill Summary: House Bill 2777 authorizes mass transit districts to create an optional, alternative administrative process for resolving transit violations that allows them to reduce fines through an in-house hearing, or order community service as an alternative to fines, in order to permit riders to avoid court if they wish. If a violation is not resolved through the administrative process within 90 days, the individual will be required to appear in court.

Oregon Laws 2017: Chapter 427

[House Bill 2793-A](#)

Not Enacted

Consequences of Conviction of Commercial Sexual Solicitation

At the Request of: House Committee on Judiciary

Committees: House Judiciary, House Rules

Background and Current Law: One approach to reducing prostitution is to impose harsher penalties on those who buy sexual services while offering aid and support services to sex workers and individuals being trafficked.

Bill Summary: House Bill 2793-A would have increased the consequences of a conviction for commercial sexual solicitation by requiring offenders to disclose all licenses, certificates, permits, and registrations they held, and the court to notify issuing entities of the conviction. The measure would also have revoked any hunting or angling tags or licenses held by offenders for one year. Finally, House Bill 2793-A would have created a “john school” where offenders would have been required to complete courses as a condition of diversion or probation.

[House Bill 2794-A](#)

Not Enacted

Modification of Crime for Unlawful Use of a Vehicle

At the Request of: House Committee on Judiciary

Committees: House Judiciary, Joint Ways and Means

Background and Current Law: In prosecutions for the unlawful use of a vehicle, which frequently involve allegations that the vehicle was stolen, one of the elements the state must prove beyond a reasonable doubt is the defendant’s mental state: that they knew the vehicle was operated without the owner’s consent. Judges and juries reach conclusions about whether or not the elements of a crime have been proven based on direct evidence and on reasonable inferences drawn from circumstantial evidence. The Oregon Court of Appeals has reversed a number of convictions for lack of evidence of mental state in particular, which often involves circumstantial evidence. As a result, some counties are prosecuting fewer stolen car cases.

Bill Summary: House Bill 2794-A would have relaxed the mental state needed to steal a car, requiring the state to prove beyond a reasonable doubt that a defendant failed to be aware of a substantial and unjustifiable risk that the vehicle owner did not consent to its use.

Cap Raised on Noneconomic Damages in Certain Civil Cases

At the Request of: House Committee on Judiciary

Committees: House Judiciary, Senate Judiciary

Background and Current Law: Damages available in civil actions may be economic or noneconomic. Economic damages are for objectively verifiable losses, such as health care costs and lost wages. Noneconomic damages cover subjective losses, such as pain and suffering and emotional distress. Since 1987, Oregon has capped noneconomic damage awards at \$500,000. However, the cap has been challenged repeatedly in court as violating one or both clauses of the Oregon Constitution that guarantee rights to a jury trial and to a remedy. Court decisions over time essentially eroded the cap's applicability, leaving it intact primarily for wrongful death cases. However, in a 2016 case, the Oregon Supreme Court modified some of its previous reasoning and opened the door to permit application of the cap to more claims on a case-by-case basis.

Bill Summary: House Bill 2807-B would have raised the \$500,000 cap on noneconomic damages in certain personal injury cases to \$10 million with annual adjustments for inflation. The cap would have remained intact for wrongful death cases and claims brought under the Tort Claims Act or the Workers' Compensation system. The measure would also have required affidavits in support of personal injury settlements for minors, incapacitated persons, and decedents to remain confidential absent a court order after a showing of good cause.

Graduated Penalties for Harassment When Children Present

At the Request of: House Committee on Judiciary

Committees: House Judiciary, Senate Judiciary

Background and Current Law: The crime of harassment can be committed when a person intentionally harasses or annoys another person by subjecting the other person to offensive physical contact. Harassment is ordinarily a Class B misdemeanor, punishable by up to six months' imprisonment and a \$2,500 fine.

Bill Summary: House Bill 2988 elevates this form of harassment to a Class A misdemeanor, punishable by imprisonment of up to one year and a \$6,250 fine, when the crime constitutes domestic violence and the harassment is committed in the immediate presence of, or is witnessed by, a minor child or stepchild of, or a minor child residing with, the defendant or the victim. House Bill 2988 also classifies this elevated form of harassment as a "person Class A misdemeanor" for purposes of the offender's criminal history under Oregon's felony sentencing guidelines.

Oregon Laws 2017: Chapter 430

Expanded Drone Prohibitions

Chief Sponsors: Rep. Huffman

Committees: House Judiciary, Senate Judiciary

Background and Current Law: Drones, or unmanned aircraft systems (UAS), are unmanned flying machines that range in size from that of a bird to a small airplane. It is a Class A misdemeanor in Oregon to intentionally, knowingly, or recklessly use drones that are capable of firing bullets or projectiles, or in a way that functions as a dangerous weapon.

Bill Summary: House Bill 3047 elevates this conduct to a Class C felony if the drone is used to fire bullets or projectiles, or as a dangerous weapon, and to a Class B felony if such use results in serious physical injury to another person. The measure also prohibits using drones that are capable of releasing projectiles for crowd management, and operating drones over privately owned premises to intentionally, knowingly, or recklessly harass or annoy the property's owner or occupant.

However, HB 3047 provides an exemption to the crime of weaponized UAS when a person has specific authorization from the Federal Aviation Administration; gives notice to the Department of Aviation, Oregon State Police, and any other agency that issues a permit or license for the activity; and provides reasonable notice to the public if the use is in a public area.

Finally, House Bill 3047 authorizes law enforcement to use drones to investigate accident scenes.

Oregon Laws 2017: Chapter 502

Criminal Sentencing and Offender Reentry

Chief Sponsors: Reps. Piluso, Sanchez, Williamson

Committees: House Judiciary, House Rules, Joint Ways and Means

Background and Current Law: The Department of Corrections (DOC) is required to administer a transitional leave program that helps eligible inmates approaching the end of incarceration to plan for successful reintegration into society. DOC works with inmates, and the supervisory entities in communities where they will be released, to apply for employment and arrange educational and other supports in advance.

Oregon provides increased penalties for repeat property offenders: presumptive prison sentences for persons who, at the time of sentencing for certain property crimes, have been convicted of other specified property crimes. Currently, persons convicted of identity theft or theft in the first degree can be subject to an 18-month presumptive sentence.

The Family Sentencing Alternative Pilot Program, established in 2015, is available to certain offenders who have been sentenced to probation in lieu of prison, who had physical custody of a minor child when they committed the crime. The program offers special probation conditions ranging from vocational training to parenting and life skills classes, to substance abuse and mental health treatment.

Bill Summary: House Bill 3078 increases the current maximum amount of available transitional leave for eligible inmates from 90 to 120 days. The measure also reduces the presumptive sentence for certain property crimes to 13 months, increases the number of specified predicate convictions necessary to trigger the presumptive sentence, and lifts a limitation on judicial discretion to allow courts to impose probation in lieu of prison when appropriate. The measure makes these changes permanent, eliminating scheduled reductions in the length of short term transitional leave and scheduled increases in the sentences applicable to identity theft and theft in the first degree. Finally, House Bill 3078 authorizes courts to consider an offender's eligibility for the Family Sentencing Alternative Pilot Program as reason to impose probation in lieu of prison, eliminates criminal history-based ineligibility for the program, and allows offenders who are pregnant or who have physical custody of a child at the time of sentencing to participate.

Oregon Laws 2017: Chapter 673

[House Bill 3242](#)

Effective Date: January 1, 2018

Minors Custodial Interview Recordings

Chief Sponsors: Reps. Gorsek, Piluso, Bynum

Committees: House Judiciary, Senate Judiciary

Background and Current Law: Oregon law requires peace officers to electronically record custodial interviews that occur in law enforcement facilities if the interviews are part of an investigation into aggravated murder or certain other felonies, with some exceptions.

Bill Summary: House Bill 3242 expands the recording requirement to include custodial interviews of minors in connection with felony investigations and allows courts in juvenile delinquency proceedings to consider violations of this provision when making determinations about the evidentiary value of statements made by the minor.

Oregon Laws 2017: Chapter 431

[House Bill 3244](#)

Not Enacted

limitations of Law Enforcement Interview Techniques with Youth

Chief Sponsors: Reps. Gorsek, Piluso

Committee: House Judiciary

Background and Current Law: A false confession is when a person admits guilt for a crime they did not commit. One study, that examined 340 exonerations in the United States between 1989 and 2003, found that 33 cases involved minors, and that nearly half of those involved false confessions. It is suggested that certain interrogation techniques may contribute to false confessions.

Bill Summary: House Bill 3244 would have prohibited law enforcement from using deceit, trickery, artifice, or any other misleading interrogation technique when interviewing youth.

Animal Abuse and Neglect

At the Request of: House Committee on Judiciary

Committees: House Judiciary, Senate Judiciary, Conference Committee

Background and Current Law: Individuals convicted of animal abuse or neglect in Oregon are barred from possessing certain animals for five or 15 years, depending on the conviction, and can be ordered to reimburse the cost of care provided to subject animals pending resolution of the criminal case.

Bill Summary: House Bill 3283 increases the prohibition against possessing certain animals from five to 15 years for persons convicted of animal neglect in the first or second degree, and authorizes courts to reduce that period if the offender successfully completes court-approved mental health treatment. The measure also prohibits donations or fundraising amounts received by entities caring for animals to be used to offset the amount owed by offenders, reclassifies parrots as “domestic animals” rather than “livestock” for purposes of animal abuse and neglect statutes, and provides that contracting with an individual to rent or lease animals and care for them does not constitute insurance for purposes of the Insurance Code.

Oregon Laws 2017: Chapter 677

2017 SUMMARY OF LEGISLATION



LABOR AND EMPLOYMENT



LABOR AND EMPLOYMENT MEASURES

Collective Bargaining	Enacted: SB 1040, HB 3170, HB 3279 Not Enacted: SB 294
General Labor and Employment	Enacted: SB 41, SB 93, SB 398 Not Enacted: HB2105
Public Contracting	Enacted: SB 416, HB 3060 Not Enacted:
Public Employees Retirement System	Enacted: SB 200, SB 201, SB 214, SB 712 Not Enacted: SB 559-A, SB 560-A, SB 761, SB 791, SB 811, SB 913
Unemployment Insurance and Workers' Compensation	Enacted: SB 42, HB 2337, HB 2338 Not Enacted: SB 780
Wages, Hours, and Benefits	Enacted: SB 299, HB 2005, HB 3008, HB 3458 Not Enacted: SB 279-A, SB 999
Working Conditions	Enacted: SB 828 Not Enacted: SB 94, HB 2856-A
Workforce Development	Enacted: HB 2012, HB 2162 Not Enacted: SB 139
Workplace Safety	Enacted: SB 92 Not Enacted: HB 2167

Picture: Tulip Farm, Clackamas County - [Gary Halvorson](#), [Oregon State Archives](#)

LABOR AND EMPLOYMENT

TASK FORCES AND REPORTING REQUIREMENTS

The Legislative Assembly did not establish any task forces or reporting requirements relating to Labor and Employment this session.

[Senate Bill 41](#)

Effective Date: January 1, 2018

Employment Department Record Sharing

At the request of: Governor Brown for Employment Department

Committees: Senate Workforce, House Higher Education and Workforce Development, House Business and Labor

Background and Current Law: The Oregon Employment Department provides contractual services to the U.S. Bureau of Labor Statistics, the Oregon Bureau of Labor and Industries, and other workforce-related agencies to provide information about the performance of its programs.

Bill Summary: Senate Bill 41 updates and expands the statutes governing the Oregon Employment Department's workforce and labor data analysis responsibilities. It clarifies that the department may share certain confidential information with government entities, including Oregon public universities and the Oregon Health and Science University. It also clarifies that home care workers are not state employees for purposes of workforce and labor market information, and that the current data-sharing partnership between the department and the Public Employees Retirement System remains in place. The bill repeals the Occupational Program Planning System and deletes provisions related to the discontinued Shared Information System.

Oregon Laws 2017: Chapter 307

[Senate Bill 42](#)

Effective Date: January 1, 2018

School Employee Unemployment Insurance

At the request of: Governor Brown for Employment Department

Committees: Senate Workforce, House Business and Labor

Background and Current Law: The unemployment insurance (UI) program has special provisions that apply to people who work for educational institutions, generally restricting employees from receiving UI benefits during school breaks, including summer break. Federal law affords little flexibility to states in applying those laws to employees performing instructional, research, or principal administrative work ("instructional work"), but provides more flexibility on their application to people who perform other types of services, such as bus drivers, janitorial workers, and school nurses.

Bill Summary: SB 42 reverses changes to Oregon's unemployment insurance law made by Senate Bill 1534 (2016), which allowed non-instructional school staff who terminate with good cause to receive unemployment benefits during school breaks, because the measure resulted in a lack of conformity with current federal law.

Oregon Laws 2017: Chapter 308

[Senate Bill 92](#)

Effective Date: January 1, 2018

Occupational Safety and Health Division Penalty Setting Authority**At the request of:** Governor Brown for Department of Consumer and Business Services**Committees:** Senate Workforce, House Business and Labor

Background and Current Law: Oregon regulates private-sector worker safety through a federally approved State Plan. The Oregon Safe Employment Act authorizes the Department of Consumer and Business Services to set reasonable and mandatory occupational safety and health standards designed to protect the life, safety, and health of employees. Oregon's State Plan is administered by the department's Oregon Occupational Safety and Health Administration. Under federal law, the State Plan must include effective sanctions for violations, and penalty maximums and minimums must be at least equivalent to those under federal law. In 2015, Congress directed the federal Occupational Safety and Health Administration to increase maximum and minimum penalties for violations and adjust for inflation in the future, and it has proposed increases to both of those penalties. Current Oregon law provides a range of civil penalties for different violations.

Bill Summary: Senate Bill 92 authorizes the Department of Consumer and Business Services to set maximum penalties for violations of occupational safety and health requirements with instructions to consider and not exceed maximum penalties under federal law. The measure specifies that the penalty for willful or repeat violations may not be less than minimum penalty under the federal law.

Oregon Laws 2017: Chapter 238[Senate Bill 93](#)

Effective Date: January 1, 2018

Workers' Memorial Scholarship Account Funding**At the request of:** Governor Brown for Department of Consumer and Business Services**Committees:** Senate Workforce, Joint Ways and Means

Background and Current Law: The Oregon Occupational Safety and Health Administration (Oregon OSHA) Workers' Memorial Scholarship Account was established by the Legislative Assembly in 1991 to help finance higher education for students, General Educational Development recipients, and recent graduates who are dependents or spouses of workers killed or permanently disabled by on-the-job injuries. The scholarship is funded by the interest earned on a portion of civil penalties issued against employers for workplace safety violations. Private donations can also be accepted but are not solicited. The portion set aside in the account has not increased since 1993. In the past seven years, Oregon OSHA has allocated, on average, five scholarships per year averaging \$1,200.

Bill Summary: Senate Bill 93 increases the maximum amount of civil penalties recovered for violations of occupational health and safety standards that may be credited to the Workers' Memorial Scholarship Account from \$250,000 to \$1 million.

Oregon Laws 2017: Chapter 635

[Senate Bill 94](#)

Not Enacted

Sanitary Facilities for Construction Sites

At the request of: Governor Brown for Department of Consumer and Business Services

Committees: Senate Business and Transportation, House Business and Labor

Background and Current Law: The Oregon Occupational Safety and Health Administration of the Department of Consumer and Business Services (DCBS) implements both federal and state law to regulate workplace safety and assists employers with compliance. Current law requires construction projects with costs estimated at more than \$1 million to provide flushing toilets, warm water, and wash basins with soap for employees on the job site. Typically, smaller construction sites provide portable chemical toilets and hand sanitizer. The current cost threshold has not been updated since 1993 and many more projects trigger the flush toilet requirement, including residential projects.

Bill Summary: Senate Bill 94 would have increased the threshold cost for construction projects to provide flush toilets, warm water, and wash basins with soap from \$1 million to \$1.75 million, and permitted DCBS to make adjustments based on the Consumer Price Index.

[Senate Bill 139](#)

Not Enacted

Rockwood Innovation and Workforce Training Center

Chief Sponsors: Sen. Monnes Anderson; Reps. Piluso, Gorsek

Committees: Senate Workforce, Joint Ways and Means

Background and Current Law: The Rockwood neighborhood in Gresham has a large racially, ethnically, and linguistically diverse population of nearly 42,000 residents, a poverty rate of 40 percent, and a median household income below \$39,000. In 2016, the Legislative Assembly appropriated funds for the Oregon Manufacturing Innovation Center (OMIC), a new research, development, and training center in Columbia County that brings together educational partners across the state to provide hands-on workforce training to college students in aerospace and associated careers.

Bill Summary: Senate Bill 139 would have proposed a similar model, and appropriated \$2 million from the General Fund to construct and equip an innovation and workforce training center in the Rockwood neighborhood. The center would have offered services through public and private partnerships, operated by partners co-located at the facility, to provide job training, small business development, a digital media lab, incubator office space, and a manufacturing maker space. Although Senate Bill 139 was not enacted, the proposal was incorporated into [Senate Bill 5530](#), which was enacted.

Senate Bill 200

Effective Date: August 2, 2017

PERS Credit Purchase Option for Uniformed Services

At the request of: Senate Interim Committee on Education

Committees: Senate Workforce, Joint Ways and Means

Background and Current Law: Under current law, members of the Public Employees Retirement System (PERS) may augment their total public service time credit at retirement for purposes of calculating retirement benefits by purchasing retirement credits for periods of service in the uniformed services. A PERS member may purchase credit for up to four years of active service in the U.S. Armed Forces performed on or after January 1, 1950, and for periods of service in the uniformed services if the member leaves a qualifying position to perform service and returns to a qualifying position within five years. Oregon Administrative Rules define uniformed services to include the U.S. Armed Forces, Army National Guard, Air National Guard, commissioned corps of the Public Health Service, and any other category of individuals designated by the U.S. President in time of war or national emergency.

Bill Summary: Senate Bill 200 expands eligibility to purchase retirement credit to any PERS member who entered or reentered active service in uniformed services on or after January 1, 1950.

Oregon Laws 2017: Chapter 641

[Senate Bill 201](#)

Effective Date: January 1, 2018

Remuneration for Public University PERS Members**At the request of:** Senate Interim Committee on Education**Committees:** Senate Workforce, Joint Ways and Means

Background and Current Law: When the Legislative Assembly established the Oregon Public Service Retirement Plan (OPSRP) in 2003, it defined salary as “remuneration [that] is includable in the employee’s taxable income under Oregon law.” This definition excludes compensation paid to Oregon public employees who reside and work outside of Oregon. However, Oregon public universities continued to make OPSRP contributions for all employees, including for out-of-state employees whose compensation was not taxable in Oregon. Oregon public universities also continued to communicate to prospective and newly hired employees that they could receive benefits under OPSRP without informing them that compensation not taxable in Oregon would not be taken into account for OPSRP benefit purposes.

Bill Summary: Senate Bill 201 establishes that remuneration paid to OPSRP members for services to the university during continuous period of employment is taxable income under Oregon law if the member was hired by a university with a governing board in a qualifying position from August 29, 2003, to December 31, 2016, and the member resided and performed those services for the university in the United States.

Oregon Laws 2017: Chapter 642[Senate Bill 214](#)

Effective Date: January 1, 2018

PERS Exclusion for Public University Post-doctoral Scholars**At the request of:** Senate Interim Committee on Education for Oregon Public Universities**Committees:** Senate Workforce, Joint Ways and Means

Background and Current Law: Post-doctoral research programs provide scholars with short-term experience, training, and mentoring before transitioning to permanent employment in higher education or the private sector. In Oregon, post-doctoral scholars are classified as state employees. Most state employees who work at least 600 hours in the calendar year are eligible to participate in the Public Employee Retirement System (PERS), but public university employees may choose to participate in the Optional Retirement Plan (ORP). Pension benefits under PERS and ORP systems require a five-year vesting period. However, post-doctoral research positions typically do not exceed three years, and few post-doctoral scholars fully vest in PERS or ORP. The universities’ contributions to the pension program on behalf of post-doctoral scholars remain in the PERS benefit pool when those employees leave the universities.

Bill Summary: Senate Bill 214 excludes new post-doctoral scholars at public universities and the Oregon Health and Science University from eligibility for membership in PERS. New post-doctoral scholars remain eligible to participate in the universities’ ORP.

Oregon Laws 2017: Chapter 569

[Senate Bill 279-A](#)

Not Enacted

Employee Notice of Nonpayment of Wages Requirements**Chief Sponsors:** Sen. Roblan; Rep. McKeown**Committees:** Senate Workforce, House Business and Labor, House Rules

Background and Current Law: Under current law, the penalty for willful nonpayment of wages or compensation of a departing employee is the amount of the employee's wages or compensation for eight hours per day at the employee's regular hourly rate until the amount is paid, the employee initiates action on the violation, or the penalty has continued for longer than 30 days.

An employee is not required to submit a written notice of nonpayment. However, submitting such a notice of nonpayment makes the employee eligible to receive a penalty exceeding 100 percent of the employee's unpaid wages or compensation if the employer fails to pay the full amount of unpaid wages or compensation within 12 days of receiving notice. If the employee does not submit the notice, the penalty may not exceed 100 percent of the employee's unpaid wages or compensation. The notice must include the estimated amount of wages or compensation alleged to be owed or an allegation of facts sufficient to estimate the amount owed.

Bill Summary: Senate Bill 279-A would have required that the employee's written notice of nonpayment of wages include a statement that if the employer pays the full amount of the employee's unpaid wages or compensation within 12 days after receiving the notice, the penalty may not exceed 100 percent of the employee's unpaid wages or compensation.

[Senate Bill 294](#)

Not Enacted

Review of State Contracting Agency Cost Analysis

At the request of: Senate Interim Committee on Workforce

Committees: Senate Workforce

Background and Current Law: Under current Oregon law, certain public agencies must conduct a cost analysis when considering whether to enter into a service contract with an outside vendor. The cost analysis must demonstrate that the cost of doing business with the vendor is lower than that of using internal personnel and resources or that using internal personnel and resources is not feasible.

Bill Summary: Senate Bill 294 would have permitted public employees or their representatives to seek judicial review of a contracting agency's cost analysis. The measure required the contracting agency to halt the procurement process while an analysis was under review. The measure outlined the judicial authority and prohibited courts from awarding costs or attorney's fees. Finally, the measure provided additional steps to the procurement and cost analysis process.

[Senate Bill 299](#)

Effective Date: July 1, 2017

Limits and Application of Sick Time Policies

At the request of: Senate Interim Committee on Workforce

Committees Assigned: Senate Workforce, House Business and Labor

Background and Current Law: In 2015, the Legislative Assembly enacted Senate Bill 454, requiring employers to provide sick time for employees. Employers with 10 or more employees, or at least six employees in Portland, must implement a sick time policy that allows employees to use up to 40 hours of paid sick time per year. Other employers must implement a policy that allows employees to use up to 40 hours of unpaid sick time per year. The method for calculating the number of employees working for an employer is provided by administrative rule.

Bill Summary: Senate Bill 299 excludes certain individuals from the employee count for purposes of determining which sick leave requirements apply. It clarifies that an employer may limit employees to 40 hours of sick time accrual per year, and may adopt a policy limiting employees from accruing more than a total of 80 hours of sick time and from using more than 40 hours in a year. The measure modifies the rate of pay for accrued sick leave by employees paid on a piece-rate or commission basis. It exempts employers with adequate alternate time-off policies from complying with the sick time requirements after the first 40 hours that the employer's policy provides per year.

Oregon Laws 2017: Chapter 520

[Senate Bill 398](#)

Effective Date: October 6, 2017

Notice of Earned Income Tax Credits

Chief Sponsors: Sen. Steiner Hayward

Committees: Senate Workforce, House Business and Labor

Background and Current Law: The Earned Income Tax Credit (EITC) is a federal tax benefit for working people with low to moderate income. Taxpayers eligible for the EITC may claim an Oregon tax credit equal to eight percent of the federal credit or 11 percent of the EITC for taxpayers with a dependent child under the age of three. In 2016, Oregonians submitted 274,000 EITC claims and received \$586 million in credits. The average EITC for Oregon taxpayers was \$2,136. In 2013, the most recent year of available statistics, Oregon's participation in the EITC was 74.4 percent, while the national EITC participation rate was 80 percent.

Bill Summary: Senate Bill 398 requires the Bureau of Labor and Industries (BOLI) and the Oregon Employment Department to increase employee awareness about the availability of earned income tax credits. Specifically, it requires BOLI to provide notice to employees of EITC in any poster regarding the state minimum wage and to collaborate with business representatives to adopt rules requiring employers to provide annual, written notice to employees in the employee's federal W-2 form. The measure also requires the Oregon Employment Department to inform unemployment insurance benefit recipients about the credit.

Oregon Laws 2017: Chapter 333

Changes to Prevailing Wage Rate Policies

Chief Sponsors: Sens. Beyer, Manning, Jr.

Committees: Senate Workforce, House Business and Labor

Background and Current Law: Under Oregon law, the hourly wage for workers of any contractor performing a public works contract must be equal to or greater than the prevailing wage rate. Projects on privately owned roads, highways, buildings, structures, and improvements of any type are subject to prevailing wage law if the project is for construction, reconstruction, major renovation, or painting, and uses private funds and at least \$750,000 in public funds. Also, subject to prevailing wage laws are construction projects in which one or more public agencies will occupy or use at least 25 percent of the project's square footage. To ensure that wages are properly paid, the contractor and every subcontractor on a public works contract must file certified statements with the public contracting agency.

Bill Summary: Senate Bill 416 clarifies and modifies prevailing wage rate law restrictions on dividing projects into multiple contracts; modifies bond requirements for disadvantaged business enterprises, minority-owned businesses, woman-owned businesses, businesses that a service-disabled veteran owns, and emerging small businesses; provides guidance on when a surety may pay on behalf of a contractor or subcontractor; and makes failure to pay fringe benefits a separate violation from failure to pay the prevailing wage rate.

Oregon Laws 2017: Chapter 334

PERS Calculation of Final Average Salary Over Five Years

Chief Sponsors: Sens. Knopp, Kruse

Committees: Senate Workforce, Joint Ways and Means

Background and Current Law: The Public Employees Retirement System (PERS) enables public employers to provide their employees with retirement benefits. State government, public schools, community colleges, and many local governments participate in PERS, covering approximately 925 employers and about 95 percent of all public employees in Oregon. PERS contains approximately 347,000 members, including 168,000 active, 43,000 inactive, and 136,000 retired employees. Approximately 32 percent of members are currently eligible to retire by age or service.

PERS is a hybrid pension plan that includes a defined benefit plan and a defined contribution plan. Upon retirement, all PERS members receive both a life pension (defined benefit) and the balance of the member's individual account (defined contribution). The calculation of a member's pension benefit varies by type of membership plan. For Tier One and Tier Two PERS members, the amount of pension benefits is the higher total amount calculated between the "money match" and the "full formula" methods. For Oregon Public Service Retirement Plan (OPSRP) members, the amount of benefits is determined by the full formula method. The basic calculation under the full formula method is: (Years of Service) x (Final Average Salary) x (the Factor). The factor varies by membership type.

Under current law, final average salary is calculated as the greater of a member's average annual salary paid by participating public employers in the three calendar years of membership that produce the highest average salary, or one-third of the total salary paid to the member by participating employers in the last 36 months of active membership.

Bill Summary: Senate Bill 559-A would have changed the calculation of final average salary under PERS for purposes of determining member's full formula benefit. For salary paid on and after January 1, 2018, it calculated the greater of a member's average annual salary in five calendar years of the member's highest annual salary, or one-fifth of the member's total salary in the last 60 months of active membership. The measure recalculated employer contribution rates to reflect the amount of savings attributable to the bill and made corrected rates effective July 1, 2017. The measure provided for expedited Supreme Court review of petitions by adversely affected persons.

PERS Individual Account Redirect and \$100,000 Cap on Final Average Salary

Chief Sponsors: Sens. Knopp, Kruse

Committees: Senate Workforce, Joint Ways and Means

Background and Current Law: The Public Employees Retirement System (PERS) is a hybrid pension plan that includes a defined benefit plan and a defined contribution plan. Upon retirement, all PERS members receive both a life pension (defined benefit) and the balance of the member's individual account (defined contribution).

Since 2003, the PERS pension plan has been funded primarily by employer contributions. The calculation of a member's pension benefit varies by type of membership plan. For Tier One and Tier Two PERS members, the amount of pension benefits is the higher total amount calculated between the "money match" and the "full formula" methods. For Oregon Public Service Retirement Plan (OPSRP) members, the amount of benefits is determined by the full formula method.

The basic calculation under the full formula method is: (Years of Service) x (Final Average Salary) x (the Factor). The factor varies by membership type. Under current law, final average salary is calculated as the greater of a member's average annual salary paid by participating public employers in the three calendar years of membership that produce the highest average salary, or one-third of the total salary paid to the member by participating employers in the last 36 months of active membership.

The Individual Account Program (IAP) is funded through a required employee contribution of six percent of members' salaries. Under that program, all active member contributions are placed into members' individual accounts. Earnings and losses are credited annually to IAP accounts, and they are subject to earnings and losses until the member removes the funds. At retirement, a member may receive the amount in their IAP account as a lump-sum payment or in equal installments over a specified number of years.

Bill Summary: Senate Bill 560-A would have made two primary changes to PERS, which would impact both the pension plan and the IAP. First, it would have redirected the required employee contributions from the member's IAP to a new account. The funds in the new account were to be used to offset the employer's costs for member pensions accrued on or after the date of the redirection.

Second, it would have established a \$100,000 cap on the amount of a member's salary for calendar years in 2018 and beyond for purposes of calculating the member's final average salary. Currently, the final average salary for Tier Two and OPSRP members is capped under federal law. The cap is indexed and will be \$270,000 for 2017. There is no cap on salary for purposes of determining the final average salary under Tier One.

[Senate Bill 712](#)

Effective Date: January 1, 2018

PERS Service Credit for Workers' Compensation Disability Payments**At the request of:** Senate Committee on Workforce**Committees:** Senate Workforce, Joint Ways and Means

Background and Current Law: Under current law, Tier One and Tier Two members of the Public Employees Retirement System (PERS) who return to qualifying employment following disability leave for a duty-related injury under the workers' compensation system are eligible for PERS service credit for that period. Oregon Public Service Retirement Plan (OPSRP) members in the same circumstances are not eligible for PERS service credit for that period.

Bill Summary: Senate Bill 712 provides that an OPSRP member who returns to qualifying employment after receiving disability payments for an injury or disease sustained while in actual performance of duty, and not intentionally self-inflicted, receives hours of service credit for vesting purposes and retirement credit for the period of those payments.

Oregon Laws 2017: Chapter 569[Senate Bill 761](#)**Not Enacted****PERS Alternate Death Benefit****At the request of:** Senate Committee on Workforce**Committees:** Senate Workforce

Background and Current Law: The Public Employees Retirement System (PERS) enables public employers to provide their employees with retirement benefits. State government, public schools, community colleges, and many local governments participate in PERS, covering approximately 925 employers and about 95 percent of all public employees in Oregon. PERS has approximately 347,000 members, including 168,000 active, 43,000 inactive, and 136,000 retired employees. Approximately 32 percent of members are currently eligible to retire by age or service. PERS is a hybrid pension plan that includes a defined benefit and a defined contribution. Upon retirement, all PERS members receive both a life pension (defined benefit) and the balance of the member's individual account (defined contribution).

Under current law, the spouse beneficiary of a Tier One or Tier Two PERS member who is eligible to retire but dies before retiring is entitled to receive the money that remains in the member's pension account. Tier One and Tier Two PERS members do not have the option available to a spouse beneficiary of a similarly situated Oregon Public Service Retirement Plan member to receive a monthly pension for the life of the spouse at one-half of the monthly amount that would have been paid to the member.

Bill Summary: SB 761 would have established an alternate death benefit for a surviving spouse beneficiary of a Tier One and Tier Two PERS member who died before retirement. The spouse would have had an option to receive 50 percent of the service retirement allowance otherwise payable to the deceased member.

[Senate Bill 780](#)

Not Enacted

Selection of Independent Medical Examiners

At the request of: Senate Committee on Business and Transportation

Committees: Senate Workforce

Background and Current Law: An independent medical examination (IME) is one of several medical options that an insurer can use to evaluate a workers' compensation claim. In most cases, an IME is conducted after the insurer has made the initial determination about the claim. Insurers, self-insured employers, or the director of the Department of Consumer and Business Services (DCBS) can request an IME. Since 2006, DCBS has implemented a certification process and training requirements for providers that conduct IMEs. While DCBS maintains a list of qualified providers, the insurer has the discretion to select the provider. The insurer pays for the exam, including reimbursement for travel-related expenses.

In 2015, two bills addressed concerns about the neutrality of IME providers and the independence of IME examinations. Neither bill moved forward. The Workers' Compensation Management-Labor Advisory Committee (MLAC) reviewed IME issues in the 2015 and 2016 interim and recommended several improvements to the process, although no statutory change.

Bill Summary: Senate Bill 780 would have required the director of DCBS to select an IME provider randomly from a list of qualified physicians that the director maintained. The measure also authorized the director to adopt rules to implement the process.

[Senate Bill 791](#)

Not Enacted

Public Employment of Retired PERS Members

At the request of: Senate Committee on Workforce

Committees: Senate Workforce

Background and Current Law: Under current law, a retired member of the Public Employees Retirement System (PERS) may resume public employment after retirement for a limited number of hours annually without impacting the member's retirement benefit. Generally, retirement benefits of a Tier One or Tier Two retired member cease if the member works over 1,040 hours for one or more participating public employers in a calendar year. However, there are more than a dozen exceptions to those restrictions. For a retired member under the Oregon Public Service Retirement Plan (OPSRP), retirement benefits cease if the member works more than 600 hours in a calendar year.

Bill Summary: Senate Bill 791 would have eliminated hour restrictions for all retired PERS members and added a six-month waiting period before a public employer may reemploy any retired member.

PERS Police and Fire Classification for Oregon State Hospital Employees

At the request of: Senate Committee on Workforce

Committees: Senate Workforce

Background and Current Law: Public Employees Retirement System (PERS) plans are divided into two classifications: “General Service” and “Police and Fire” (P&F). PERS statutes allow employees classified as P&F to retire at an earlier age and calculate their retirement benefits using a higher benefit factor. For both General Service and P&F, the level of benefits differs depending on the hire date.

Qualified positions for the P&F classification include certain Department of Correction employees, Oregon State Police officers, local government police officers, parole and probation officers, the state and deputy state fire marshal, and persons employed by cities, counties, or districts whose duties involve firefighting.

Bill Summary: Senate Bill 811 would have expanded the positions that qualify for the P&F classification, phasing in categories of Oregon State Hospital employees beginning in 2017, 2019, and 2021. The new P&F level of benefits would have applied to service performed on or after the effective date of the measure.

Predictable Schedules

Chief Sponsors: Sens. Dembrow, Taylor; Reps. Keny-Guyer, Bynum, Holvey, Lininger, Nosse, Parrish

Committees: Senate Workforce, Senate Rules, House Rules

Background and Current Law: During the 2015 legislative session, the Oregon Legislative Assembly's House Committee on Business and Labor heard measures related to predictable work scheduling. Although no measure passed out of committee, a work group was formed, holding meetings throughout the 2016 interim to discuss predictable scheduling.

Bill Summary: Senate Bill 828 requires retail, food service and hospitality employers, who have 500 or more employees worldwide, to provide good faith estimates of employees' work schedules, seven-days advanced written notice of work schedules, predictability pay when schedules change, and extra compensation for hours worked when fewer than 10 hours separates shifts. The measure provides numerous exceptions to requirements for predictability pay. In addition, the measure allows employers to maintain a standby list that includes employees who have agreed to work additional hours, provides criteria for employer use of the standby list, and prescribes penalties for violations of standby list requirements. The measure prohibits employers from interfering with or retaliating against employees for exercising rights in this measure, and provides a private right of action and administrative remedies for violations. The measure repeals the sunset of preemption of local government regulation of work schedules.

Oregon Laws 2017: Chapter 691

PERS Reforms

Chief Sponsors: Sen. Knopp

Committees: Senate Workforce

Background and Current Law: The Public Employees Retirement System (PERS) is a hybrid pension plan that includes a defined benefit plan and a defined contribution plan. Upon retirement, all PERS members receive both a life pension (defined benefit) and the balance of their individual account (defined contribution). Since 2003, employees do not contribute to the pension plan but instead contribute six percent of salary to the Individual Account Program (IAP). Earnings and losses are credited annually to IAP accounts until the member removes the funds. At retirement, a member may receive the IAP as a lump-sum payment or in equal installments over a specified number of years.

Bill Summary: Senate Bill 913 would have required the PERS Board to adopt actuarial equivalency factor tables with greater frequency, established new standards to set the assumed interest rate for calculating member benefits, increased the minimum retirement ages for certain PERS members, redirected employee contributions from the IAP account into newly created individual member contribution accounts used to fund pension accounts, calculated a member's final average salary over five rather than three years, and excluded certain elected officials from PERS membership.

[Senate Bill 999](#)**Not Enacted****Limits on Post-Termination Employer Liability for Wage and Hour Violations****Request of:** Senate Committee on Veterans and Emergency Preparedness**Committees:** Senate Workforce

Background and Current Law: If an employee is fired or employment is terminated by mutual agreement, an employer must pay all earned wages due no later than the end of the first business day after the employee's separation. An employee who resigns with 48-hour notice must be paid on the last working day, but if less notice is provided, the employer has five days (excluding weekends and holidays) or the next payday, whichever comes first, to provide a final paycheck. Employees alleging a violation can make a complaint with the Bureau of Labor and Industries or, for certain violations, file a claim in court.

Bill Summary: Senate Bill 999 would have prohibited the filing of simultaneous or consecutive claims against an employer during employment or upon separation that alleged substantially similar violations of certain wage and hour laws if an employer failed to remedy the alleged violations prior to the employee's separation. The measure also limited an employer's liability for penalties for certain wage and hour violations.

[Senate Bill 1040](#)**Effective Date: June 14, 2017****State Policy to Allow Union Security Agreements****Chief Sponsors:** Sens. Burdick, Roblan, Manning, Jr., Taylor; Reps. Williamson, Lively, Rayfield**Committees:** Senate Workforce, House Business and Labor

Background and Current Law: The National Labor Relations Act (NLRA) allows employers and unions to enter into union security agreements requiring all employees in a bargaining unit to become union members and pay union dues. Employees who object to full union membership may continue as "core" members and pay only that share of dues used directly for representation.

The federal Taft-Hartley Act authorizes states to ban union security agreements. States that have adopted this policy are referred to as "right-to-work" states.

Current Oregon law generally does not preclude an employer from making an agreement with a labor organization to require membership in a union as a condition of employment. In *UAW v. Hardin County*, a recent decision by the Sixth Circuit Court of Appeals, the court recognized the right of local governments to enact ordinances banning union security agreements if the state legislature has given them sufficient home-rule authority.

Bill Summary: Senate Bill 1040 establishes that private-sector labor organizations and employers may enter union security agreements requiring membership in labor organizations as a condition of employment to the full extent allowed by federal law.

Oregon Laws 2017: Chapter 369

Pay Equity

Chief Sponsors: Reps. Lininger, Bynum, Lively, Hack; Sens. Dembrow, Ferrioli, Knopp, Taylor

Committees: House Business and Labor, Senate Workforce

Background and Current Law: Under existing wage and hour statutes, an employer is prohibited from paying an employee at a lower wage rate than that paid to employees of the opposite sex for work of comparable character when the work requires comparable skills unless there is a nondiscriminatory merit or seniority system in place or the difference is based in good faith on factors other than sex. An employee who was paid in violation of the statute has a private right of action to recover unpaid wages for the prior one-year period and an equal amount in damages. Reasonable attorney's fees may be awarded to the prevailing plaintiff.

In addition, it is an unlawful employment practice for an employer to discriminate based on race, color, religion, sex, sexual orientation, national origin, marital status, or age in wages or in terms, conditions, or privileges of employment. An employee or applicant has a private right of action for recovery of back pay for the prior two-year period as well as compensatory and punitive damages and either party may request a jury trial. The prevailing party may be awarded costs and reasonable attorney's fees.

Bill Summary: House Bill 2005 extends pay equity provisions to people in the following protected classes: race, color, religion, sex, sexual orientation, national origin, marital status, disability, age, and veteran status. The measure prohibits an employer from using salary history to screen applicants or to determine compensation, or from acquiring the salary history of an applicant or employee from a current or former employer. The measure does not prohibit an applicant from disclosing salary history when negotiating compensation. The measure expands administrative and judicial remedies for pay equity violations and retaliation for wage inquiry or wage claim to include compensatory and punitive damages and jury trial. Employers may file a pre-trial motion to preclude compensatory and punitive damages if the employer can demonstrate that they have completed a pay equity analysis within the three years preceding the claim, eliminated pay differentials for the plaintiff, and made reasonable substantial progress toward eliminating the wage differentials for the protected class asserted by the plaintiff. The provision allowing a civil action against an employer alleged to have sought the salary history of an applicant becomes operative January 1, 2024. All other provisions become operative January 1, 2019.

Oregon Laws 2017: Chapter 197

[House Bill 2012](#)

Effective Date: August 15, 2017

Eastern Oregon Border Economic Development Region

Chief Sponsors: Reps. Kotek, Bentz

Committees: House Economic Development and Trade, Joint Ways and Means

Background and Current Law: The federal Bureau of Labor Statistics reports that areas of eastern Oregon have had consistently higher rates of unemployment and lower household incomes compared to the rest of the state over the past 10 years. In the most recent winter, these areas had approximately \$100 million in snow damage to storage sheds and processing facilities.

Bill Summary: House Bill 2012 creates the Eastern Oregon Border Economic Development Region in Malheur County, along with the Eastern Oregon Border Development Board to oversee the region. The bill provides \$5 million from the General Fund to supply grants and loans to support economic and workforce development. The measure allows the board to ask for waivers or exemptions from state laws, rules, and regulations not related to state taxes or employment law.

Oregon Laws 2017: Chapter 197

[House Bill 2105](#)

Not Enacted

Creation of Budget Oversight Commission for Department of Corrections

Chief Sponsors: Rep. Gorsek

Committees: House Judiciary, Joint Ways and Means

Background and Current Law: Department of Corrections (DOC) employees can be required to work overtime, due to the nature of the work: corrections facilities are 24/7 operations where order and supervision are maintained over populations that greatly outnumber staff. The American Federation of State, County and Municipal Employees (AFSCME) estimates that DOC personnel across 13 institutions in Oregon worked in excess of 300,000 hours of overtime in 2016, and that 126,302 (or 40 percent) of those hours were mandatory. In addition to obvious budget implications, required overtime can impact the health and safety of employees.

Bill Summary: House Bill 2105 would have created a DOC Budget Oversight Commission to advise the Governor and DOC, and to recommend legislation concerning the management and implementation of DOC's biennial budget, including employee overtime and healthcare expenses.

Apprenticeship Utilization in State Contracts

At the request of: House Interim Committee on Business and Labor

Committees: House Business and Labor, Senate Workforce

Background and Current Law: Apprenticeships are occupational career training that combines on-the-job training experience with classroom instruction. Apprentices usually begin at half the salary of certified “journey” workers. Apprenticeship committees, made up of employee and employer representatives, operate apprenticeship programs. Apprenticeships are typically two to five years long, depending on industry requirements, and are highly competitive, with waiting periods of up to two years. The Apprenticeship and Training Division of the Bureau of Labor and Industries registers apprenticeship programs, works with industry to establish apprenticeship programs, and monitors apprenticeship committee compliance.

Bill Summary: House Bill 2162 requires a contractor, who is awarded a state public improvement contract worth at least \$5 million, and a subcontractor, with a subcontract worth over \$1 million or 25 percent of the contract price, to employ apprentices to perform 10 percent of the work hours that workers in apprenticeable occupations perform on that contract. In 2022, the percentage increases to 12 percent and the contract size threshold drops to \$3 million. Contracts with the Oregon Department of Transportation are exempt, as are emergency procurements. The measure establishes a six-member advisory committee to monitor implementation and compliance and to advise the Legislative Assembly on subsequent changes to improve implementation.

Oregon Laws 2017: Chapter 416

[House Bill 2167](#)

Not Enacted

Workplace Bullying**At the request of:** House Interim Committee on Business and Labor**Committees:** House Business and Labor

Background and Current Law: Oregon's workplace safety and health law, known as the Oregon Safe Employment Act, was passed in 1973, three years after the federal Occupational Safety and Health Act was signed into law. The Oregon Occupational Safety and Health Administration division, within the Department of Consumer and Business Services, enforces the workplace safety and health laws that prohibit an employer from constructing or maintaining any place of employment that is unsafe or detrimental to health.

Bill Summary: House Bill 2167 would have amended the definition of an unsafe place to include an abusive work environment that an employer knew or should have known existed and failed to take prompt and appropriate action to correct. The measure provided a private right of action to employees claiming their employer created or maintained an abusive work environment.

[House Bill 2337](#)

Effective Date: January 1, 2018

Workers' Compensation Benefits for Permanent Total Disability**At the request of:** Governor Brown for the Department of Consumer and Business Services**Committees:** House Business and Labor, Senate Workforce

Background and Current Law: In the workers' compensation system, a permanent total disability is the loss of use or function of any portion of the body that permanently prevents the worker from regularly performing work in a suitable occupation. The Department of Consumer and Business Services reports that about 600 people are currently receiving benefits for a permanent total disability, with about 10 new awards made each year. The benefit is two-thirds of the worker's wage, but capped at Oregon's average weekly wage (currently about \$974). The minimum benefit is 90 percent of the worker's weekly wage or \$50, whichever is lower.

Bill Summary: House Bill 2337 increases the permanent total disability maximum benefit to two-thirds of the worker's wage, capped at 133 percent of Oregon's average weekly wage (currently about \$1,295). The measure also increases the minimum benefit to one-third of Oregon's average weekly wage (currently about \$321). The measure applies to injuries occurring on or after the effective date of the measure; however, benefit levels for individuals injured prior will be adjusted subject to the Department of Consumer and Business Services' Retroactive Program.

Oregon Laws 2017: Chapter 70

[House Bill 2338](#)

Effective Date: January 1, 2018

Workers' Compensation Benefits for Deceased Worker's Beneficiaries**At the request of:** Governor Brown for the Department of Consumer and Business Services**Committees:** House Business and Labor, Senate Workforce

Background and Current Law: When a worker dies from an on-the-job injury or occupational disease, or while permanently and totally disabled, the surviving spouse, children, and other dependents are entitled to receive benefits. Approximately 310 surviving children and dependents currently receive benefits due to the death of a worker. The benefit structure is complex and difficult to administer, and it can result in different benefit levels for children of the same family, depending on factors such as school enrollment and dependence on surviving spouse.

Bill Summary: House Bill 2338 simplifies the criteria for death benefits, making the system easier to understand and administer, and producing predictable benefit levels for families. The measure allows a child or dependent to receive benefits until the age of 19, and specifies that the benefit level is the same regardless of circumstances. Benefits are paid for up to 48 months when the child is in a postsecondary education or training program through age 26. Benefits of children and dependents received prior to the effective date will be adjusted subject to the Department of Consumer and Business Services' Retroactive Program.

Oregon Laws 2017: Chapter 71[House Bill 2856-A](#)

Not Enacted

Workplace Rights**At the request of:** House Committee on Business and Labor**Committees:** House Business and Labor, Joint Ways and Means

Background and Current Law: The Bureau of Labor and Industries (BOLI) is responsible for protecting the rights of workers and citizens to equal, nondiscriminatory treatment through the enforcement of anti-discrimination laws that apply to workplaces, housing, and public accommodations. Specifically, BOLI provides staff to help employers better understand employment laws through seminars, handbooks, information posted to its website, and personal responses to employer inquiries. Employees who claim they suffered discrimination or retaliation for filing a wage claim, using protected leave, or participating in a related proceeding can take their employer to court or file a complaint with BOLI.

Bill Summary: House Bill 2856-A would have appropriated money from the Wage Security Fund to establish a grant program to support education and technical assistance to help employees understand their rights in the workplace. The measure allowed for a jury trial and for the court to award compensatory and punitive damages in cases in which an employer retaliated against an employee for filing a claim regarding wages, violations regarding veterans' preference in civil service hiring, and violations of protected leave laws.

[House Bill 3008](#)

Effective Date: January 1, 2018

False Employment Records

Chief Sponsors: Rep. Malstrom

Committees: House Business and Labor, Senate Workforce

Background and Current Law: Wage enforcement is a problem that directly affects employees who are not compensated and indirectly affects employers who abide by all wage and hour laws, putting them at a competitive disadvantage with those who do not. Existing remedies for wage enforcement often depend on the employee being able to provide an accurate timesheet of hours worked as evidence.

Bill Summary: House Bill 3008 provides a private right of action for an employee who is compelled, coerced, or otherwise induced by their employer to create, file, or sign wage and hour documents that the employer knows are false.

Oregon Laws 2017: Chapter 211

[House Bill 3060](#)

Effective Date: October 6, 2017

Preventing Discrimination by State Contractors

Chief Sponsors: Reps. Lininger, Nosse, Sanchez, Alonso Leon, Power

Committees: House Business and Labor, Senate Workforce

Background and Current Law: Employment laws prohibit discrimination and harassment against workers based on their race, gender, ethnicity, religion, sexual orientation, gender identity, or disability. However, Oregon's contracting and procurement statutes do not establish express requirements for workplace policies on sexual harassment, sexual assault, or discrimination.

Bill Summary: House Bill 3060 prohibits state public contracting agencies from entering a contract worth \$150,000 or more unless the contractor certifies in writing that it has a policy and practice to prevent sexual harassment, sexual assault, and discrimination against members of protected classes. An exception is made for the following types of contracts: sole-source procurements, emergency procurements, and special procurements.

Oregon Laws 2017: Chapter 212

[House Bill 3170](#)

Effective Date: January 1, 2018

Collective Bargaining Rights of Public University Faculty

At the request of: House Committee on Business and Labor

Committees: House Business and Labor, Senate Education, Senate Rules

Background and Current Law: The Public Employee Collective Bargaining Act (PECBA) codifies the laws governing employment relations between public employers and employees. Employees not covered under the PECBA who are prohibited from organizing include elected officials, persons appointed to serve on boards or commissions, certain incarcerated persons, or persons who are confidential employees, supervisory employees, or managerial employees.

Bill Summary: House Bill 3170 allows faculty members with an academic focus, who work for a public university or the Oregon Health and Science University, to organize and collectively bargain with their employer.

Oregon Laws 2017: Chapter 553

[House Bill 3279](#)

Effective Date: January 1, 2018

Janitorial and Other Property Services Contractors

Chief Sponsors: Reps. Lininger, Sanchez; Sen. Manning, Jr.

Committees: House Judiciary, Joint Ways and Means

Background and Current Law: Labor contractors generally recruit and supply or employ workers to perform labor for another business. Farm labor contractors and construction labor contractors may not operate without a license issued by Oregon's Bureau of Labor and Industries (BOLI). To obtain a license, an applicant must pass an examination designed to test their ability, knowledge and proficiency to manage the business of a labor contractor; proof of insurance and bonding are also required. Janitorial services are often provided by labor contractors.

Bill Summary: House Bill 3279 adds a new category of labor contractors required to be licensed by BOLI: property services contractors, which include those who provide workers to perform janitorial services. The measure exempts the property services contractor from the bond requirement if they show proof of general liability insurance and have not violated employment laws in the preceding two years. Property services contractors are also required to provide professional training to managers, supervisors and employees to prevent sexual assault, sexual harassment, and discrimination in the workplace and to educate about whistleblower protections. The training is to be provided through or approved by BOLI. The measure requires the licensing examination taken by all labor contractors to test knowledge of applicant's responsibility in preventing sexual assault and sexual harassment.

Oregon Laws 2017: Chapter 676

Overtime Hours in Manufacturing and Food Processing

At the request of: House Committee on Rules

Committees: House Rules, Senate Rules

Background and Current Law: Oregon and federal law requires most employers to pay overtime to eligible employees at one and one-half times the employee's regular pay rate for hours worked exceeding 40 per workweek. Oregon law also provides for payment of daily overtime at government agencies, hospitals, canneries, and manufacturing establishments. Specifically, manufacturing and food processing employees are due overtime for any work performed after 10 hours in any one day, and manufacturing employees can work no more than three hours of overtime in a day.

Prior to December 2016, the Bureau of Labor and Industries (BOLI) advised employers to calculate overtime wages for hours worked on both a daily and weekly basis, and then pay the greater amount of the two. After a close review of the laws, BOLI now advises employers to pay overtime wages for hours worked over the daily maximum and to pay for hours worked over the weekly maximum.

Bill Summary: House Bill 3458 requires overtime wages for manufacturing and food processing workers to be calculated on both a daily and weekly basis, and then the greater of the two amounts must be paid. The measure caps mandatory overtime for these employees at 55 hours per workweek, but it allows employees to consent to work up to 60 hours per workweek. Employers who process perishable products can claim an undue hardship exemption, permitting their employees to work up to 84 hours per workweek for four weeks, and up to 80 hours per workweek for an additional 17 weeks. The employer must notify BOLI of the undue hardship and the employer must receive written consent from each employee before they are requested to work more than 55 hours per workweek.

The measure exempts seafood processors from the weekly cap on mandatory overtime, but they must pay overtime for hours exceeding ten per day and for hours exceeding 40 per week, which can be double overtime in some circumstances. The measure prohibits manufacturing employees from working within 10 hours of their last eight-hour shift.

House Bill 3458 allows an employee to file a complaint with BOLI or a civil action in court when overtime violations are alleged; BOLI may assess a civil penalty on employers who coerce workers to work beyond the mandatory overtime limits. Changes to the calculation of overtime wages are effective immediately, but the weekly caps and remedies become operative January 1, 2018.

Oregon Laws 2017: Chapter 685

2017 SUMMARY OF LEGISLATION



LAND USE



LAND USE MEASURES

Farm and Forest Lands

Enacted: SB 677, HB 3012

Not Enacted: HB 2023, HB 2094, HB 2937,
HB 2938, HB 3050

Land for Housing

Enacted: SB 310, HB 2316

Not Enacted: SB 1024, HB 3155-A

Local Land Use Planning

Enacted: HB 3245

Not Enacted: SB 432-A

Urban Lands

Enacted: SB 418, HB 2095

Not Enacted: HB 2094, HB 2893, HB 2894

Other

Enacted: SB 865, HB 2743, HB 2968,
HCR 8

Not Enacted: HB 2144, HB 2222, HB 2786,
HB 3211

Picture: Melrose Vineyards, Douglas County - [Gary Halvorson](#), [Oregon State Archives](#)

LAND USE

TASK FORCES AND REPORTING REQUIREMENTS

The following bills created task forces and reporting requirements. Additional information is provided in the bill summaries.

HB 2743	Directs the Land Conservation and Development Commission to report to the legislative committees related to housing and human services on the progress of a pilot program concerning land adjacent to a rural airport.	During the 2022 Regular Session of the Legislative Assembly
HB 2968	Directs the Department of Environmental Quality to study and propose recommendations to the legislative committees relating to environment and natural resources on developing a program that would provide release from state and federal liability for owners of browns field properties.	January 2, 2019

[Senate Bill 310](#)

Effective Date: October 6, 2017

Vertical Housing Development Zones

Chief Sponsors: Sens. Hass, Boquist

Committees: Senate Human Services, House Human Services and Housing

Background and Current Law: The vertical housing development program has existed in the Oregon Housing and Community Services (OHCS) department since 2005, and its primary purposes are rehabilitation of properties, community revitalization, and augmentation of available housing in certain areas. The program encourages mixed-use developments by offering partial property tax exemptions for creating housing in areas that were once zoned nonresidential and are now designated for vertical housing development. Oregon law provides that vertical housing development zones must be applied for and approved through OHCS, and OHCS must also approve individual vertical housing projects.

Bill Summary: Senate Bill 310 grants local city and county governments the authority to designate vertical housing development zones within their respective jurisdictions and removes OHCS from the designation and project certification process. The measure establishes requirements for local governments to certify vertical housing development projects within designated vertical housing development zones.

Oregon Laws 2017: Chapter 326

[Senate Bill 418](#)

Effective Date: January 1, 2018

Urban Growth Boundary Expansions

Chief Sponsors: Sen. Beyer

Committees: Senate Environment and Natural Resources, House Agriculture and Natural Resources

Background and Current Law: All Oregon cities are surrounded by an “urban growth boundary” (UGB), a line designating where a city expects to grow residentially, industrially, and commercially over a 20-year period. A UGB is adopted or expanded through a joint effort involving the city and adjoining counties in coordination with special districts, as well as citizens and other interested parties.

Bill Summary: Senate Bill 418 requires the Oregon Department of Land Conservation and Development to make coordinated decisions on sequential phases of work during certain UGB expansion processes when requested by the city.

Oregon Laws 2017: Chapter 521

[Senate Bill 432-A](#)

Not Enacted

Local Land Use Plans Exempt from Statewide Goals

Chief Sponsors: Sen. Ferrioli

Committees: Senate Environment and Natural Resources, Senate Rules, Joint Ways and Means

Background and Current Law: Oregon's statewide land use planning program was created in 1973 when the Legislative Assembly passed Senate Bill 100. The program is overseen by the seven-member Land Conservation and Development Commission (LCDC). Following the passage of Senate Bill 100, LCDC developed 19 land use planning goals, including economic development, energy, transportation, and housing. All cities and counties are required to adopt comprehensive plans to meet these goals. Under certain circumstances, jurisdictions may claim an exception to a goal.

Bill Summary: Senate Bill 432-A would have authorized "counties with no population growth" and cities within such counties, to adopt an exception to any statewide land use planning goal for creating business development in urban or rural areas, expanding existing rural or urban businesses or increasing urban or rural housing opportunities, unless the subject land is high-value farmland or the goal implements sage-grouse protections. Counties with no population growth would have been defined as those with populations less than 50,000 that did not experience growth between 2000 and 2010. The Oregon Business Development Department would have been responsible for monitoring exceptions and reporting back to the legislature by October 1, 2020.

[Senate Bill 677](#)

Effective Date: January 1, 2018

Cider Business on Farm and Forest Lands

Chief Sponsors: Sens. Olsen, Johnson, Thomsen; Rep. Post

Committees: Senate Environment and Natural Resources, House Economic Development and Trade

Background and Current Law: House Bill 3280 (2011) described the activities and events that a winery may hold when established as a permitted use on lands zoned for exclusive farm use.

Bill Summary: Senate Bill 677 establishes a cider business as a permitted use on EFU and mixed farm and forest use lands. The measure, modeled after the winery statute, specifies the types of uses allowed at such businesses and authorizes up to 18 agritourism or other commercial events at these locations each calendar year.

Oregon Laws 2017: Chapter 253

[Senate Bill 865](#)

Effective Date: January 1, 2018

Land Subdivisions and Partitions in Irrigation Districts

Chief Sponsors: Sen. Hansell

Committees: Senate Environment and Natural Resources, House Energy and Environment

Background and Current Law: A “plat” is a map of a town or a section of land that has been subdivided into lots showing the location and boundaries of individual parcels.

Bill Summary: Senate Bill 865 requires a local governing body to notify an irrigation, water control, or water improvement district of a tentative plan for a proposed plat for a subdivision or partition located in whole or in part within the boundaries, easement, or right-of-way of a district. The measure allows 15 days for a district to submit information or recommended conditions to the local governing body for consideration.

Oregon Laws 2017: Chapter 357

[Senate Bill 1024](#)

Not Enacted

Accessory Dwelling Units in Rural Residential Zones

Chief Sponsors: Sen. Monnes Anderson; Reps. Gorsek, Johnson

Committees: Senate Human Services

Background and Current Law: Accessory dwelling units are permanent structures that are ancillary to an existing single-family dwelling on the same property. Accessory dwellings are designed as independent living quarters from the primary single-family dwelling, including permanent cooking, eating, sleeping, and sanitary facilities.

Bill Summary: Senate Bill 1024 would have required counties to allow the placement of one accessory dwelling unit, in addition to one existing single-family dwelling, on parcels in areas zoned rural residential. The bill required accessory dwelling units to comply with state and local building standards for residential units, and preempted counties from adopting or enforcing local laws that restricted accessory dwelling units in rural residential zones.

[House Bill 2023](#)

Not Enacted

Definition of High-Value Farmland

Chief Sponsors: Rep. G. Smith

Committees: House Agriculture and Natural Resources, House Rules

Background and Current Law: Under current Oregon law, high-value farmland is defined as land in an exclusive farm use zone or a mixed farm and forest zone, west of U.S. Highway 101 that is composed predominantly of specified soils, and within specified regions.

Bill Summary: House Bill 2023 would have required the Columbia Valley region viticultural area to have a valid water right certificate to qualify as high-value farmland.

[House Bill 2094](#)

Not Enacted

Designation of Urban and Rural Land Reserves

At the request of: House Interim Committee on Rural Communities, Land Use and Water

Committees: House Agriculture and Natural Resources

Background and Current Law: Senate Bill 1011 (2007) authorized Metro regional government and metro-area counties to designate “urban and rural reserves.” The reserves identify what lands might become urbanized in the future, depending upon need, and what lands will remain rural. Urban reserves are intended to facilitate long-term planning for urbanization in the Portland metropolitan area and to provide greater certainty to the agricultural and forest industries, to private landowners, and to public and private service providers, about the locations of future expansion of the Metro Urban Growth Boundary. Rural reserves are intended to provide long-term protection for large blocks of agricultural land and forest land and for natural landscape features that limit urban development or define natural boundaries of urbanization.

Bill Summary: House Bill 2094 would have required designation of land as an urban or rural reserve if a written agreement was proposed and the land was found to meet a set of criteria.

[House Bill 2095](#)

Effective Date: January 1, 2018

Metro Urban Growth Boundary Expansion Review

At the request of: House Interim Committee on Rural Communities, Land Use and Water

Committees: House Agriculture and Natural Resources, Senate Business and Transportation

Background and Current Law: Every six years, a metropolitan service district is required to complete an inventory of the supply of buildable lands within its urban growth boundary, determine the housing capacity of those lands, and conduct an analysis of housing needs for the next 20 years. Metro, which serves as regional government for Clackamas, Multnomah, and Washington counties, is the only metropolitan service district in the state of Oregon.

Bill Summary: House Bill 2095 allows a metropolitan service district to revise its demonstration of sufficient buildable lands on a single occasion within the six-year cycle under certain circumstances and to expand the urban growth boundary with specified limitations if the metropolitan service district concludes that expansion is warranted.

Oregon Laws 2017: Chapter 199

[House Bill 2144](#)

Not Enacted

Nonconforming Land Uses

Chief Sponsors: Rep. Johnson

Committees: House Agriculture and Natural Resources

Background and Current Law: Under Oregon law, the lawful use of any building, structure or land may continue regardless of changes to zoning ordinances or regulations, subject to a set of conditions. The conditions are: the use must have been lawful at the time the use began, all required permits and approvals were received at the time the use commenced, and the use has continued uninterrupted.

Bill Summary: House Bill 2144 would have deemed a use as lawful at the time it began if the owner could prove that the use would have qualified for all required permits and approvals though they were not obtained at the time the use began.

[House Bill 2222](#)

Not Enacted

Regional Land Use Planning Process

Chief Sponsors: Reps. Whisnant, Buehler; Sen. Knopp

Committees: House Agriculture and Natural Resources

Background and Current Law: Oregon's statewide land use planning program was created in 1973 when the Legislative Assembly passed the Oregon Land Use Act (Senate Bill 100). The program is overseen by the seven-member Land Conservation and Development Commission (LCDC), which receives administrative support from the Department of Land Conservation and Development. Following the passage of Senate Bill 100, LCDC developed 19 land use planning goals, including economic development, energy, transportation, and housing. All cities and counties are required to adopt comprehensive plans that meet these goals.

Bill Summary: House Bill 2222 would have directed the Land Conservation and Development Commission to conduct a study to determine the necessity of converting the current statewide land use planning process to a regional statewide land use planning process and report its findings to the Legislative Assembly no later than January 15, 2018.

[House Bill 2316](#)

Effective Date: January 1, 2018

Estimation of Housing Needs for Small Cities

At the request of: Governor Brown for Department of Land Conservation and Development

Committees: House Human Services and Housing, Senate Environment and Natural Resources

Background and Current Law: Oregon's statewide land use planning program was created in 1973 when the Legislative Assembly passed the Oregon Land Use Act (Senate Bill 100). The program is overseen by the seven-member Land Conservation and Development Commission (LCDC), which receives administrative support from the Department of Land Conservation and Development (DLCD). Following the passage of Senate Bill 100, LCDC developed 19 land use planning goals, including economic development, energy, transportation, and housing. All cities and counties are required to adopt comprehensive plans that meet these goals. Under certain circumstances, jurisdictions may claim an exception to a goal. Currently, LCDC must provide acknowledgment of a jurisdiction's comprehensive plan within 90 days.

Bill Summary: House Bill 2316 requires that at periodic review or any other legislative review of a comprehensive plan applying the statewide planning goal for housing, a city with a population of less than 25,000 must take steps to determine the 20-year estimated housing needs, inventory the buildable land supply within its urban growth boundary to meet those needs, and adopt measures to accommodate those housing needs.

Oregon Laws 2017: Chapter 102

[House Bill 2743](#)

Effective Date: January 1, 2018

Economic Development Around Madras Airport

Chief Sponsors: Rep. Huffman

Committees: House Economic Development and Trade, Joint Ways and Means

Background and Current Law: Deschutes County received two Technical Assistance Grants from the Oregon Department of Land Conservation and Development (DLCD) in 2010 to evaluate Central Oregon's opportunities, competitiveness, and ability to recruit new and locally grown firms requiring large-scale development. Deschutes County used the grant funding to develop a Regional Economic Opportunity Analysis (REOA). The REOA identified a need for industrial lands of 100-200 acres in size in Deschutes, Jefferson, and Crook Counties. The DLCD subsequently adopted administrative rules to allow cities in Deschutes, Jefferson, and Crook Counties a specific path to include three sites of at least 50 acres—two sites between 100 and 200 acres and one site over 100 acres—within their urban growth boundaries (UGBs). The City of Madras currently owns roughly 1,200 acres of land adjacent to its airport outside its UGB, with an additional 920 acres of airport property within the UGB. The City is in the process of adding one 195-acre industrial lot within its UGB near the Madras airport after potential businesses expressed interest in utilizing the site.

Bill Summary: House Bill 2743 directs DLCD to establish a pilot program to implement a master plan for economic development on land adjacent to a rural airport and report back to the legislature in 2022.

Oregon Laws 2017: Chapter 709

[House Bill 2786](#)

Not Enacted

State Wetlands Inventory

At the request of: House Committee on Agriculture and Natural Resources

Committees: House Agriculture and Natural Resources

Background and Current Law: The Oregon Department of State Lands (DSL) is responsible for developing and maintaining the Statewide Wetlands Inventory, which provides an estimate of wetland locations and types throughout the state. The State Wetlands Inventory is used by local governments to catalog resources for protection under Oregon's land use planning goals. City and county planners use wetlands inventories to determine when to send a wetland land use notice to DSL. The response to this notice provides planners and applicants with information about the likelihood that wetlands and waters are in the project area, and if a removal-fill permit may be required for the proposed project.

Bill Summary: House Bill 2786 would have prohibited the Oregon Department of State Lands from applying removal-fill laws to parcels that were not designated as being or including wetlands in the State Wetlands Inventory.

[House Bill 2893](#)

Not Enacted

Prioritization of Lands for Inclusion in Urban Growth Boundary**Chief Sponsors:** Reps. Buehler, Whisnant; Sen. Knopp**Committees:** House Agriculture and Natural Resources, House Rules

Background and Current Law: All of Oregon's cities are surrounded by an urban growth boundary (UGB), a border designating where a city expects to grow residentially, industrially, and commercially over a 20-year period. Areas inside UGBs are planned for development, while zoning restrictions in areas beyond UGBs protect farm and forest resource land and prohibit "urban levels" of development in other areas. A UGB is adopted or expanded in compliance with statewide planning goals and state laws through a joint effort between each city and adjoining counties in coordination with special districts, and with participation of citizens and other interested parties. Cities and counties may create intergovernmental agreements to designate urban and rural reserves by identifying lands that might be urbanized in the future and lands that are likely to remain less developed.

Bill Summary: House Bill 2893 would have authorized cities to evaluate agricultural land consisting of predominantly class VI, VII, or VIII soils for potential inclusion within urban reserves and the urban growth boundary. The bill would have authorized cities to evaluate other lands for inclusion as urban reserves if lands that met certain criteria, including soil type, were not sufficient to meet projected housing needs.

[House Bill 2894](#)

Not Enacted

Buildable Land Supply for Cities**Chief Sponsors:** Reps. Buehler, Whisnant; Sen. Knopp**Committees:** House Agriculture and Natural Resources

Background and Current Law: All of Oregon's cities are surrounded by an urban growth boundary (UGB), a border designating where a city expects to grow residentially, industrially, and commercially over a 20-year period. Local governments are required to demonstrate that their comprehensive plans provide sufficient buildable lands within the UGB to accommodate estimated housing needs for the next 20 years.

Bill Summary: House Bill 2894 would have authorized cities to consider a variety of factors when determining the development or redevelopment potential of lands within the city's urban growth boundary or with a study area outside the urban growth boundary for the purpose of determining the amount of buildable lands required to accommodate housing needs for the next 20 years. The measure would have allowed cities to include lands that were unlikely to be developed or redeveloped as areas of land with reduced development potential or to exclude such lands from the city's analysis of buildable lands to meet housing needs.

[House Bill 2937](#)

Not Enacted

Accessory Dwellings on Exclusive Farm Use and Rural Residential Land

At the request of: House Committee on Agriculture and Natural Resources

Committees: House Human Services and Housing, House Agriculture and Natural Resources

Background and Current Law: Accessory dwelling units are defined in an Oregon Department of Environmental Quality report as smaller, ancillary dwelling units located on the same property as a primary residence. These units are self-contained homes and can be attached or detached from the primary residence.

Bill Summary: House Bill 2937 would have allowed an accessory dwelling unit to exist on land zoned for either exclusive farm use or rural residential use if it was constructed within 100 feet of an existing single-family home and complied with county residential unit standards and ordinances.

[House Bill 2938](#)

Not Enacted

Recreational Vehicles on Exclusive Farm Use and Rural Residential Land

At the request of: House Committee on Agriculture and Natural Resources

Committees: House Human Services and Housing, House Agriculture and Natural Resources

Background and Current Law: Oregon law allows for the placement or occupancy of a recreational vehicle if the vehicle is occupied as a residential dwelling and connected to water, electrical, and sewage systems and located in a manufactured dwelling park, mobile home park, or recreational vehicle park.

Bill Summary: House Bill 2938 would have allowed a recreational vehicle to be used for residential purposes on land zoned for either exclusive farm use or rural residential use if it was placed within 100 feet of an existing single-family dwelling and had functioning sleeping, cooking, and plumbing facilities.

Brownfield Redevelopment

Chief Sponsors: Rep. Buehler

Committees: House Committee on Economic Development and Trade, Senate Committee on Environment and Natural Resources

Background and Current Law: A generally accepted definition of a brownfield is “real property where expansion or redevelopment is complicated by actual or perceived environmental contamination.” Contaminated properties may pose health risks, and even the perception of contamination may reduce the property’s value. A current search of the Oregon Department of Environmental Quality (DEQ) Environmental Cleanup Site Information database indicates there are 432 known current or former brownfields in Oregon, with thousands of additional sites catalogued in the DEQ Leaking Underground Storage Tank database. An October 2014 report from ECONorthwest estimated that there are roughly 13,500 sites in Oregon with known or suspected contamination.

Brownfield cleanup projects typically involve multiple steps to determine what, if any, cleanup is required. The initial steps can include an environmental site assessment and remedial investigations to determine if a hazardous release occurred and if so, to what extent. The next step is generally to obtain a technical feasibility study to determine how to clean up the property using several balancing factors like effectiveness, long-term reliability, implementation risk and reasonableness of cost. Finally, once the proposed cleanup method is selected, the cleanup begins. This can include soil or groundwater removal or treatment, engineering options like capping the site, or institutional controls like land use or deed restrictions.

Bill Summary: House Bill 2968 requires DEQ to propose legislation to create a pilot program that relieves property owners of state and federal liability for contamination if they voluntarily undertake remediation or removal of hazardous wastes.

Oregon Laws 2017: Chapter 168

Conversion of Historic Home on Rural Residential Land

Chief Sponsors: Reps. Lininger, Meek, Brock Smith

Committees: House Human Services and Housing, House Agriculture and Natural Resources, Senate Environment and Natural Resources

Background and Current Law: Current Oregon county planning, zoning, and housing laws allow the construction of an accessory dwelling unit (ADU) on land zoned for either exclusive farm use or rural residential use only if the ADU would be used for farmworkers. Further, to qualify for a replacement dwelling under current law, the existing dwelling must have the following features: intact exterior walls and roof; indoor plumbing including a kitchen sink, toilet, and bathing facilities; interior wiring for lights; a heating system; and the dwelling to be replaced must be removed, demolished, or converted within three months of completion of the replacement dwelling. A person may also request a deferred replacement permit to allow for the construction of the replacement dwelling at any time, provided that the existing structure is removed or demolished within three months after the permit is issued, otherwise the permit is void.

Bill Summary: House Bill 3012 authorizes counties to allow a property owner of property in an area zoned for rural residential use to construct a new single-family dwelling on the lot or parcel, subject to certain conditions, and convert a historic home on the same lot or parcel to an ADU. The measure prohibits the subdivision of the lot or parcel, limits modifications on the ADU, prohibits rebuilding of the structure in the case of fire and does not allow the construction of an additional ADU on the same lot or parcel. House Bill 3012 also authorizes counties to require that the new dwelling be served by the same water supply source as the ADU and allows counties to impose additional conditions for approval.

Oregon Laws 2017: Chapter 400

Solar Siting on High-Value Farmland

At the request of: House Committee on Agriculture and Natural Resources

Committees: House Agriculture and Natural Resources

Background and Current Law: Oregon's Statewide Planning Goals and Guidelines indicate the state's preference for restricting urbanization and preserving farmland through the implementation of strict zoning rules. Under current Oregon law, lands zoned for Exclusive Farm Use have a set of activities and structures allowed on their premises. Common non-farm uses include "commercial activities in conjunction with farm use," "home occupations," and "utility facilities necessary for public service." High-value farmland refers to lands composed predominantly of soils that are particularly well suited for growing agricultural crops.

Bill Summary: House Bill 3050 would have expanded the set of activities and structures allowed on exclusive farm use lands to include solar power facilities generating electricity for public use. The bill would have authorized siting of such facilities on high-value farmland if the appropriate governing body adopted an exception to a statewide planning goal related to agricultural lands or if the governing body determined no alternative site was available.

[House Bill 3155-A](#)

Not Enacted

Task Force on Surplus Public Lands for Housing

Chief Sponsors: Rep. Brock Smith; Sen. Roblan

Committees: House Human Services and Housing, Joint Ways and Means

Background and Current Law: Under current Oregon law, the state or a county governing body may, whenever it deems it to be in the best interest of the county, provide for the sale of county lands or any real estate owned by the county and not in use for county purposes. Such lands, known as surplus lands, are held by both state agencies and counties.

Bill Summary: House Bill 3155-A would have created the seven-member Task Force on Use of Surplus Public Lands for Housing to study the sale and use of surplus public lands to address housing shortages. The measure permitted the task force to consult with experts, hear testimony from affected persons, and collect data, and would have required the task force to submit a report by December 31, 2017.

[House Bill 3211](#)

Not Enacted

Barriers to Industrial Development Study

Chief Sponsors: Reps. Sprenger, Clem

Committees: House Economic Development and Trade, Joint Ways and Means

Background and Current Law: After reviewing the permit processes at state agencies, the 2011 Legislative Assembly created the Economic Recovery Review Council (ERRC) in Business Oregon and two programs that streamline the process to ready industrial lands for business. The Industrial Development Projects of State Significance program focuses on up to 10 projects per biennium that may use an expedited permit process when job creation, wage standards, and other criteria are met. The second program designates Regionally Significant Industrial Areas (RSIAs) planned and zoned for industrial use that have the potential for long-term job creation and provide some protection for using the land for business and employment purposes.

Bill Summary: House Bill 3211 would have directed Business Oregon to study barriers to industrial land development and report to the appropriate legislative committees by September 1, 2018.

[House Bill 3245](#)

Effective Date: January 1, 2018

Authorization of Planning Commissions to Amend Comprehensive Plan

Chief Sponsors: Reps. Clem, Hack; Sen. Winters

Committees: House Agriculture and Natural Resources, Senate Environment and Natural Resources

Background and Current Law: Oregon's rapid population growth and development during the 1960s and 1970s prompted concern about the effect of population growth on the environment, natural resources, and the livability of communities. These concerns led to the creation of the Land Conservation and Development Commission (LCDC), charged with adopting state land use goals, and the Department of Land Conservation and Development (DLCD), charged with assisting local governments in the implementation of those goals. Senate Bill 100 (1973) also directed local governments to adopt and implement comprehensive plans and revise them periodically in accordance with statewide goals and the needs and desires of the public. Comprehensive plans were initially approved by LCDC in a process referred to as "acknowledgment of compliance."

Bill Summary: House Bill 3245 permits cities to authorize planning commissions or hearing officers to make decisions to amend the city comprehensive plan map, subject to certain restrictions. The measure allows for an aggrieved party to appeal such decisions to the city governing body.

Oregon Laws 2017: Chapter 432

[House Concurrent Resolution 8](#)

Filed with Secretary of State

50th Anniversary of Oregon's Beach Bill

Chief Sponsors: Reps. Gomberg, Brock Smith; Sen. Roblan

Committees: House Veterans and Emergency Preparedness

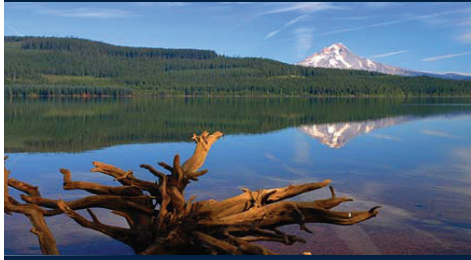
Background and Current Law: The Oregon Beach Bill (House Bill 1601) was a landmark piece of legislation passed with bipartisan support in 1967. The Beach Bill declared that all wet sand within sixteen vertical feet of the low tide belongs to the citizens of Oregon. The measure also recognized easements of all beach areas up to the line of vegetation, regardless of the underlying property rights to ensure the public has "free and uninterrupted use of beaches." Property owners are required to seek state permits for building and other uses of the shore. The legislation inspired other significant legislation, such as Oregon's Bottle Bill.

Bill Summary: House Concurrent Resolution 8 celebrates the 50th anniversary of Oregon's Beach Bill.

2017 SUMMARY OF LEGISLATION



MARIJUANA REGULATION



MARIJUANA REGULATION MEASURES

Criminal Justice and Reclassification

Enacted: SB 302, SB 303

Not Enacted: HB 2556

General Marijuana Policy

Enacted: SB 319, SB 1015

Not Enacted: SB 307

Regulation and Oversight

Enacted: SB 56, SB 863, SB 1057,
HB 2198

Not Enacted: SB 874, HB 2371-A,
HB 2372-A

Picture: Timothy Lake, Clackamas County - [Gary Halvorson](#), [Oregon State Archives](#)

MARIJUANA REGULATION

TASK FORCES AND REPORTING REQUIREMENTS

The following bills created task forces and reporting requirements. Additional information is provided in the bill summaries.

HB 2198

The Oregon Cannabis Commission must report on the possible framework and governance structure for the Oregon Medical Marijuana Program (OMMP) to the Legislative Committees dealing with Judiciary and Health Care.

December 15, 2017

[Senate Bill 56](#)

Effective Date: June 23, 2017

Marijuana Systems Cleanup

At the request of: Governor Brown for Oregon Liquor Control Commission

Committees: Joint Committee on Marijuana Regulation

Background and Current Law: Legislation in 2015, 2016, and 2017 established the relationship between the state's recreational marijuana licensing system maintained by the Oregon Liquor Control Commission (OLCC) and the medical marijuana registration system maintained by the Oregon Health Authority (OHA). The legislation created some legal ambiguities around these two systems.

Bill Summary: Senate Bill 56 makes a series of changes to clarify the licensing authority of OLCC, local control options for the allowance or prohibition of marijuana establishments, and authority of OLCC licensees to hold information required to make deliveries. It also exempts OHA-registered medical marijuana growers trying to enter the recreational markets from the cap on the number of immature plants they can legally possess.

Oregon Laws 2017: Chapter 476

[Senate Bill 302](#)

Effective Date: April 21, 2017

The Control and Regulation of Marijuana Act

At the request of: Joint Interim Committee on Marijuana Legalization

Committees: Joint Committee on Marijuana Regulation

Background and Current Law: Marijuana or cannabis was defined in Oregon law as an illegal narcotic as far back as the 1930s (Senate Bill 173 (Oregon Laws, Section 15-801)). Prohibitions on the manufacture, delivery, possession, and sale of cannabis were more recently codified in the Oregon Criminal Code and eventually moved to the Oregon Uniform Controlled Substances Act. Oregon voters passed Measure 91 in 2014, allowing persons over age 21 to use, possess, manufacture, and sell marijuana legally; these provisions were codified as the Control and Regulation of Marijuana Act in 2015. These two sets of statutes created inconsistencies within Oregon law.

Bill Summary: Senate Bill 302 moves criminal penalties and related provisions from the Oregon Uniform Controlled Substances Act to the Control and Regulation of Marijuana Act. The measure also reduces criminal penalties for possession of less than four times the legal limit and increases criminal penalties for possession of greater than sixteen times the legal limit. The bill creates crimes to punish committing arson while manufacturing cannabinoid extracts and repeals criminal penalties for the possession, manufacture, or sale of marijuana within 1,000 feet of a school. Senate Bill 302 further clarifies which statutes referencing controlled substances are applicable to cannabis and cannabis-derived products.

Oregon Laws 2017: Chapter 21

[Senate Bill 303](#)

Effective Date: April 21, 2017

Minors in Possession of Alcohol or Marijuana

At the request of: Joint Interim Committee on Marijuana Legalization

Committees: Senate Judiciary, Joint Committee on Marijuana Regulation

Background and Current Law: Oregon law treats minors in possession of alcoholic beverages differently from minors in possession of marijuana-related items. It is a Class B violation if a minor possesses alcohol. A minor can be charged with a Class B violation if found in possession of less than one ounce of marijuana, a Class B misdemeanor if found in possession of between one and eight ounces of marijuana, or a Class A misdemeanor if found in possession of more than eight ounces of marijuana.

Bill Summary: Senate Bill 303 makes it a Class B violation for anyone under age 21 to possess marijuana-related items. The bill creates a Class A violation for any person under age 21 who possesses alcoholic beverages or marijuana-related items while driving a motor vehicle.

Oregon Laws 2017: Chapter 20

[Senate Bill 307](#)

Not Enacted

Social Consumption of Marijuana

At the request of: Joint Interim Committee on Marijuana Legalization

Committees: Joint Committee on Marijuana Regulation

Background and Current Law: Oregon law prohibits consumption of marijuana in a public place. The Oregon Indoor Clean Air Act requires a workplace to remain free of smoke, aerosols, and vapors containing inhalants and provides few exceptions.

Bill Summary: Senate Bill 307 would have created two license types for consuming marijuana in a public setting: cannabis lounges and temporary events. Cannabis lounge licenses would allow the consumption of marijuana on their premises. Temporary event licenses would allow the sale of marijuana by licensed marijuana retailers along with the consumption of marijuana on temporary event premises. The measure prohibited issuing these licenses in cities or counties that have passed ordinances prohibiting these types of activities.

[Senate Bill 319](#)

Effective Date: March 20, 2017

Siting of Marijuana Establishments Near Schools

Chief Sponsors: Sen. Prozanski

Committees: Joint Committee on Marijuana Regulation

Background and Current Law: Oregon law requires a marijuana dispensary or retailer to be at least 1,000 feet away from a school with few exceptions. In 2016, the Legislative Assembly passed Senate Bill 1511 authorizing cities or counties to pass ordinances allowing the placement of marijuana dispensaries and retailers within 500 feet of a public school if a major physical or geographic barrier separates the two facilities.

Bill Summary: Senate Bill 319 allows marijuana dispensaries and retailers to be sited between 500 and 1,000 feet from a public school if there is a physical or geographic barrier capable of preventing children from traversing from the school to the site.

Oregon Laws 2017: Chapter 7

[Senate Bill 863](#)

Effective Date: April 17, 2017

Marijuana Consumer Privacy

Chief Sponsors: Sen. Prozanski; Rep. Lininger

Committees: Joint Committee on Marijuana Regulation

Background and Current Law: Oregon law requires a person buying marijuana without a medical marijuana card to show that they are over the age of 21 by producing either a United States passport, a state driver's license or identification card, a United States military identification, or any other state-issued identification card that shows a picture, name, and date of birth. Oregon law does not require that this information be kept or recorded by a marijuana retail establishment.

Bill Summary: Senate Bill 863 prohibits recreational marijuana retailers from keeping or transferring any identifying customer information unless a customer offers their contact information to receive marketing materials or coupons. The bill also requires marijuana retailers to destroy any information they currently hold on file within 30 days of the effective date of the bill.

Oregon Laws 2017: Chapter 18

[Senate Bill 874](#)

Not Enacted

Marijuana Mandatory Reporters

At the request of: Joint Interim Committee on Marijuana Legalization

Committees: Joint Committee on Marijuana Regulation

Background and Current Law: Oregon law does not require a person to report a suspected violation of the law, except under certain circumstances. For example, certain professionals are designated mandated reporters and must report suspected child or elder abuse or neglect.

Bill Summary: Senate Bill 874 would have required marijuana businesses licensed by the Oregon Liquor Control Commission and their employees to report any violation of marijuana laws or regulations. If they did not, the license under which they operated could have been suspended or revoked.

[Senate Bill 1015](#)

Effective Date: October 6, 2017

Industrial Hemp Processing

Chief Sponsors: Sen. Ferrioli; Rep. Wilson

Committees: Joint Committee on Marijuana Regulation

Background and Current Law: In 2009, the Legislative Assembly passed Senate Bill 676 allowing the Oregon Department of Agriculture (ODA) to license industrial hemp growers and handlers. ODA licensed the state's first industrial hemp grower in 2015. A major feature that defines industrial hemp is that the crop must contain less than 0.3 percent tetrahydrocannabinol (THC), the psychoactive compound found in marijuana. While industrial hemp can be used to create fibers and fabrics, the plant also contains cannabinoid compounds. These compounds have been linked to positive medical treatments, but due to federal regulations, scientists have completed few peer-reviewed clinical trials to verify their medical efficacy.

Bill Summary: Senate Bill 1015 allows state-licensed marijuana processors to take industrial hemp, including concentrates or extracts from industrial hemp growers and handlers (processors). The processor can then use the concentrates or extracts in the creation of marijuana products for sale to marijuana wholesalers or retailers. The bill prohibits the sale of industrial hemp commodities or products in Oregon unless the process used to create them satisfies Oregon law or similar requirements. State-licensed marijuana retailers are exempt from this prohibition.

Oregon Laws 2017: Chapter 531

Marijuana Tracking and Regulation

At the request of: Senate Committee on Rules at the request of Sens. Burdick and Ferrioli

Committees: Joint Committee on Marijuana Regulation

Background and Current Law: In 2014, Oregon voters passed Measure 91 allowing the recreational use of marijuana for people over the age of 21 in Oregon. Since 2014, voters in several other states have passed similar laws. While the manufacture, delivery, or possession of marijuana remains illegal under federal law, the Cole Memo, issued by the U.S. Department of Justice, set forth guidelines for when federal prosecutors should use their prosecutorial discretion to prosecute marijuana crimes. If states complied with the Cole Memo, federal prosecutors were urged to focus their efforts elsewhere and not intervene in state-sanctioned medical or recreational marijuana systems. With the change in the federal administration in 2017, the continued application of the Cole Memo is uncertain.

Bill Summary: Senate Bill 1057 makes a series of changes to Oregon's medical and recreational marijuana programs. Most of these changes provide greater oversight authority to the Oregon Liquor Control Commission or the Oregon Health Authority regarding tracking, production, transport, and sale of marijuana.

Oregon Laws 2017: Chapter 183

[House Bill 2198](#)

Effective Date: August 2, 2017

Medical Marijuana Governance

At the request of: Joint Interim Committee on Marijuana Legalization

Committees: Joint Committee on Marijuana Regulation, Joint Ways and Means

Background and Current Law: In 1998, Oregon voters approved Ballot Measure 67 allowing the medical use of marijuana in Oregon within specified limits. It also established a state-controlled registration system. This law, known as the Oregon Medical Marijuana Act, requires a physician-written statement of a patient's qualifying debilitating medical condition to authorize the patient to use medical marijuana, provides legal protections for qualified patients using marijuana, allows a caregiver to assist a qualified patient, and mandates a statewide registration system maintained by the Oregon Health Authority.

Bill Summary: House Bill 2198 makes a series of changes to the Oregon Medical Marijuana Act. The bill allows medical marijuana growers to sell up to 20 pounds of marijuana into the recreational system, clarifies plant limits allowed at registered medical marijuana grow sites and other locations, and expands the Oregon Liquor Control Commission's authority to restrict licenses if specified findings are made. The bill also creates the Oregon Cannabis Commission, tasked with recommending a framework for future governance of the Oregon Medical Marijuana Program by December 15, 2017 and, after that, to provide governance advice to the Oregon Health Authority.

Oregon Laws 2017: Chapter 613

[House Bill 2371-A](#)

Not Enacted

Regulation of Industrial Hemp Seed as Flower Seed

Chief Sponsors: Reps. Wilson, Brock Smith

Committees: House Agriculture and Natural Resources, Joint Ways and Means

Background and Current Law: Industrial hemp is an agricultural product that is subject to regulation by the Oregon Department of Agriculture (ODA) and refers to cannabis varieties that are grown for fiber, seed, oil, or as a cover crop. Senate Bill 676 (2009) authorized the production of, possession of, and commerce in industrial hemp and commodities in Oregon, and House Bill 4060 (2016) authorized ODA to adopt rules to govern quality, packaging, and labeling of industrial hemp seed.

Bill Summary: House Bill 2371-A would have established the Oregon Industrial Hemp Fund and Agricultural Pilot Research Program under the Oregon Department of Agriculture, directed ODA and the College of Agricultural Sciences at Oregon State University to establish a program for labeling and certification of agricultural hemp seed, and allowed accredited independent laboratories to be approved for the testing of industrial hemp and related products. The measure exempted homegrown industrial hemp under four plants from licensing requirements and specified tetrahydrocannabinol concentration limits for various uses of industrial hemp.

[House Bill 2372-A](#)

Not Enacted

Establishment of Industrial Hemp Commission

Chief Sponsors: Reps. Wilson, Brock Smith

Committees: House Agriculture and Natural Resources, Joint Ways and Means

Background and Current Law: Commodity commissions are made up of volunteers appointed by Oregon's Director of Agriculture to serve as a link between production agriculture and decision makers. Oregon's 23 commodity commissions are charged with supporting commodity industries and enhancing and preserving the economic interests of the state by engaging in public policy and educational activities related to the commodities they represent.

Bill Summary: House Bill 2372-A would have established the Oregon Industrial Hemp Commission as a commodity commission pursuant to Oregon law and authorizes the Director of Agriculture to appoint members who are growers or handlers of industrial hemp on or before January 1, 2018.

[House Bill 2556](#)

Not Enacted

Marijuana Paraphernalia and Minors

Chief Sponsors: Rep. Hack

Committees: Joint Committee on Marijuana Regulation

Background and Current Law: Oregon law considers "marijuana paraphernalia" as all equipment, products, and materials marketed or designed for any marijuana-related activity.

Bill Summary: House Bill 2556 specified that a marijuana retailer or person who sells marijuana paraphernalia to anyone under the age of 21 commits a Class A violation, with a maximum civil penalty of \$2,000. The measure provided some exceptions for lawful sale or delivery of marijuana paraphernalia.

2017 SUMMARY OF LEGISLATION



TRANSPORTATION



TRANSPORTATION MEASURES

Drivers and Motor Vehicles

Enacted: SB 35, SB 36, SB 374, SB 645,
SB 930, HB 2721, HB 2777

Not Enacted: HB 2290-A, HB 2717-A

Multimodal Transportation

Enacted: SB 27, SB 256

Not Enacted: SB 1020-A, HB 2320

Roads and Highways

Enacted: SB 344, HB 2017, HB 2482,
HB 2750

Not Enacted: SB 532-A, SB 778-A,
HB 2749-A, HB 3246

Picture: Covered Wagon, Baker County - [Gary Halvorson](#), [Oregon State Archives](#)

TRANSPORTATION

TASK FORCES AND REPORTING REQUIREMENTS

The following bills created task forces and reporting requirements. Additional information is provided in the bill summaries.

HB 2017 Section 10	Oregon Transportation Commission must submit report to Joint Committee on Transportation regarding activities of Continuous Improvement Advisory Committee and Commission actions to implement those recommendations.	Every biennium on odd-numbered years (continuing).
HB 2017 Section 11	Oregon Transportation Commission must report to Joint Committee on Transportation regarding condition of state and local transportation infrastructure.	April 1 every odd-numbered year (continuing).
HB 2017 Section 18	Oregon Transportation Commission must report on audits of the Department of Transportation to both the Joint Committee on Transportation and the Joint Legislative Audit Committee.	Once each biennium (continuing).
HB 2017 Section 27a	Joint Committee on Transportation directed to study the adequacy of transportation funding in HB 2017 and report to Legislative Assembly.	Prior to adjournment of 2023 Session.
HB 2017 Section 27c	Oregon Transportation Commission must report on cost to complete the I-205 Abernethy Bridge project, the I-205 widening project, and I-5 Rose Quarter project, to the Joint Committee on Transportation and appropriate fiscal and policy committees.	February 1, 2018 (for Abernethy Bridge and I-205 widening). February 1, 2020 (for I-5 Rose Quarter).
HB 2017 Section 27e	Oregon Transportation Commission must report on cost to complete the upgrade to portions of Southeast Powell Boulevard and on transfer of upgraded portion to City of Portland, to Joint Committee on Transportation.	January 1, 2020.

TRANSPORTATION

HB 2017 Section 45	Oregon Transportation Commission must report certifying that conditions have been met to impose additional two-cent-per-gallon motor fuel tax and use fuel tax increases.	December 1, 2019 (for increase scheduled for January 1, 2020). December 1, 2021 (for increase scheduled for January 1, 2022). December 1, 2023 (for increase scheduled for January 1, 2024).
HB 2017 Section 75	Oregon Transportation Commission must study and report to Joint Committee on Transportation on the proportionate share that users of passenger vehicles powered by different means should pay to maintain and improve Oregon highways and whether users are paying that share.	September 15, 2023.
HB 2017 Section 85	Oregon Transportation Commission must report on efforts to streamline ConnectOregon application process, to the Joint Transportation Committee.	September 15, 2017.
HB 2017 Section 111a	Oregon Department of Transportation must report on enforcement of provisions of ORS chapter 822 governing the certification of vehicle dealers.	September 15, 2019 (first report). September 15, 2021 (second report).
HB 2017 Section 119	Department of Administrative Services must study feasibility of performing highway cost allocation study within boundaries of a county, Metro and Tri-Met regarding applicability of Article IX, section 3a(3) of Oregon Constitution, and report to Joint Committee on Transportation.	September 15, 2018.
HB 2017 Section 120	Oregon Transportation Commission must report on application to Federal Highway Administration to impose value pricing on I-5 and I-205, to the Joint Committee on Transportation.	Prior to implementation of value pricing.

TRANSPORTATION

HB 2017 Section 121	Task Force on Mega Transportation Projects must report findings, including recommendations for legislation, to Joint Committee on Transportation.	September 15, 2018.
HB 2017 Section 122q	Oregon Transportation Commission must report regarding implementation and outcomes of public transportation programs to the Joint Committee on Transportation.	February 1, 2020.
HB 2017 Section 129	Travel Information Council must report on its transition plan regarding management of roadside rest areas to Joint Committee on Transportation.	September 15, 2018.
HB 2017 Section 137	Oregon Transportation Commission must report on development and implementation of winter maintenance strategy and policy to the Joint Committee on Transportation.	September 15, 2019.

[Senate Bill 27](#)

Effective Date: July 1, 2017

Department of Aviation Pilot Registration

At the request of: Governor Brown for Department of Aviation

Committees: Senate Business and Transportation, Joint Ways and Means

Background and Current Law: The Federal Aviation Administration (FAA) requires individuals in command of aircraft to obtain an FAA-issued pilot certificate. Certification is required for each of several categories of aircraft (i.e., airplane, rotorcraft, glider), and granted in one of several privilege levels ranging from student pilot to commercial airline transport pilot. Pilots operating aircraft within Oregon borders must also register with the Oregon Department of Aviation (ODA) within 60 days of obtaining an effective federal certificate, including nonresident pilots. Commercial airline pilots are exempt, provided they operate aircraft only as part of commercial service. Oregon is one of only three states that require pilots to register. Initial registration costs \$24 for one year, with each subsequent renewal costing \$48 per biennium. Revenues from pilot registrations are held in the Aviation Search and Rescue Account and used by the Office of Emergency Management for expenses related to search and rescue operations and pilot survival training.

Bill Summary: Senate Bill 27 eliminates the requirement that pilots register with the Oregon Department of Aviation and eliminates the Aviation Search and Rescue Account.

Oregon Laws 2017: Chapter 226

[Senate Bill 35](#)

Effective Date: January 1, 2018

Motor Vehicle Accident Reporting

At the request of: Governor Brown for Department of Transportation

Committees: Senate Business and Transportation, House Transportation Policy

Background and Current Law: The Oregon Department of Transportation (ODOT) collects data from drivers regarding motor vehicle accidents that involve death or injury to one or more individuals, or result in more than \$1,500 in property damage. ODOT uses the information to prioritize engineering safety projects and focus traffic enforcement resources. The existing \$1,500 threshold for property damage has not been updated in some time.

Bill Summary: Senate Bill 35 increases the threshold amount of property damage that requires submission of a motor vehicle accident report from \$1,500 to \$2,500.

Oregon Laws 2017: Chapter 189

[Senate Bill 36](#)

Effective Date: June 14, 2017

Prior Driver Licenses and Three-Wheeled Motorcycle Endorsements

At the request of: Governor Brown for Department of Transportation

Committees: Senate Business and Transportation, House Transportation Policy

Background and Current Law: The Driver and Motor Vehicle Services (DMV) division of the Oregon Department of Transportation (ODOT) is responsible for licensing people to operate motor vehicles on Oregon roads. Applicants are currently required to provide information about previous licenses and permits, even though the DMV obtains the same information from a national database. Two-wheeled motorcycle operation requires a motorcycle endorsement issued after completion of an ODOT-approved motorcycle training course administered by Team Oregon, and a passing score on both written and practical skills tests. Three-wheeled motorcycle operation requires a restricted motorcycle endorsement issued after passing a practical skills test administered by the DMV.

Bill Summary: Senate Bill 36 removes the requirement for applicants to provide information about previous permits and allows ODOT to waive, by rule, the requirement to pass a skills test to operate a three-wheeled motorcycle.

Oregon Laws 2017: Chapter 306

[Senate Bill 256](#)

Effective Date: August 15, 2017

Willamette Falls Locks Commission

Chief Sponsors: Sens. Devlin, Olsen; Reps. Parrish, Kennemer, Lininger, Meek

Committees: Senate Business and Transportation, Joint Ways and Means

Background and Current Law: The historic Willamette Falls Locks were constructed in the early 1870s to allow river traffic to navigate around a 40-foot, horseshoe-shaped basalt ridge between Oregon City and West Linn on the Willamette River. The locks opened in 1873 and ownership transferred several times before they were purchased by the U.S. Army Corps of Engineers in 1915. They were placed on the National Register of Historic Places in 1974, and declared nonoperational in December 2011. The U.S. Army Corps of Engineers is currently seeking a buyer for the locks, which could result in their being dismantled.

Bill Summary: Senate Bill 256 establishes the Willamette Falls Locks Commission through December 31, 2023, as an advisory body concerned with the repair, reopening, operation, maintenance, and future transfer of ownership of the Willamette River navigational channel and locks system.

Oregon Laws 2017: Chapter 734

Use of All-Terrain Vehicles

Chief Sponsors: Sen. Ferrioli; Rep. Barreto

Committees: Senate Business and Transportation, House Transportation Policy

Background and Current Law: All-terrain vehicles (ATV) come in several classes and sizes. They are required to be licensed with the Oregon Parks and Recreation Department (OPRD) to be operated on public lands, but are not typically authorized for use on roadways. This can inhibit some ATV travel, when roadways must be used to complete a particular route or crossing or to access a local business.

Bill Summary: Senate Bill 344 creates an All-Terrain Vehicle Highway Access Routes Advisory Committee to evaluate ATV access and use of roadways, including conducting reviews in the field, holding public hearings, and making recommendations to the Oregon Transportation Commission (OTC). The OTC is authorized to designate access routes for ATVs under certain circumstances, along portions of state highway rights of way, to be identified by signage. The measure requires ATV operators to wear helmets and possess a valid Oregon driver license or permit while on designated rights of way and waives equipment requirements applicable to other vehicles.

Oregon Laws 2017: Chapter 453

Real ID Act-Compliant Driver Licenses

Chief Sponsors: Sens. Hansell, Steiner-Hayward

Committees: Senate Business and Transportation, Joint Ways and Means

Background and Current Law: The Driver and Motor Vehicle Services (DMV) division of the Oregon Department of Transportation (ODOT) issues approximately 177,000 new driver licenses annually, in addition to issuing renewals for about 335,000 licenses each year. The federal Real ID Act of 2005, administered by the U.S. Department of Homeland Security, requires state-issued driver licenses and identification cards to meet certain standards to be valid for federal purposes, such as boarding planes and entering federal buildings, and it directs issuing entities to capture and maintain digital images of identity source documents in a transferable format. Senate Bill 1080 (2008) began the process of compliance with the Real ID Act. It required persons applying for driver licenses or identification cards to provide proof of citizenship or legal presence in the country; however, subsequently enacted legislation (Senate Bill 536 (2009)) prohibits the DMV from further implementation of the Real ID Act unless federal funds are provided to cover the cost. Oregon is one of several states currently operating under a federal extension.

Bill Summary: Senate Bill 374 authorizes ODOT to issue driver licenses, driver permits, and identification cards that meet the requirements of the federal Real ID Act of 2005 as a voluntary alternative to existing licenses and cards, at an additional cost. The measure specifies requirements for receiving a Real ID and prohibits ODOT from disclosing collected information except to entities that provided required source documents. The measure directs ODOT to conduct a public information campaign on the differences between the various forms of identification.

Oregon Laws 2017: Chapter 568

[Senate Bill 532-A](#)

Not Enacted

Restrictions on Left-Lane Highway Driving**Chief Sponsors:** Sens. Burdick, Ferrioli; Reps. Helm, Bentz**Committees:** Senate Business and Transportation, House Transportation Policy

Background and Current Law: Under current statute, certain motor vehicles are required to remain in the right-most lane while traveling along a multi-lane highway. Unlike many other states, Oregon does not designate the left-most lane of multi-lane highways as strictly a passing lane. In those states, a driver can be cited for failing to move back into the right-hand lane after passing a slower moving vehicle. In Oregon, campers, trailers, and vehicles with a registered weight of over 10,000 pounds must be driven in the right lane except to pass, turn left, avoid emergency conditions, allow vehicles to merge from an onramp, or follow traffic control devices as necessary. Noncompliance can result in a Class B traffic violation, punishable by a maximum fine of \$1,000.

Bill Summary: Senate Bill 532-A would have expanded the prohibition on driving in the left-most lane on multi-lane highways with posted speeds of at least 55 miles per hour with normal traffic flow to apply to all vehicles, classifying the offense as a Class D traffic violation, punishable by a maximum fine of \$250. The measure also clarified that campers, vehicles with trailers, and vehicles with a registration weight of 10,000 pounds or more must travel in the right-most lane of multi-lane highways, with exceptions for passing vehicles in the lane to the right of the left-most lane and for using the left-most lane to avoid obstructions or adverse conditions in other lanes of travel.

[Senate Bill 645](#)

Effective Date: January 1, 2018

Humvee Designation as Vehicle of Special Interest**Chief Sponsors:** Sen. Girod**Committees:** Senate Business and Transportation, House Transportation Policy

Background and Current Law: The Driver and Motor Vehicle Services (DMV) division of the Oregon Department of Transportation (ODOT) regulates motor vehicles operating on public roads in Oregon. The base rate for vehicle registration, for the standard “tree plate,” is \$43 per year; new vehicles have an initial registration of four years (\$172), with each subsequent registration being \$86 for two years. Motorists have the option of several different plate designs, most of which come with an additional charge. Vehicles that are classified as “special interest” are eligible for one-time, permanent registration. Vehicles with permanent special-interest plates are limited to use in exhibitions, parades, or club activities, and cannot be used primarily for transportation of persons or property. The cost of a special-interest registration plate is a one-time fee of \$93. According to DMV, there are 38,759 vehicles registered as special interest in Oregon.

Bill Summary: Senate Bill 645 expands the definition of “vehicle of special interest” to include Humvees.

Oregon Laws 2017: Chapter 196

[Senate Bill 778-A](#)

Not Enacted

Just Compensation for Advertising Signs Affected by Road Construction**Chief Sponsors:** Senate Committee on Business and Transportation**Committees:** Senate Business and Transportation, Joint Ways and Means

Background and Current Law: Oregon's Outdoor Advertising Sign Program is housed within the Right-of-Way section of the Oregon Department of Transportation's (ODOT) Highway Division. Through the program, ODOT is responsible for regulation of signs on private property that are visible from state highways. Regulation of outdoor advertising signs, often referred to as billboards, dates to the federal Highway Beautification Act of 1965, which requires states to regulate billboards as a condition of federal highway funding. ODOT's program was revised in response to an Oregon Supreme Court ruling in 2007, and there are currently about 1,750 active permits for outdoor advertising signs.

Bill Summary: Senate Bill 778-A would have required ODOT to pay just compensation, as defined in the measure, for outdoor advertising signs that were damaged, destroyed, or lost as a result of highway construction, provided the sign was lawfully erected and otherwise in compliance with the Outdoor Advertising Sign Program. In the event that construction required relocation or removal of a sign, the measure required just compensation to be paid the owner.

[Senate Bill 930](#)

Effective Date: January 1, 2018

Redaction of Personal Information on Vehicle Compliance Documents**Chief Sponsors:** Sen. Prozanski**Committees:** Senate Business and Transportation, House Transportation Policy

Background and Current Law: The Driver and Motor Vehicle Services (DMV) division of the Oregon Department of Transportation (ODOT) regulates the operation of motor vehicles on public roads, including vehicle title and registration. Vehicle registration documents provided by DMV are required to include the name of the registered owner; the make, model, and model year of the vehicle; the vehicle identification number (VIN); the vehicle's mileage; and any additional information required by ODOT. This "other information" includes the address of the registered owner.

Bill Summary: Senate Bill 930 allows the registered owner of a motor vehicle to black out or obscure the street address, mailing address, or other address shown on a vehicle registration card, a proof of insurance card, or other compliance document. DMV retains this information in its data system, which is accessible to law enforcement as needed.

Oregon Laws 2017: Chapter 471

State Grant Agreement with Lane Transit District

Chief Sponsors: Sen. Manning, Jr.

Committees: Senate Business and Transportation, Joint Ways and Means

Background and Current Law: Lane Transit District (LTD) was established in 1970 with 18 buses and two vans; today LTD operates a fleet of over 100 buses, serving the Eugene-Springfield metropolitan areas, including Coburg, Junction City, Creswell, Cottage Grove, Veneta, and Lowell. In addition to its regular fixed bus routes, LTD operates Emerald Express (EmX) bus rapid transit (BRT) lines from downtown Eugene to downtown Springfield, and from downtown Springfield to the Gateway Mall in north Springfield. LTD is also analyzing options for expanding the BRT service into west Eugene. BRT lines generally have dedicated lanes on roadways and priority at intersections. The vehicles themselves are designed for ease of boarding and deboarding and are made to operate similarly to light rail trains with greater flexibility and lower cost.

Bill Summary: Senate Bill 1020-A would have directed the Oregon Department of Transportation (ODOT) to enter into a grant agreement with LTD to fund BRT and high-capacity transit systems. It authorized the issuance of lottery bonds sufficient to generate \$30 million for continuous appropriation to ODOT for program implementation.

Transportation Funding and Policy Package

At the request of: Joint Committee on Transportation Preservation and Modernization

Committees: Joint Committee on Transportation Preservation and Modernization

Background and Current Law: Fuel taxes and vehicle fees are the state's primary means of funding transportation projects. Inflation and increasing vehicle fuel efficiency have eroded revenue from these sources which, combined with undependable federal support, has resulted in a growing inability for cities, counties, and the state to fund road maintenance and address the backlog of needed seismic upgrades to bridges. The state's increased population, particularly in the Portland metro region, has led to increasing traffic congestion. In addition, Oregon continues to lack reliable funding sources for statewide transit operations, off-road bicycle and pedestrian facilities, and multimodal transportation.

Bill Summary: House Bill 2017 increases gas taxes, fuel taxes, and corresponding weight-mile taxes in four steps, beginning with a four-cent increase in January 2018 and followed by two-cent increases in 2020, 2022, and 2024. The measure adds new vehicle registration fee and title fee surcharges of \$13, beginning January 2018; in January 2020, 2022, and 2024 additional increases are instituted in four tiers, based on the fuel efficiency of the vehicle. Moneys from fuel and weight mile taxes, as well as title and registration fees, are deposited into the State Highway Fund for distribution to the state, counties, and cities. House Bill 2017 also institutes a statewide employee payroll tax of \$.001 and deposits moneys raised into a Statewide Transportation Improvement Fund to provide moneys and grants to transit providers. The bill imposes a bicycle excise tax of \$15 for bicycles over \$200 value, to be used to fund off-road bike paths. Finally, the measure institutes a 0.5 percent privilege tax on the sale of new motor vehicles and a 0.5 percent use tax on vehicles purchased out-of-state and brought into Oregon, with moneys used to fund zero-emission vehicle incentives and multimodal transportation projects.

House Bill 2017 also makes a number of policy changes, including: modifying the Oregon Transportation Commission's relationship with the Oregon Department of Transportation (ODOT); establishing a Joint Committee on Transportation to provide legislative oversight of ODOT; providing funds for maintenance dredging of ports and marinas; requiring several studies and reports; increasing funding for and modifying the Safe Routes to Schools program; transferring of responsibility of selected roadside rest areas; transferring jurisdiction over several road segments; developing a winter road maintenance strategy; creating a rebate program for the purchase of zero-emission vehicles; and modifying the state's low carbon fuel standard.

Oregon Laws 2017: Chapter 750

[House Bill 2290-A](#)

Not Enacted

DMV Fee Bill

At the request of: Governor Brown for Department of Transportation

Committees: House Transportation Policy, Joint Ways and Means

Background and Current Law: Most fees imposed by the Oregon Department of Transportation's Driver and Motor Vehicle Services (DMV) division were originally set to cover the cost of service, with vehicle title and registration fees set to produce additional revenue for the State Highway Fund. Nearly all DMV fees are set in statute; in cases where the cost of providing the service exceeds the fee collected, revenue that would otherwise be deposited into the State Highway Fund is then used to cover the difference between the fee and the actual cost of providing the service. In 2013, the DMV studied 72 different fees to determine whether the current fee covered the cost of providing the service and found that 30 fees needed to be increased. Most of the fees were related to licenses, permits, skills tests, suspensions, and reinstatements.

Bill Summary: House Bill 2290-A would have adjusted the costs of various DMV products and required further study to determine if the actual costs of providing products and services was covered by current fees.

[House Bill 2320](#)

Not Enacted

Nonmotorized Boating Program Bill

At the request of: Governor Brown for State Marine Board

Committees: House Transportation Policy

Background and Current Law: In a 2015 budget note, the legislature directed the Oregon State Marine Board to develop a methodology to license nonmotorized boats and recommend legislation, resulting in House Bill 2320.

Bill Summary: House Bill 2320 would have established the Nonmotorized Boating Program within the Oregon State Marine Board, with funding provided by nonmotorized boating permits.

[House Bill 2482](#)

Effective Date: January 1, 2018

Self Service Gasoline in Low-Population Counties**Chief Sponsors:** Rep. Bentz**Committees:** House Transportation Policy, House Rules, Senate Business and Transportation

Background and Current Law: Oregon and New Jersey are the only two states that require a third party to dispense gasoline and other Class 1 liquids at retail locations. Only those gas stations that also sell goods and services are required to have an employee on duty to dispense Class 1 liquids between 6:00 pm and 6:00 am. In sparsely populated rural areas, where it is often infeasible to staff a gas station 24 hours per day, travelers may not have access to fuel.

Bill Summary: House Bill 2482 allows customers to pump their own gas at retail locations 24 hours per day in low-population counties with fewer than 40,000 certified residents. This includes Baker, Clatsop, Crook, Curry, Gilliam, Grant, Harney, Hood River, Jefferson, Lake, Malheur, Morrow, Sherman, Tillamook, Union, Wallowa, Wasco, and Wheeler counties.

Oregon Laws 2017: Chapter 207[House Bill 2717-A](#)

Not Enacted

Crime of Assault Against Public Transit Employees Specification**Chief Sponsors:** Reps. Gorsek, McLain; Sen. Dembrow**Committees:** House Judiciary, Joint Ways and Means

Background and Current Law: There are four degrees of assault crimes in Oregon. Assault in the fourth degree is usually a misdemeanor, committed when a person intentionally, knowingly, or recklessly causes physical injury to another. Assault in the first, second, and third degrees are felonies. Third degree assault includes a variety of specified conduct, such as intentionally, knowingly, or recklessly causing physical injury, by means other than a motor vehicle, to a public transit vehicle operator while they are operating the vehicle.

Bill Summary: House Bill 2717-A would have broadened assault in the third degree to include causing injury to public transit employees acting within the scope of their employment.

[House Bill 2721](#)

Effective Date: August 8, 2017

Crime of Assault Against Highway Workers Specifications**Chief Sponsors:** Reps. McLain, Gorsek, Sprenger; Sen. Thomsen**Committees:** House Judiciary, Joint Ways and Means

Background and Current Law: There are four degrees of assault crimes in Oregon. Assault in the fourth degree is usually a misdemeanor, committed when a person intentionally, knowingly, or recklessly causes physical injury to another. Assault in the first, second, and third degrees are felonies. Third degree assault includes a variety of specified conduct, such as intentionally, knowingly, or recklessly causing physical injury, by means other than a motor vehicle, to the operator of a taxi while the operator is in control of the taxi.

Bill Summary: House Bill 2721 adds knowingly or recklessly causing physical injury to a flagger or highway worker performing their duties to the list of prohibited conduct that constitutes assault in the third degree.

Oregon Laws 2017: Chapter 658[House Bill 2749-A](#)

Not Enacted

Hood River-White Salmon Bridge Study**Chief Sponsors:** Rep. Johnson; Sen. Thomsen**Committees:** House Transportation Policy, Joint Ways and Means

Background and Current Law: The Hood River-White Salmon Bridge crosses the Columbia River at Hood River and provides access to the communities of White Salmon and Bingen in Washington. The bridge was constructed in 1924 and rebuilt with a lift span in 1938 to account for increased water levels following construction of the Bonneville Dam. The Port of Hood River purchased the bridge in 1950, and currently charges a toll to cross it. The estimated replacement cost of the bridge is \$250 million.

Bill Summary: House Bill 2749-A would have authorized issuance of \$5 million in lottery bonds to finance a study by the Port of Hood River and the Oregon Department of Transportation on the feasibility of replacing the Hood River-White Salmon Bridge.

[House Bill 2750](#)

Effective Date: January 1, 2018

Clarifying the Rights of the Port of Hood River

Chief Sponsors: Rep. Johnson; Sen. Thomsen

Committees: House Transportation Policy, Senate Business and Transportation, Senate Rules

Background and Current Law: The Hood River-White Salmon Bridge crosses the Columbia River at Hood River and provides access to the communities of White Salmon and Bingen in Washington. The bridge was constructed in 1924 and rebuilt with a lift span in 1938 to account for increased water levels following construction of the Bonneville Dam. The Port of Hood River purchased the bridge in 1950, and currently charges a toll to cross it. The estimated replacement cost of the bridge is \$250 million.

Bill Summary: House Bill 2750 clarifies that the port is authorized to establish a toll on bridges that it operates and maintains. The measure allows the port to award contracts or enter into other agreements related to tollway projects under a competitive process or through private negotiation, or both. The measure allows the port to use any method necessary to comply with a grant or funding requirement, subjects projects to prevailing wage laws if public funds are involved, treats any such project as a port project with regard to land use laws, and limits the authority to sell or otherwise transfer ownership as part of a tollway project.

Oregon Laws 2017: Chapter 710

[House Bill 2777](#)

Effective Date: January 1, 2018

Transit Violations Administrative Resolutions

Chief Sponsors: Rep. Barker; Sen. Dembrow

Committees: House Judiciary, Senate Judiciary

Background and Current Law: Public transit riders who fail to pay the fare or who commit other transit-related violations may be issued citations to appear in court the same as with ordinary traffic violations, and may be subject to fines.

Bill Summary: House Bill 2777 authorizes mass transit districts to create an optional, alternative administrative process for resolving transit violations that allows them to reduce fines through an in-house hearing, or order community service as an alternative to fines, in order to permit riders to avoid court if they wish. If a violation is not resolved through the administrative process within 90 days, the individual will be required to appear in court.

Oregon Laws 2017: Chapter 427

State Regulation of Ridesharing Companies

Chief Sponsors: Reps. Clem, Hack, Lininger; Sens. Knopp, Steiner Hayward

Committees: House Business and Labor

Background and Current Law: Oregon's cities and counties have the authority to regulate taxicabs, limousines, and other vehicles for hire, and may restrict the number of licenses, set maximum rates and establish how rates are calculated, establish safety and insurance requirements, and establish route boundaries. In the last decade, the transportation network company (TNC) model, also referred to as "ridesharing," developed to provide prearranged transportation services for compensation through a website or smart phone app to connect riders with drivers using their personal vehicles. Some cities in Oregon, such as Portland and Salem, have allowed TNCs to operate, while others, such as Eugene, have not.

Bill Summary: House Bill 3246 would have shifted authority to regulate TNCs from cities and counties to the state. The measure required TNCs to be licensed with the Department of Consumer and Business Services and to pay an annual fee of \$5,000. The measure set minimum insurance coverage levels, required the TNC to perform background checks and review the driving history of prospective drivers, and classified drivers as independent contractors. The measure established offenses disqualifying prospective drivers from connecting to a TNC's digital network, prohibit drivers from discriminating based on a rider's protected class or pick-up location, and established other driver safety requirements.

2017 SUMMARY OF LEGISLATION



VETERANS



VETERANS MEASURES

Access to Recreation

Enacted: SB 116

Not Enacted: SB 380-A

Education/Workforce

Enacted:

Not Enacted: HB 2690, HB 2887-A

General Veterans Policy

Enacted: SB 80, SB 1055, HB 2100,
HB 2908, HB 3207

Not Enacted: HJM 10

Grant and Loan Programs

Enacted: SB 143, HB 2891

Not Enacted: HB 3174

Health Care

Enacted: SB 81

Not Enacted: SB 1054-A

POW/MIA

Enacted: HB 2149, HB 2880

Not Enacted:

Picture: Lewis and Clark Bridge, Columbia County - [Gary Halvorson](#), [Oregon State Archives](#)

VETERANS

TASK FORCES AND REPORTING REQUIREMENTS

The following bills created task forces and reporting requirements. Additional information is provided in the bill summaries.

SB 143	Directs Oregon Department of Veterans' Affairs to evaluate the implementation of grant programs seeking to enhance campus veteran resource centers. Requires report to the legislative committees related to veterans.	September 15, 2018
HB 2908	Directs Oregon Department of Veterans' Affairs to evaluate the implementation of the Veteran Volunteer Coordinator and Veterans Volunteer Program. Requires report to the legislative committees related to veterans.	September 15, 2020

[Senate Bill 80](#)

Effective Date: January 1, 2018

Assistance for Native American Veterans

At the request of: Governor Brown for Department of Veterans' Affairs

Committees: Senate Veterans and Emergency Preparedness, House Veterans and Emergency Preparedness

Background and Current Law: Native Americans serve in the United States Armed Forces at rates higher than any other ethnic group and the highest concentration of active female service members in the armed forces are Native American. Oregon has more than 100,000 members of nine federally recognized Tribes within the state's borders and approximately 3,800 tribal members are veterans.

Bill Summary: Senate Bill 80 recognizes the service of Native American veterans and directs the Oregon Department of Veterans' Affairs to assist with the accreditation of tribal veterans' representatives by the federal government.

Oregon Laws 2017: Chapter 311

[Senate Bill 81](#)

Effective Date: January 1, 2018

Health Care Navigation

At the request of: Governor Brown for Department of Veterans' Affairs

Committees: Senate Veterans and Emergency Preparedness, House Veterans and Emergency Preparedness

Background and Current Law: Individuals who are isolated or elderly, or who have mobility or complex health issues, often face increased barriers to receiving health care. There is an emerging profession to help such people navigate the health care system, called Patient Advocates or Health Navigators. These individuals have expertise working with social service agencies, medical and behavioral health providers, and the insurance industry. Veterans face similar barriers, along with additional challenges, accessing care through the U.S. Department of Veterans Affairs. Although assistance is available through the Oregon Department of Veterans' Affairs (ODVA), its primary focus is to provide access to and advocacy for federal and state benefits, such as compensation and pensions, by processing claims and appeals and making referrals to state and local resources.

Bill Summary: Senate Bill 81 authorizes the ODVA to assist veterans with obtaining health care, including mental health care, through federal, state, or local health care delivery systems.

Oregon Laws: Chapter 478

[Senate Bill 116](#)

Effective Date: January 1, 2017

Access to Recreation

Chief Sponsors: Sens. Olsen, Riley

Committees: Senate Veterans and Emergency Preparedness, House Veterans and Emergency Preparedness

Background and Current Law: Oregon offers a range of outdoor recreational opportunities, which attracts veterans and other residents alike. The Oregon Department of Fish and Wildlife currently offers a permanent combined hunting and fishing license for qualifying disabled veterans, and the Oregon Parks and Recreation Department (OPRD) provides free day use and camping at RV and tent sites for disabled veterans year round and for United States Armed Forces active duty personnel on leave on Memorial Day, Independence Day, and Veterans Day.

Bill Summary: Senate Bill 116 provides disabled veterans, and active duty personnel on leave, free access to recreation areas on state forest lands, by directing the Oregon Department of Forestry to honor the access pass already issued by OPRD.

Oregon Laws 2017: Chapter 729

[Senate Bill 143](#)

Effective Date: August 15, 2017

Grant Programs for Campus Veteran Resource Centers

Chief Sponsors: Sens. Monnes Anderson, Boquist

Committees: Senate Veterans and Emergency Preparedness, House Veterans and Emergency Preparedness, Joint Ways and Means

Background and Current Law: Transitioning from military to civilian life can present challenges for veterans. Supporting veterans' educational and employment goals are two ways the transition can be made easier, with federal and state benefits available to encourage enrollment in public universities and community colleges. Veterans are generally atypical students in many ways: they are older than their peers, have families, and have a different perspective that comes only from serving in the armed forces. Universities and colleges often have on-campus resource centers tailored to help veterans succeed, connect to other veterans, and ground them within the broader collegiate environment.

Bill Summary: Senate Bill 143 appropriates approximately \$1.2 million from the Veterans' Services Fund to the Oregon Department of Veterans' Affairs to develop and implement one or more competitive grant programs. The funding is for community colleges and public universities to support and expand on-campus veteran resource centers.

Oregon Laws 2017: Chapter 731

[Senate Bill 380-A](#)

Not Enacted

Access to Recreation**Chief Sponsors:** Sen. Hansell**Committees:** Senate Veterans and Emergency Preparedness, Joint Ways and Means

Background and Current Law: Oregon offers a wide range of outdoor recreational opportunities, which attracts veterans and other residents alike. Efforts have been made to ensure veterans in Oregon can fully participate in outdoor recreational activities throughout the state. Currently, the Oregon Department of Fish and Wildlife offers a permanent combined hunting and fishing license for qualifying disabled veterans, and the Oregon Parks and Recreation Department (OPRD) provides free day use and camping at RV and tent sites for United States Armed Forces active duty personnel on leave on Memorial Day, Independence Day, and Veterans Day, and year-round for service-connected disabled veterans.

Bill Summary: Senate Bill 380-A would have required OPRD to set aside a certain number of reservable campsites for disabled veterans during the first 30 days that reservations may be made.

[Senate Bill 1054-A](#)

Not Enacted

Improving Access to Behavioral Health Services**At the request of:** Senate Committee on Veterans and Emergency Preparedness**Committees:** Senate Veterans and Emergency Preparedness, Senate Rules

Background and Current Law: Data from the National Center for Health Statistics and the United States Census Bureau rank Oregon among the states with the highest rates of serious depression and suicide. The Oregon Health Authority (OHA) reports that suicide is the second leading cause of death among Oregonians under age 35, with over 760 suicides in 2015 and around 2,000 people hospitalized for associated behaviors. Veterans represent a little more than eight percent of Oregon's total population, but account for nearly 25 percent of the total number of people who commit suicide, and suicide is the leading cause of death for veterans under the age of 45. According to the Oregon Violent Death Reporting System, mental health concerns, alcohol and/or substance use, relationship issues, and other stressors are common and associated with suicide incidents among Oregon veterans. Hospitals seeking to expand their services in Oregon are required to obtain a "certificate of need" from OHA. Obtaining the certificate is a lengthy and costly process designed to promote efficiencies across Oregon's system of care and help keep health care costs down.

Bill Summary: Senate Bill 1054-A would have made a temporary exemption available to hospitals that would otherwise be required to obtain a certificate of need, but only to increase capacity to provide behavioral health services to veterans and active duty personnel. The measure would have made an exemption available for two years and required facilities taking advantage of it to provide services for at least eight years.

Third-party Visitation for Children of Deployed Parents

At the request of: Senate Committee on Veterans and Emergency Preparedness

Committees: Senate Veterans and Emergency Preparedness, House Judiciary

Background and Current Law: The National Conference of State Legislatures reports that legislation to address issues facing military parents has become a trend over the past decade at both the state and federal level. Domestic relations matters come within the purview of each state; the only applicable federal provisions are contained in the Servicemember Civil Relief Act (SCRA), which allows service members to stay a variety of court proceedings, including domestic relations matters, whenever military service precludes their appearance in court. In addition to protections offered by the SCRA, nearly every state has enacted domestic relations provisions that address custody issues faced by deployed parents, including Oregon. In 2011, the legislature passed House Bill 3162 to prohibit courts from changing parenting and support orders involving deployed parents; modifications may be made to accommodate a parent's active military service, so long as they are in a child's best interest. In 2012, the Uniform Law Commission developed the Uniform Deployed Parents Custody and Visitation Act, a version of which has been adopted in about a dozen states. The "child's best interest" remains the overriding standard for courts making custody determinations in every state.

Bill Summary: Senate Bill 1055 allows a deployed parent, during the deployment, to petition a court for visitation between the child of the deployed parent and a stepparent, grandparent, or other family member related to the child. The bill directs the court to consider whether such a visitation would facilitate contact between the child and the deployed parent, the best interests of the child, and existing statutory factors that govern third-party visitation.

Oregon Laws 2017: Chapter 534

[House Bill 2100](#)

Effective Date: October 6, 2017

Medal of Honor Highway

Chief Sponsors: Reps. Huffman, Whisnant; Sens. Johnson, Knopp

Committees: House Veterans and Emergency Preparedness, Senate Veterans and Emergency Preparedness

Background and Current Law: The Medal of Honor is the nation's highest award for military valor. Oregon has been home to 26 Medal of Honor recipients, from the Civil War to Vietnam. Currently, only one recipient is living in Oregon, who is also the nation's oldest Medal of Honor recipient.

Bill Summary: House Bill 2100 designates a portion of U.S. Highway 20 between Newport, Oregon and the Idaho state line the "Oregon Medal of Honor Highway," and directs the Oregon Department of Transportation to install and maintain signage identifying it as such. The bill authorizes additional signage at rest areas and turnarounds to honor Oregon's 26 Medal of Honor recipients by name.

Oregon Laws 2017: Chapter 380

[House Bill 2149](#)

Effective Date: January 1, 2018

One-time Car Registration

Chief Sponsors: Rep. Johnson

Committees: House Veterans and Emergency Preparedness, Senate Business and Transportation

Background and Current Law: In Oregon, ordinary passenger car registration currently costs \$86 every two years. The registration fee varies for other types of vehicles. Currently, there are 33 former Prisoner of War (POW) registrations.

Bill Summary: House Bill 2149 allows POWs to pay a one-time \$15 vehicle registration fee, and relieves POWs who previously paid the fee from the obligation to renew. The bill also authorizes the transfer of a valid registration to a surviving spouse of a former POW.

Oregon Laws 2017: Chapter 62

[House Bill 2690](#)

Not Enacted

Loans to Bridge Gaps in Educational Assistance**Chief Sponsors:** Rep. Evans**Committees:** House Veterans and Emergency Preparedness, Joint Ways and Means

Background and Current Law: There are a variety of federal and state programs that assist veterans with educational goals, including the Montgomery GI Bill and the Post-9/11 GI Bill, but gaps can sometimes occur when receipt of benefits is delayed.

Bill Summary: House Bill 2690 would have established the Oregon Educational and Workforce Development Bridge Loan Program in the Oregon Department of Veterans' Affairs to provide forgivable loans to eligible veterans of up to \$5,000 each in any five-year period to cover gaps in other financial assistance.

[House Bill 2880](#)

Effective Date: January 1, 2018

POW/MIA Flag Display**Chief Sponsors:** Reps. Esquivel, Evans, Whisnant**Committees:** House Veterans and Emergency Preparedness, Senate Veterans and Emergency Preparedness

Background and Current Law: Oregon law requires the Oregon state flag and the National League of Families' POW/MIA flag to be displayed with the United States flag on public buildings. Public buildings include state institutions, county courthouses and all other state buildings that the Oregon Department of Administrative Services determines are capable of displaying the three flags.

Bill Summary: House Bill 2880 expands the definition of "public building" to include county, municipal, school district, and special district buildings upon which it is customary and suitable to display the United States flag, so that the Oregon State flag and POW/MIA flag will also be displayed. The measure directs that new construction after January 1, 2018, include the infrastructure to display all three flags simultaneously.

Oregon Laws 2017: Chapter 269

[House Bill 2887-A](#)

Not Enacted

Job Tax Credit

At the request of: House Committee on Veterans and Emergency Preparedness

Committees: House Veterans and Emergency Preparedness, House Revenue

Background and Current Law: The Work Opportunity Tax Credit (WOTC) is a federal tax credit available to certain nonprofit organizations for hiring specified individuals, including veterans, who may face barriers to employment. The WOTC only applies to new employees and is a one-time credit per employer.

Bill Summary: House Bill 2887-A would have created a personal and corporate tax credit for up to three years against state income taxes for hiring qualified veterans. The credit would have been in the amount of \$750 to \$1,000 depending on the number of the business' employees, provided the employer pays at least \$1 more than the applicable minimum wage. The tax credit would have increased \$100 annually.

[House Bill 2891](#)

Effective Date: August 8, 2017

Grant Program for General Assistance

At the request of: House Committee on Veterans and Emergency Preparedness

Committees: House Veterans and Emergency Preparedness, Joint Ways and Means

Background and Current Law: The Oregon Department of Veterans' Affairs (ODVA) administers a wide variety of programs for the more than 326,000 veterans in Oregon, including their spouses and dependents.

Bill Summary: House Bill 2891 establishes the ODVA Veterans Services Grant Fund and permits ODVA, with approval of the advisory committee related to veterans, to award grants ranging from \$25,000 to \$250,000 per recipient for a variety of purposes that serve veterans. Funding may come from the General Fund, the Oregon State Lottery Fund, donations, and other sources.

Oregon Laws 2017: Chapter 664

[House Bill 2908](#)

Effective Date: August 8, 2017

Volunteer Coordinator

Chief Sponsors: Reps. Piluso, Parrish

Committees: House Veterans and Emergency Preparedness, Joint Ways and Means

Background and Current Law: Oregon is home to many dedicated volunteers who work with veterans and advocate veterans' issues. There are also a number of nonprofit entities operating in Oregon organized around serving veterans. Individual volunteers and nonprofit organizations are valuable resources and partners with the Oregon Department of Veterans' Affairs (ODVA) that connect Oregon's community of veterans.

Bill Summary: House Bill 2908 creates the position of Veteran Volunteer Coordinator at ODVA to centralize communication and coordination with ODVA's volunteer partners. The bill specifies the responsibilities of the position and requires ODVA to report to the Legislative Assembly no later than September 15, 2020, on the coordinator position and the impact of the volunteer program.

Oregon Laws 2017: Chapter 665

[House Bill 3174](#)

Not Enacted

Grant Program for Construction-Related Job Assistance

Chief Sponsors: Reps. Evans, Meek

Committees: House Veterans and Emergency Preparedness, Joint Ways and Means

Background and Current Law: A variety of employment-related assistance is available to veterans. State and federal law provide preference points to veterans and disabled veterans seeking employment in the public sector. The Oregon Employment Department operates employment centers and provides Local Veteran Employment Representatives and Disabled Veteran Outreach Program Specialists to assist veterans with education and training opportunities, searching for employment, job counseling, job development, and resume assistance.

Bill Summary: House Bill 3174 would have provided additional assistance to veterans by creating a grant program administered by the Oregon Department of Veterans' Affairs that funded pilot projects targeting the employment of veterans in construction and construction materials industries.

[House Bill 3207](#)

Effective Date: January 1, 2017

Atomic Veterans Memorial Highway

Chief Sponsors: Sens. Girod; Rep. Sprenger

Committees: House Veterans and Emergency Preparedness, Joint Ways and Means

Background and Current Law: The United States government engaged in atmospheric and underwater nuclear weapons testing from July 16, 1945, to November 4, 1962, exposing an estimated 200,000 or more United States military service members to unsafe levels of radiation. These veterans became known as atomic veterans. These veterans were unable to discuss their exposure until nuclear weapons testing was declassified many years later. Many veterans died before they could seek treatment and tell their stories.

Bill Summary: House Bill 3207 designates Interstate 5 between Albany, Oregon and Salem, Oregon the Atomic Veterans Memorial Highway.

Oregon Laws 2017: Chapter 675

[House Joint Memorial 10](#)

Not Adopted

Memorial to Congress Regarding National Guard and Reservist Benefits

Chief Sponsors: Rep. Evans

Committees: House Veterans and Emergency Preparedness, House Rules

Background and Current Law: The 2012 National Defense Authorization Act (NDAA) expanded the authority of the United States Department of Defense to deploy state National Guard and Reserve personnel to augment active duty armed forces. Oregon has no active duty military bases, but thousands of National Guard and Reserve personnel call Oregon home and mobilize when called. National Guard and Reserve personnel do not receive the same benefits as full-time service members.

Bill Summary: House Joint Memorial 10 would have urged Congress and the President to sign legislation to extend benefits to deployed National Guard and Reserve personnel similar to those received by active duty service members.